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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. FLEISCHMANN).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
November 17, 2015.

I hereby appoint the Honorable CHARLES J. ''CHUCK'' FLEISCHMANN to act as Speaker pro tempore on this day.

PAUL D. RYAN,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 6, 2015, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

WEST VIRGINIA'S DRUG EPIDEMIC

The SPEAKER pro tempore. The Chair recognizes the gentleman from West Virginia (Mr. MOONEY) for 5 minutes.

Mr. MOONEY of West Virginia. Mr. Speaker, it has been nearly 4 weeks since President Obama visited my district in Charleston, West Virginia, to discuss the ongoing drug epidemic that is plaguing my State.

West Virginia has the highest overdose rate in the country, with 29 out of every 100,000 people each year dying from drug overdoses. This is an issue that affects all West Virginians.

We all know someone who has been addicted or has been directly affected by drug abuse. Drug addiction knows no boundaries. It affects the young and the old, the rich and the poor, the Black and the White. That is why we have to do everything we can to fight back.

We have to help coordinate efforts on the Federal, State, and local levels. One of the best ways to ensure that we have a cohesive strategy is to work with the HIDTA program, also known as the High Intensity Drug Trafficking Area.

The HIDTA program was created by Congress to provide assistance to Federal, State, and local law enforcement agencies operating in areas determined to be high drug-trafficking regions of the United States.

The purpose of the program is to reduce drug trafficking and illegal drug production in the United States by doing the following:

First, facilitating cooperation among Federal, State, and local law enforcement agencies to share information and implement coordinated enforcement activities;

Second, enhancing law enforcement intelligence sharing;

Third, providing reliable law enforcement intelligence to law enforcement agencies needed to design effective enforcement strategies and operations;

Fourth, supporting coordinated law enforcement strategies which maximize use of available resources to reduce the supply of illegal drugs in designated areas and in the United States as a whole.

One of the counties in my district, Jefferson County, has recently applied to the HIDTA program. It is imperative that Jefferson County become a designated area.

On August 6, I sent a letter along with my colleagues in West Virginia, Congressman DAVID MCKINLEY and Congressman EVAN JENKINS, to Michael Botticelli, the Director of the Office of National Drug Control Policy, urging him to make Jefferson County a HIDTA area. It is of the utmost importance to include Jefferson County as a Washington-Baltimore HIDTA-designated county to help combat the growing drug epidemic not only in our State, but also in our entire country.

Jefferson County is dangerously close to three major drug markets: Washington, D.C., which is 60 miles away, right here; Baltimore, which is 70 miles away, here; and Philadelphia, which is 171 miles away. Our Interstate Highway System directly links all three areas to Jefferson County, and a traveler can reach both D.C. and Baltimore in a little more than an hour, making it incredibly easy to bring drugs into our community.

There is also a large number of tourists that visit Jefferson County each year. It is estimated that around 4.3 million visitors come to Jefferson County annually to visit a number of tourist attractions, including the Harpers Ferry National Historical Park, eight historical homes of President George Washington's family, Charles Town racetrack, Shepherd University, and many others. While Jefferson County greatly benefits from a large number of tourists, it is a growing concern that the ratio of police to visitors is growing too wide.

The most dramatic reason for Jefferson County to become a HIDTA is the high drug use statistics of the eastern panhandle of West Virginia. Cocaine use the past year is 16 percent above the national average, and nonmedical use of pain relievers is 15 percent above the national average. Illicit drug use other than marijuana in the past month is 27 percent above the national average.

It is time to act now before the situation in the eastern panhandle of West Virginia becomes grimmer. Jefferson County needs to be designated as a HIDTA county.

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THE AFTERMATH OF TERRORIST ATTACKS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, we are all horrified by the barbaric attacks in Paris designed to slaughter innocent people and inspire terror. We stand with the French people and are all committed to redoubling our efforts to ensure we keep Americans safe and intensify our efforts to eradicate these evil, sinister forces that appear almost to be a different species.

It is important, however, that we think through clearly where we are, what we have done, and what makes sense going forward to protect Americans and redouble our efforts against this enemy. We must not jump to conclusions and do something before it is carefully planned and analyzed.

I was here in the aftermath of the horror of 9/11, the killing of innocent Americans in the Twin Towers and the Pentagon, and but for the bravery of passengers on United Airlines flight 93, we might well have had our Capitol destroyed.

The Federal Government acted after 9/11, but it is not clear our actions were thought out the way they should. We assembled a clumsy behemoth, the Department of Homeland Security, the largest department we have created since 1947. In retrospect, it is not clear that was the wisest course of action. Think about the excessive bureaucracy, charges of waste, fraud, and inefficiency in that department. Look at the clumsy response to Katrina.

We passed the PATRIOT Act instead of the bipartisan legislation produced by the Committee on the Judiciary. Look at the vast, sprawling, shadowy intelligence network, so large nobody actually knows precisely how big it is. Remember, the failure of 9/11 to stop the attack was not for lack of intelligence. It was a failure to be able to use the knowledge we have. There is a danger at times of drowning in data.

The impulse to lash out led to the disastrous war in Iraq. The aftermath of that effort has done more to empower ISIS. It not only drew people to the movement, but we created a space where they can operate, grow, and lash out at us.

Now we hear what can only be described as crazy talk in the Republican Presidential primaries not just about sealing the borders, but having a religious test for refugees fleeing terror.

Remember, the 9/11 attackers did not sneak across the borders, but exploited weaknesses in our visa system. Even in Europe, it appears that most of the people involved with the attack did not sneak in, hidden with Syrian refugees. They were actually people already in Europe, radicalized and moving freely about.

It is appropriate to be concerned, angry, and determined to protect innocent people, to hunt down and eliminate these horrific threats. I just hope that we learn from our past mistakes about impulse and overreach that may not produce its intended results but, instead, may leave us with more problems and vulnerability.

Remember how a college dropout was able to expose vast amounts of sensitive American data. Edward Snowden had been a private contractor who had worked for the government just a few months.

Working in a highly charged political environment does not tend to bring out the best in Congress. We need to be careful about getting this right, that we have the support of the American people, and that Congress in a really frustrating time in American politics takes the time and energy to craft effective action. Let's try and get on the same page rather than a rapid response, which history shows is not necessarily the right response.

Decidedly, turning our back on Syrian refugees is un-American, unpatriotic, and morally weak. Turning our back on an entire population due to broad-brush characterizations of those who practice a certain faith goes against our core values as a country. I think America is better than that.

Seeking compassion for Syrian refugees can be done securely. The facts make that clear. A failure to do so would put us on the wrong side of history. It would be one of those mistakes we make under pressure and would only make us less safe rather than more.

REFORMING CFPB INDIRECT AUTO FINANCING GUIDANCE ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from West Virginia (Mr. JENKINS) for 5 minutes.

Mr. JENKINS of West Virginia. Mr. Speaker, I rise today in strong support of H.R. 1737, the Reforming CFPB Indirect Auto Financing Guidance Act.

Businesses across West Virginia's Third District are already facing hardships from the Consumer Financial Protection Bureau's rules. Those businesses that make, sell, finance, or service motor vehicles in my State are especially worried about the CFPB's 2013 rulemaking affecting their industry.

The 2013 rule could raise credit costs and push consumers out of the marketplace entirely. It should be consumers, not government bureaucrats, deciding what works best for them.

This bill would rescind that flawed rule and replace it with commonsense guidance for transactions related to indirect auto financing. The bill would give consumers, especially those with low and moderate incomes, a chance to receive the best financing options available for them to purchase a new auto vehicle.

I fully support passage of this bill and hope we can continue to work in a bipartisan fashion to reform CFPB rulemaking.

REACTING TO THE TERRORIST ATTACKS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. GUTIÉRREZ) for 5 minutes.

Mr. GUTIÉRREZ. Mr. Speaker, we are shocked, horrified, and deeply saddened by the news coming from Paris. As a member of the Permanent Select Committee on Intelligence, I know there is much to fear, both for our allies and for us.

But in light of the attacks on our ally France last Friday, I urge my colleagues to keep a cool head and not to react exactly the way that ISIS and other terrorists hope we do, with fear, with chaos, and with lashing out. But, sadly, that is what we have already seen Republican Governors, elected leaders, candidates, and media figures do.

I have been here long enough to know a thing or two about opportunism. Maybe it is too much to resist when you are one of 15 candidates for President of the United States. Politicians, pundits, and celebrities will be tempted to say whatever they can to get the news cameras pointed at them.

The Governor of Illinois, my home State, could not resist saying our State was closed to Syrians fleeing the terror of ISIS and the Assad regime. The Governor of Louisiana, the son of immigrants, running for President of the United States, a nation of immigrants, said ''no'' to refugees. The Governors of a dozen other States did so, too. A Senator whose parents came as refugees from Cuba fleeing there has said ''no,'' too.

This is despicable and cowardly and precisely the kind of reaction ISIS wanted. ISIS could not have written a better script. The free people of the world are turning their backs on people seeking safety and freedom. When we sent Jews back to Germany and when we sent Japanese to internment camps, we regretted it, and we will regret this as well.

We have had candidates actually say that refugees seeking safety in the strongest nation in the world must first pass a test to prove they are from an acceptable religion. In the United States of America they said this. In the 21st century. An acceptable religion in America.

Now, of course, the Governors of Illinois, Texas, and Louisiana, and most of the other States that are scared of ISIS, are Republican. Because it is a Federal matter, they are overstepping their powers with executive orders because they cannot actually stop refugees from resettling in their States, and they know it. How sad.

□ 1015

Instead, they have instructed State agencies not to assist people fleeing terror. We are a better country than that.

No matter how scared Republican leaders become, we must not abandon our commitment to being a nation

without equal in a world, a nation that does not fear or shy away from any challenge. It is our commitment to religious equality and the freedom to worship as we please that has made us a great nation. And this is no time to abandon that tradition.

Our bravery, the bravery of our military, and the bravery of our commitment to freedom and equality have shown for almost 250 years what American exceptionalism is truly all about.

It is not the time to lose sight of ourselves and say America is too weak, that America cannot handle 20,000 or 200,000 refugees fleeing for their lives. It is not the time for America to consider raising the white flag and say to those waving the black flag: ''Yes, ISIS, you are right. We dislike and fear Muslims, and we do not care if you perish or not.''

A lot of us love this country too much to see it abandon core principles and values because religious extremists commit acts of terror designed precisely to terrorize us.

On Thursday, the Immigration Subcommittee will hold a hearing on refugees from Syria and the Middle East, as well it should, but you can already imagine what we will hear. Republicans will most likely raise fears that Muslim terrorists disguised as refugees would somehow pass exhaustive criminal background checks because they have been lying in wait in those camps overseas for years on the slim chance they could do damage to America. They will raise suspicions, instill fear of Muslims, maybe even fear of a President they have been saying is a Muslim, and it will probably be a pretty sad display.

Let us as legislators, leaders, and patriots rise above petty politics, rise above sectarian fears, and rise above the underlying layer of xenophobia that often surfaces in this country at moments like this throughout our history. And let us maintain America's commitment to being a beacon of hope for those fleeing oppression, violence, and intolerance.

A haven for the religiously persecuted, whether they are Buddhists from Tibet, Christians from Iran, or pilgrims from Europe, is who we are. We are a nation that lives by the motto: ''Out of many, one.'' We will not run in fear from that motto today or any day. This is America.

CALIFORNIA HIGH-SPEED RAIL BOONDOGGLE

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. LAMALFA) for 5 minutes.

Mr. LAMALFA. Mr. Speaker, as a Californian, I know full well that we are suffering from a record drought; but what we already know is that California officials pushing the State's high-speed rail proposal won't be deterred by skyrocketing costs, an absence of private investment, or the $55 million—and growing—funding gap. What we didn't know was the extent of secrecy and mismanagement taxpayers would face at the hands of State officials pushing this project.

Just this month, we learned that in 2013 the agency's main contractor projected that the first phase's costs had risen 31 percent. This information was concealed by the High-Speed Rail Authority and only released 2 years later after pressure from Congress.

While the lack of transparency is unacceptable, especially given that taxpayers are ultimately on the hook for this project, the fundamental issue here is that the entire project is a ruse—in literal terms, a train wreck—in that State officials knew this for some time and that those same officials hid this from the public.

In 2008, voters were promised an 800-mile system that would link Sacramento, San Francisco, Los Angeles, and San Diego, cost about $34 billion, and would have less than one-third of the costs paid by the State through its taxpayers. The system was promised to travel from San Francisco to Los Angeles in under 2 hours and 40 minutes.

Fast forward to 2011 when the price had shot up from $34 billion to $100 billion, the plan was reduced to only L.A. to San Francisco, and the State was quick to grab billions of—unknown at the time—Federal stimulus that came along later, funding that could have been used for critical needs like roads or water infrastructure that California needs so desperately, as well as now shifting cap-and-trade dollars recently created to try and prop up high-speed rail and its deficient budget dollars.

As a State senator at the time, the first bill I introduced was one that would require them to come up with the ultimate full plan of the cost of doing high-speed rail. Having not succeeded in getting that through a majority that still liked it as it was, my next legislation was to say, now that we know this is over $100 billion, let's put this back on the ballot and in front of the voters, since the price has tripled and they were deceived at what it would cost at the time. That, too, met defeat, as those in the majority still wished to continue this boondoggle.

Today, the Governor claims the price has fallen to $68 billion for what would be an illegal system, based on what the voters passed under Prop 1A. However, the estimate ignores the costs of tunneling through the Tehachapi Mountains, ignores cost spikes in the initial construction segment, and ignores the rising costs of lands acquisition due to people having to fight because they are having their homes, their farms, and their small businesses paved over by this project.

The promises made in 2008 ranged from low ticket prices to questionable job figures, including the fact that they were claiming there would be a million new jobs from high-speed rail. When we pinned them down in committee a little bit later, they said, well, that would mean a million job-years. That number has since been pared down. All these have been proven false. In fact, these claims are so misleading that a State court has forbidden the legislature from writing ballot measure descriptions.

Earlier this week, I sent out a survey to residents in my weekly e-newsletter to constituents in California's First District, my own district, asking them to share their thoughts on high-speed rail as it is now. I listed a number of suggested actions we could take on high-speed rail, from leaving it as is to defunding it, and asked which best represents our constituents' position on the project now.

Of the nearly 1,600 answers we received, their views are pretty clear. Nearly half of them said they thought funding for high-speed rail should be redirected to invest in water storage and water infrastructure to help our State right now in this drought.

About 20 percent thought the State should subpoena the cost documents and require High-Speed Rail Authority officials to testify why the figures were concealed. Approximately 18 percent thought California's high-speed rail should undergo Federal investigation in response to these allegations, given that the project involves the use of Federal funds. A scant 7 percent thought we should keep going forward with high-speed rail and believed the current price tag is a worthwhile investment of public funds. Lastly, 4 percent supported investing in high-speed rail, provided the project stayed within the old constraints, the old prices—the ones they saw on the ballot. So, at best, you see 11 percent that might support high-speed rail and 4 percent that might under the old price, which is nowhere near what was projected.

People don't like this project, don't trust those advocating for it, and they deserve better than to see their own tax dollars used to lie to them. No new Federal dollars will come from here to help this project be propped up anymore.

It is time we start prioritizing funding for projects that actually address real problems facing California, such as the current drought. It is time to apply common sense to this situation. We have a State whose economy depends on a sound water supply, yet in the midst of a historic drought, we are still chasing this high-speed rail boondoggle.

Rather than throwing billions of dollars away, let's get to what people demand and will help our economy and the people of California.

CONGRESSIONAL RESEARCH SERVICE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. QUIGLEY) for 5 minutes.

Mr. QUIGLEY. Mr. Speaker, when the average American wants to learn about a policy, where do they turn for

information? Often, the answer is the 24-hour news cycle, often filled by talking heads and sensationalism; or, to social media and message boards, where anyone can post anything—credible or completely misinformed.

The American public is no longer being informed by the likes of Walter Cronkite and Edward Murrow, and it is making our public debate increasingly partisan, polarized, and misinformed.

What few realize or like to admit is that there is a way Congress can help elevate the debate and educate our constituents with neutral, unbiased, nonpartisan information from the Congressional Research Service, or CRS.

For over 100 years, CRS has served as Congress' publicly funded think tank. Because they serve policymakers on both sides of the aisle, CRS researchers produce exemplary work that is accurate, nonpartisan, and easy to understand.

Despite the fact that CRS receives over $100 million from taxpayers each year, its reports are not made available to the public. Instead, constituents must request individual reports through a congressional office. This has led to several undesirable consequences.

Well-connected lobbyists have the easiest access to these reports, unlike the average American. Second, while nonprofits make some reports available online, there is no guarantee that they will remain available and up-to-date. And most outrageously, a small industry has sprung up reselling these reports for exorbitant fees. In other words, businesses are making a profit by selling publicly funded work, work that ultimately belongs to the people.

Keeping these reports in the hands of Congress and beltway insiders is selfish and indefensible. I understand that allowing the public to access these reports will not answer all the questions constituents have about the work that happens on Capitol Hill, but it underscores the broader need for increased transparency in Congress and government.

Public trust in government has reached historic lows, causing too many Americans to simply give up on Washington and the mission of government. The best way to rebuild the public's trust and promote a more efficient and effective government is by furthering government accountability through increased transparency.

It is time to recognize that educators, students, media, and everyday citizens deserve access to CRS reports and that this access gives our constituents vital information about the issues, policies, and budgets we are debating here in Congress.

That is why Congressman LANCE and I introduced H. Res. 34, which directs the Clerk of the House of Representatives to maintain a centralized public database for nonconfidential CRS reports. This resolution gives the public tools to cut through the misinformation they face, gives them access to something they are already paying for, and empowers the American people to hold Congress accountable for the decisions we make.

The steps toward a more open and transparent government may seem modest to some, but, in reality, they have a huge impact on how government serves the people. The mission of government matters, and if we are truly here to serve the people, then we owe it to them to operate in an open and transparent manner.

Let's give the public the information we are basing our decisions on. I urge my colleagues to stand up for transparency and accountability by supporting H. Res. 34. Information is power, and that is exactly what the American people deserve.

NATURAL GAS EXPANSION IN CENTRAL PENNSYLVANIA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise in recognition of the efforts of the Susquehanna Economic Development Association's Council of Governments, otherwise known as SEDA–COG, in working to expand the availability of natural gas in areas across central Pennsylvania.

Mr. Speaker, natural gas is not only produced right here in the United States of America, but it is also economical and versatile, with uses that range from home heating to cooking and drying clothes.

While Pennsylvania sits on one of the largest natural gas reserves in the Nation, many areas of the State are unserved or underserved by natural gas providers. Converting to natural gas can lead to big savings for consumers who currently rely on other home heating fuels such as propane and oil.

To help address this issue, SEDA–COG's $160,000 pilot project will provide natural gas to these areas in order to attract manufacturers and to give homeowners the option to connect. To do that, this organization has joined with gas suppliers such as UGI Utilities and Columbia Gas of Pennsylvania, starting with at least three projects in central Pennsylvania that will expand natural gas access to hundreds of potential users.

In addition, the project will focus on the sustainability of delivering natural gas through ''virtual pipelines,'' where compressed gas would be delivered by a truck to be used by large commercial businesses located nearby.

If successful, SEDA–COG officials say that they could expand this model to fuel users connected by a small pipeline network, including residential areas such as housing developments.

Mr. Speaker, I commend the innovative spirit of SEDA–COG and its partners, and I look forward to learning more about how these projects could benefit other areas of Pennsylvania.

130TH ANNIVERSARY OF DUBOIS BUSINESS COLLEGE

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today in honor of the 130th anniversary of the DuBois Business College, which has several campuses located in Pennsylvania's Fifth Congressional District.

The college was founded in 1885 by a local businessman who recognized a need for skilled businessowners, operators, and employees. The school's original location was once known as the largest building in America devoted exclusively to commercial education.

□ 1030

In the many years since, DuBois Business College has expanded not just to a new location in DuBois, but also to include branch campus locations in Oil City, Philipsburg, and Huntingdon.

Today the college has a student body of more than 400 and offers a variety of associate's degree and diploma programs, all of which can be completed in less than 2 years. This provides a quick transition for students into the workforce.

Mr. Speaker, I am honored to welcome administrators and students from DuBois Business College to Capitol Hill today. I look forward to congratulating them in person, and I wish them well in their continued success.

RESTORATION TUESDAY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Alabama (Ms. SEWELL) for 5 minutes.

Ms. SEWELL of Alabama. Mr. Speaker, today is Restoration Tuesday. I rise today to support voting rights for all Americans.

I was proud to stand alongside Members who support the restoration of the Voting Rights Act of 1965 recently and to launch the #restorethevote legislative strategy. This national effort will help mobilize support for H.R. 2867, the Voting Rights Advancement Act of 2015, a bill that I sponsored with Representatives JUDY CHU and LINDA SÁNCHEZ to restore critical Federal oversight to jurisdictions who have a recent history of voter suppression.

Since elections are held on Tuesdays, every Tuesday that Congress is in session, like today, we will declare it to be Restoration Tuesday. So today I am speaking on the floor of the House of Representatives on the need to restore the Voting Rights Act of 1965.

Our call for restoring the VRA is urgent, Mr. Speaker. As our colleague JOHN LEWIS so eloquently says, there is no other work more important in this or any Congress than protecting the full access of all Americans to the democratic process.

If we do not act, the 2016 election will be the first Presidential election in 50 years without the protections offered to millions of voters by the Voting Rights Act of 1965. We must act now.

I therefore urge all of my colleagues from both sides of the aisle, my Republican and my Democratic colleagues, to

join me on Tuesdays and speak in support of the Voting Rights Act and to sign onto the Voting Rights Restoration and Advancement Act of 2015, which restores key components of the Voting Rights Act of 1965.

Ultimately, this bill, H.R. 2657, will restore key components of the Voting Rights Act of 1965. The bill will provide more protection to more people in more States. It is about broadening, expanding, advancing the Voting Rights Act.

Nothing is more American than voting. So every Tuesday Congress is in session we will be wearing the #restorethevote pin. The red, white, and blue pin is a symbol of our unwavering commitment to restoring the voices of the excluded, ending discriminatory practices, and providing transparency in the voting process.

Fifty years ago, in 1965, President Lyndon Johnson signed the Voting Rights Act into law. His voice and his words still resonate today. The vote, he said, is the most powerful instrument ever devised by man for breaking down injustice.

The Voting Rights Act of 1965 was pivotal in preventing voter discrimination and preventing it from occurring across the United States. The act gave millions of African Americans a voice, a voice that has been heard throughout our Nation for nearly 50 years.

Now the Voting Rights Advancement Act will expand that not just to African American voters, but to all voters. That is exactly what we should be about. We should be about expanding voting rights opportunities so that all Americans are protected.

As a daughter of Selma, Alabama, I am painfully aware that the injustices suffered on the Edmund Pettus Bridge 50 years ago have not been fully vindicated. As States across the country are passing laws to restrict access to the ballot box, we are ever mindful that old battles have indeed become new again.

The recent decision by the State of Alabama, for example, to close 31 DMV offices in majority Black counties in spite of Alabama's photo ID law is just one example of a modern-day barrier to voting.

The Supreme Court issued Congress a challenge in the Shelby decision. It didn't say that pre-clearance was unconstitutional. Rather, it said: Congress, come up with a modern-day formula to address modern-day barriers to voting.

Well, this example in Alabama of 31 DMV offices closing when indeed the State requires a photo ID and a driver's license is the most popular form of ID is one example.

These counties that were discriminated against by this recent law in Alabama were the very counties where foot soldiers and activists like Jimmie Lee Jackson and Jonathan Daniels died for the opportunity and the right for others to vote. If Federal pre-clearance provisions were still in effect, these DMV closings would not have occurred.

To restrict the ability of any American to vote is an assault on all Americans' equal participation in our electoral process. No one benefits when American voices are silenced at the polls.

Mr. Speaker, I applaud certain States like the States of California and Oregon, two States that are now automatically registering citizens who request a driver's license to actually vote.

So, Mr. Speaker, on this Restoration Tuesday, I am asking all of my colleagues to join me in support of H.R. 2867, the Voting Rights Advancement Act, and I am asking all Americans to join us in our efforts for #restorethevote and #restorationtuesday.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Ms. Wanda Neiman, one of his secretaries.

HANFORD LAND TRANSFER

The SPEAKER pro tempore. The Chair recognizes the gentleman from Washington (Mr. NEWHOUSE) for 5 minutes.

Mr. NEWHOUSE. Mr. Speaker, I rise today to recognize the opening of the Manhattan Project National Historical Park, a significant part of which is in my Congressional District in the State of Washington.

Decades of successful cleanup efforts at the Hanford nuclear site have come to fruition with the dedication of the historic B Reactor as a part of this national park. The B Reactor was the world's first full-scale plutonium production reactor, helping our country end World War II and the cold war.

The new park will highlight the sacrifices and the contributions of thousands of workers who built the facility and the scientists whose groundbreaking research played a critical role in the Manhattan Project.

More than 50,000 visitors have toured the site since 2009, and the park will attract thousands more to learn about our region's history. The park will provide future generations with a unique educational experience.

I applaud the efforts of the community who has worked for years to make this national park a reality. I will continue to support the opening of additional sites for public access in order to preserve and tell the story of Hanford.

NOHEMI GONZALEZ AND THE ATTACKS ON PARIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. LOWENTHAL) for 5 minutes.

Mr. LOWENTHAL. Mr. Speaker, the people of France and the people of the United States have shared a common bond of liberty and equality for over 200 years. In the face of the recent terrorist attacks in Paris, that bond brings us now even closer in unity and in solidarity.

We stand with the French people as they mourn. We stand with the friends and families of those who were killed, like Nohemi Gonzalez, a young California State University, Long Beach, student studying abroad in Paris.

We also stand with our Cal State, Long Beach, family in their mourning. Nohemi's death is a very personal loss for each and every one of us. It tears at the very bonds of fraternity that embrace every member of our Cal State, Long Beach, family and the Long Beach community.

Nohemi was a daughter, a friend, and a mentor. Just 23 years of age, she was a vibrant student and what those who knew her have called ''a shining star.''

Nohemi committed herself to learning. She traveled across the globe to express and to explore her talents, her creativity, and the world. Now all that seems broken.

Yes, we grieve for Nohemi. But we also grieve for all the victims in Paris. We grieve for their families, their friends, and all their loved ones. We grieve for each and every one of them.

Today we are all part of the human family. As a family, we mourn Nohemi Gonzalez, our shining star. But in our mourning, let us remember something very, very important.

This was not an attack on Paris, though Paris was the target. This was not an attack on the French people, though the French people were the target. This was an attack on what unites us, our shared humanity and our shared values of liberty.

In that humanity, in those values, we will find the strength to stand strong in the face of senseless violence because, in the end, humanity that unites us is what frightens those who would do us harm.

ISLAMIC EXTREMISM ATTACK

The SPEAKER pro tempore. The Chair recognizes the gentleman from Kansas (Mr. YODER) for 5 minutes.

Mr. YODER. Mr. Speaker, America and her allies are under attack by Islamic extremism. The despicable act of terrorism the world witnessed over the weekend in Paris, France, serves as a stark reminder that the threat posed by ISIS knows no borders.

French officials have indicated that at least one of the Paris attackers linked to ISIS was admitted into Europe as a refugee from Syria. Nevertheless, the administration has made it clear that, in spite of this, it will continue to seek to bring up to 10,000 Syrian refugees to America in the coming year.

The President's refugee proposal places the interests of other nations ahead of the safety and security of the American people. Because we are unable to verify whether the next

attacker is within their midst, we must halt the flow of any refugees into the United States from Syria.

Mr. Speaker, in light of these attacks, now is not the time to open our borders to refugees from countries who wish to do our citizens harm. Congress stands ready to legislate or use the power of the purse should this administration refuse to change course on this misguided policy.

HONORING RETIRED U.S. ARMY MASTER SERGEANT JACK C. HARLAN, JR.

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. LAHOOD) for 5 minutes.

Mr. LAHOOD. Mr. Speaker, I rise today to honor retired U.S. Army Master Sergeant Jack C. Harlan, who received the Military Order of the Purple Heart on Veterans Day last week in Peoria, Illinois.

I was privileged to pin the medal on the lapel of Master Sergeant Harlan's dress blues in front of hundreds of spectators and veterans gathered at Peoria's World War I and World War II memorial.

The veterans event, held annually to honor our servicemen and -women, this year brought a special opportunity to witness Master Sergeant Harlan receive his distinguished medal. It had been approved recently by John McHugh, our Secretary of the Army.

Master Sergeant Harlan has 18 years of service to our Nation, carrying out tours in Afghanistan and Iraq. While on deployment for Operation Iraqi Freedom in 2007, a vehicle carrying Master Sergeant Harlan and a small transition team on combat control was suddenly struck by an IED.

□ 1045

Harlan was knocked unconscious from the blast and suffered concussive injuries from the attack.

Mr. Speaker, Master Sergeant Jack Harlan is a son of central Illinois and has served our country with valor. He has since been honorably discharged from the United States Army and has returned home to help serve his fellow veterans. We honor him with this Purple Heart.

CELEBRATING THE LIFE AND HONORING THE MEMORY OF GUNNERY SERGEANT HENRY ''HANK'' GREEN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. JOLLY) for 5 minutes.

Mr. JOLLY. Mr. Speaker, I rise today to celebrate the life and honor the memory of Gunnery Sergeant Henry ''Hank'' Green. Hank passed away on November 5 at the age of 95.

Mr. Speaker, Hank was one of the first marines to land on Guadalcanal as a member of the First Marine Raider Battalion known as Edson's Raiders. He was recognized for his bravery during the battle known as Bloody Ridge in September 1942 when he took over a machine gun where his closest friend had lost his life. Hank then laid siege throughout the night firing at, in his words, ''anything that moved.''

During this heroic post, Mr. Speaker, Hank was wounded three times, and he was eventually awarded the Purple Heart.

Hank would go on to see combat in three more locations near the Solomon Islands before being discharged as a gunnery sergeant in 1946.

Upon his return home from war, Hank worked with his father-in-law at H&H Auto Parts in Canton, Ohio, where he grew the business into two very successful locations. In 2002, Hank retired to Florida, first moving to Fort Myers and then making his final home in St. Petersburg.

Mr. Speaker, Hank was a well-known and well-respected man who had an infectious love of baseball. He served his country with distinction, made a lasting impact on his community, and will be sorely missed by the lives he touched.

May God bless Hank, his family, and friends. And may God bless the country Hank so proudly fought for: the United States of America.

FAIRNESS TO VETERANS FOR INFRASTRUCTURE INVESTMENT ACT OF 2015

The SPEAKER pro tempore. The Chair recognizes the gentleman from South Carolina (Mr. CLYBURN) for 5 minutes.

Mr. CLYBURN. Mr. Speaker, I rise today to express my strong opposition to H.R. 1694, which was debated by this House under the suspension of the rules yesterday.

H.R. 1694 purports to be about fairness to veterans. Well, Mr. Speaker, there is nothing fair about pitting veterans against women- and minority-owned businesses for an already meager goal of 10 percent of Federal highway and transit construction contracts.

If the sponsor of H.R. 1694 really wanted to create a new veterans preference system at the Department of Transportation, he would have worked with Mr. CUMMINGS and Ms. NORTON when offered the opportunity to do so over a year ago. If my colleague really wanted to create a new veterans preference system, he would have cosponsored legislation to establish a specific and separate contracting goal for veteran-owned small businesses through the creation of a veteran-owned business enterprise program.

The gentleman from Pennsylvania has done neither. Instead, he chose to put forth legislation that threatens to inflict irreparable harm on the entire Disadvantaged Business Enterprise program by opening it up to additional legal challenges and undermining its core purpose. The DBE program was created by Congress to combat discrimination against minority- and women-owned small businesses. It is and must remain narrowly tailored to serve a compelling governmental interest in order to withstand the Supreme Court's test of strict scrutiny.

While I support the sponsor's stated goal of helping veterans and, more specifically, helping veteran-owned businesses compete for Federal highway and transit construction contracts, I reject the notion that the best way to do so is by undermining the Disadvantaged Business Enterprise program.

Mr. Speaker, this is not a zero-sum game. We do not need to pit these two constituencies—both of whom continue to suffer through disproportionately high unemployment rates—against each other. We can and should help both veteran and disadvantaged businesses succeed.

That is why I joined Representatives CUMMINGS, NORTON, BROWN, and BUSTOS in sponsoring H.R. 3997, legislation that would create a new veteran-owned business enterprise program at the Department of Transportation that is wholly separate and apart from the existing DBE program. It is the better and more direct way of helping veteran-owned businesses compete for Department of Transportation contracts, and it does so without harming the Disadvantaged Business Enterprise program.

Mr. Speaker, I urge my colleagues to vote ''no'' on H.R. 1694.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 50 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Compassionate God, we give You thanks for giving us another day.

As the Members of the people's House regather, we ask that they be endowed by Your spirit with wisdom and purpose to address the issues facing our Nation. There is great disagreement about what we are called to in these days, when perhaps the greatest need is a sense of unified focus. Help them to leave behind rancorous accusation so that the dangers that threaten us all can be responsibly addressed together.

We ask Your blessing upon the people of France, Lebanon, Nigeria, and so many other nations coping with the horrific aftermath of terrorist attacks

within their borders. Protect those who work furiously to meet the needs of those most impacted by these events, and bless those who mourn the loss of loved ones.

And finally, as all such serious matters press upon us, engender in us thankful hearts for the blessings we have enjoyed and which we possess today.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentlewoman from Indiana (Mrs. BROOKS) come forward and lead the House in the Pledge of Allegiance.

Mrs. BROOKS of Indiana led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

STOP THE FLOW OF SYRIAN REFUGEES

(Mr. SAM JOHNSON of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SAM JOHNSON of Texas. Mr. Speaker, President Obama needs to stop immediately any flow of Syrian refugees into America. Top law enforcement officials have made it clear: We don't know who these people are, and we don't have the capability to vet them. With last Friday's ISIS attacks in Paris that did include a Syrian refugee, this halt is imperative.

We cannot allow terrorism to slip through the cracks. That is why I am a cosponsor of H.R. 3314, a bill to stop the admission of refugees into the United States. We must do all we can to protect our homeland. Stopping these people from coming here is the right and commonsense thing to do.

Mr. Speaker, the President has a duty to protect America. If he doesn't stop risking our security, then we in Congress must make him stop.

CONDOLENCES TO FRANCE

(Ms. KELLY of Illinois asked and was given permission to address the House for 1 minute.)

Ms. KELLY of Illinois. Mr. Speaker, I rise this morning to express my condolences and support to our allies in France after last week's attacks on civilians in Paris, an act that is undeniably the work of cowards.

Our hearts go out to the victims and their families, but there is comfort in the knowledge that France will rebound, and we will continue to stand by their side. They are resilient. No act of terror can shake the resolve of the French people to live free, and nothing and no one will intimidate France from living prosperously.

I want the people of France to know the American people and this Congress stand in solidarity with you. I say this in full faith and confidence to the cowards who plot against innocent civilians and the principles of freedom. No act of terror will usurp the principles of liberty, equality, and brotherhood.

In addition to France, innocent lives were lost in Beirut and Nigeria. We have terrorist violence and killing all over the world. As a member of the Foreign Affairs Committee and a proud American, I strongly believe we need to strengthen the international coalition in order to create a united front to combat terrorist forces that serve to undermine peace and democracy.

GLOBAL WAR ON TERRORISM STRIKES PARIS

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, I join with my colleague from Illinois. This is certainly a bipartisan issue.

On Friday, the world watched in horror as Paris endured multiple murderous attacks by Islamist radicals. My thoughts and prayers go out to the citizens of France, the oldest ally of the American people.

I know it is certain that the French values of liberty, equality, and fraternity will never weaken in the face of terror. President Francois Hollande yesterday reminded the world that France is a country of freedom.

In the last month of the global war on terrorism, Daesh, or ISIL, has murdered 244 on a Russian jetliner, 41 have been murdered in Beirut, Lebanon, and now 129 were murdered across Paris, with a direct threat to attack Washington and Rome. The President should change course to eliminate safe havens for Islamist radicals.

Terrorists are trying to break our will with acts of cruel cowardice, but they are mistaken. We will fight together to protect our values and to protect American families.

As co-chair of the French Caucus, and of French heritage, I especially appreciate our friendship with the citizens of France.

In conclusion, God bless our troops, and may the President, by his actions, never forget September the 11th in the global war on terrorism. France is the latest direct target in the global war on terrorism.

RECOGNIZING RON BROWN

(Mr. SWALWELL of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SWALWELL of California. Mr. Speaker, I rise to recognize Ron Brown of Walnut Creek, California. After 15 years of service to Save Mount Diablo and over 40 years in the nonprofit sector, Ron has announced his retirement at the end of 2015.

Under his leadership, Save Mount Diablo grew from a modest staff of 3 to its current staff of 18 people. It has participated in land use advocacy, land purchase for inclusion in parks, and relationship building with local government and developers, all with the objective of preserving the ecosystem that supports the Mount Diablo region. This has resulted in $25 million raised to preserve thousands of acres of land.

Ron now looks forward to dedicating his time to enjoying the land he has worked so hard to protect. He will soon spend many days fishing and camping with his grandchildren.

Community members from across the East Bay will be gathering this week to recognize Ron and celebrate the contributions he has made.

Congratulations, Ron, on a remarkable and impactful career that has positively changed the landscape of the East Bay.

AMERICAN EDUCATION WEEK

(Mr. COSTELLO of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I rise today to recognize the 94th annual American Education Week and give thanks to the teachers and staff who dedicate themselves to the success and advancement of our children.

Mr. Speaker, as the son and brother of a public schoolteacher, I am proud to cosponsor H. Res. 527, which supports the goals and ideals of American Education Week.

For our public schoolteachers, what they do each and every day is more than just a job. It is a dedication to improve the lives and nourish the minds of their students and to strengthen the communities in which they live and work.

American Education Week is just one small way we can recognize the service of our public schoolteachers. Teachers are a part of the building blocks of a healthy republic.

To our schoolteachers and staff, I rise today to say thank you for all you do day in and day out.

HONORING NOHEMI GONZALEZ

(Ms. LINDA T. SÁNCHEZ of California asked and was given permission

to address the House for 1 minute and to revise and extend her remarks.)

Ms. LINDA T. SÁNCHEZ of California. Mr. Speaker, it is with a heavy heart that I rise today to honor the memory of a young, bright student who was taken from this world far too soon.

Nohemi Gonzalez, a 23-year-old design student at California State University, Long Beach, was one of the many innocent victims who were tragically murdered in the Paris terrorist attacks on Friday, November 13, while she dined at a restaurant with three friends who were all students at California State University, Long Beach. She was in Paris for a semester abroad, studying at the Strate College of Design.

Nohemi grew up in my district, in Whittier, and graduated from Whittier High School. She was a first-generation Mexican American student who was passionate about design and life. Nohemi was a talented student, a star in the design department, and she inspired and touched the lives of many. In her own words, she was high-spirited, orderly, and self-driven. She had a bright future ahead of her.

I know it is not enough, and it will never be enough, but I hope that Nohemi's family and friends can find some solace in the outpouring of love and support from our community. We grieve for and with you.

At this time, I would like to ask my colleagues to take a moment today to honor Nohemi, the 131 other victims, and those who are in critical condition still fighting for their lives.

REMEMBERING BRUCE DAYTON

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Mr. Speaker, Minnesota lost a leader, a philanthropist, and a pillar in the community with the passing of Bruce Dayton this past week. Many will remember Bruce for his role in taking the family-owned Dayton's Department Store public and turning it into Target, the major brand that we know today, but there were many more sides to Bruce.

For one, Bruce was a long-time patron of the arts, donating more than $80 million and 2,000 works of art to the Minneapolis Institute of Art. I had the opportunity and privilege of serving as a trustee with Bruce at the Institute, where I saw his legacy of generosity. He also donated land to conservation efforts in our State. Bruce's civic-mindedness and business visions are reasons why the Minneapolis Star Tribune said he helped ''build a modern Minnesota.''

Mr. Speaker, the passing of Bruce Dayton is a loss for all of Minnesota, and I offer my condolences to Governor Dayton and everyone in the Dayton family.

SOLAR INVESTMENT TAX CREDIT

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, since Congress passed the solar investment tax credit in 2005, solar installations have grown by 1,600 percent, Americans have invested $72 billion in solar, and 8,000 businesses in all 50 States have created 160,000 jobs in the solar industry.

Much of this economic success story is due to the investment tax credit, which is scheduled to expire at the end of next year. If the investment tax credit expires, the solar industry could see a 71 percent decline, needlessly costing the American economy 100,000 jobs.

This uncertainty is already affecting the market. Consumers need confidence in the tax policy before they decide whether to make an investment into the solar industry. I ask my colleagues to join me in urging the Ways and Means Committee to expeditiously prioritize a long-term extension of this critical, job-creating tax incentive.

TERRORIST ATTACKS IN PARIS

(Mr. MURPHY of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MURPHY of Pennsylvania. Mr. Speaker, the recent terrorist attacks in Paris are a stark reminder that we cannot risk the safety of our country.

I am asking Pennsylvania Governor Wolf to suspend the Commonwealth's participation in the President's Syrian refugee resettlement initiative. The administration has not provided any details of a thorough screening plan to thwart ISIS infiltration.

Meanwhile, the Director of National Intelligence, the Director of the FBI, and the Secretary of Homeland Security have told Congress they cannot properly screen refugees coming from Syria and the surrounding regions for national security threats.

We have an obligation to protect Americans from those who seek to take advantage of our generosity at the expense of innocent lives.

The President and Governor are pushing to make America the home for tens of thousands of refugees. We have 50,000 homeless veterans within the USA and 1,500 in Pennsylvania. If we want to welcome someone home, let's start instead with our homeless veterans.

□ 1215

SMALL BUSINESS STRATEGY

(Mr. ASHFORD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ASHFORD. Mr. Speaker, I rise today in support of Small Business Saturday. Small Business Saturday takes place every year the Saturday after Thanksgiving. This event is an opportunity for Americans to reinvest in our communities by supporting our local businesses. Small businesses are the lifeblood of our local economies and a key to unlocking the American Dream.

As a former small-business owner, I know the value that small businesses bring to our local communities. My family owned and operated the Nebraska Clothing Company in Omaha for generations. This experience taught me the importance of the entrepreneurial spirit to our economy and our communities.

Nebraska is the proud home of over 166,000 small businesses. Nearly half of all working Nebraskans are employed by local companies.

Beyond the facts and figures, small businesses are essential to the health of our communities. Local companies have local ties. They hire local employees, contribute to local causes, and provide a high level of personal service.

This holiday shopping season we have an opportunity to show our appreciation for small businesses. I encourage all Americans to get out and support Small Business Saturday on November 28.

REMEMBERING ABDUL-RAHMAN KASSIG AND THE NEED TO STAY VIGILANT AGAINST ISIS

(Mrs. BROOKS of Indiana asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. BROOKS of Indiana. Mr. Speaker, on Friday the world again was shocked and stunned when eight gunmen wreaked havoc on Paris, the City of Lights. The day before a pair of suicide bombings struck Beirut, and today we learned that the Russian passenger plane carrying 224 innocent people that crashed last month was blown up using a homemade explosive device.

Violent extremism can't be contained in far-off places. It is a cancer that will inevitably spread across the globe, dividing our societies, undermining our personal security, and sparing none from the true definition of terror.

One year ago yesterday violent extremism touched my home State of Indiana. Abdul-Rahman Kassig, a 26-year-old humanitarian aid worker from Indianapolis, was mercilessly killed by the ISIS coward known as Jihadi John.

Abdul-Rahman is exactly the type of person that ISIS is targeting in hopes of expanding their caliphate, an apolitical medical aid worker committed to treating the wounded and bringing some sense of relief to the 7.6 million displaced Syrians in Lebanon and Syria.

The Islamic State's twisted ideology will not allow it to cease until our entire way of life is destroyed. That is why it is absolutely vital that the United States redouble our efforts to take the leadership role that the world

demands of us, develop a strategy that will not just degrade, but will ultimately destroy, the ISIS network. Abdul-Rahman and the victims of terror and their families deserve this, and the security of our Nation depends on it.

OUR NATION IS A NATION OF IMMIGRANTS

(Mr. CÁRDENAS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CÁRDENAS. Mr. Speaker, I rise to praise our Nation, a Nation of hundreds of years of immigrants. Since the Mayflower landed full of pilgrims seeking religious liberty, we have been a land built by immigrants.

Today in this great country 5 million immigrant kids and their parents know no other country. They are working hard building our Nation, their Nation. They are our new Plymouth Rock. They are the foundation on which we will build the next generation of our country.

Now three Justices have decided to block that generation, but if our Nation stays true to itself, that won't last long.

One year after our President took action, I urged the Supreme Court to approve President Obama's immigration policy. If you want to work hard and help keep building this great Nation of ours, this Nation of immigrants, you are welcome.

FUTURE FARMERS OF AMERICA

(Mr. WESTERMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WESTERMAN. Mr. Speaker, I rise today to recognize and celebrate the extraordinary accomplishments of various student members of Arkansas' Future Farmers of America. As their Congressman and as a past State FFA president, I am very proud of their achievements.

During the 88th National FFA Convention, Hermitage High School students were announced as the winning team of the National FFA Livestock Evaluation Event.

Ms. Taylor McNeel, an agricultural business major at Southern Arkansas University, was also named the 2015–2016 National FFA president. As president, Ms. McNeel will travel more than 100,000 miles to further the FFA mission of advancing agricultural literacy and preparing future generations for the challenges of feeding a growing population.

I congratulate these Fourth District students and applaud their inspiring efforts to serve others and hold true to the best traditions of our national life.

SIKH AMERICAN AWARENESS AND APPRECIATION MONTH

(Mr. COSTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COSTA. Mr. Speaker, I rise today to recognize November as Sikh American Awareness and Appreciation Month. This month we recognize the contributions from Sikh Americans throughout our country who have given much to our Nation.

Since the turn of the 20th century, in California's San Joaquin Valley, the Sikh Americans have come, like immigrants from all around the world, to have a better life for themselves and their families.

In addition to sharing their rich culture and values, they have made countless contributions to our economy. They are farmers, business owners, physicians, and are engaged in every walk of life in so many fields.

They bring distinctive pride to the many endeavors and have a very strong work ethic, like all immigrant families. Their commitment to faith, family, and hard work is part of their rich diversity that sets our country apart from others, because we welcome immigrants. After all, we are a land of immigrants.

As we strive to appreciate the contributions of all religions and cultures in our Nation, I ask my colleagues to join me in celebrating Sikh American Awareness and Appreciation Month.

HONORING THE LIFE AND SERVICE OF CARL BOYETT

(Mr. DENHAM asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DENHAM. Mr. Speaker, I rise today to acknowledge and honor the life of a beloved Modesto community leader. Carl Boyett passed at the age of 70 last week.

On July 16, 1945, Carl was born to Stanton and Carol Boyett. After graduating Downey High School, he was offered an appointment to the United States Coast Guard Academy.

He joined the United States Army in 1967, where he displayed the utmost bravery during the tour of duty in Vietnam. He served valiantly during the Tet Offensive and advanced to the rank of sergeant.

After returning to civilian life in 1970, Carl began working for his family company, Boyett Petroleum. In 2004, he became the CEO and provided masterful leadership and results-oriented vision to the company, which just celebrated its 75th anniversary.

Carl had a generous spirit, participating in numerous enterprises with evidence of lasting contributions to our community. He demonstrated time and again a desire to share his resources and talents with others, and throughout the course of his life, he was the recipient of numerous awards and honors.

Mr. Speaker, please join me in honoring and recognizing my friend for his unwavering leadership, many accomplishments, and contributions on behalf of the Modesto community and the Nation.

God bless him always.

REMEMBERING TIM VALENTINE

(Mr. PRICE of North Carolina asked and was given permission to address the House for 1 minute.)

Mr. PRICE of North Carolina. Mr. Speaker, I rise today to honor Tim Valentine, former Representative from North Carolina's Second District, who passed away last week.

Tim was a judicious, conscientious legislator who worked effectively on the Public Works and Transportation and the Science, Space, and Technology Committees. On that latter committee, he was my mentor. We frequently collaborated.

Members across the political spectrum valued Tim as a cooperative, congenial colleague, easy to work with, but not afraid to engage in vigorous debate or to take a courageous stand when the need arose.

Tim was known for his wit and good humor and his gift for friendship. He had a remarkable ability to defuse any tense situation with humor. He made me look forward to coming to the House floor each day, where he invariably would have a good story to tell or a quip to make that brightened the day, a quip that often cut to the heart of the matter we were dealing with.

Tim was a treasured friend and colleague. I am grateful for his life and work, personally, and also on behalf of the institution in which we served and the citizens on whose behalf he labored.

Lisa and I attended a beautiful service in Tim's honor last Saturday. We extend our love and best wishes to his wife, Barbara, and the rest of his family.

WE MUST KEEP THE A–10 JETS FLYING

(Ms. MCSALLY asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MCSALLY. Mr. Speaker, it was recently reported that over 100 ISIS oil tanker trucks were destroyed in Syria in an attempt to finally cut off the terrorist group's oil revenue. And what asset did we call on to efficiently and effectively get the job done? None other than the A–10 Warthog.

The mission took advantage of the A–10's unique and lethal capabilities. The pilots employed their powerful 30-millimeter guns and 500-pound bombs to obliterate the trucks.

Time and time again, we have seen the A–10's number called up to protect us. Twelve A–10s were recently deployed to Turkey to strike ISIS targets like these fuel trucks. A–10s are also deployed in Europe to deter Russian aggression and along the border with North Korea.

Despite the administration's persistent and flawed arguments for seeking to mothball this irreplaceable

asset, A–10s continue to demonstrate their value on the battlefield.

Now, when the world turns to us to destroy this dangerous and growing threat, we turn to the A–10. It proves again that, until we have a suitable replacement for this one-of-a-kind attack jet, we must keep it flying.

CONGRESS MUST FUND THE GOVERNMENT

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, like many Members, I was pleased that Congress last month passed a bipartisan budget agreement that avoids yet another manufactured political crisis from hanging over the heads of America's hardworking families.

But Congress must still act to pass legislation to fund the government before December 11. Especially now, with very real national security threats, Congress must take the politics as usual out of the question, pass a clean bill without poison pill riders, and fund our government.

When I go home, I hear from my constituents every day that they just want Congress to do their job. They say it is time for responsible, bipartisan governing. I couldn't agree more.

I am ready—I know other Democrats are, and I know Republicans are as well—to continue to work together to avoid a government shutdown. But, without action, that won't happen.

Passing a budget and a funding bill that will keep the government open means we can work on the priorities of the American people, helping them send their kids to school, afford to buy a house, and, of course, protect national security.

We have to act together, and we have to do it soon.

WEAR RED WEDNESDAY TO BRING BACK OUR GIRLS

(Ms. WILSON of Florida asked and was given permission to address the House for 1 minute.)

Ms. WILSON of Florida. Mr. Speaker, tomorrow is Wear Red Wednesday to Bring Back Our Girls, a day that I ask my colleagues to join me in remembering those affected by the ISIS-linked Boko Haram. In light of Friday's reprehensible terrorist attacks in Paris, our remembrance will be especially important.

As we lower our heads in somber prayer for the Parisian victims and raise our voices in disgust over ISIS' horrifying acts, I hope that we will also remember the millions of people around the world who have had their lives destroyed by ISIS and its affiliates. This, of course, includes the 15,000 people ISIS-linked Boko Haram has murdered in West Africa.

We will continue to wear red every Wednesday until we free the Chibok girls from Boko Haram, and we will continue to tweet, tweet, tweet #bringbackourgirls, #joinrepwilson.

Please continue to pray for the people of Paris and continue to pray for the victims of Africa.

PROVIDING FOR CONSIDERATION OF H.R. 1737, REFORMING CFPB INDIRECT AUTO FINANCING GUIDANCE ACT; PROVIDING FOR CONSIDERATION OF H.R. 511, TRIBAL LABOR SOVEREIGNTY ACT OF 2015; AND FOR OTHER PURPOSES

Mr. COLE. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 526 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 526

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 1737) to nullify certain guidance of the Bureau of Consumer Financial Protection and to provide requirements for guidance issued by the Bureau with respect to indirect auto lending. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. After general debate the bill shall be considered for amendment under the five-minute rule. The bill shall be considered as read. All points of order against provisions in the bill are waived. No amendment to the bill shall be in order except those printed in the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

SEC. 2. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 511) to clarify the rights of Indians and Indian tribes on Indian lands under the National Labor Relations Act. All points of order against consideration of the bill are waived. The amendment in the nature of a substitute recommended by the Committee on Education and the Workforce now printed in the bill shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce; and (2) one motion to recommit with or without instructions.

SEC. 3. Upon adoption of this resolution—

(a) the House shall be considered to have: (1) taken from the Speaker's table the bill (S. 1177) to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; (2) stricken all after the enacting clause of such bill and inserted in lieu thereof the provisions of H.R. 5, as passed by the House; and (3) passed the Senate bill as so amended; and

(b) it shall be in order for the chair of the Committee on Education and the Workforce or his designee to move that the House insist on its amendment to S. 1177 and request a conference with the Senate thereon.

SEC. 4. In the engrossment of H.R. 3762, the Clerk shall strike title I and redesignate the subsequent titles accordingly.

□ 1230

The SPEAKER pro tempore (Mr. POE of Texas). The gentleman from Oklahoma is recognized for 1 hour.

Mr. COLE. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentlewoman from New York (Ms. SLAUGHTER), my friend, pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. COLE. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oklahoma?

There was no objection.

Mr. COLE. Mr. Speaker, yesterday, the Rules Committee met and reported a rule for consideration of two important measures. First, the resolution provides a structured rule for consideration of H.R. 1737, the Reforming Consumer Financial Protection Bureau Indirect Auto Financing Guidance Act. The rule provides for 1 hour of debate equally divided and controlled by the chair and ranking member of the Financial Services Committee, makes in order three amendments submitted to the Rules Committee which were germane to the legislation, and provides for a motion to recommit.

In addition, the resolution provides a closed rule for consideration of H.R. 511, the Tribal Labor Sovereignty Act of 2015. The rule provides 1 hour of debate equally divided and controlled by the chair and ranking member of the Education and Workforce Committee, and provides for a motion to recommit.

In addition, Mr. Speaker, the rule facilitates a conference with the Senate on reauthorization of the Elementary and Secondary Education Act by replacing the text of S. 1177 with the text of H.R. 5, as passed by the House, and provides for a motion by the chair of the Committee on Education and the Workforce to request a conference with the Senate.

Finally, the rule directs the Clerk to strike a provision from the reconciliation bill which was already enacted

into law in the Bipartisan Budget Act of 2015, facilitating consideration of the bill by the Senate.

Mr. Speaker, H.R. 1737 passed out of the Financial Services Committee by a vote of 47–10. It nullifies a guidance put forward by the Consumer Financial Protection Bureau which the CFPB was specifically exempted from making in the first place. In addition to the CFPB's disregard for its statutory limitation, the CFPB's methodology is severely flawed. According to a study by Charles River Associates, the CFPB's methodology overestimates minorities by up to 41 percent, leading many to question the reliability of these results.

In addition, and more importantly to me, Mr. Speaker, the rule provides for consideration of H.R. 511, the Tribal Labor Sovereignty Act of 2015. When Congress passed the National Labor Relations Act in 1935, it specifically recognized all governments were excluded. Subsequent regulations and case law further recognized this exemption applies to territories, possessions, the District of Columbia, and State-operated port authorities. From the 1970s until 2004, the NLRB recognized that tribal governments are exempt from the NLRA as sovereign governments. Unfortunately, in 2004, the NLRB decided to reverse 69 years of prior precedent and strip tribes of their ability of self-government.

In our first terms in Congress, Chairman KLINE and I both worked to try and restore the sovereignty this board had stripped away. While unsuccessful at that time, I am happy we are now able to rectify this injustice.

H.R. 511, the Tribal Labor Sovereignty Act would unequivocally state that tribal governments are not subject to the National Labor Relations Act. I respect my friends who hold different opinions, but in this case, they are simply wrong. In the NLRB's 2004 decision, they made an arbitrary distinction between commercial activity and government activity. If you are a tribe and it is commercial activity, they said the NLRB could regulate it. But that same standard isn't applied to any other government exempted from the NLRA, regardless of whether it engages in commercial activities or not. Their nature, as a government, precludes their regulation under the NLRA.

Practically every county and city in this country has a golf course. Most States have a lottery. The National Park Service operates hotels. Virginia and other States sell alcohol. Many cities operate convention centers. All of these activities are not regulated under the NLRA. It should be the same with tribes.

In addition, Mr. Speaker, I am pleased that this rule sets up a process for us to go to conference on an ESEA reauthorization. The last time we considered an ESEA reauthorization was 13 years ago. It is far past time to reauthorize this critical program.

Mr. Speaker, I urge support for the rule and the underlying legislation.

Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I appreciate the gentleman's yielding me the time.

Mr. Speaker, on January 5, 2011, newly elected Speaker John Boehner announced: ''To my friends in the minority, I offer a commitment: openness, once a tradition of this institution but increasingly scarce in recent decades, will be the new standard . . . You will always have the right to a robust debate in an open process that allows you to represent your constituents, to make your case, offer alternatives, and be heard.''

What we were promised was openness, but what we got was absolutely the opposite.

Mr. Speaker, I rise today to mark the breaking of a record, perhaps the worst kind of record: this has officially become the most closed session of Congress in American history. We are living it now.

Today marks the 45th closed rule in this session of Congress, and with each new closed rule that the majority approves, we will break the record anew. Under a closed rule, no amendments are allowed on the House floor, which limits debate and silences half of the American people who are represented by the minority of the House.

It is true that the trend toward more closed rules has been growing over the past 20 years under the leadership of both political parties, but my Republican colleagues have taken the trend to new heights. The Republican Congress, for example, passed more closed rules in 1 week in October of 2013 than in an entire year under Democrat control.

It is the work of the Rules Committee to report each rule that comes to the floor, and according to our statistics, in this session of Congress, the majority has chosen a closed rule more times than any other kind of rule.

Under this regime, the majority has wasted taxpayer money on their obsession with taking health care away from millions of people and held more than 60 votes to repeal or dismantle ObamaCare. They have spent over $5 million of taxpayer money on a duplicative, politicized Benghazi special committee even after nine other House and Senate committees and one State Department committee had found nothing nefarious nor illegal. Benghazi was, yes, a tragedy, but it was not a conspiracy. To continue with their wasteful, politicized special committees, they created a special committee to investigate Planned Parenthood, even after grilling the president of Planned Parenthood, Cecile Richards, for 5 hours in a hearing and the chairman later declared that no law had been broken.

Ladies and gentlemen, this is what you get here for your taxpayer dollars.

While Americans are riding over rutted roads, traveling over unsafe bridges, using crowded and outdated airports, and our schools are crumbling around our children, this majority insists on wasting millions of dollars and our time not on governance, but on purely political goals. These distractions keep true regular order nothing but a mirage. This is the work that we got under Speaker Boehner's promise of openness.

As it turns out, Speaker RYAN promised the same openness for his tenure. On November 5, 2015, just after taking office, he said to a gaggle of reporters: ''I want to have a process that is more open, more inclusive, more deliberative, more participatory, and that's what we're trying to do.'' We have heard that before.

He even explained the importance of an open legislative process and said: ''So that every citizen of this country, through their elected Representatives, has the opportunity to make a difference. That is the people's House. This is the branch of government closest to the people.''

Will we get that openness? Today gives us very little reason for hope.

Let me remind us that while we may have a new hand wielding the gavel, no amount of good intentions can overcome the dynamics in the radical Republican Conference because it remains the same.

Mr. Speaker, for this body to function as the Founding Fathers intended, we need debate and we need openness. For our constituents to be heard and for our institutions to thrive, we need debate and we need openness.

Democrats have always been willing to provide the votes to move the country forward on any bill that would come to the floor, and I would like to extend my well wishes to our new Speaker, PAUL RYAN, and express again our willingness to work together for the American people, because that is why we have been sent here.

Let me mention, if I may, that today, when we are concerned about bringing refugees and immigration, that we have been begging for 2 years or more for this House to take up an immigration bill, and the majority has refused to do so.

Mr. Speaker, I reserve the balance of my time.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, it is not surprising I would differ from my good friend on whether or not we have an open process here. Frankly, I think we can all point to times in the past where each of us believe the other has been less than open. I recall, during the Democratic majority, we literally would bring appropriations bills to the floor with absolutely closed rules, something that violates the tradition of this House.

In terms of this legislation, I hope I am forgiven, but again, I find very little relevance of discussions of Benghazi and Planned Parenthood to this particular debate. I don't think it has anything to do.

The legislation in front of us really deals with two bills: H.R. 1737, the Consumer Financial Protection Bureau bill, actually seeks to simply restrain an agency from exercising authority that it is prohibited from exercising under the legislation, and all the amendments that were germane to that piece of legislation were indeed made in order.

H.R. 511, the Tribal Labor Sovereignty Act, frankly, is just simply: Does the NLRB have this jurisdiction or not? It doesn't take a lot of amendments. It is just a straight question. Our assertion is, obviously, that it does not. It has claimed authority it should not have, and we are simply restoring that to tribal governments.

□ 1245

So I actually think the rule in question facilitates the debate, allows those who have different ideas to present them if they are relevant, and I think we will end up with a good result.

Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I yield myself such time as I may consume.

If we defeat the previous question, I will offer an amendment to the rule to bring up H.R. 430, a bill to clean up the secret money in politics and give the American people the fair and transparent political system that they deserve.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. SLAUGHTER. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Maryland (Mr. VAN HOLLEN), to discuss our proposal, the ranking member of the Committee on the Budget.

Mr. VAN HOLLEN. Mr. Speaker, I thank the ranking member of the Rules Committee, who began the discussion here by pointing out that here we go again. We say there is new leadership in town on the Republican side, but it is the same old closed process: closed rule, limit democracy, don't allow a full debate, and don't allow the people's House to decide on important questions for the country. When you have a closed rule, you are starting to close down democracy; you are limiting the ability of this House to make decisions on behalf of all the American people.

So we have, as part of the previous question, if you defeat the previous question, a proposal to also improve transparency and openness in the full political process, because this is the people's House, and we would hope that it would do the people's business. But we also know that there are a lot of special interests out there that are spending millions and millions and millions of dollars trying to get their way and substitute their special interests for the public interests. They are spending millions of dollars to try to elect candidates who will do their bidding.

What this proposal does is just say we need to be transparent and open about who is spending all that money. People in those interests can continue to spend money to try and elect candidates, but don't do it secretly. Do it openly.

So what we are asking is for this House to take up what is called the Disclose Act. The Disclose Act simply says that voters have a right to know which special interests around the country are spending millions and millions of dollars to try to influence their voting decision, because we believe that sunlight and transparency helps build accountability and that accountability helps build a stronger democracy.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. SLAUGHTER. I yield the gentleman an additional 2 minutes.

Mr. VAN HOLLEN. Mr. Speaker, I thank the gentlewoman.

So after the Citizens United decision, that terrible decision, what happened? Special interests were able to spend millions and millions of dollars at a time. They weren't constrained by any limits on what kind of contributions they could make. So we got a lot more money, but we also got something else. We got essentially a political underground in spending. We had this system now where people try and channel their moneys in secret ways to hide themselves from the public.

So if we get to vote on the Disclose Act, we will see where we stand on the simple question of whether this body supports transparency, because, honestly, if you have got nothing to hide, you have got nothing to fear.

Right now we have these commercials out there. They say, ''Paid for by Committee for a Better America,'' ''Paid for by mom and apple pie,'' but the people who are paying for them don't want the voters to know who they are. They want it to be a closed process. We are asking that they disclose their identity.

In fact, in the Citizens United case, eight of the nine Supreme Court Justices said they were for more disclosure. And, in fact, recently, Justice Kennedy, who was one of the five in the 5–4 majority, said that the disclosure that he thought would work is not working. But they said the legislature can always act on this issue and improve the transparency and disclosure of the political process. Even Justice Scalia said that would be good for the political process.

We want to know who is spending all that money to try and influence decisions of the people's House. What is wrong with a little sunshine? What is wrong with transparency? Doesn't that improve accountability, and doesn't that strengthen our democracy?

The SPEAKER pro tempore. The time of the gentleman has again expired.

Ms. SLAUGHTER. I yield the gentleman an additional 30 seconds.

Mr. VAN HOLLEN. I thank the gentlewoman.

I understand that we are going to continue to have these closed rules apparently that are not going to make this an open process here, but for goodness' sake, Mr. Speaker, let's at least allow the American people to know who is spending all that money to try to influence voting decisions and, ultimately, influence the kind of legislation that comes to the floor of this House, because we need to be focused on the people's business, not the business of secret special interests.

Let the sunshine in. Let's allow transparency. Let's defeat the previous question so that we can vote on the Disclose Act and give the voters the right to know that they deserve.

Mr. COLE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am encouraged by the debate so far because my good friends on the other side said absolutely nothing about H.R. 1737 and H.R. 511, so I assume that they support these bipartisan pieces of legislation.

Just to reiterate, with all due respect to my friends, we are not here to talk about campaign finance reform, always a worthy subject of discussion. I remember a number of years bringing up campaign finance reform, trying to get rid of taxpayer subsidies for political conventions. We finally got that done and redirected that money to research for pediatric diseases but could never get it made in order when my friends were on the other side of the aisle, so I understand the frustrations. But again, we have got two important bills to consider, and I think that is where we ought to focus our attention.

In H.R. 1737, the Consumer Financial Protection Bureau has literally gone beyond the mandate laid out in Dodd-Frank. So I must say I am mystified that I am up here defending a provision of Dodd-Frank, but in this case, it is actually the right thing to do. They have tried to extend their authority into auto lending, which is specifically prohibited under the statute, so we are trying to make that crystal clear.

H.R. 511 does something that, frankly, this House can be very proud of. It recognizes and extends and restores tribal sovereignty in a very important area. That has actually been an area of bipartisan cooperation.

We worked together in the Violence Against Women Act across party lines to extend tribal sovereignty with respect to domestic crime and domestic violence committed by non-Indians on Indian land against Indian citizens. Now we are trying in the labor area to once again restore tribal sovereignty to what it was before 2004 when the National Labor Relations Board, frankly,

acted outside of its authority and seized jurisdiction it simply doesn't have under any statute ever passed by Congress.

I would invite my friends to focus on those two areas, hope they do, and certainly look forward to working with them in a bipartisan manner to pass both of those bills.

With that, Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I yield myself such time as I may consume.

In closing, it really is a shame that the only way we can talk about campaign finance is to put it in our previous question because it is never a subject for debate here. That really is a shame because we have terrible situations going on in campaign finance unaccounted for, which is something that we have never had before in this country, certainly since the Watergate issue, where we cleaned up campaign finance considerably and did well with it. But now all that is gone and anything goes.

Mr. Speaker, this rule we are doing today strikes a provision of the reconciliation bill that the House passed last month in the latest futile Republican attempt to undermine the Affordable Care Act. This provision is unprecedented, is unacceptable, and we oppose it. The stricken provision eliminates an auto enroll requirement that employers who offer health insurance automatically enroll new employees in the health plan. The rule strikes this provision from the reconciliation bill because it became law as part of last month's bipartisan budget agreement.

My Republican colleagues may describe this as a simple housekeeping measure, but no matter what is done, the reconciliation bill will not become a serious piece of legislation.

The bill passed by the House would add 16 million people to the ranks of the uninsured, would increase health insurance premiums by up to 20 percent for millions of others, and would reduce women's access to important health services by ending Medicaid funding to Planned Parenthood clinics.

The best piece of housekeeping that Congress could do on the reconciliation bill is to set it aside and put an end, once and for all, to this fantasy of repealing affordable health coverage for millions of Americans. Instead, let us focus on the policies that actually help American families, such as improving access to education and to good-paying jobs.

Mr. Speaker, I hope that people paid some attention to this debate today. There is so much going on in the House that one wonders if we have.

Let me just reiterate that this is the most closed Congress in history. At every turn, the majority has chosen to shut out debate and silence the will of Members. We have heard again this morning the minority party, our constituents, and the democratic process itself are ailing, Mr. Speaker, and we must do something about it.

I urge my colleagues to vote ''no'' and to defeat the previous question so that we can take up Mr. VAN HOLLEN's good measure here and try to clean up, as even the members of the Supreme Court who voted to give us Citizens United would like to see us make some change there because they recognize that what they did has been a complete failure. Somehow they had this awesome wonderland idea that everybody would just continue to put their name down on their contributions, and we have certainly found that that is not the case. We don't even know what country a lot of the money is coming from.

Mr. Speaker, I urge my colleagues to vote ''no'' and defeat the previous question and also to vote ''no'' on the rule.

I yield back the balance of my time.

Mr. COLE. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I am somewhat mystified by the debate that my friends on the other side have offered. It has got a lot to do with campaign finance reform. Unfortunately, there is nothing in the legislation before us that deals with that.

I beg to differ in terms of whether or not the rules here are closed or inappropriate. Frankly, every amendment offered to H.R. 1737 that was germane was actually made in order; and, frankly, amendments on H.R. 511 simply aren't necessary. It is a yes or no type of question. Either the NLRB has jurisdiction that we think it has claimed inappropriately over Indian tribes and labor matters or it does not, and we think that clarifies things considerably.

So again, we also are a little bit surprised to see what we do think is a housekeeping matter in terms of striking something out of the reconciliation bill objected to. I just remind my friends they voted overwhelmingly for the budget deal itself that included that measure. There is nothing untoward going on here. We are just trying to move forward legislation that we think is important and remove things that have already been enacted into law. So it is, indeed, as suggested, a housekeeping matter.

Mr. Speaker, in closing, I want to encourage all Members to support the rule. H.R. 1737 undoes a regulation that should never have been made in the first place, and H.R. 511 restores a right, the right of self-governance, that should have never been taken away from tribal governments.

The material previously referred to by Ms. SLAUGHTER is as follows:

AN AMENDMENT TO H. RES. 526 OFFERED BY MS. SLAUGHTER OF NEW YORK

At the end of the resolution, add the following new sections:

SEC. 5. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 430) to amend the Federal Election Campaign Act of 1971 to provide for additional disclosure requirements for corporations, labor organizations, and other entities, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided among and controlled by the chair and ranking minority member of the Committee on House Administration, the chair and ranking minority member of the Committee on the Judiciary, and the chair and ranking minority member of the Committee on Ways and Means. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 6. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 430.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R-Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the

motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. COLE. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on adopting House Resolution 526, if ordered, suspending the rules and passing H.R. 1694 and H.R. 3114.

The vote was taken by electronic device, and there were—yeas 245, nays 178, not voting 10, as follows:

[Roll No. 629]

YEAS—245

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gabbard
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—178

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—10

DeFazio
Eshoo
Hinojosa
Moore
Payne
Rooney (FL)
Ros-Lehtinen
Ruppersberger
Takai
Titus

□ 1329

Messrs. SIRES, VELA, and LARSON of Connecticut changed their votes from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated against:

Ms. ESHOO. Mr. Speaker, I was not present during rollcall No. 629 on November 17, 2015 due to an Energy and Commerce Committee hearing.

I would like to reflect that on rollcall No. 629, I would have voted "no."

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 243, nays 181, not voting 9, as follows:

[Roll No. 630]

YEAS—243

Abraham
Aderholt
Allen
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa

Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—181

Adams
Aguilar
Amash
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—9

DeFazio
Hinojosa
Moore
Pascrell
Payne
Ros-Lehtinen
Ruppersberger
Takai
Titus

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1337

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Ms. MOORE. Mr. Speaker, on rollcall Nos. 629 and 630, had I been present, I would have voted "no" and "no."

FAIRNESS TO VETERANS FOR INFRASTRUCTURE INVESTMENT ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 1694) to amend MAP–21 to improve contracting opportunities for veteran-owned small business concerns, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Pennsylvania (Mr. FITZPATRICK) that the House suspend the rules and pass the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 285, nays 138, not voting 10, as follows:

[Roll No. 631]

YEAS—285

Abraham
Aderholt
Aguilar
Allen
Amodei
Ashford
Babin
Barletta
Barr
Benishek
Bera
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Boyle, Brendan F.
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Cicilline
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Curbelo (FL)
Davis, Rodney
Delaney
DelBene
Denham
Dent
DeSantis
DesJarlais
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Engel
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gabbard
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Keating
Kelly (MS)
Kelly (PA)
Kennedy
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Latta
Lipinski
LoBiondo
Loebsack
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lujan Grisham (NM)
Lummis
Lynch
MacArthur
Maloney, Sean
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moulton
Mullin
Mulvaney
Murphy (PA)
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
Olson
Palazzo
Palmer
Pascrell
Paulsen
Pearce
Perry
Peters
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Ruiz
Russell
Ryan (OH)
Salmon
Scalise
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thornberry
Tiberi
Tipton
Trott
Tsongas
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—138

Adams
Amash
Bass
Beatty
Becerra
Beyer
Bishop (GA)
Blumenauer
Bonamici
Brady (PA)
Brown (FL)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Conyers
Crowley
Cummings
Davis (CA)
Davis, Danny
DeGette
DeLauro
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gallego
Grayson
Green, Al
Grijalva
Gutiérrez
Hastings
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Kelly (IL)
Kildee
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Maloney, Carolyn
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Murphy (FL)
Nadler
Napolitano
O'Rourke
Pallone
Pelosi
Perlmutter
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel

Rice (NY)
Richmond
Roybal-Allard
Rush
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Schakowsky
Schiff
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tonko
Torres
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—10

Barton
DeFazio
Diaz-Balart
Hinojosa
Payne
Ros-Lehtinen
Ruppersberger
Takai
Thompson (PA)
Titus

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1343

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PROVIDING FUNDS TO THE ARMY CORPS OF ENGINEERS TO ASSIST WITH CURATION AND HISTORIC PRESERVATION ACTIVITIES

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 3114) to provide funds to the Army Corps of Engineers to hire veterans and members of the Armed Forces to assist the Corps with curation and historic preservation activities, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Ohio (Mr. GIBBS) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 422, nays 3, not voting 8, as follows:

[Roll No. 632]

YEAS—422

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Babin
Barletta
Barr
Barton
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—3

Amash
Loudermilk
Sanford

NOT VOTING—8

Bass
DeFazio
Hinojosa
Payne
Ros-Lehtinen
Ruppersberger
Takai
Titus

□ 1351

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. LAHOOD). Pursuant to House Resolution 526, S. 1177, as amended, is considered as passed.

TRIBAL LABOR SOVEREIGNTY ACT OF 2015

Mr. ROE of Tennessee. Mr. Speaker, pursuant to House Resolution 526, I call up the bill (H.R. 511) to clarify the rights of Indians and Indian tribes on Indian lands under the National Labor Relations Act, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 526, the amendment in the nature of a substitute recommended by the Committee on Education and the Workforce, printed in the bill, shall be considered as adopted, and the bill, as amended, shall be considered read.

The text of the bill, as amended, is as follows:

H.R. 511

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Tribal Labor Sovereignty Act of 2015''.

SEC. 2. DEFINITION OF EMPLOYER.

Section 2 of the National Labor Relations Act (29 U.S.C. 152) is amended—

(1) in paragraph (2), by inserting ''or any Indian tribe, or any enterprise or institution owned and operated by an Indian tribe and located on its Indian lands,'' after ''subdivision thereof,''; and

(2) by adding at the end the following:

''(15) The term 'Indian tribe' means any Indian tribe, band, nation, pueblo, or other organized group or community which is recognized as eligible for the special programs and services provided by the United States to Indians because of their status as Indians.

''(16) The term 'Indian' means any individual who is a member of an Indian tribe.

''(17) The term 'Indian lands' means—

''(A) all lands within the limits of any Indian reservation;

''(B) any lands title to which is either held in trust by the United States for the benefit of any Indian tribe or individual or held by any Indian tribe or individual subject to restriction by the United States against alienation; and

''(C) any lands in the State of Oklahoma that are within the boundaries of a former reservation (as defined by the Secretary of the Interior) of a federally recognized Indian tribe.''.

The SPEAKER pro tempore. The gentleman from Tennessee (Mr. ROE) and the gentleman from Virginia (Mr. SCOTT) each will control 30 minutes.

The Chair recognizes the gentleman from Tennessee.

GENERAL LEAVE

Mr. ROE of Tennessee. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 511.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in strong support of H.R. 511, the Tribal Labor Sovereignty Act of 2015. There are more than 550 federally recognized Native American tribes across the United States. Each of these tribes has a unique history and distinct culture that have helped shape who they are today. And each tribe has an inherent right to self govern, just like any other sovereign government does.

That right is rooted in the Constitution and has been reaffirmed by courts for almost 200 years. Because of it, tribal leaders are able to make decisions that affect their people in a way that makes the most sense for their tribe and best protects the interests of their members—or, rather, they should be able to make those decisions.

We are here today because, for the past 10 years, the National Labor Relations Board has ignored longstanding labor policy and involved itself in tribal activities. Since its 2004 San Manuel Indian Bingo and Casino decision, the Board has used a subjective test to decide on a case-by-case basis whether a tribal business or tribal land is for commercial purposes, and if it is, the Board has asserted its jurisdiction over that business.

Now, if the Board were to do the same with a school, a park, or any other enterprise owned and operated by a State or local government, no Member of Congress would stand for it. Why, then, should we stand back and allow the NLRB to impose its will on businesses owned and operated by Native American tribes? The answer is simple: we shouldn't. In fact, we have a responsibility to protect tribal sovereignty, and that is exactly what H.R. 511 will do.

The bill under consideration will amend the National Labor Relations Act to reaffirm that the NLRB cannot assert its authority over enterprises or institutions owned or operated by a tribe on tribal land. It very simply reasserts a legal standard that was in place for decades and returns to tribes the ability to manage their own labor relations—as they have a sovereign right to do.

I want to thank the gentleman from Indiana (Mr. ROKITA), my colleague, for his leadership on this issue and for continuing the work of those in Congress who have helped lead the fight to protect tribal sovereignty over the years. It is time for all of us to join that fight, stand with the Native American community, and restore to Indian tribes the ability to govern their own labor relations.

I urge my colleagues to vote ''yes'' on the Tribal Labor Sovereignty Act of 2015.

Mr. Speaker, I reserve the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in opposition to the Tribal Labor Sovereignty Act of 2015, legislation that would strip employees of protections afforded under the National Labor Relations Act at any enterprise owned by an Indian tribe and located on Indian lands.

At issue are two solemn and deeply-rooted principles: one, the right of Indian tribes to possess as distinct independent political communities retaining their original rights in matters of local self-government; and, two, the rights of workers to organize, bargain collectively, and engage in concerted activities for their mutual aid and protection.

Rather than attempting to reconcile these two competing principles, H.R. 4511 chooses sovereignty for some over the longstanding rights of others. This bill strips hundreds of thousands of workers of their voice in tribal-owned workplaces such as casinos, hotels, and mines. It should be noted that some 600,000 workers are employed in tribal casinos, but fully 75 percent are not members of tribes.

This legislation would jettison a carefully drawn balance between tribal sovereignty and workers' rights that was adopted in 2004 by a Republican-led NLRB. That decision, known as the San Manuel Indian Bingo and Casino, restricted the jurisdiction of the NLRB if it touches on the exclusive rights of self-governance in purely intramural matters or aggregated rights guaranteed under treaties.

Furthermore, the NLRB stated that it would also take into account and accommodate the unique status of Indians in their society and legal culture in deciding NLRB jurisdiction.

The San Manuel decision has been upheld in every appeals court where it has been challenged, and it is based on legal precepts that have been upheld by appellate courts over 30 years. The courts have also noted that the tribal casinos are commercial enterprises, not government agencies like the Department of Education, serving predominantly non-tribal clients and hiring predominantly non-tribal members to operate.

By depriving these workers of the right to organize and bargain collectively, this legislation ensures that low-paid service workers in tribal casinos will lose the opportunity to share in the fruits of the wealth that they are creating for the tribe, and depriving them of the opportunity to climb the ladder into the middle class.

□ 1400

The bill also sets up a double standard. As a member of the International Labor Organization, the United States is obligated, as a government, to respect and promote the rights outlined in the ILO Declaration of Fundamental Principles and Rights at Work, including ''the freedom of association and effective recognition of the right to collectively bargain.''

The Democrats and Republicans have insisted that our trading partners abide by and enforce these basic labor rights, and Congress has repeatedly ratified these obligations in trade agreements. But today the House will vote on a bill that does just the opposite when it comes to the freedom of association and the right to collectively bargain at tribal enterprises.

Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentleman from Michigan (Mr. MOOLENAAR).

Mr. MOOLENAAR. Mr. Speaker, Federal rulemaking continues to hurt the people of Michigan's Fourth Congressional District.

As we have already seen, Federal departments and agencies have proposed overreaching water rules that create uncertainty for Michigan farmers, energy rules that raise electric rates on hardworking families, and healthcare rules that disrupt patients' coverage.

Now Federal rulemaking is interfering with the sovereignty of Native American tribes. The National Labor Relations Board has claimed jurisdiction over the commercial businesses on tribal lands, intruding on the self-governance of the Saginaw Chippewa in my district.

Today I rise in support of H.R. 511, the Tribal Labor Sovereignty Act, to restore self-governance for the Saginaw Chippewa and all tribes and to stop the National Labor Relations Board from further hindering business owners and entrepreneurs with more regulations and costs.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 3 minutes to the gentleman from Minnesota (Mr. ELLISON).

Mr. ELLISON. I thank the gentleman for yielding.

Mr. Speaker, I am very proud of my record in support of tribal sovereignty. I have been a member of the Native American Caucus since 2012. I supported the legislative fix to Carcieri v. Salazar, a Supreme Court decision that overturned 75 years of Federal Indian policy.

I cosponsored the Non-Disparagement of Native American Persons or Peoples in Trademark Registration Act, and I have actually stood out in the street calling for the Washington football team to change its name because of the ugliness of what that represents.

And, of course, I was proud, proud to be a sponsor and a supporter of the Violence Against Women Act, which authorized tribal governments to exercise special domestic violence criminal jurisdiction over any individual that commits domestic violence, dating violence or any kind of violence, and to protect men and women on the tribal areas.

In short, I am a person who is very proudly and affirmatively for tribal sovereignty and tribal rights.

However, the right to form and work in a labor organization and the right to have rights on your job is also a very important right, and I cannot see why we cannot fashion legislation which protects both tribal sovereignty and the right of labor.

This bill unfortunately takes rights away from some in order to purportedly give them to the other.

I urge my friends who are tempted to vote for this legislation to ask themselves what they are giving up and what they are getting.

We could fashion legislation to look out for tribes. We could work together. But, instead, what we are doing is simply using a wedge issue to try to divide two very important principles, labor rights and tribal rights.

I am going to vote against this. I hope that all Members do. I hope that people who believe in tribal rights and sovereignty know that this is not about not supporting sovereignty, because I support it. But I believe that this Tribal Labor Sovereignty Act is going to do something very damaging to all workers, including tribal members.

We should be supporting all people, including tribal members' right to form unions, to be in a labor organization, which is their very best shot at getting into the middle class.

We know that union members earn $207 a week more than nonunion counterparts. This is why some business interests, not all, hate unions, because they just don't want to have a fair economy. They want to hoard the wealth of the company for themselves.

Workers who are in the union are far more likely to have retirement benefits, paid sick leave, and other medical benefits. Workers who have organized at their casinos have turned low-wage service sector jobs into good-paying jobs with benefits. This legislation would take those jobs away.

Therefore, I must oppose it, and I urge all my colleagues to do the same.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. HUNTER), my friend and colleague on the Education and the Workforce Committee and a veteran of this great Nation.

Mr. HUNTER. Mr. Speaker, I thank the good doctor from Tennessee. I want to thank my Republican colleagues, Mr. ROKITA especially, for bringing this important matter to a vote today.

Mr. Speaker, I rise in support of H.R. 511, the Tribal Labor Sovereignty Act.

In this House, we often speak about the importance of ensuring and protecting tribal sovereignty. This bill does just that. The measure treats tribal governments like we do any other government entity in this country by excluding them from the onerous coverage under the National Labor Relations Act.

In my district in San Diego and Riverside County, California, I represent 18 different tribes in Congress. That is more than anybody else in this House. They vary in size, tradition, and economic wealth, but they share one thing in common. They are all sovereign nations.

This sovereignty ensures that they have jurisdiction over their territory. And, remember, the American people made a promise to these tribes that they can govern themselves on their own land. This should especially apply in areas that this bill seeks to address.

I think it is ludicrous that the National Labor Relations Board thinks that they have purview over American Indian tribes.

I urge my colleagues to support H.R. 511.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 3 minutes to the gentleman from New Jersey (Mr. NORCROSS).

Mr. NORCROSS. Mr. Speaker, we live in the land of opportunity, and certainly many of the people who are being discussed here today understand that, for a very long time, it was not fair and not equal, because that is what we are truly discussing today, having a level playing field.

This year is the 80th anniversary of the National Labor Relations Act, which, quite frankly, gave rise to the middle class as we know it here in America today. But time after time, on both sides of the aisle, we hear how the discrepancies between those who are on the lower end and the one-percenters is growing wider.

So why am I talking about this when we are talking about this tribal bill? Because that is what we are really talking about.

See, there is a mechanism in place already that addresses this issue. It is a three-part test that has worked very well not only with the NLRB, but in the courts it has been working very well.

So this is a bill that is looking for a problem, because the true test of what is going on here today is trying to take those rights of having a level playing field away from those who don't have a voice. Well, we stand here today as that voice.

My career was as an electrician who later had the opportunity to become a business agent. I have been to National Labor Relations Boards many, many times. I have lost some. I have won some. But one thing I can tell you is it was a fair fight. And that is what we want to give those on tribal lands, a fair fight.

Just because they are tribal lands doesn't mean that none of our laws, history, and traditions apply to them. In fact, just the opposite. That three-part test has stood the test of time and has given a fair shot.

So what we are really talking about today is those who have the most abusing those who have the least, not giving them an opportunity to have a voice in the workplace so that they can have the American Dream.

I would urge my colleagues to vote against this very unfair, misguided bill and to give those who need it most that voice. That is what we are elected to do. I urge my colleagues to vote against this.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentleman from Georgia (Mr. ALLEN).

Mr. ALLEN. I thank the chairman for his good work on this bill.

Mr. Speaker, I rise today in support of legislation that I am proud to cosponsor, the Tribal Labor Sovereignty Act of 2015.

It has long been a priority of this Congress to protect tribal sovereignty. These lands and their people should be free from bureaucratic intrusion, as they are sovereign nations.

However, the National Labor Relations Board has once again overstepped its authority to expand its jurisdiction over tribal lands, creating a cloud of uncertainty for tribal leaders.

This legislation allows tribes to operate as they should, free from the threat of intrusion from the National Labor Relations Board. Much like states' rights, this legislation puts the power back in the hands of local tribal governments so they can make decisions in their best interest.

During a time of political and partisan gridlock, empowering tribes and the lives of their people is a bipartisan issue that both sides should be able to find common ground on. We need to protect tribal lands from Washington's constant overreach.

I will continue to work to ensure tribal sovereignty is not infringed upon.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 3 minutes to the gentleman from Wisconsin (Mr. POCAN).

Mr. POCAN. Mr. Speaker, I thank Ranking Member SCOTT.

Mr. Speaker, I rise to oppose H.R. 511. One of the most important things

we can do in this body is help the middle class to have every opportunity for their family.

While the economy has been rebounding, unfortunately, wages for the middle class have remained flat. Productivity is up. Profits are up. CEO pay is up. But wages for most workers have remained flat. Now we have a bill before us that will make it harder for hundreds of thousands of workers by taking away National Labor Relations Act protections from them.

Now, the promoters of this legislation say this bill is designed to protect sovereignty. While I strongly support tribal sovereignty, this bill is not about that.

There are a number of Federal laws that tribes are compelled to follow in addition to the National Labor Relations Act: the Occupational Safety and Health Act, the Employee Retirement Income Security Act, the Family and Medical Leave Act, and the public accommodations of the Americans with Disabilities Act, just for starters.

This bill isn't about meaningful sovereignty. It is about selective sovereignty because it only excludes labor rights, which makes this a labor bill, not a sovereignty bill.

It would even affect workers who already have collective bargaining agreements, stripping away the rights they have collectively fought for and have agreed to.

Many of the advocates for this bill are hardly credible on this. The U.S. Chamber and other organizations have never taken strong stances on tribal issues in the past, issues like spearfishing and mascot names in my home State of Wisconsin or funding to address the crumbling infrastructure of Bureau of Indian Affairs schools.

But suddenly they support sovereignty. Well, history says otherwise. If this bill is about sovereignty, exempt OSHA and ERISA and FMLA and ADA, for starters—that would be a sovereignty bill—or require the tribes at least to have their own labor relations boards, which they don't have.

This bill only exempts labor protections for hundreds of thousands of workers, both tribal members and nonmembers. Those affected workers will be denied their fundamental rights under this bill, and that is what this is really about.

Mr. Speaker, if this body wants to help tribes, I am here to help. If you want to make it easier for Federal tribes to be recognized via the Carcieri fix, I am in.

If you want to provide more adequate funding for Indian Health Services and exempt them from future sequestration cuts, where do I sign up?

If you want to provide funding for the maintenance infrastructure as well as the educational needs for Bureau of Indian Affairs schools, I am with you.

□ 1415

If you want to address some of the Tax Code disparities that hinder tribes from encouraging economic development on their lands, especially renewable energy projects, let's do that bill. But we are not addressing the real pressing issues that affect tribes in our country. Instead, we are only going after workers' rights in the veil of tribal sovereignty, and that is wrong.

Mr. Speaker, I urge a ''no'' vote.

Mr. ROE of Tennessee. Mr. Speaker, in hearing testimony at our subcommittee hearing, a number of Indian tribes have labor boards at their particular reservation, so I just want to have that in for the RECORD.

Also, all we are asking for is to treat the Indian tribes exactly the same as local or State governments are treated. If they are sovereign, they are sovereign; if they are not, they are not.

Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. MCCLINTOCK).

Mr. MCCLINTOCK. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, there is no need today to catalog the litany of promises made and broken by this government to the American Indian nations. The sum total of these broken promises amounted to the banishment of these, the first Americans, to the most desolate and undesirable lands in the Nation. We left them with one thing and one thing only. We left them sovereignty over their lands.

In the past half century, many of these tribes have created, from that sovereignty, great engines of prosperity with which to provide for themselves and their posterity; and suddenly, our government's disinterest in their welfare, its benign neglect of their affairs, has changed. Now that they are prosperous, our government has developed a canine appetite to intervene in their affairs.

For 70 years after the enactment of the National Labor Relations Act, the Federal Government recognized the internal independence of these tribal governments established of, by, and for their rightful members. It recognized that unless Congress specified otherwise, the Indian nations were free to conduct their own affairs on their sovereign lands and to organize their enterprises according to their own traditions, customs, conditions, and necessities—that is, until 2004, when the National Labor Relations Board decided to shatter these decades of legal precedents and usurp the legislative powers of the Congress.

The NLRA was never intended to apply to governments, and the American Indian nations have always been recognized as governments—that is, until the NLRB decided to radically and fundamentally change the law that created it in the first place.

The question before the House is whether Congress will reassert its authority over a rogue executive agency and, for a change, honor the promises of tribal sovereignty made to these nations more than 100 years ago.

Mr. SCOTT of Virginia. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Illinois (Ms. SCHAKOWSKY).

Ms. SCHAKOWSKY. I thank the gentleman from Virginia (Mr. SCOTT) for yielding and for his leadership in support of working men and women.

Mr. Speaker, like my colleagues, I am a strong supporter of tribal sovereignty and believe that we must recognize the rights of tribal governments. But I am also a strong supporter of labor rights, the ability of hardworking men and women to join together in collective bargaining to improve their workplace and the lives of their families.

Union membership has many advantages: higher wages, better benefits, and safer working conditions. It is no coincidence that we have seen the middle class shrink dramatically at the same time that union membership has declined. That is why we need to act to expand labor rights and why we should be concerned about the bill before us.

I believe that the 2004 National Labor Relations Board decision in San Manuel Indian Bingo & Casino struck the appropriate balance between respecting tribal sovereignty and upholding labor rights. In its decision, the NLRB stated the National Labor Relations Act does not apply if it would undermine the ''exclusive rights of self-governance in purely intramural matters'' or ''abrogate Indian treaty rights.'' However, the NLRB clarified that labor law would apply if an entity is a purely commercial enterprise and employs or caters to individuals who are not tribal members. That is an appropriate test, whether we are talking about casinos or construction companies, hotels and resorts, or mines or power plants.

H.R. 511 would overturn the NLRB's carefully crafted decision and could take away existing bargaining rights from hundreds of thousands of workers. We know that workers at tribally owned casinos have benefited from union membership. A UNITE HERE! union study of tribal casino workers in California documented higher wages, lower healthcare costs, and less worker reliance on public benefits like Medicaid to meet the needs of their families. Employers, too, gain when workers are more productive and turnover is reduced.

We have real-world examples of how unions have helped workers. Gary Navarro, a Pomo Nation member employed at Graton Casino & Resort, testified before the Education and the Workforce Committee that ''I became active in my union because of unjust treatment of casino workers by the managers and how nothing could be done about even sexual harassment because of sovereignty. Exercising our right to organize turned out to be the only way to protect ourselves and our coworkers.''

Madeline, a worker at Foxwoods, was suspended because she was forced to clock out when she went to see a nurse for a work-related injury, which put

her over the casino's attendance points system. Her union won her reinstatement and backpay. And the company provided a mandatory OSHA training program for management.

Jenny Langlois, at Foxwoods, benefited from a union contract that gave her the time she needed to receive treatment for breast cancer.

Mr. Speaker, H.R. 511 would result in the loss of those gains, and, by eliminating NLRA rights, could deny them to many more workers in the future. By doing so, it would leave those workers without any avenue to bargain collectively, ensure fair compensation, or seek redress for workplace injuries.

Three out of four of the 600,000 workers employed in tribal casinos are not tribal members. They do not have full access to internal, tribal mechanisms for filing grievances or petitioning for changes in policy. And while some tribal governments have labor laws that apply to commercial operations, many don't, and there is no guarantee that those who have them will not change or eliminate them in the future. By eliminating NLRA rights, workers could have no place to turn to push for labor rights, to appeal unfair firings or disciplinary action, or to take action against sexual harassment.

H.R. 511 would affect more than the gaming industry, including construction workers, miners, and hotel workers. That is why the International Labour Organization has stated that it ''would appear likely that an exclusion of certain workers from the NLRA and its mechanisms would give rise to a failure to ensure to these workers their fundamental freedom of association rights absent any assurances that there were tribal labor laws that provide the same rights to all workers.''

But there is no such requirement in H.R. 511. It would preempt NLRA coverage. But there are other Federal laws that apply to tribes, including the Occupational Safety and Health Act, title III of the Americans with Disabilities Act, the Family and Medical Leave Act, and the Employee Retirement Income Security Act. Why should we single out the NLRA, the law that gives workers bargaining rights? Or will we be asked to eliminate those other important protections in the future?

Mr. Speaker, proponents of the bill argue that it is designed to provide equal treatment for tribal nations with State and local governments, but there are key distinctions.

First, we are talking here not about people who work directly for tribal governments but for workers in commercial enterprises. Most States and localities don't operate huge commercial entities that hire the majority of workers from outside of their jurisdictions.

Second, if State or local workers want to push for laws to obtain or protect collective bargaining rights, they have the ability to participate in the political process and vote in elections. That is one reason that the vast majority of State and local public employees have those rights. Non-tribal workers at tribal-operated commercial enterprises lack that ability. They don't vote in tribal elections, and they have no direct ability to affect labor policies for tribal governments.

Mr. Speaker, we should fight for workplace rights and support the balanced approach taken by the NLRB. I ask my colleagues to join in opposing this bill.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentleman from Minnesota (Mr. EMMER.)

Mr. EMMER of Minnesota. I thank the gentleman from Tennessee.

Mr. Speaker, I rise in support of the Tribal Labor Sovereignty Act of 2015.

Minnesota is a proud home to seven Ojibwe reservations and four Dakota communities. We have a strong and deep Native American history and are proud of the work we have accomplished through centuries of working together.

The Federal Government has long recognized that Native American tribes have the capacity and ability to govern themselves in an efficient and meaningful manner that is consistent with their heritage. The legislation being discussed today is of grave importance to the communities that have contributed so much to our Nation's history.

The intent of the National Labor Rights Act passed in 1935 was never to include tribal governments within its jurisdiction. It is unfortunate that some are seeking to take advantage of a once well-intended law, but it is now up to Congress to do the right thing and expressly clarify that tribal governments are exempt from the National Labor Relations Act.

Mr. SCOTT of Virginia. Mr. Speaker, could you tell us how much time remains on both sides.

The SPEAKER pro tempore (Mr. MARCHANT). The gentleman from Virginia has 12 minutes remaining. The gentleman from Tennessee has 21¼ minutes remaining.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 3 minutes to the gentleman from Maryland (Mr. HOYER), the minority whip.

Mr. HOYER. I thank the gentleman from Virginia for yielding.

Mr. Speaker, I want to also say to my friend from Tennessee (Mr. ROE), he and I are good friends and have done a lot of work together, but on this we disagree.

I want to say, Mr. Speaker, that if the National Labor Relations Act were at issue on this floor today, my belief is—I may be wrong—that many of the people who will vote for this bill would be for repealing the National Labor Relations Act. That is a fair place to be, I suppose, but that is essentially what we are talking about here.

I can't think of anyone in this House who does not believe strongly in the principle of protecting the sovereignty of American tribes and their governments. I know surely that is where I am. I presume all 434 of my colleagues are there. It is the least we can do, having treated the Native Americans so badly when we got here and thereafter.

We agree that when tribal governments are carrying out inherently government functions—that is the key. It is the key for the courts; it ought to be the key for us—their sovereignty is fully, and should be, secure under current law. But this bill goes a lot further than reinforcing that understanding.

Instead, this bill extends the current understanding of sovereignty not from what it is, but it is in an effort to undermine the rights for working men and women in this country, which is why, for all Americans, we cannot get a minimum wage bill on this floor, which is $7.25, which is now 7 years in being, and would be, if we paid the same in 1968 for the minimum wage, $10.68 today. It is the same principle, we can't get it on the floor. For all Americans—not just Indian Americans—for all Americans, Native Americans, it undermines their rights, rights that every Member of this House also ought to support.

Democrats are proud to stand shoulder to shoulder with Native American tribal communities across this country, and we are going to continue working with them to fight for more investment in education. Hear me. We need to put our money where our mouth is: Native American housing, health care, education, along with continuing to protect their sovereignty in governing themselves according to their cultures and traditions.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. SCOTT of Virginia. Mr. Speaker, I yield the gentleman from Maryland an additional 1 minute.

Mr. HOYER. I thank the gentleman.

Mr. Speaker, what we do not support is taking away protections from American workers, Native and non-Native alike, who work in commercial enterprises owned by tribes. All of our people deserve the chance to earn a decent living, be safe at work, and reach for a better life. This bill is not a step in the right direction.

Courts have ruled that tribes must also comply with other laws. I want to adopt the comments of the gentlewoman from Illinois.

Courts have ruled that tribes must also comply with the Fair Labor Standards Act and the Occupational Safety and Health Act and many criminal laws, among others. Should we repeal that and have unhealthy working conditions in commercial enterprises? Perhaps that is the next bill you will bring forward in the name of Native sovereignty.

□ 1430

Why is the NLRA being singled out from among these laws of general applicability by the proponents of this bill? I suggested why at the beginning

of my comments: because that side does not support National Labor Relations Act rights.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. SCOTT of Virginia. Mr. Speaker, I yield the gentleman an additional 1 minute.

Mr. HOYER. Given that there is no logical distinction to explain why these other laws should apply to tribes but the NLRA should not, the only plausible explanation is that this legislation is a precursor of other legislation and says, once again, we do not support the rights of Americans to collectively bargain for pay, benefits, safety, and working conditions.

Mr. Speaker, I urge my colleagues to send a strong and unequivocal message—two messages: A, we support strongly the sovereignty of our tribes, but, secondly, we also support the decency and safety and pay of working Americans, tribes and non-tribes alike.

I urge my colleagues to vote ''no.''

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Just for clarification, Mr. Speaker, many Federal labor laws specifically exclude Indian tribes from the definition of employer, including title VII of the Civil Rights Act of 1964, title I of the Americans with Disabilities Act, and the Worker Adjustment and Retraining Notification Act. In contrast, statutes of general application, including the NLRA; Uniformed Services Employment and Reemployment Rights Act; Age Discrimination in Employment Act, ADEA; Fair Labor Standards Act; Family and Medical Leave Act; and Employee Retirement Income Security Act, ERISA, are silent in their application to Indian tribes. Federal courts have held that the statutes of general application—specifically, FLSA and ERISA—do apply. Otherwise, they do not.

At this time, I yield 1 minute to the gentlewoman from South Dakota (Mrs. NOEM), my good friend, which I had the privilege of visiting her beautiful State about a month ago.

Mrs. NOEM. Mr. Speaker, I want to remind everyone, in light of the debate that we have had today here on the floor, that this bill is extremely bipartisan. It is supported by tribes all across the Nation. It is something that they have been asking us for. In fact, in the last two Congresses, I carried the bill. I was the sponsor of it because it needs to be done, and I was asked to do so by tribes across the country.

This is an issue of sovereignty. No other level of government in the country is subject to the National Labor Relations Act. It is time that Congress clarifies the law and reaffirms its commitment to tribal governments and self-determination.

The bipartisan policy of economic development through self-determination has helped create economic opportunity in Indian country. Tribes across the country and in my home State of South Dakota work daily to overcome the high rates of poverty and unemployment that they face. They continue to develop their businesses and lands for the benefit of their people and communities. The last thing that they need is to have the National Labor Relations Board meddling in their economic development affairs when they are trying to make life better for the people who live in their communities.

I urge my colleagues to support tribal sovereignty, support tribal governments, and vote ''yes'' on this important legislation.

Mr. SCOTT of Virginia. Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. LAMALFA).

Mr. LAMALFA. Mr. Speaker, I thank the fine gentleman from Tennessee.

Mr. Speaker, I am pleased to be able to speak on this bill today.

While this administration has been eager to recognize tribes, too often it fails to also recognize their sovereign rights, imposing onerous Federal requirements on tribes' management of their own lands and livelihoods, which is very important in my own First District of California, home of many recognized tribes.

This measure rectifies a clear overreach yet again of this administration by rolling back National Labor Relations Board regulations that impose Federal labor laws on tribal businesses located on their own tribal land never intended under the NLRA.

Mr. Speaker, sovereign status doesn't mean that tribes may manage their own affairs only now and then, or only when the administration chooses. It means tribes have a right to self-government in every aspect of their affairs.

It is time that this House reaffirm its constitutional role, defined in article I, section 8, and lead the Federal Government in its relations with Indian tribes, not this overreaching board.

Mr. SCOTT of Virginia. Mr. Speaker, I continue to reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentleman from Oklahoma (Mr. RUSSELL) and thank him for his service to this great Nation.

Mr. RUSSELL. Mr. Speaker, I thank the gentleman from Tennessee.

Really this whole matter and discussion is pretty simple: Article I, section 8, Congress shall have the power ''to regulate commerce with foreign nations and among the several States and with the Indian tribes''—explicit language in the Constitution that we all defend and that I have defended since I was 18.

It is the purview of this Congress, not the rulemakers of the National Labor Relations Board, to regulate commerce.

This Nation must continue to recognize the rights of Indian tribal sovereignty, and this Congress must uphold the Constitution and sovereign treaties with those tribes.

Those opposed to this bill, Mr. Speaker, say that it will take away the rights of workers. As a Representative from Oklahoma, whose Fifth District has more than 13 percent Native American, our largest minority, our constituents know that the actions of the rulemakers will take away the rights of sovereign tribes. Congress must restore these rights with the passage of this bill.

Mr. SCOTT of Virginia. Mr. Speaker, I continue to reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, how much time do I have remaining?

The SPEAKER pro tempore. The gentleman from Tennessee has 17 minutes remaining.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentleman from North Dakota (Mr. CRAMER).

Mr. CRAMER. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, self-reliance and self-governance need to be more than liberal buzzwords if we are going to make a difference, if they are going to have any meaning at all. And I find some of the comments of the opposition to be quite rich in contradiction. Unfortunately, they are similar to the comments that President Obama had this morning when he announced his opposition to this legislation, stating that he could not support the bill unless tribal governments adopted his view. In other words, they have to be identical to his views in order to have sovereignty. Well, this isn't sovereignty at all.

The President often likes to say that he honors and respects tribal sovereignty. In fact, I heard him say that he respects it as much as any President, right while standing in the powwow grounds in Cannon Ball, North Dakota, last summer.

Yet when presented with this opportunity—and it is not the only opportunity we presented, by the way—the Native American Energy Act and gas-gathering pipeline bills have done the same thing, trying to give sovereignty where sovereignty is to be given. And, actually, it is not given to them; it is held by them.

So I call on Congress and President Obama to respect the rights of tribes and pass this legislation into law.

Mr. SCOTT of Virginia. Mr. Speaker, I continue to reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentlewoman from New Mexico (Ms. MICHELLE LUJAN GRISHAM).

Ms. MICHELLE LUJAN GRISHAM of New Mexico. Mr. Speaker, I rise in support of the Tribal Labor Sovereignty Act, which would clarify Federal law, restore parity for tribal governments, and protect tribal autonomy.

As you have heard today, tribes have a right to govern themselves, manage their own land, and regulate tribal enterprises according to their own culture, traditions, and law. They have

the right to regulate labor relations with their employees as a result, and I expect tribal governments to view this legislation, in fact, as an opportunity to strengthen their own worker protections.

No worker, as you have also heard today, should be without a voice or an ability to petition their employer for stronger benefits or a better work environment. In fact, many tribes across the country and in New Mexico have developed labor ordinances that, in fact, protect these rights.

During negotiations of the 1999 tribal-State gaming compact, Indian tribes in California agreed to adopt the Model Tribal Labor Relations Ordinance in order to strengthen worker protections.

Although this bill does not prevent similar tribal efforts to protect workers, I am disappointed that it doesn't do anything to promote stronger tribal labor practices.

Congress should provide tribes the resources they need to develop and implement labor laws and regulations at Native American enterprises. Employee protections and tribal autonomy are not opposing values.

I urge my colleagues to support this bill and to work for protecting workers' rights.

Mr. SCOTT of Virginia. Mr. Speaker, I yield myself 1 minute.

Mr. Speaker, I want to read portions of a Statement of Administration Policy, issued by the Executive Office of the President:

''The administration is deeply committed to respecting tribal sovereignty and maintaining government-to-government relationships with Indian tribes as well as to protecting American workers and enforcing Federal labor laws. The administration cannot support H.R. 511, the Tribal Labor Sovereignty Act of 2015, as currently drafted, because it does not include the provisions as explained below.''

Going on:

''The administration is encouraged by the efforts of some tribal governments to balance these important interests and find common ground when formulating compacts to operate casinos on tribal land under the Federal Indian Gaming Regulatory Act. In several of these compacts, tribes have agreed to establish their own labor relations policies. Though these compacts differ on minor details, what they have in common is that they generally protect tribal self-governance while also ensuring that most casino workers retain important and effective labor rights.

''It is thus possible to protect both tribal sovereignty and workers' rights, and the administration can only support approaches that accomplish that result. Therefore, the administration can support a bill which recognizes tribal sovereignty in formulating labor relations law and exempts tribes from the jurisdiction of the National Labor Relations Board only if the tribes adopt labor standards and procedures applicable to tribally owned and operated commercial enterprises reasonably equivalent to those in the National Labor Relations Act.''

Mr. Speaker, I include in the RECORD the Statement of Administration Policy.

STATEMENT OF ADMINISTRATIVE POLICY

H.R. 511—TRIBAL LABOR SOVEREIGNTY ACT OF 2015

(Rep. Rokita, R–IN, Nov. 17, 2015)

The Administration is deeply committed to respecting tribal sovereignty and maintaining government-to-government relationships with Indian tribes as well as to protecting American workers and enforcing Federal labor laws. The Administration cannot support H.R. 511, the Tribal Labor Sovereignty Act of 2015, as currently drafted, because it does not include the provisions as explained below.

The President's commitment to tribal sovereignty has taken many forms—from establishing the White House Council on Native American Affairs, to reaffirming tribal authority to prosecute non-Indians under the Violence Against Women Act, and to promoting tribal self-determination by signing into law the Helping Expedite and Advance Responsible Tribal Homeownership (HEARTH) Act so that tribes may lease their lands without the approval of the Secretary of the Interior.

At the same time, the President is firmly dedicated to protecting American workers. The Administration vigorously enforces Federal labor laws and has repeatedly emphasized the importance of strengthening workers' rights to collective bargaining.

The Administration is encouraged by the efforts of some tribal governments to balance these important interests and find common ground when formulating compacts to operate casinos on tribal land under the Federal Indian Gaming Regulatory Act. In several of these compacts, tribes have agreed to establish their own labor relations policies. Though these compacts differ on minor details, what they have in common is that they generally protect tribal self-governance while also ensuring that most casino workers retain important and effective labor rights.

It is thus possible to protect both tribal sovereignty and workers' rights, and the Administration can only support approaches that accomplish that result. Therefore, the Administration can support a bill which recognizes tribal sovereignty in formulating labor relations law and exempts tribes from the jurisdiction of the National Labor Relations Board only if the tribes adopt labor standards and procedures applicable to tribally-owned and operated commercial enterprises reasonably equivalent to those in the National Labor Relations Act. Amended legislation would also need to include an authorization for funding to support the development and implementation of tribal labor laws and regulations.

Mr. SCOTT of Virginia. Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I guess what sovereignty means for an Indian reservation is you can be sovereign as long as we tell you what to do.

I yield 2 minutes to the gentleman from New Mexico (Mr. PEARCE). New Mexico has been a very active voice on this issue.

Mr. PEARCE. Mr. Speaker, I thank the gentleman for yielding.

H.R. 511, the Tribal Labor Sovereignty Act, says it all. All we are trying to do is to provide Native American tribes the sovereignty and autonomy they deserve, ensuring that they have the same rights as other businesses off the reservation, and that they have the same standards as States and local governments.

Now, we have heard on this floor from those who reject the bill, those who oppose it, about where after is decency, safety, and pay. I am proud of New Mexico. I represent the tribes. And I will tell you we are falling far short of those objectives of those who oppose the bill.

Many of the tribes are looking to get into their own businesses now. They want to compete off reservation. They want to put tribal members to work. But they are hamstrung by the National Labor Relations Board, which currently chooses on a case-by-case basis which tribes are regulated and which are not. They are dependent on the government to give them permission. That is not what sovereignty sounds like in New Mexico, and tribes across this country are rejecting the status quo, saying: Let us move forward. Let us be in charge of our own destiny. We do not want to be responsible—we don't want to be wards of the government any longer. Give us our freedom to compete.

I see tribal companies that could compete easily if they are allowed to by this government. And just the phrase being ''allowed to by this government'' is one that chafes, and should chafe, Native Americans.

So the resulting confusion from the current status quo, which is trying to provide decency, safety, and pay, and is not doing that, the confusion from some being chosen and some not being chosen is one that needs to be overturned. H.R. 511 does that. I rise to support it, and appreciate the gentleman's time.

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Mr. SCOTT of Virginia. Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield 2 minutes to the gentlewoman from Wisconsin (Ms. MOORE).

Ms. MOORE. I thank the gentleman for yielding.

Mr. Speaker, I rise today in strong support of H.R. 511.

When Congress originally passed the National Labor Relations Act in 1935, Congress exempted Federal, State, and local governments from the definition of employer. What we have seen since then, Mr. Speaker, is that local units of government have allowed labor unions to develop, and we have seen the growth and the development of the middle class because labor unions have been in place.

Nowhere in the NLRA are Indian tribes mentioned. For nearly 60 years, the NLRB treated tribes as local units of government and the Board declined to apply the NLRA over tribal activities in Indian Country. However, in

2004, the NLRB abruptly reversed course with the San Manuel ruling, asserting that the NLRA does apply to tribal enterprises. The ruling meant that tribes would no longer be treated as local units of government.

H.R. 511 is a narrow legislative fix that simply adds tribal governments to the list of other governments that are specifically excluded from the definition of employer in the NLRA. This bill simply ensures that the American Indian tribes are treated with parity, as our other local units of government are treated.

As a longtime labor advocate, I support this bill because I believe in tribal sovereignty. I have seen tribes afford their workers good pay, good health care and benefits. I respect their sovereignty, and I respect them to do as our cities and our States do. Sovereignty means respecting the individual authority and the decision-making of our country's first nations. That is what H.R. 511 does.

Mr. ROE of Tennessee. Mr. Speaker, I reserve the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I yield 2 minutes to the gentleman from Wisconsin (Mr. POCAN).

Mr. POCAN. Mr. Speaker, I rise for a few of the things we have not heard on the other side of the aisle. I have heard a lot about sovereignty, but we have asked explicitly about other areas, one being OSHA. We have asked explicitly about ERISA. We have asked explicitly about the ADA. Why aren't those in here if this is a sovereignty bill and not just an antilabor bill?

In fact, on the Education and the Workforce Committee, I don't think a month goes by, Mr. Speaker, that we don't have a hearing that attacks the National Labor Relations Board and their actions or some other labor-related activity. It happens as often as you can imagine.

Yet, here we are being told this is really about sovereignty, but we don't really engage in a debate about sovereignty. Where we have a problem is on the labor front and what it would mean to working people—to the hundreds of thousands of people, 700,000 people-plus—who would lose their rights if this were to be passed.

One of the things that was said that is simply not correct is that a number of tribes have their own labor practices. Here is the reality. According to labor employment law in Indian Country—in a book from 2011 that is specifically about labor law and tribes—of the 567 federally recognized tribes, ''few tribes have implemented labor ordinances, other than right-to-work provisions, to govern labor organizations and collective bargaining.''

In fact, when you look at specific tribes, what has been passed, all too often, unfortunately, are things like right to work, which takes away the ability to have that collective bargaining right.

If we are going to have this debate about sovereignty, let's talk about sovereignty, let's talk about the funding for the Bureau of Indian Affairs' schools, let's talk about lifting some of those tax laws that make it harder for them to invest in renewable energy. Let's talk about those laws and not just the ones you want to.

This is like when I was a kid. When I had to take a pill, it came in the middle of something sweet. You are trying to take something really bad, like taking away workers' rights, and are putting it in a tribal bill because we support the tribes and because we support the unions, and you want to split that up.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. SCOTT of Virginia. I yield the gentleman an additional 1 minute.

Mr. POCAN. I thank the gentleman.

Mr. Speaker, the bottom line is we just want to have that debate. Let's talk about sovereignty. But I am not hearing anything about the other issues that affect the tribes.

I have a tribe in my district, as we have many tribes in Wisconsin, and I have had a good, long relationship in my time in the legislature with these tribes. I have fought on behalf of changing Indian mascot names. I have fought on behalf of making sure that they have spearfishing rights in the State of Wisconsin.

The U.S. Chamber and all of those groups were never there. The U.S. Chamber is only here because they want to go after workers' rights. This bill is only here because you want to go after workers' rights. Let's just be honest about it.

If you want to have a debate on sovereignty, talk about the many issues we have brought up, because that is not what this bill is about. I support tribal sovereignty. I also support the many people who work in these facilities. We have to ensure that they still have the protections. I urge a ''no'' vote.

Mr. ROE of Tennessee. Mr. Speaker, certainly what we are after here today are the rights of Native Americans, whose rights have been trampled on by this country. We have had treaty after treaty that we have ignored. Maybe we can finally, with this piece of legislation, get one right here.

I yield 5 minutes to the gentleman from Indiana (Mr. ROKITA), my very good friend and the chairman of the Subcommittee on Early Childhood, Elementary, and Secondary Education.

Mr. ROKITA. I thank the gentleman not only for the time, but for his leadership on the committee and in helping bring the bill to the point it is today.

Mr. Speaker, this bill is not a new product. It has been around for about 10 years. But it hasn't gone as far as it has gone today. That is a compliment to all of the proponents of the bill, to Members like KRISTI NOEM, who has talked earlier and who had this bill in the past, to Members like Chairman JOHN KLINE, who has carried it in the past, and all the way back to J.D. Hayworth. We thank them all for getting us here. I, for one, am a Member who has picked up this product and has run with it to help get it here.

I have been to 13 tribal communities this year alone, understanding what the problems are with this activist Department of Labor and National Labor Relations Board. That is why this bill is so popular, and in my talking with nearly every Member of this body, that is why so many Members have supported it. I expect and would ask for a strong vote today for sovereignty, for parity.

Mr. Speaker, the history is this: The National Labor Relations Act was silent as to tribal communities in terms of being regulated as an employer. State governments and local governments were specifically exempted from the act.

Then, because of an error in a court decision as well as an activist Department of Labor, we are in this position where the jurisdiction of tribal communities under the act has now been invented.

This bill corrects that and says in no uncertain terms—and very explicitly in just three pages—that tribal communities are to be exempted from the act if they are to be sovereign. All we are asking for is parity with State and local governments.

Let me give you an example.

Let's say you have a municipally owned and operated golf course in your community—or if it were a State government, then it would be the State government, owned by the State—and that municipality didn't want to have union activities and it wrote its own set of rules for its employees. That would be fine under the act.

By not allowing the very same right or luxury to a tribal government, we are treating them unlike other State and local governments. That is why in this context they are not sovereign. That is why this bill is needed.

The gentleman from Wisconsin who just spoke reminds us that there are agencies in this bill that aren't covered. I would say to him: What a great idea for tribal labor sovereignty, act two.

But the logic that just because every agency isn't covered under what is only meant to cover the NLRA somehow negates the good that this bill does—the right answer that comes with a ''yes'' vote—is ridiculous. Just because it doesn't do everything doesn't mean you can't do anything.

So I would say to the Members of this body, on that fact alone, you should vote ''yes.''

It is also true that many tribal communities have unions, that many tribal communities have rules that govern their labor and employees, and those who want to oppose this bill, in my estimation, Mr. Speaker, simply want to insert their judgments, their biases, for their preferred rule or for their preferred union in place of duly elected members of a tribal government.

So I would say to those opponents: What makes you smarter than the people who elect the tribal government?

What makes you better and your judgment superior to those who have been duly elected by the members of a tribal nation?

The fact of the matter is the arguments that have been made by the opposition do not apply to what is right here. The right thing is to ask ourselves: Are tribal communities sovereign or are they not? Should they at least be in parity with State and local governments or should they not?

I would say, Mr. Speaker, to every Member here and remind everybody—Republican, Democrat—that this is a bipartisan bill. We just had two Democrat Members speak in favor of this bill.

If you want to do what is right—if you believe in the sovereignty of tribal communities, if you believe they should at least have the same parity, judgment, and authority as State and local governments do—then you should vote ''yes'' on H.R. 511. I urge all Members to do that, Republican and Democrat.

Mr. SCOTT of Virginia. Mr. Speaker, is the gentleman prepared to close?

Mr. ROE of Tennessee. Yes. I am prepared to close.

Mr. SCOTT of Virginia. Mr. Speaker, I yield myself the balance of my time.

We have heard about the fact that the National Labor Relations Act is silent. That is true. But in terms of laws of general application, they are applied to tribes based on the balancing test, and the courts applied that test. That test is a half a century old. The activist NLRB that ruled in 2004 was during the George W. Bush administration. So we don't know how activist they could be interpreted.

There are a lot of laws that we have found and have discussed that apply to tribes, like the Fair Labor Standards Act, OSHA, ERISA. They have to withhold taxes. They have to pay their employer share of Social Security and Medicare, and on and on. The criminal laws go on and on as well as laws of general application.

Mr. Speaker, I would like to quote from a letter from the International Labour Office, which is basically talking about the international labor obligations we have. They write:

''While elements of indigenous peoples' sovereignty have been invoked by the proponents of this Bill, the central question revolves around the manner in which the United States Government can best assure throughout its territory the full application of the fundamental principles of freedom of association and collective bargaining. From an ILO perspective, while the variety of mechanisms for ensuring freedom of association and collective bargaining rights may differ depending on distinct sectorial considerations or devolution of labor competence, it is critical that the State (the national authority) takes ultimate responsibility for ensuring respect for freedom of association and collective bargaining rights throughout its territory.

''Given the concerns that you have raised, it would be critically important that, at the very least, a complete legal and comparative review be undertaken to support assurances that all rights, mechanisms and remedies for the full protection of internationally recognized freedom of association rights are available to all workers on all tribal lands. In the absence of such assurances, it would appear likely that an exclusion of certain workers from the NLRA and its mechanisms would give rise to a failure to ensure to these workers their fundamental freedom of association rights.'' Therefore, it would be in violation of the ILO.

This isn't about labor rights. This is about whether or not we are going to fulfill our obligations under the International Labour Organization as a government that subscribes to those.

Finally, Mr. Speaker, I include for the RECORD the full letter from the ILO and several other letters in opposition to the legislation.

INTERNATIONAL LABOUR OFFICE,
Geneva, Switzerland.

Mr. R. L. TRUMKA,
President, AFL–CIO,
Washington, DC.

DEAR MR. TRUMKA, I acknowledge receipt of your letter dated 22 October 2015 requesting an informal opinion and guidance from the International Labour Organization in respect of a Bill being considered by the United States Congress.

In particular, you have raised concerns about the Tribal Labor Sovereignty Act (H.R. 511) which you state would deny protection under the National Labor Relations Act (NLRA) of a large number of workers employed by tribal-owned and tribal-operated enterprises located on tribal territory and ask for the informal opinion of the Office as to whether such an exclusion of workers employed on tribal lands would be in conformity with the principles of freedom of Association which are at the core of the ILO Constitution and the ILO's Fundamental Principles and Rights at Work.

In conformity with the regular procedure concerning requests for an informal opinion from the International Labour Office in respect of draft legislation and its possible impact on international labour standards and principles, the views set out below should in no way be considered as prejudging any comments or observations that might be made by the ILO supervisory bodies within the framework of their examination of the application of ratified international labour standards or principles on freedom of association.

Your links to committee reports of the congressional majority and minority and other background information have enabled the Office to consider the views of the parties both for and against the proposed amendment and they all appear to confirm recognition of the United States' obligation to uphold freedom of association and collective bargaining. While the proponents of the Bill assert that this can be achieved through the labour relations' regimes autonomously determined by the tribal nations, the opponents—and you yourself in your request—maintain that excluding tribal lands from the NLRA will in effect result in a loss (or at the very least inadequate protection) of their trade union rights. Not only do you refer to tribal labour relations ordinances which in your view provide inadequate protections in this regard, but you also refer to instances where there are no tribal labour relations ordinances at all.

While elements of indigenous peoples' sovereignty have been invoked by the proponents of this Bill, the central question revolves around the manner in which the United States Government can best assure throughout its territory the full application of the fundamental principles of freedom of association and collective bargaining. From an ILO perspective, while the variety of mechanisms for ensuring freedom of association and collective bargaining rights may differ depending on distinct sectoral considerations or devolution of labour competence, it is critical that the State (the national authority) takes ultimate responsibility for ensuring respect for freedom of association and collective bargaining rights throughout its territory.

As you have indicated, the 2004 San Manuel Indian Bingo and Casino decision assures possible recourse to the National Labor Relations Board (NLRB), an overarching mechanism aimed at ensuring the protection of freedom of association, while also maintaining deference to the sovereign interests of the tribal nations so as to avoid touching on exclusive rights of self-governance.

Full abdication of review via an exclusion from the scope of the NLRA for all workers employed on tribal lands as described might make it very difficult for the United States Government to assure the fundamental trade union rights of workers. In cases like those mentioned where there are no tribal labour relations ordinances, undue restrictions on collective bargaining, excessive limitations on freedom of association rights or lack of protection from unfair labour practices, workers on tribal territories would be left without any remedy for violation of their fundamental freedom of association rights, short of a constitutional battle. Furthermore, the exclusion proposed, with no avenue for federal review or overarching mechanism for appeal should there be an alleged violation of freedom of association, would give rise to discrimination in relation to the protection of trade union rights which would affect both indigenous and non-indigenous workers simply on the basis of their workplace location.

Given the concerns that you have raised, it would be critically important that, at the very least, a complete legal and comparative review be undertaken to support assurances that all rights, mechanisms and remedies for the full protection of internationally recognized freedom of association rights are available to all workers on all tribal lands. In the absence of such assurances, it would appear likely that an exclusion of certain workers from the NLRA and its mechanisms would give rise to a failure to ensure to these workers their fundamental freedom of association rights.

In accordance with ILO procedure concerning requests for informal opinions on draft legislation, this communication will also be brought to the attention of the United States Government and the representative employers' organization, the U.S. Council for International Business.

Yours sincerely,

CORINNE VARGHA,
Director of the International Labour Standards Department.

UNITED AUTO WORKERS,
Washington, DC, November 16, 2015.

DEAR REPRESENTATIVE: On behalf of the more than one million active and retired members of the International Union, United Automobile, Aerospace and Agricultural Implement Workers of America (UAW), I urge you to vote against the Tribal Labor Sovereignty Act (H.R. 511). This misguided bill would deny protection under the National Labor Relations Act (NLRA) to hundreds of

thousands of workers employed by tribal casinos alone. Tribal casinos have created over 628,000 jobs. This legislation does not only apply to casinos. It could impact dozens of other businesses, including power plants, mining operations, and hotels.

UAW deeply believes in tribal sovereignty and has a strong record in supporting civil rights throughout our history. This bill, however, is misleading. It is an attack on fundamental collective bargaining rights and would strip workers in commercial enterprises of their rights and protections under the NLRA. Supporters of the bill argue that the bill creates parity for the tribes with state and local governments who are not covered under the NLRA. However, there are some significant differences.

For starters, non-tribal members cannot petition a tribe for labor legislation, while workers employed by a state or local government have a voice with their elected leaders. This is an important difference since 75 percent of Native American gaming employees are not tribal members. In addition, tribes are exempt from employment laws (Title VII of the Civil Rights Act) that apply to state and local governments. Finally, private sector contractors work extensively on behalf of state and local governments and they generally have to comply with the NLRA. In summary, the parity argument does not hold up under scrutiny.

Tribal casinos have a significant and growing presence throughout our country. In 2013, 449 tribal gaming facilities made $28 billion in revenues. Seventy five percent of the workforce is non-tribal members. In fact, at Foxwoods, where the UAW represents the workers (and many other casinos), well over 95% percent of employees and patrons are not tribal members. These employees are working for a tribal enterprise which is simply a commercial operation competing with non-tribal businesses.

Having a union and a legally binding contract has made a real difference in the lives of UAW members who work as dealers and assistant floor supervisors. Hundreds of dealers have been promoted to benefited and supervisory positions because of provisions in the contract that maintain minimum percentages of full-time, part-time and supervisory positions. Work rules, wages, and benefits have all improved because of the right to collectively bargain. H.R. 511 would put all of these hard fought gains in jeopardy. Under the terms of this bill, when a labor contract expires, a tribe could unilaterally terminate the bargaining relationship with the union without legal consequence under the NLRA, because the employer's obligation to bargain could be eliminated.

H.R. 511 seeks to overturn a decision by the National Labor Relations Board (NLRB) in San Manuel Indian Bingo and Casino, 341 NLRB No. 138 (2004). In that decision the Board concluded that applying the NLRA would not interfere with the tribe's autonomy and the effects of the NLRA would not ''extend beyond the tribe's business enterprise and regulate intramural matters.'' The ruling does not apply in instances where its application would ''touch exclusive rights of self-governance in purely intramural matters'' or ''abrogate Indian treaty rights.'' The NLRB has taken a nuanced view on this matter and has ruled on a case-by-case basis. Congressional interference is not justified. Finally, it would create a dangerous precedent that could be used to weaken hard fought worker and civil right protections for employees on tribal lands (minimum wage, OSHA, ERISA).

At a time of growing wealth inequality and shrinking middle class, the last thing Congress should do is deprive workers of their legally enforceable right to form unions and bargain collectively. We urge you to oppose H.R. 511.

Sincerely,

JOSH NASSAR,
Legislative Director.

INTERNATIONAL BROTHERHOOD OF TEAMSTERS,
Washington, DC, November 6, 2015.

HOUSE OF REPRESENTATIVES,
Washington, DC.

DEAR REPRESENTATIVE: The International Brotherhood of Teamsters urges you to oppose H.R. 511, the Tribal Labor Sovereignty Act (H.R. 511). This legislation would exempt all tribally-owned and—operated commercial enterprises on Indian lands broadly defined from the National Labor Relations Act (NLRA).

If H.R. 511 were to become law, hundreds of thousands of workers at these enterprises, including Teamsters, would be stripped of their protections and rights under the NLRA, including the right to organize and collective bargaining. It would deprive both tribal members and non-member employees of the right to form or join unions and to bargain collectively for better wages, hours, and working conditions. We should be working to expand the rights and ability of workers to earn a decent living for themselves and their families and to secure a safe and healthy workplace.

While tribal casinos have been the focus of discussion, this legislation affects not just casino workers. Since the 1980's tribes have expanded business interests beyond casinos. They now operate many different revenue producing commercial enterprises—construction companies, mining operations, power plants, hotels, water parks and ski resorts, to name a few.

In 2004, the National Labor Relations Board (NLRB) (in San Manuel) ruled that tribal casino workers should have NLRA protections. Shortly after the San Manuel decision, legislation, in the form of amendments, was twice offered to block the NLRB from enforcing the San Manuel decision. These amendments were rejected. Since then, the NLRB has proceeded in a measured fashion asserting jurisdiction on a case-by-case basis.

The NLRB will not assert jurisdiction where it would interfere with internal governance rights in purely intramural matters or abrogate treaty rights. Otherwise, the NLRB will protect workers' rights at tribally owned enterprises by asserting jurisdiction. With its case-by-case approach, San Manuel takes a careful approach to balancing tribal sovereignty interests with Federal labor law.

It should be noted that other important federal laws that protect workers apply to Indian businesses, such as the Occupational Safety and Health Act, the Fair Labor Standards Act, the Employee Retirement Income Security Act, and Title III of the Americans with Disabilities Act. Indeed, courts have denied attempts to gain exemptions on numerous occasions ruling commercial tribal enterprises should not be excluded from such laws. NLRA rights and protections should not be treated differently.

Proponents assert that they are seeking the same exemption as state and local governments. However, this is wrong. The NLRA only exempts actual government employees and not private sector employees performing contracted out government functions. Also, a substantial majority of workers at these enterprises are not Indian or tribe members, and thus have no ability to influence tribal governance, since non-tribal members are prohibited from petitioning a tribe.

The bill could also undermine enforcement of existing labor contracts and the decision workers made to organize and bargain collectively. When a collective bargaining agreement expires, a tribe could unilaterally terminate the relationship with the union without consequence under the NLRA. The employer's obligation to bargain could be eliminated.

Employees of tribal enterprises have no constitutional rights to protect against employers. Only the NLRA gives them free speech rights. Absent the NLRA they have no protection. Workers cannot be left without any legally enforceable right to form unions and bargain collectively just because they are employed by at tribally owned enterprise.

Finally, the United States requires its trading partners to implement and abide by internationally recognized labor standards, while H.R. 511 deprives workers at these tribal enterprises of these core rights: the right to organize and bargain collectively.

To focus solely on the NLRA raises the question of the true motivation for this legislation. It is regrettable that the principle of tribal sovereignty is being used to cloak an attack on the basic rights of workers to organize and bargain collectively. The Teamsters Union respects tribal sovereignty. However, we do not believe that this principle should be used to deny workers their collective bargaining rights and freedom of association. We urge you to oppose the Tribal Labor Sovereignty Act and to Vote No on H.R. 511.

Sincerely,

JAMES P. HOFFA,
General President.

UNITED FOOD & COMMERCIAL WORKERS INTERNATIONAL UNION,
Washington, DC, November 17, 2015.

To All Democrats of the House of Representatives.

DEAR REPRESENTATIVE: As you know, the House of Representatives is scheduled to vote this week on the Tribal Labor Sovereignty Act (HR 511). This bill is a blatant attack upon hardworking families, and their right to organize and earn a better life. As such, we will be scoring HR 511 in our upcoming congressional scorecard. We urge you to stand with millions of hard-working men and women and vote against this bill.

Our union family is proud to represent 1,000 men and women who work hard every single day to support their families at casinos that operate on Indian land. If this proposed legislation passes, their ability to negotiate a better life, their rights, and the rights of countless others, will be forever worsened.

Every American, and every worker, has the right to earn a better life, and those rights should never be jeopardized or taken away.

We urge, regardless of party, to do what is right for your constituents, hardworking families, and this nation and vote NO of HR511.

Sincerely,

ANTHONY M. PERRONE,
International President.

AMERICAN FEDERATION OF LABOR AND CONGRESS OF INDUSTRIAL ORGANIZATIONS,
Washington, DC, November 16, 2015.

DEAR REPRESENTATIVE: The AFL–CIO urges you to oppose the Tribal Labor Sovereignty Act (H.R. 511), which would deny protection under the National Labor Relations Act to a large number of workers who are employed by tribal-owned and -operated enterprises located on Indian land. Among these workers are over 600,000 tribal casino workers, the vast majority of whom are not Native Americans. In recent years, there has been a substantial expansion of enterprises that would be impacted by this legislation—not only casinos, but mining operations, power plants,

smoke shops, saw mills, construction companies, ski resorts, high-tech firms, hotels, and spas. These are commercial businesses competing with non-Indian enterprises. The Tribal Labor Sovereignty Act, as proposed, would strip all workers in these many commercial enterprises of their rights and protections under the NLRA.

The bill, introduced by Representative Rokita, seeks to overturn a decision by the National Labor Relations Board (NLRB) in San Manuel Indian Bingo and Casino, 341 NLRB No. 138 (2004), which applied the National Labor Relations Act (NLRA) to a tribal casino enterprise.

In San Manuel, the NLRB looked to Supreme Court and circuit court precedent to articulate a test for whether the NLRB should assert jurisdiction over tribal enterprises, whether located on tribal lands or outside them. (Before San Manuel, NLRB jurisdiction was determined based solely on location: on tribal land, no jurisdiction, off tribal land, jurisdiction. Under the San Manuel test, the NLRA will not apply if its application would ''touch exclusive rights of self-governance in purely intramural matters.'' Nor will the NLRA apply if it would ''abrogate Indian treaty rights.'' The Board in San Manuel also considered other factors, including that the casino in question was a typical commercial enterprise, it employed non-Native Americans, and it catered to non-Native American customers.

In San Manuel, the Board concluded that applying the NLRA would not interfere with the tribe's autonomy, and the effects of the NLRA would not ''extend beyond the tribe's business enterprise and regulate intramural matters.'' However, the test articulated in San Manuel provides for a careful balancing of the tribal sovereignty interests with the Federal Labor law protections provided through the NLRA. In a companion case, the Board tipped the balance the other way, and the NLRB didn't assert jurisdiction. Yukon Kuskokwim Health Corporation, 341 NLRB No. 139 (2004).

The AFL–CIO does support the principle of sovereignty for tribal governments, but does not believe this principle should be used to deny workers their collective bargaining rights and freedom of association. While the AFL–CIO continues to support the concept of tribal sovereignty in truly internal, self-governance matters, it is in no position to repudiate fundamental human rights that belong to every worker in every nation. Workers cannot be left without any legally enforceable right to form unions and bargain collectively in instances where they are working for a tribal enterprise which is simply a commercial operation competing with non-tribal businesses.

This view has been confirmed by the International Labor Organization (ILO), an agency of the United Nations, in response to a question about whether excluding workers employed on tribal lands from the NLRA would be in conformity with the principles of freedom of Association which are at the core of the ILO Constitution and the ILO's Fundamental Principles and Rights at Work. In response, the Director for the International Labour Standards Division wrote that in the absence of tribal ordinances offering full protection of internationally recognized rights, ''it is critical that the State (the national authority) takes ultimate responsibility for ensuring respect for freedom of association and collective bargain throughout its territory.'' In other words, if the tribes themselves don't guarantee these basic rights, and many do not, the U.S. government must not abdicate its responsibility to protect them.

Notwithstanding the importance of the principle of tribal sovereignty, the fundamental human rights of employees are not the exclusive concern of tribal enterprises or tribal governments. In fact, the vast majority of employees of these commercial enterprises, such as the casinos, are not Native Americans. They therefore have no voice in setting tribal policy, and no recourse to tribal governments for the protection of their rights.

The AFL–CIO must oppose any effort to exempt on an across-the-board basis all tribal enterprises from the NLRA, without regard to a specific review of all the circumstances, as is currently provided by current NLRB standards. Where the enterprise is mainly comprised of Native American employees, with mainly Native American customers, and involving self-governance or intramural affairs, that may be the appropriate result. However, where the business employs primarily non-Native American employees and caters to primarily non-Native American customers, there is no basis for depriving employees of their rights and protections under the National Labor Relations Act.

Sincerely,

WILLIAM SAMUEL,
Director, Government Affairs Department.

UNITE HERE!
Las Vegas, NV.

DEAR REPRESENTATIVE: UNITE HERE represents over 275,000 hardworking union members in the hospitality industry and strongly urges you to oppose the Tribal Labor Sovereignty Act (H.R. 511).

Quite simply, if this bill were to become law, American citizens working for Native American businesses would lose their U.S. rights under the NLRA, including ''full freedom of association'' and ''self-organization'' without ''discrimination.'' The legislation as drafted would exempt all businesses owned and operated by Indian nations of the National Labor Relations Act (NLRA) on broadly-defined ''Indian lands''. Tribal businesses, including but not limited to Indian-owned casinos, have workforces and customers that are almost all non-Indian. Over the last 30 years, as Indian enterprises entered the stream of interstate commerce, a number of federal laws protecting the workplace have been applied to Indian businesses: Employee Retirement Income Security Act (ERISA), Occupational Safety and Health Act (OSHA), Fair Labor Standards Act (FLSA), and National Labor Relations Act (NLRA).

Congress should not treat the rights Americans have under the NLRA any differently than these other important laws that protect all other American workers.

In this time of growing income inequality in our country, Congress should be working to expand the rights of American workers and their ability to earn a decent living for themselves and their families, not finding ways to take them away. H.R. 511 is no different than the law signed by Governor Scott Walker in Wisconsin that attacked the basic rights of workers to organize and collectively bargain. Again, our union urges you to oppose H.R. 511.

Sincerely,

D.R. TAYLOR,
President.

UNITED STEEL WORKERS,
November 16, 2015.

DEAR REPRESENTATIVE: The United Steelworkers (USVV) represents hundreds of workers in the gambling industry in Nevada and Ohio, and has recently filed a Petition with the National Labor Relations Board (NLRB) to represent over 100 workers at the Saganing Eagles Landing Resort and Casino in Sandish, MI. Saganing Eagles Landing Resort and Casino is owned and operated by the Saginaw Chippewa Indian Tribe but employs a majority of non-tribal workers. If HR 511, were to become law it would exempt all Indian-owned commercial enterprises operated on Indian lands from the protections of the National Labor Relations Act depriving Indian and non-Indian employees across the nation their right to form or join unions, and collective bargaining for better wages, hours and working conditions.

HR 511 would prohibit the NLRB from examining, on a case-by-case basis, whether or not to assert jurisdiction on workers' petitions to form unions and collectively bargain. It is long standing federal policy that private sector workers should be able to engage in collective bargaining with their employer. In cases where Tribal enterprises are involved, the NLRB, after a complete examination on a case-by-case basis, determines whether the enterprise is governmental or commercial. To ensure both fairness for workers and sovereignty on tribal matters, the NLRB has adopted a three prong test:

1. The enterprise is 'exclusively involved in Tribal self-governance and purely intramural matters';
2. Application of the NLRA would 'abrogate rights guaranteed by Indian treaties'; or
3. There is proof 'by legislative history or some other means' that Congress intended NLRA not to apply to Indians on their reservations.

HR 511 would stop the NLRB from applying this test, and deny workers the protections of the Act. Collective bargaining allows workers to negotiate with their employer for better wages and working conditions, and reduces incidents of workplace discrimination and sexual harassment. Unfortunately, many workers in the gambling industry experience sexual harassment and discrimination due to the nature of the work environment. Woman are often required to wear provocative uniforms and interact with inebriated customers in a 24/7 work environment.

On June 16, 2015 before the House Education and Workforce Committee, Gary Navarro (a member of the Pomo Nation, one of the largest tribes in California, and a worker at the Native-owned Graton Casino & Resort) illustrated this very point. Mr. Navarro testified he witnessed fellow co-workers suffer harassment by supervisors stating:

''I became active in my union because of unjust treatment of casino workers by their managers and how nothing could be done about even sexual harassment because of sovereignty. Exercising our right to organize turned out to be the only way to protect ourselves and our co-workers. Don't strip us of these rights.''

Since the 1980s Tribes have expanded their business interests, operating many different revenue producing commercial enterprises on Indian lands—not just casinos. Tribes operate and employ both Tribal members and non-members working in mines, smoke shops, power plants, saw mills, construction companies, ski resorts, hotels and spas, gift and farmers markets. Many of these enterprises are dangerous with high incidents of worker injury and death, and jobs are not typically well paid. Only through the benefit of collective bargaining can workers be assured of improving their wages, hours and working conditions, including their safety. Because the vast majority of workers employed by Tribal enterprises are NOT Tribal members, they would have no ability to influence Tribal policy or governance.

In 2011 before the Senate Indian Affairs Committee, the National Indian Gaming Commission testified that of 566 federally-recognized tribes, 246 operate 460 gaming facilities in 28 states, and that the vast majority of employees (up to 75 percent) were non-Tribal members. That same testimony reported in 2009 that tribal casinos generated

gross gaming revenue of $27.2 billion, only a fraction of the estimated $100 billion U.S. gambling industry revenue. As of September 2014 the Federal Gaming Commission estimated there were 733,930 people directly employed by the gambling industry in the United States. Gambling industry jobs are typically low-wage jobs, and it is only through collective bargaining that workers can enjoy some of the profits from their hard labor.

In 2004, the Bush Administration NLRB ruled for the first time that Tribal casino workers should have the benefit of NLRA protections, San Manuel, 341 NLRB No. 138 (2204). Yet, since the San Manuel ruling, the NLRB has stepped very carefully, taking jurisdiction on a case-by-case. Just this spring the NLRB declined jurisdiction citing the 1830 Treaty of Dancing Rabbit Creek and 1866 Treaty of Washington stating:

''We have no doubt that asserting jurisdiction over the Casino and the Nation would effectuate the policies of the Act. However, because we find that asserting jurisdiction would abrogate treaty rights specific to the Nation.'' Chickasaw Nation Windstar World Casino, 362 NLRB 109 92015).

Similarly the NLRB declined jurisdiction:

''. .when an Indian tribe is fulfilling a traditionally tribal or governmental function that is unique to its status, fulfilling just such a unique governmental function [providing free health care services solely to tribal members],'' Yukon Kuskokwim Health Corporation, 341 NLRB 139 (2004).

Finally, the Tribes asking for this bill assert they are seeking the same NLRA exemption as state and local governments. This argument is erroneous, because the NLRA only exempts actual government employees and not private sector employees performing contracted-out governmental functions. Hundreds of thousands of private sector workers employed by private sector contractors perform state, local and federal governmental functions; thus, are covered under the NLRA.

Casinos and resorts are not inherently governmental operations, and casino employees are not performing inherently governmental functions by serving cocktails, running Keno numbers, or dealing cards. On June 16, While Tribal witnesses asserted air traffic controllers and casino workers should be treated similarly under the law as critical governmental workers and be prohibited from striking, common sense would suggest otherwise.

Finally, depriving Tribal casino employees of their ability to gain the industry standard negotiated by their counterparts working for hugely profitable commercial gambling operators like Trump, MGM or Wynn Enterprises should not be decided by Congress as a blanket exemption to the NLRA. HR 511 would deprive thousands of workers of their fundamental labor law protection under the guise of Tribal Sovereignty. H.R. 511 is union busting—plain and simple, and would deny Indian and non-Indian workers alike their ability to collectively negotiate wages, hours and working conditions and improve their lives and the livelihood of their families. Please vote NO on H.R. 511.

Thank you for your consideration and please contact Alison Reardon, USW Legislative Representative for additional information.

Sincerely,

HOLLY R. HART,
Assistant to the International President, Legislative Director.

Mr. SCOTT of Virginia. Mr. Speaker, I yield back the balance of my time.

□ 1500

Mr. ROE of Tennessee. Mr. Speaker, I thank my friend, Mr. SCOTT. He is a delight to work with, and I want to thank him for working with me on this.

Policymakers on both sides of the aisle have long agreed on the importance of protecting sovereignty of Native American tribes. Today, we have an opportunity to prove that we are committed to that bipartisan goal.

In my packet here, I have literally page after page of tribes that have supported this piece of legislation. To me, being sovereign means that you are able to make your own decisions. What we are seeing the NLRB do is nibble away a little bit at a time at the authority that the local tribes have over local matters. Look, the political job I had before I came to Congress was being mayor of a city. I had more rights than the Native Americans who occupy this land, many of them my district, the Cherokee Nation.

The Tribal Labor Sovereignty Act of 2015 is a simple, commonsense measure; but it means a great deal, particularly to those in the Native American community. As tribal representatives have said, this bill will prevent unnecessary and unproductive overreach into tribal affairs. It will empower tribal governments to make decisions that are the best for their people, and it will ensure the Federal Government honors and respects the sovereignty of the tribal nations.

Just as importantly, it shows that we are serious about honoring the commitments and making good on promises we have made to Native Americans and broken many, many, many times.

I urge my colleagues to vote ''yes'' on H.R. 511.

Mr. Speaker, I yield back the balance of my time.

Mr. BLUM. Mr. Speaker, I rise today to offer my support of the bipartisan H.R. 511, the Tribal Labor Sovereignty Act. I wish to recognize the work of my colleague, Mr. ROKITA, as well as the efforts of the Committee on Education and the Workforce on this legislation.

If enacted, this important legislation would amend the National Labor Relations Act to ensure that any enterprise or institution owned and operated by an Indian tribe would be treated with parity by any state or local government.

This legislation is necessary to reverse a 2004 National Labor Relations Board's ruling which increased the jurisdiction of the NLRA to cover tribal operations. H.R. 511 promotes tribal sovereignty and allows the tribal governments to regulate appropriate labor practices on lands without the further overreach and infringement of the federal government.

Because of these reasons, Mr. Speaker, I urge my colleagues to support the Tribal Labor Sovereignty Act to ensure that our Native American citizens can achieve parity with other exempted governments.

Vote ''yes'' on H.R. 511.

Mr. CALVERT. Mr. Speaker, I have the privilege of representing a district that covers a large portion of the reservation that is home to the Pechanga Band of Luiseño Indians.

From my meetings and visits with members of the Pechanga tribe, as well as with Native Americans from across the country, I know that there is perhaps no greater priority than protecting tribal sovereignty.

In 2004, the National Labor Relations Board issued a ruling that, I believe, inappropriately applied the National Labor Relations Act to tribally owned businesses on tribal lands. That ruling was contrary to previous court-established precedents because it clearly conflicts with the Constitution's recognition of tribes as sovereign governments. That's exactly why in 2011, a U.S. District Court in Oklahoma ruled in Chickasaw Nation v. National Labor Relations Board that tribal businesses on tribal land do not fall under the jurisdiction of the Board on grounds of tribal sovereignty.

Since that ruling, the National Labor Relations Board has filed an appeal and similar legal conflicts have arisen with other tribes across the country.

Rather than allow these lawsuits and legal proceedings to carry on indefinitely, Congress should step in and reaffirm Native American tribal sovereignty by clarifying that the National Labor Relations Act does not apply to tribally owned businesses.

As a proud original cosponsor of the Tribal Labor Sovereignty Act and friend of our Native American tribes, I encourage all of my colleagues to support this long overdue bill.

The SPEAKER pro tempore (Mr. SIMPSON). All time for debate has expired.

Pursuant to House Resolution 526, the previous question is ordered on the bill, as amended.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. ROE of Tennessee. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

APPOINTMENT OF CONFEREES ON S. 1177, STUDENT SUCCESS ACT

Mr. KLINE. Mr. Speaker, pursuant to House Resolution 526, I offer a motion.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Mr. Kline moves that the House insist on its amendment to S. 1177 and request a conference with the Senate thereon.

The SPEAKER pro tempore. The gentleman from Minnesota is recognized for 1 hour.

Mr. KLINE. Mr. Speaker, this is a motion to authorize a conference on S. 1177. This bill, with the House amendment, helps improve elementary and secondary education in the Nation.

Mr. Speaker, I yield back the balance of my time, and I move the previous question on the motion.

The previous question was ordered.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Minnesota (Mr. KLINE).

The motion was agreed to.

A motion to reconsider was laid on the table.

The SPEAKER pro tempore. Without objection, the Chair appoints the following conferees on S. 1177:

Mr. KLINE, Ms. FOXX, Messrs. ROE of Tennessee, THOMPSON of Pennsylvania, GUTHRIE, ROKITA, MESSER, GROTHMAN, RUSSELL, CURBELO of Florida, SCOTT of Virginia, Mrs. DAVIS of California, Ms. FUDGE, Mr. POLIS, Ms. WILSON of Florida, Ms. BONAMICI, and Ms. CLARK of Massachusetts.

There was no objection.

TRIBAL LABOR SOVEREIGNTY ACT OF 2015

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on passage of the bill (H.R. 511) to clarify the rights of Indians and Indian tribes on Indian lands under the National Labor Relations Act, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the passage of the bill.

The vote was taken by electronic device, and there were—yeas 249, nays 177, not voting 7, as follows:

[Roll No. 633]

YEAS—249

Abraham
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Becerra
Benishek
Beyer
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Cárdenas
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Curbelo (FL)
DelBene
Denham
Dent
DeSantis
Deutch
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Kelly (MS)
Kelly (PA)
Kildee
Kilmer
Kind
King (IA)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Lieu, Ted
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McCollum
McHenry
McMorris Rodgers
McSally
Meadows
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Mullin
Mulvaney
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Ruiz
Russell
Salmon
Sanchez, Loretta
Sanford
Scalise
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Sewell (AL)
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zinke

NAYS—177

Adams
Bass
Beatty
Bera
Bishop (GA)
Blumenauer
Bonamici
Bost
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
Davis, Rodney
DeGette
Delaney
DeLauro
DeSaulnier
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Fitzpatrick
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
King (NY)
Kinzinger (IL)
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Matsui
McDermott
McGovern
McKinley
McNerney
Meehan
Meeks
Meng
Moulton
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rice (NY)
Richmond
Roybal-Allard
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Scott (VA)
Scott, David
Serrano
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth
Zeldin

NOT VOTING—7

DeFazio
DesJarlais
Hinojosa
Ros-Lehtinen
Ruppersberger
Takai
Titus

□ 1534

Messrs. COSTELLO of Pennsylvania, MACARTHUR, and Ms. KAPTUR changed their vote from ''yea'' to ''nay.''

Messrs. SALMON, KIND, and Ms. SEWELL of Alabama changed their vote from ''nay'' to ''yea.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. DESJARLAIS. Mr. Speaker, I regrettably missed rollcall vote No. 633, passage of H.R. 511—the Tribal Land Sovereignty Act of 2015. As a cosponsor of this bill, had I been present, I would have voted ''yes.''

PERSONAL EXPLANATION

Mr. RUPPERSBERGER. Mr, Speaker, I was not able to vote today for medical reasons.

Had I been present on rollcall vote 629, I would have voted ''no.''

Had I been present on rollcall vote 630, I would have voted ''no.''

Had I been present on rollcall vote 631, I would have voted ''yes.''

Had I been present on rollcall vote 632, I would have voted ''yes.''

Had I been present on rollcall vote 633, 1 would have voted ''no.''

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 3770

Mr. VEASEY. Mr. Speaker, I ask unanimous consent to remove myself as a cosponsor of H.R. 3770.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on the motion to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Any record vote on the postponed question will be taken later.

CONDEMNING TERRORIST ATTACKS IN PARIS, FRANCE, ON NOVEMBER 13, 2015

Mr. ROYCE. Mr. Speaker, I move to suspend the rules and agree to the resolution (H. Res. 524) condemning in the strongest terms the terrorist attacks in Paris, France, on November 13, 2015, that resulted in the loss of at least 129 lives, as amended.

The Clerk read the title of the resolution.

The text of the resolution is as follows:

H. RES. 524

Whereas on Friday, November 13, 2015, three groups of Islamist terrorists launched coordinated attacks against six sites across

Paris, France, resulting in the loss of at least 129 innocent lives and the severe wounding of many hundreds;

Whereas the attacks on the Bataclan concert hall, the Stade de France, Le Petit Cambodge restaurant, Le Belle Equipe bar, and on the Avenue de la Republique in the 10th district, represent the largest terrorist attack in Europe since the Madrid, Spain, train bombings of 2004;

Whereas American student Nohemi Gonzalez, 23, of El Monte, California, is among the innocent lives lost in these terrorist attacks, with several Americans injured;

Whereas French first responders and law enforcement reacted swiftly and heroically, in one instance blocking entrance of a suicide bomber to the Stade de France, doubtlessly saving dozens of lives;

Whereas seven terrorists were killed, most in suicide bombings and one in a shoot-out with police, and French intelligence and law enforcement are still pursuing those possibly connected to the attacks;

Whereas French President Francois Hollande vowed that ''we will fight, and we will be ruthless'';

Whereas NATO Secretary General Jens Stoltenberg stated that the Alliance would stand with France and remain ''strong and united'' against terrorism;

Whereas President Barack Obama stated, ''Once again we've seen an outrageous attempt to terrorize innocent civilians. This attack is not just on Paris . . . this is an attack on all of humanity and the universal values that we share. We stand prepared and ready to provide whatever assistance that the Government and the people of France need to respond.'';

Whereas the so-called ''Islamic State of Iraq and Syria'' (ISIS) claimed responsibility for the attack;

Whereas the precise coordination of these attacks at multiple sites across Paris, along with the recent downing of a Russian airline in Egypt and the double suicide bombing in a shopping district in Beirut—brutal attacks also claimed by ISIS—indicates the planning, operational, and logistical capabilities of ISIS appear to have advanced significantly, and their focus now includes large scale external attacks;

Whereas the continued and enhanced coordination of law enforcement and intelligence efforts amongst European countries is critical to inhibiting the movement and support for ISIS-affiliated terrorist cells;

Whereas continued and enhanced intelligence cooperation, law enforcement engagement, and information sharing on emerging threats and identified Islamist extremists greatly improves security for the people of the United States, Europe, and our allies around the world;

Whereas the loss of innocent lives in Paris strengthens our resolve to defeat ISIS and its terrorist affiliates which pose a growing threat to international peace and stability;

Whereas France is an indispensable ally in our joint coalition efforts to defeat ISIS;

Whereas France has long been an ally and friend to the United States since the birth of our Nation, throughout the major conflicts of the 20th century, and has provided significant assistance to key United States strategic priorities such as combating terrorism in northern Africa; and

Whereas we stand in solidarity with our French allies in their time of national mourning, ready to provide assistance in bringing to justice all those involved with the planning and execution of these attacks, as well as identifying and thwarting any planning to undertake similar assaults in the future: Now, therefore, be it

Resolved, That the House of Representatives—

(1) condemns in the strongest terms the terrorist attacks in Paris, France, on November 13, 2015, that resulted in the loss of at least 129 lives;

(2) expresses its condolences to the families and friends of those individuals who were killed in the attacks and expresses its sympathies to those individuals who have been injured;

(3) supports the Government of France in its efforts to bring to justice all those involved with the planning and execution of these terrorist attacks;

(4) remains concerned regarding the flow of foreign fighters to and from the Middle East and West and North Africa and the threat posed by these individuals upon their return to their local communities; and

(5) expresses its readiness to assist the Government and people of France to respond to the growing terrorist threat posed by the Islamic State of Iraq and Syria (ISIS) and its terrorist affiliates.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. ROYCE) and the gentleman from New York (Mr. ENGEL) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. ROYCE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and to include extraneous material on this resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. ROYCE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H. Res. 524, condemning the series of terrorist attacks in France carried out by Islamist extremists last week.

It was just after 9 p.m. on Friday, November 13, when a night of terror fell over Paris, France. That is when ISIS launched three waves of terrorist attacks on the French capital, killing at least 129 people and wounding more than 350 others. At least one American, Nohemi Gonzalez of El Monte, California, was killed in the attacks, while several more were injured.

The first wave involved three suicide bombers at the Stade de France, where thousands, including the French President, were watching a soccer game between France and Germany.

The second wave involved shooting at several restaurants, bars, and cafes in an area known for its nightlife in Paris. A suicide bomber blew himself up on a nearby street.

And the third wave involved a mass shooting at the Bataclan music hall, where an American rock band was playing music. The attackers took theater attendees hostage and started to systematically shoot members of the audience. They detonated suicide vests as the police launched an assault on the theater. This is where most of the killing that night took place.

In claiming responsibility for the attacks, ISIS called them ''the first storm.'' The Paris attacks came a day after ISIS carried out a double suicide bombing in Beirut, Lebanon, and 2 weeks after ISIS claimed responsibility for downing a Russian passenger jet in Egypt's Sinai Peninsula.

Indeed, U.S. officials, including the CIA Director, have warned that these three attacks demonstrate a commitment by ISIS to conduct attacks outside of Syria and Iraq, reaching further and further from their home base. And yesterday, ISIS released a video threatening attacks here on Washington, D.C., which U.S. counterterrorism officials are taking seriously.

Mr. Speaker, there are no words we can say today that will comfort the families and friends of the 129 people murdered in these terrorist attacks. The victims included Parisians from every walk of life. And there are no words strong enough to condemn these terrorists and their radical ideology. ISIS is waging war on anyone who disagrees with their violent world view. And, frankly, they view everyone else as apostates to be killed.

Alarmingly, their fighting force continues to grow, thanks in part to a steady stream of foreign recruits. More than 30,000 fighters have made it to Syria and Iraq from more than 100 countries. Of those, it is estimated that more than 4,500 hold Western passports, with more than 250 Americans among them. This ''terrorist diaspora'' is a plane-ride from Europe—and even from the United States.

This resolution puts the House on record as condemning in the strongest terms possible the Paris attacks and extends the sympathy of every American to those affected by this tragedy. It reaffirms our support for France, America's sister republic and oldest ally.

This is a time to not just express sorrow for those killed but also a time to show resolve in this fight.

Our intelligence-sharing with allies, already strong, will need to get sharper; border checks will need to be improved; online recruitment of terrorists need to be checked; and coalition efforts to destroy ISIS will need to be stepped up.

I urge all Members to support this resolution.

Mr. Speaker, I reserve the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of this measure. First of all, I would like to associate myself with the remarks of Chairman ROYCE. I think that all of us share the horror of what happened in Paris just a few short days ago.

Like so many around the world, we are heartbroken. We are outraged. We are stunned. The perpetrators of these brutal and brazen attacks in Paris are our enemies, just as they are the enemies of France. We must remain vigilant in the face of this challenge.

Terrorists, Mr. Speaker, want to make their enemies live their lives in fear and retreat from the freedom which underpins our society. But I

think the fanatics responsible for this attack underestimate the French people.

Across the centuries, Paris and France have seen far worse: a bloody revolution, the darkest days of two World Wars, a Nazi occupation that marched columns of German troops beneath the Arc de Triomphe and down the Champs-Elysees. And all the while, the Republic emerged even stronger and more committed to the values of liberty, equality, and fraternity—values that we share and that bind the U.S. and France together.

The people of France will endure and the City of Light will shine even brighter. Last week's attacks were an atrocity, but they won't break the spirit of the French people. And as France grieves and moves forward, the United States will be standing shoulder to shoulder alongside our oldest ally in friendship and solidarity.

But, let's be clear: friendship and solidarity aren't all that is needed in the wake of these attacks. What is needed is clarity, resolve, and action.

Clearly, ISIS is an enemy that must be defeated. So we need to ramp up our information sharing and intelligence efforts with our allies and partners to figure out how ISIS orchestrated this plot and to prevent future attacks.

□ 1545

We need to keep pushing for a resolution to Syria's civil war, which has created the conditions for ISIS to flourish. We need to increase our support for those on the ground in Syria and Iraq that are already fighting ISIS so that they can keep building on their recent successes. We need to stem the flow of foreign fighters traveling to the Middle East to join the ranks of ISIS and figure out how to counter the radicalization of vulnerable populations. And we need bring to justice those responsible for the Paris attacks to send a clear, strong message that murder and terrorism will never go unanswered.

These terrorists, they are not religious people. They are fascists. They think they can use terror to further their political ends. They won't succeed.

This resolution conveys our deepest condolences to the French people. Just as importantly, it shows that the United States stands ready to assist France in its time of need and to respond to the growing threat of ISIS.

I urge all my colleagues to support this measure.

Long live France. Long live liberty. Vive la France. Vive la liberte.

I reserve the balance of my time.

Mr. ROYCE. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. ROHRABACHER), chairman of the Foreign Affairs Subcommittee on Europe, Eurasia, and Emerging Threats.

Mr. ROHRABACHER. Mr. Speaker, first of all, I would like to thank the chairman, Chairman ROYCE, and Ranking Member ENGEL for the great leadership they are providing at this moment in our history when we need that type of leadership the most.

What we are witnessing is an attack on Western civilization. Radical Islamic terrorists are seeking to terrorize the West into a retreat.

We fought and defeated an evil ideology that would have implanted an atheist dictatorship on the world not that long ago. We defeated this evil force, Communism, just as we defeated the Nazism and Japanese militarism before that.

Today, the West again is confronted with an evil force that would threaten the world. Again, America must stand tall, and we must provide the leadership to save mankind from this evil threat. We will defeat radical Islamic terrorism. We are Americans. We will lead the way.

We say to the people of France at this moment of suffering: Lafayette, we are here.

Mr. ENGEL. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. SCHIFF), who is the ranking member of the House Intelligence Committee.

Mr. SCHIFF. I thank the gentleman for yielding.

Mr. Speaker, as co-chair of the House's France Caucus, I rise to speak today with a heavy heart. The barbaric attacks by ISIL-affiliated extremists in Paris on Friday evening were a savage attempt to shake the foundations of the civilized world.

The victims, their families, and their loved ones are in our thoughts and our hearts, and we send them our deepest condolences in this enormously difficult time.

The indiscriminate brutality of last Friday's rampage has shocked the conscience of people around the world. But let us be clear, the forces of ISIL cannot extinguish the City of Light, and we will not reap the panic and fear that they are attempting to sow.

The United States stands with France today, as we have done for more than two centuries, as a partner, a friend, and an ally. We will confront this evil together and, in the names of all of those who have suffered so mercilessly at the hands of ISIL, we will defeat it. Violence, intolerance, and repression are no match for liberty, equality, and fraternity—liberte, egalite, and fraternite.

I stand today in solidarity with the people of France and the people of all nations who would choose freedom over tyranny.

Mr. ROYCE. Mr. Speaker, I yield 1 minute to the gentleman from Ohio (Mr. LATTA).

Mr. LATTA. I thank the chairman for yielding.

Mr. Speaker, as co-chairman of the Congressional French Caucus, I too extend my heartfelt condolences and prayers to the victims of the tragic terrorist attack in Paris, to their families, Parisians, and the entire nation of France as we mourn the loss of innocent life.

We are unified in our dedication to the protection and preservation of liberty and committed to ensuring those who have perpetrated these attacks are brought to justice.

ISIS poses a clear and present danger to the United States and to our allies across the world. They are a threat to all those who promote freedom. Our strength is in our solidarity. The United States and our allies, including those in NATO, must stand together with great resolve to defeat this threat and ensure the security of freedom-loving people across the world.

I urge passage of the resolution.

Mr. ENGEL. Mr. Speaker, I yield 1 minute to the gentleman from Virginia (Mr. CONNOLLY), a very well-respected member of the Foreign Affairs Committee.

Mr. CONNOLLY. I thank my friend.

Mr. Speaker, I rise today with the chairman and ranking member of the House Foreign Affairs Committee to condemn the November 13 attacks in Paris.

This is a time of mourning for many families who have lost their loved ones. Let's pause for a moment to reflect on the lives that were cut short and honor their memory with a solemn promise to bring to justice those responsible for this senseless violence.

The violent extremists who carried out those attacks have wounded a great nation and an ally of the United States.

From the American Revolution to the liberation of Paris, our two countries have established a special bond forged in the darkest hours of our shared history. The full measure of our creation is, in part, owed to the people of France, and we must come to their aid in this difficult time.

In doing so, we must act not out of fear, but out of confidence: confident that we have the means to maintain the safety and security of free societies in which we live, and confident that those societies are worth preserving. It is in this manner that a liberated Paris will endure.

I support this legislation.

Mr. ROYCE. Mr. Speaker, I yield 1 minute to the gentleman from Mississippi (Mr. HARPER).

Mr. HARPER. Mr. Speaker, our prayers go out to the families whose loved ones were murdered or wounded in the pointless acts of violence carried out in Paris on November 13.

These were attacks on innocent people by Islamic terrorists, recruited, trained, equipped, and directed by a deranged group of people known as ISIS. These are our enemies. They may be difficult to know, but not impossible to defeat, and we will defeat them.

I commend the French President for calling this what it is: an act of war. This is, indeed, a war declared on Western civilization—in fact, all of civilization—by Islamic terrorists who are so consumed with pure evil that they believe that the slaughter of innocence is the path to paradise.

We will never give up in this war. France is the oldest ally of the United States. In fact, a portrait of the Marquis de Lafayette, whose assistance was integral to the birth of our Nation, hangs in this very Chamber. If France is at war, the United States must be at war as well.

In the strongest terms, I condemn Islamic terrorism around the world, and I pledge solidarity and commitment to our French brothers and sisters.

Mr. ENGEL. Mr. Speaker, I yield 3 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the gentleman from New York and the gentleman from California.

I think many of us will come to the floor and emphasize that we stand with both Mr. ROYCE and Mr. ENGEL for this very strong statement of commitment by the people of the United States to stand with the people of France.

My heart cried and my soul was disturbed as the video began to unfold and the most heinous acts of attacking innocent persons, persons who had gone to a stadium to be with friends and relatives; maybe fathers with young sons; maybe families with two or three or four children, maybe brothers and sisters, as was noted by one of the soccer players whose sister was lost, who had come to see him play; maybe as the beautiful young woman from California experiencing her dreams, a beautiful designer—I pay tribute to her courage and inspiration—who just was enjoying the ambience and culture of France in the beautiful outdoor cafes that many travel to France just to experience. She lost her life, a beautiful flower, someone that America can be proud of, someone who was going to be a young lady who would obtain her dreams.

They didn't care about that. All they cared about was the vile violence of killing.

So I am very much in solidarity, as we move forward, to not allow and tolerate ISIS-ISIL continuing their violent ways. I want peace, Mr. Speaker. All of us want peace. But ISIL must be eliminated, and we must do things differently here in this country.

We have been vigilant. We have changed our ways since 9/11. We do ''see something, say something.'' But I believe as we proceed, we must act not out of fear, but of rational thought.

We must deal with the radicalization of young people; and the efforts of the administration, countering violent terrorism, extremism, has been an effective tool of meeting Muslim communities all over America, letting them know that if they see something, they can say something.

We must address the question of vulnerabilities in places like airports and large venues, not be shameful about enhancing security, but recognizing that our values of democracy and freedom and access are very important. I think we can do that. We did it after 9/11 with the USA PATRIOT Act, and we have continued to do it.

It is our heritage to be free and to have a democratic process. It is our heritage to our friends who first established these tenets of democracy that we followed here in the United States.

So, to the people of France, we know that you will act, but we ask you to be mindful of the wonderful leadership that you have given of democracy and freedom and the tenets of liberty. We know that liberty and freedom are not free, but it is important to be able to acknowledge these horrible and outrageous and heinous acts.

Mr. Speaker, I rise in support of H. Res. 524, and I call upon America to be vigilant, diligent, but not to act in fear.

Mr. Speaker, I rise today in sorrow and outrage but in strong support of H. Res. 524, a bipartisan resolution that condemns ''in the strongest terms the terrorist attacks in Paris, France, on November 13, 2015, that resulted in the loss of at least 129 lives.''

The first two decades of the new millennium will forever be known for barbaric attacks on innocent civilian populations by terrorists on a scale not seen since the end of World War II.

If the succeeding decades are to redeem the first two, then the civilized world must act in concert, with one accord and one resolve, to defeat the terrorists who refuse to make peace with the modern world and instead make war on people who wish only to remain free and enjoy the blessings of liberty.

Mr. Speaker, we stand in unyielding solidarity with the people of France, which like the United States, is one of the most welcoming nations in the world.

Right now, our prayers are with the victims and their families at this terrible time.

Mr. Speaker, for centuries Paris has been known to the world as the City of Light.

The title is richly deserved because Paris has been a world leader in the march of human progress in the arts, culture, science, democratic theory and governance, and in embrace the challenges and opportunities of the modern world.

Those who think that they can terrorize the people of France or the values that they cherish underestimate a nation that has faced and prevailed against far more sinister and lethal adversaries.

And they will again, but they will not confront these adversaries alone.

They will be joined by the United States and the other countries of the civilized world.

The French are justly proud of their national motto, ''Liberté, égalité, fraternité,'' (liberty, equality, fraternity) and no act of terrorism by cowardly perpetrators will succeed in leading them to renounce their heritage of freedom and justice.

It is a heritage that we here in the United States share.

And that is why the civilized world must and will rededicate itself to combating and defeating radical jihadism.

And as has been done many times throughout the long and special relationship between the United States and France, we will face and overcome threats to our way of life together.

We will not bow and will never break; we will not falter or fail.

We will respond. We will endure. We will overcome.

The terrorist attacks in Paris on Friday were horrific acts on innocent civilians perpetrated by depraved individuals who misuse the peaceful religion of Islam for their own misguided purposes.

Their horrible and heinous acts are their responsibility, and theirs alone, and for which they can be assure that they alone will be held accountable.

We will never forget what happened on Friday, November 13, 2015, which will be forever known in France and throughout the civilized world as ''Black Friday.''

And we will always remember the many innocent lives cut short by the outrageous and heinous acts of terrorism that shocked and rocked the people of Paris last Friday and earned the lasting enmity of peaceful and freedom loving people around the world.

I ask a moment of silence for the victims killed and injured in the terrorist attacks last Friday in Paris.

Mr. ROYCE. Mr. Speaker, I yield 1 minute to the gentlewoman from Missouri (Mrs. WAGNER).

Mrs. WAGNER. Mr. Speaker, I rise to support H. Res. 524.

Like all Americans, I was shocked and saddened by the terrorist attacks in Paris, France. As Americans, we must stand united with the people of France.

The stories of innocent civilians being slaughtered on the streets of Paris serve as stark reminders that we must do everything in our power to prevent this type of attack from occurring in the United States of America.

Investigations have revealed that one of the terrorists entered Europe with migrants fleeing the Syrian civil war. In light of these reports, it is essential that we pause the process of refugees coming into the United States.

Mr. Speaker, the attacks in Paris show the danger of open border policies. The United States must not allow any refugees into our country without exhaustive security screenings.

My congressional district and the Greater St. Louis region have a long and admirable track record of welcoming refugees fleeing war and turmoil. However, the safety and the security of the American people must always be our number one priority.

We mourn with our brothers and sisters of France. I am Paris. Je suis Paris.

Mr. ENGEL. Mr. Speaker, I reserve the balance of my time.

Mr. ROYCE. I yield 1 minute to the gentleman from Indiana (Mr. MESSER).

Mr. MESSER. Mr. Speaker, I rise today to express my prayers and deepest sympathies to the people of Paris.

As Americans, we share in the shock, the horror, and the tremendous sense of loss you now feel following the ruthless, unprovoked terrorist attack against your great country. We stand with you against ISIS in defense of our shared values of freedom, liberty, and equality under the law.

Mr. Speaker, the world needs America to lead with clarity and resolve in the fight against terror. Contrary to the President's assertion that ISIS is

contained, the world now knows they are not. Hope is not a strategy in defeating terror.

ISIS has openly declared war on America, France, and our very way of life. We must respond. This is a war, and America needs to lead, defeating ISIS before it is too late.

□ 1600

Mr. ENGEL. Mr. Speaker, I continue to reserve the balance of my time.

Mr. ROYCE. Mr. Speaker, I yield 1 minute to the gentleman from Florida (Mr. YOHO), a member of the Committee on Foreign Affairs.

Mr. YOHO. I thank the chairman.

Mr. Speaker, first, I want to express my, my family's, and our country's thoughts, sympathies, and prayers with the people of France in their loss and in their pain. I am here to stand in solidarity with the French people, France, and all the people and families from around the world who lost loved ones in this tragic and cowardly act.

This is not just an attack on France and innocent people, but people in the West and all societies that love peace, liberty, freedom, and value human life, people who believe that their rights come from a Creator and that we are free to determine the life we choose to live in a civil society, not forced to choose a life from the Dark Ages at the barrel of a gun or live in the threat of terrorism.

I applaud French President Hollande in his rapid response and wholeheartedly agree and support his words that this will be a merciless response. May the terrorists and ISIL's presence on Earth be short. Long live France.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume for the purpose of closing.

Mr. Speaker, make no mistake, as we have heard from our colleagues on both sides of the aisle, the United States grieves with France after these horrible attacks. The United States stands ready to assist France in its time of need. But we must look toward the root causes of the atrocity and direct our resolve toward defeating the growing threat of ISIS.

This includes intelligence and information collaboration with our allies and partners. This includes finding a diplomatic solution to the Syrian civil war. This includes addressing the refugee crisis and the separate grievances and risks that this humanitarian crisis breeds. This includes stemming ISIS's recruitment and radicalization efforts of disillusioned Westerners to join their ranks.

We must address the complex and multifaceted layers that contribute to the Paris attacks all while bringing those responsible to justice. We must send a clear and very loud message that international terrorism will not go unanswered.

Mr. Speaker, I yield 3 minutes to the gentleman from Maryland (Mr. HOYER), our Democratic whip.

(Mr. HOYER asked and was given permission to revise and extend his remarks.)

Mr. HOYER. Mr. Speaker, I want to thank the chairman and the ranking member for bringing this resolution to the floor. It is sad that we bring this resolution to the floor, and it is sad that too often we see the results of terrorism around the world.

Mr. Speaker, I rise in strong support—as I think all Members will—of this resolution expressing Congress' solidarity with the people of Paris and all of France after Friday's terror attacks.

Americans know that Paris is the ''City of Light.''

On Friday evening, 129 very bright and vibrant lights were suddenly extinguished, leaving a dark void in the heart of that city and in the hearts of millions across France, America, and the world. Our flag on this Capitol stands at half-staff in memory of those 129 souls.

As we mourn them, pray for their families, and offer our aid to the wounded, we stand with a firm resolve to deny the perpetrators a chance to instill in us that which they seek: fear.

These attacks were carried out by individuals who follow a hopeless ideology, who look with awe to a twisted image of the past because they are blind to a better future the rest of us can envision. Without a belief in tomorrow, there is only fear and the acts of cowardice it inspires.

But the French Republic and the American Republic were neither born in fear nor do we live in fear. We were born in hope and in courage. We were born looking forward. Both our nations were founded upon the same ideals of liberty, democracy, and individual rights espoused by Rousseau and Jefferson, Montesquieu and Paine.

The Marquis de Lafayette is the only substantial painting—other than the Father of our Nation, George Washington—to be pictured in this hall of democracy, in this hall of free people. It was the French with the liaison of Marquis de Lafayette as France stood with us for freedom, for equality, and, yes, for fraternity, brotherhood between us and them.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. ENGEL. Mr. Speaker, I yield the gentleman an additional 1 minute.

Mr. HOYER. Mr. Speaker, across the river from the Eiffel Tower, in the middle of a major traffic circle in Paris, one can see a majestic statue of his brother-in-arms, George Washington, raising his sword high in a triumphant salute.

Lafayette and his French officers suffered hunger and cold at Valley Forge to help secure for the American people our freedom. Generations later American Rangers scaled the craggy cliffs of Pointe-du-Hoc to help the people of France regain theirs.

Our history binds us together. So does our future. That is because we believe in tomorrow. Ever hopeful, we believe that the unknown which lies ahead can be shaped by our hands into a better world than the one we know today. That is what sets us apart from our enemies. That is why those who perpetrated Friday's attacks will never, never, never win.

The SPEAKER pro tempore. The time of the gentleman has again expired.

Mr. ENGEL. Mr. Speaker, I yield the gentleman an additional 2 minutes.

Mr. HOYER. It is why, no matter what historians in the future call ISIS or ISIL or Daesh, they will surely be using only the past tense. It is why the people of France and America and all who cherish the freedom to think, to speak, to worship, and to strive for a better tomorrow must stand together, as we have before, and shine the bright light of our values and our principles into the darkness we confront.

We are all French today—nous sommes francais.

It will not be quick. It will not be easy. It will test our resolve. It will test our will. But with Lafayette watching over us in this House, with George Washington standing guard over the City of Paris, and with Lady Liberty holding her torch high, surely France and America and all those who love liberty and justice throughout the world will continue to cast a light of hope, strength, and freedom upon our world.

May God bless our French brothers and sisters. We send them our sympathy, and we pledge them our resolve.

Mr. ROYCE. Mr. Speaker, I reserve the balance of my time.

Mr. ENGEL. Mr. Speaker, let me just say in closing we have heard impassioned speeches from all our colleagues on both sides of the aisle, and this is certainly something with which we agree, certainly something that Congress needs to send a very, very strong message, that terrorism will never triumph, that we have the resolve here in America to join with our friends around the world to stop the scourge of terrorism, and that we stand with the people of France in these very, very troubling times.

Mr. Speaker, I yield back the balance of my time.

Mr. ROYCE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, our hearts go out to the people of Paris. I want to thank my colleague, Mr. ENGEL, who worked to make sure that we brought this resolution to the floor today working together so that we in this Congress speak with one voice—speak with one voice—about the attack on France, the foundation, the heart of Europe, the heart of the Enlightenment, and the heart of the concept of freedom, liberty, and equality under the law which animated so much of the thinking of civilization itself.

Indeed, it is an attack on that civilization. It is an attack on those freedoms, the freedom of religion, the freedom of speech, and the freedom of assembly and democracy that are so closely held by us here in the United

States and by our original ally, France, in our own effort to achieve the dream of that freedom. It is that freedom that is under assault.

The unfortunate reality, Mr. Speaker, is that these attacks in Paris are indicative of a resurgent terrorism that is continuing to build.

I mentioned that there were some 30,000 fighters. Those fighters, my friends, came from all over the world. They came from across the globe on a virtual caliphate called the Internet in order to join Islamic State and in order to join what they call their caliphate. The intent of their caliphate is to put an end to the freedom that is enjoyed by those that they consider apostates, the freedom enjoyed by civilization itself.

The great sorrow that we express here today on this floor is over the fact that, of those young people murdered and maimed in this attack, the vast majority of them were under 30 years of age. They had their whole lives ahead of them when they were targeted, civilians targeted for this kind of mayhem.

Mr. Speaker, the resolve we show with our brothers and sisters in France is a resolve that freedom will be the rallying cry. Civilization will be the test. Freedom of religion, freedom of speech, and freedom of assembly under democracy are the rights of civilized people. Those who bring barbarism and attack the institutions and attack civilians are the threat to that civilization.

We reaffirm our support for France, and we reaffirm our support for the French Government and the words and the actions that they have taken in the wake of this attack.

Yes, here in this Chamber we have Lafayette's portrait. At the end of that War for Independence—and this is why his portrait is here—he said to us, ''Humanity has now won its battle. Liberty has a country.'' And after we achieved our freedom, France went on to achieve their freedom.

But now liberty is under assault. That is why today we bring this resolution to the floor of this House, to say that America must continue to stand shoulder to shoulder with the French in their fight against tyranny, in their fight against this terror, and in the hope that this will give an example to the rest of the world in standing up to ISIS and to make certain that our basic liberties are protected around this world.

I am going to quote David Petraeus, who recently gave us these remarks. He said that Syria is a geopolitical Chernobyl. He said, ''Like a nuclear disaster, the fallout from the meltdown of Syria threatens to be with us for decades, and the longer it is permitted to continue, the more severe the damage will be.''

We have had this relationship tested many times. France has had its relationship with us tested many times. Tonight we stand together with France in our commitment to see this through and to make certain that ISIS is not merely contained, but to make certain that ISIS is ultimately destroyed.

Mr. Speaker, I yield back the balance of my time.

Ms. SINEMA. Mr. Speaker, we come together to honor the victims of the horrific terrorist attacks in Paris and to condemn these barbaric acts.

These attacks claimed the lives of 129 innocent people and wounded more than 350 others. Our hearts ache for the victims and their families.

Today, our resolve to punish the perpetrators and destroy the Islamic State and other terrorists is only stronger.

We stand in solidarity with the French people. Together we will defeat terrorism around the world and here in the U.S.

The Islamic State is one of the world's most violent and dangerous terrorist groups. To keep our country safe, we must be one step ahead of them, cutting off their funding and stopping their efforts.

As a member of the Task Force to Investigate Terrorism Financing, I offered an amendment, accepted as part of the National Defense Authorization Act, to direct the Secretary of Defense, in coordination with the Secretary of State and the Secretary of the Treasury, to shut down ISIL's oil revenues and report on resources needed for these efforts. I also included language in the Intelligence Authorization Act directing the Intelligence Community to dedicate the necessary resources to defeat the Islamic State's revenue mechanisms.

The attacks in Paris underscore the urgency with which we must pursue the defeat of ISIL. These murders foment violence, destabilize the Middle East, and present a clear threat to the United States and our allies.

I will continue to work with my colleagues on both sides to destroy ISIL and strengthen the safety and security of Arizona families.

We stand with the people of France. We stand with all decent peoples around the world who respect and cherish life.

□ 1615

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. ROYCE) that the House suspend the rules and agree to the resolution, H. Res. 524, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the resolution, as amended, was agreed to.

A motion to reconsider was laid on the table.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 4 o'clock and 16 minutes p.m.), the House stood in recess.

□ 1721

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. RUSSELL) at 5 o'clock and 21 minutes p.m.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 1210, PORTFOLIO LENDING AND MORTGAGE ACCESS ACT; PROVIDING FOR CONSIDERATION OF H.R. 3189, FED OVERSIGHT REFORM AND MODERNIZATION ACT OF 2015; AND PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM NOVEMBER 20, 2015, THROUGH NOVEMBER 27, 2015

Mr. STIVERS, from the Committee on Rules, submitted a privileged report (Rept. No. 114–341) on the resolution (H. Res. 529) providing for consideration of the bill (H.R. 1210) to amend the Truth in Lending Act to provide a safe harbor from certain requirements related to qualified mortgages for residential mortgage loans held on an originating depository institution's portfolio, and for other purposes; providing for consideration of the bill (H.R. 3189) to amend the Federal Reserve Act to establish requirements for policy rules and blackout periods of the Federal Open Market Committee, to establish requirements for certain activities of the Board of Governors of the Federal Reserve System, and to amend title 31, United States Code, to reform the manner in which the Board of Governors of the Federal Reserve System is audited, and for other purposes; and providing for proceedings during the period from November 20, 2015, through November 27, 2015, which was referred to the House Calendar and ordered to be printed.

2015 NATIONAL DRUG CONTROL STRATEGY—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 114–79)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Agriculture, Committee on Armed Services, Committee on Education and the Workforce, Committee on Energy and Commerce, Committee on Financial Services, Committee on Foreign Affairs, Committee on Homeland Security, Committee on the Judiciary, Committee on Natural Resources, Committee on Oversight and Government Reform, Committee on Transportation and Infrastructure, Committee on Veterans Affairs, Committee on Ways and Means, and the Permanent Select Committee on Intelligence, and ordered to be printed:

To the Congress of the United States:

I am pleased to transmit the 2015 National Drug Control Strategy, my Administration's 21st century approach to drug policy that works to reduce illicit drug use and its consequences in the United States. This evidence-based plan, which balances public health and public safety efforts to prevent, treat,

and provide recovery from the disease of addiction, seeks to build a healthier, safer, and more prosperous country.

Since the release of my Administration's inaugural National Drug Control Strategy in 2010, we have seen significant progress in addressing challenges we face along the entire spectrum of drug policy—including prevention, early intervention, treatment, recovery support, criminal justice reform, law enforcement, and international cooperation. However, we still face serious drug-related challenges. Illicit drug use is a public health issue that jeopardizes not only our well-being, but also the progress we have made in strengthening our economy—contributing to addiction, disease, lower student academic performance, crime, unemployment, and lost productivity.

Therefore, we continue to pursue a drug policy that is effective, compassionate, and just. We are working to erase the stigma of addiction, ensuring treatment and a path to recovery for those with substance use disorders. We continue to research the health risks of drug use to encourage healthy behaviors, particularly among young people. We are reforming our criminal justice system, providing alternatives to incarceration for non-violent, substance-involved offenders, improving re-entry programs, and addressing unfair sentencing disparities. We continue to devote significant law enforcement resources to reduce the supply of drugs via sea, air, and land interdiction, and law enforcement operations and investigations. We also continue to partner with our international allies, helping them address transnational organized crime, while addressing substance use disorders and other public health issues.

I thank the Congress for its continued support of our efforts. I look forward to joining with them and all our local, State, tribal, national and international partners to advance this important undertaking.

BARACK OBAMA.

THE WHITE HOUSE, *November 17, 2015.*

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 5 o'clock and 26 minutes p.m.), the House stood in recess.

□ 2210

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. JENKINS of West Virginia) at 10 o'clock and 10 minutes p.m.

APPOINTMENT OF ADDITIONAL CONFEREES ON H.R. 22, SURFACE TRANSPORTATION REAUTHORIZATION AND REFORM ACT OF 2015

The SPEAKER pro tempore. Without objection, the Chair appoints the following additional conferees on H.R. 22:

From the Committee on Armed Services, for consideration of section 1111 of the House amendment, and modifications committed to conference:

Messrs. THORNBERRY, ROGERS of Alabama, and Ms. LORETTA SANCHEZ of California.

From the Committee on Energy and Commerce, for consideration of sections 1109, 1201, 1202, 3003, Division B, sections 31101, 31201, and Division F of the House amendment and sections 11005, 11006, 11013, 21003, 21004, subtitles B and D of title XXXIV, sections 51101 and 51201 of the Senate amendment, and modifications committed to conference:

Messrs. UPTON, MULLIN, and PALLONE.

From the Committee on Financial Services, for consideration of section 32202 and Division G of the House amendment and sections 52203 and 52205 of the Senate amendment, and modifications committed to conference:

Messrs. HENSARLING, NEUGEBAUER, and Ms. MAXINE WATERS of California.

From the Committee on the Judiciary, for consideration of sections 1313, 24406, and 43001 of the House amendment and sections 32502 and 35437 of the Senate amendment, and modifications committed to conference:

Messrs. GOODLATTE, MARINO, and Ms. LOFGREN.

From the Committee on Natural Resources, for consideration of sections 1114–16, 1120, 1301, 1302, 1304, 1305, 1307, 1308, 1310–13, 1316, 1317, 10001, and 10002 of the House amendment and sections 11024–27, 11101–13, 11116–18, 15006, 31103–05, and 73103 of the Senate amendment, and modifications committed to conference:

Messrs. THOMPSON of Pennsylvania, LAHOOD, and GRIJALVA.

From the Committee on Oversight and Government Reform, for consideration of sections 5106, 5223, 5504, 5505, 61003, and 61004 of the House amendment and sections 12004, 21019, 31203, 32401, 32508, 32606, 35203, 35311, and 35312 of the Senate amendment, and modifications committed to conference:

Messrs. MICA, HURD of Texas, and CONNOLLY.

From the Committee on Science, Space, and Technology, for consideration of sections 3008, 3015, 4003, and title VI of the House amendment and sections 11001, 12001, 12002, 12004, 12102, 21009, 21017, subtitle B of title XXXI, sections 35105 and 72003 of the Senate amendment, and modifications committed to conference:

Mr. SMITH of Texas, Mrs. COMSTOCK, and Ms. EDWARDS.

From the Committee on Ways and Means, for consideration of sections 31101, 31201, and 31203 of the House amendment, and sections 51101, 51201, 51203, 52101, 52103–05, 52108, 62001, and 74001 of the Senate amendment, and modifications committed to conference:

Messrs. BRADY of Texas, REICHERT, and LEVIN.

There was no objection.

The SPEAKER pro tempore. The Clerk will notify the Senate of the additional conferees.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Ms. ROS-LEHTINEN (at the request of Mr. MCCARTHY) for today on account of attending a family funeral.

SENATE ENROLLED BILL SIGNED

The Speaker announced his signature to an enrolled bill of the Senate of the following title:

S. 1356. An act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

ADJOURNMENT

The SPEAKER pro tempore. Without objection, the House stands adjourned until 10 a.m. tomorrow for morning-hour debate.

There was no objection.

Accordingly (at 10 o'clock and 15 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, November 18, 2015, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

3481. A letter from the Secretary, Department of Transportation, transmitting the Department's Semiannual Report for the period ending September 30, 2015, pursuant to 5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); to the Committee on Oversight and Government Reform.

3482. A letter from the Director, Office of Financial Management, United States Capitol Police, transmitting the Statement of Disbursements for the United States Capitol Police for the period April 1, 2015 through September 30, 2015, pursuant to 2 U.S.C. 1910(a); Public Law 109-55, Sec. 1005; (H. Doc. No. 114—78); to the Committee on House Administration and ordered to be printed.

3483. A letter from the Deputy Under Secretary for Management and Chief Financial Officer, Department of Homeland Security, transmitting the Department's ''Public Assistance Program Alternative Procedures — First Quarterly Status Report for FY 2015'', pursuant to House Report 113-481 accompanying the Fiscal Year 2015 Department of Homeland Security Appropriations Act of 2015, Pub. L. 114-4; to the Committee on Transportation and Infrastructure.

3484. A letter from the Deputy Under Secretary for Management and Chief Financial

Officer, Department of Homeland Security, transmitting the Department's ''Public Assistance Program Alternative Procedures — Second Quarterly Status Report for FY 2015'', pursuant to House Report 113-481 accompanying the Fiscal Year 2015 Department of Homeland Security Appropriations Act of 2015, Pub. L. 114-4; to the Committee on Transportation and Infrastructure.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. STIVERS: Committee on Rules. House Resolution 529. Resolution providing for consideration of the bill (H.R. 1210) to amend the Truth in Lending Act to provide a safe harbor from certain requirements related to qualified mortgages for residential mortgage loans held on an originating depository institution's portfolio, and for other purposes; providing for consideration of the bill (H.R. 3189) to amend the Federal Reserve Act to establish requirements for policy rules and blackout periods of the Federal Open Market Committee, to establish requirements for certain activities of the Board of Governors of the Federal Reserve System, and to amend title 31, United States Code, to reform the manner in which the Board of Governors of the Federal Reserve System is audited, and for other purposes; and providing for proceeding during the period from November 20, 2015, through November 27, 2015 (Rept. 114–341). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. CHABOT (for himself, Mr. GOODLATTE, Mr. CONYERS, Ms. JACKSON LEE, and Mr. FORBES):

H.R. 4023. A bill to eliminate unused sections of the United States Code, and for other purposes; to the Committee on the Judiciary.

By Mr. COOK (for himself and Mr. AGUILAR):

H.R. 4024. A bill to direct the Secretary of the Interior to convey certain public in San Bernardino County, California, to the San Bernardino Valley Water Conservation District, and to accept in return certain exchanged non-public lands, and for other purposes; to the Committee on Natural Resources.

By Mr. ROSS (for himself, Mr. POSEY, Mr. TIPTON, and Mr. COLLINS of New York):

H.R. 4025. A bill to prohibit obligation of Federal funds for admission of refugees from Syria, and for other purposes; to the Committee on the Judiciary.

By Mrs. BLACK (for herself and Mr. FLORES):

H.R. 4026. A bill to provide that a concealed handgun license shall be treated as a verifying identity document for purposes of aircraft passenger security screening, and to prohibit the Federal Government from collecting or storing information about an individual relating to a concealed handgun license; to the Committee on Homeland Security, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. DELBENE (for herself, Ms. JUDY CHU of California, Ms. NORTON, Ms. SEWELL of Alabama, and Mr. SEAN PATRICK MALONEY of New York):

H.R. 4027. A bill to reauthorize the women's business center program of the Small Business Administration, and for other purposes; to the Committee on Small Business.

By Mr. HUFFMAN (for himself and Mr. DESAULNIER):

H.R. 4028. A bill to amend the Individuals with Disabilities Education Act to direct the Secretary to provide additional funds to States to establish and make disbursements from high cost funds; to the Committee on Education and the Workforce.

By Mr. JOYCE (for himself and Mr. RYAN of Ohio):

H.R. 4029. A bill to amend the Employee Retirement Income Security Act of 1974 and the Internal Revenue Code of 1986 with respect to participant votes on the suspension of benefits under multiemployer plans in critical and declining status; to the Committee on Education and the Workforce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PALAZZO:

H.R. 4030. A bill to amend the Immigration and Nationality Act to provide that refugees may not be resettled in any State where the governor of that State has taken any action formally disapproving of the resettlement of refugees in that State, and for other purposes; to the Committee on the Judiciary.

By Mr. BYRNE:

H.R. 4031. A bill to prohibit obligation of Federal funds for admission of refugees from Syria, and for other purposes; to the Committee on the Judiciary.

By Mr. POE of Texas (for himself, Mr. SESSIONS, Mr. DUNCAN of South Carolina, Mr. BLUM, Mr. LOUDERMILK, Mr. WESTERMAN, Mr. SMITH of Texas, Mr. FARENTHOLD, Mr. LAMALFA, Mr. SALMON, Mr. BABIN, Mr. WEBER of Texas, Mr. COLLINS of Georgia, Mr. CONAWAY, and Mr. MASSIE):

H.R. 4032. A bill to amend the Immigration and Nationality Act to provide for a limitation on the resettlement of refugees; to the Committee on the Judiciary.

By Mr. CRAWFORD:

H.R. 4033. A bill to temporarily suspend the admission of refugees from Syria and Iraq into the United States and to give States the authority to reject admission of refugees into its territory or tribal land; to the Committee on the Judiciary.

By Mr. FLEMING:

H.R. 4034. A bill to require fencing along and operational control of the southwest border, and for other purposes; to the Committee on Homeland Security, and in addition to the Committees on Natural Resources, and Agriculture, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FLEMING:

H.R. 4035. A bill to protect consumers by prohibiting the Administrator of the Environmental Protection Agency from promulgating as final certain energy-related rules that are estimated to cost more than $100,000,000 and will cause significant adverse effects to the economy; to the Committee on Energy and Commerce.

By Mr. FLEMING:

H.R. 4036. A bill to prohibit any regulation regarding carbon dioxide or other greenhouse gas emissions reduction in the United States until China, India, and Russia implement similar reductions; to the Committee on Energy and Commerce.

By Mr. FLEMING:

H.R. 4037. A bill to prohibit the Administrator of the Environmental Protection Agency from proposing, finalizing, implementing, or enforcing any prohibition or restriction under the Clean Air Act with respect to the emission of methane from the oil and natural gas source category; to the Committee on Energy and Commerce.

By Mr. MCCAUL (for himself and Mr. HUDSON):

H.R. 4038. A bill to require that supplemental certifications and background investigations be completed prior to the admission of certain aliens as refugees, and for other purposes; to the Committee on the Judiciary.

By Ms. ADAMS (for herself, Ms. JUDY CHU of California, Ms. KELLY of Illinois, Mrs. LAWRENCE, Mr. PAYNE, Mr. TAKAI, and Ms. VELÁZQUEZ):

H.R. 4039. A bill to amend the Internal Revenue Code of 1986 to establish a small business start-up tax credit for veterans; to the Committee on Ways and Means.

By Mr. BLUMENAUER (for himself, Ms. EDWARDS, Mr. MCDERMOTT, Mr. PASCRELL, Mr. HONDA, Mr. VAN HOLLEN, Ms. MCCOLLUM, Mr. LOWENTHAL, Mr. TED LIEU of California, Mr. HIGGINS, Mr. NEAL, Ms. LINDA T. SÁNCHEZ of California, Ms. LEE, Mr. QUIGLEY, Mr. CARTWRIGHT, Ms. NORTON, Mr. RANGEL, Mr. HUFFMAN, and Mr. GRIJALVA):

H.R. 4040. A bill to amend the Internal Revenue Code of 1986 to modify and extend certain tax incentives relating to energy; to the Committee on Ways and Means.

By Mr. CÁRDENAS (for himself, Mr. FARENTHOLD, Mr. CARTWRIGHT, Mr. GALLEGO, Mr. GUTIÉRREZ, Mr. HONDA, Mr. COHEN, Mr. FOSTER, and Ms. JUDY CHU of California):

H.R. 4041. A bill to establish a task force to share best practices on computer programming and coding for elementary schools and secondary schools, and for other purposes; to the Committee on Education and the Workforce.

By Mr. CASTRO of Texas:

H.R. 4042. A bill to provide grants for high-quality prekindergarten programs; to the Committee on Education and the Workforce.

By Ms. CLARK of Massachusetts:

H.R. 4043. A bill to amend the Higher Education Act of 1965 to improve the financial aid process for homeless children and youths and foster care children and youth; to the Committee on Education and the Workforce.

By Mr. CLAWSON of Florida:

H.R. 4044. A bill to prohibit obligation of Federal funds for admission of refugees from certain countries; to the Committee on the Judiciary.

By Mr. CROWLEY (for himself and Mr. ELLISON):

H.R. 4045. A bill to establish USAccounts, and for other purposes; to the Committee on Ways and Means.

By Mr. DUFFY (for himself, Mr. RYAN of Wisconsin, Mr. POCAN, Mr. KIND, Ms. MOORE, Mr. SENSENBRENNER, Mr. GROTHMAN, and Mr. RIBBLE):

H.R. 4046. A bill to designate the facility of the United States Postal Service located at 220 East Oak Street, Glenwood City, Wisconsin, as the Second Lt. Ellen Ainsworth Memorial Post Office; to the Committee on Oversight and Government Reform.

By Mr. ENGEL (for himself, Ms. ROS-LEHTINEN, Mr. ISRAEL, and Mr. COLE):

H.R. 4047. A bill to amend chapter 329 of title 49, United States Code, to ensure that new vehicles enable fuel competition so as to reduce the strategic importance of oil to the United States; to the Committee on Energy and Commerce.

By Mr. GRAVES of Louisiana (for himself, Mr. BOUSTANY, Mr. ABRAHAM, and Mr. FLEMING):

H.R. 4048. A bill to suspend the admission and resettlement of aliens seeking refugee status because of the conflict in Syria until adequate protocols are established to protect the national security of the United States and for other purposes; to the Committee on the Judiciary, and in addition to the Committees on Intelligence (Permanent Select), Rules, and Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. LOVE (for herself, Mr. NEUGEBAUER, and Mr. HUIZENGA of Michigan):

H.R. 4049. A bill to amend the Bank Holding Company Act of 1956 to exempt certain non-financial companies and smaller banking entities from the application of the Volcker Rule; to the Committee on Financial Services.

By Mr. SEAN PATRICK MALONEY of New York:

H.R. 4050. A bill to provide for the identification of certain dangerous railroad locations, and for the safety of passenger operations at such locations; to the Committee on Transportation and Infrastructure.

By Ms. NORTON:

H.R. 4051. A bill to amend title 28, United States Code, to change the residency requirements for certain officials serving in the District of Columbia, and for other purposes; to the Committee on the Judiciary.

By Ms. MAXINE WATERS of California (for herself, Mrs. WATSON COLEMAN, Mr. FATTAH, Mr. DAVID SCOTT of Georgia, Mr. SCOTT of Virginia, Ms. JACKSON LEE, Mr. AL GREEN of Texas, Mr. BUTTERFIELD, Mr. RANGEL, Mr. MEEKS, Mr. HONDA, Mr. JEFFRIES, and Mr. HASTINGS):

H.R. 4052. A bill to amend the Public Health Service Act to prioritize the treatment of veterans with traumatic brain injuries through the National Health Service Corps, and for other purposes; to the Committee on Energy and Commerce.

By Ms. MAXINE WATERS of California:

H.R. 4053. A bill to authorize the Secretary of Veterans Affairs to make grants for repair and remodeling of community centers, clinics, and hospitals that serve veterans; to the Committee on Veterans' Affairs.

By Ms. MAXINE WATERS of California (for herself, Mr. CONYERS, and Mr. HONDA):

H.R. 4054. A bill to revise the 90-10 rule under the Higher Education Act of 1965 to count veterans' education benefits under such rule, and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committees on Armed Services, and Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FRANKS of Arizona (for himself, Ms. BASS, Ms. LEE, Mr. DANNY K. DAVIS of Illinois, Mr. WITTMAN, Mr. POE of Texas, Mr. HUIZENGA of Michigan, Mr. HUELSKAMP, Mr. EMMER of Minnesota, Mr. LUETKEMEYER, Mr. BISHOP of Georgia, Mr. PASCRELL, Mr. SIRES, Mr. WHITFIELD, Mrs. WALORSKI, Ms. CLARKE of New York, Mr. MCDERMOTT, Mr. RUSSELL, Mrs. LAWRENCE, Mr. BLUM, Mrs. KIRKPATRICK, Ms. HAHN, Mr. BILIRAKIS, Mr. LANGEVIN, Mr. NORCROSS, Mrs. HARTZLER, and Mr. ROE of Tennessee):

H. Res. 530. A resolution expressing support for the goals of ''National Adoption Day'' and ''National Adoption Month'' by promoting national awareness of adoption and the children awaiting families, celebrating children and families involved in adoption, and encouraging the people of the United States to secure safety, permanency, and well-being for all children; to the Committee on Education and the Workforce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. CHABOT:

H.R. 4023.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, clause 3, and Article I, section 8, clause 18.

By Mr. COOK:

H.R. 4024.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. ROSS:

H.R. 4025.

Congress has the power to enact this legislation pursuant to the following:

''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.''

—U.S. Constitution, Article I, section 9, clause 7

By Mrs. BLACK:

H.R. 4026.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the United States Constitution.

By Ms. DELBENE:

H.R. 4027.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Mr. HUFFMAN:

H.R. 4028.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

Article I, Section 8, Clause 18

By Mr. JOYCE:

H.R. 4029.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

The Congress shall have Power * * * To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. PALAZZO:

H.R. 4030.

Congress has the power to enact this legislation pursuant to the following:

Article I Sec. 8, Clause 4 and Article I, Sec. 8, Clause 18 of the Constitution of the United States of America.

By Mr. BYRNE:

H.R. 4031.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 4: ''Congress shall have Power To . . . establish an uniform Rule of Naturalization . . .''

By Mr. POE of Texas:

H.R. 4032.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 Clause 18

By Mr. CRAWFORD:

H.R. 4033.

Congress has the power to enact this legislation pursuant to the following:

Clause 3 of Section 8 of Article 1 of the United States Constitution. ''The Congress shall have the Power . . . To establish an uniform Rule of Naturalization . . .''

By Mr. FLEMING:

H.R. 4034.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article 1, Section 8, Clause 4, which states ''The Congress shall have Power to establish a uniform Rule of Naturalization,'' and Article 4, Section 3, Clause 2, which states ''The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States.''

By Mr. FLEMING:

H.R. 4035.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article 1, Section 8, Clause 3, which states ''The Congress shall have Power to regulate Commerce among the several States.''

By Mr. FLEMING:

H.R. 4036.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article 1, Section 8, Clause 3, which states ''The Congress shall have Power to regulate Commerce among the several States.''

By Mr. FLEMING:

H.R. 4037.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article 1, Section 8, Clause 3, which states ''The Congress shall have Power to regulate Commerce among the several States.''

By Mr. MCCAUL:

H.R. 4038.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 Clause 4 of the United States Constitution

By Ms. ADAMS:

H.R. 4039.

Congress has the power to enact this legislation pursuant to the following:

''Article 1, Section 8: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof''

By Mr. BLUMENAUER:

H.R. 4040.

Congress has the power to enact this legislation pursuant to the following:

The Constitution of the United States provides clear authority for Congress to pass legislation regarding income taxes. Article I of the Constitution provides that ''Congress shall have Power to lay and collect Taxes . . .'' (Section 8, Clause 1).

By Mr. CÁRDENAS:

H.R. 4041.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States

By Mr. CASTRO of Texas:

H.R. 4042.

Congress has the power to enact this legislation pursuant to the following:

The Congress shall have power . . . To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

The United States Constitution, Art. I, Sec. 8, Clause 18

By Ms. CLARK of Massachusetts:

H.R. 4043.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, U.S Constitution

By Mr. CLAWSON of Florida:

H.R. 4044.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 2 of the United States Constitution

By Mr. CROWLEY:

H.R. 4045.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 Section 8 of Article 1:

The Congress shall have the power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States.

By Mr. DUFFY:

H.R. 4046.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, The Congress shall haev the Power to . . . establish Post Offices and Post Roads

By Mr. ENGEL:

H.R. 4047.

Congress has the power to enact this legislation pursuant to the following:

The bill is enacted pursuant to the power granted to Congress under the following provisions of the United States Constitution:

Article I, Section 1;

Article I, Section 8, Clause 1;

Article I, Section 8, Clause 3; and

Article I, Section 8, Clause 18.

By Mr. GRAVES of Louisiana:

H.R. 4048.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 9, Clause 7

By Mrs. LOVE:

H.R. 4049.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3: ''The Congress shall have power . . . To regulate commerce with foreign nations, and among the several states, and with the Indian tribes.''

By Mr. SEAN PATRICK MALONEY of New York:

H.R. 4050.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution

By Ms. NORTON:

H.R. 4051.

Congress has the power to enact this legislation pursuant to the following:

clause 18 of section 8 of article I of the Constitution.

By Ms. MAXINE WATERS of California:

H.R. 4052.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

The Congress shall have Power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.

By Ms. MAXINE WATERS of California:

H.R. 4053.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

The Congress shall have Power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.

By Ms. MAXINE WATERS of California:

H.R. 4054.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

The Congress shall have Power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 78: Mr. KILDEE.

H.R. 167: Mr. PALLONE.

H.R. 317: Mr. NOLAN.

H.R. 540: Mr. POSEY.

H.R. 546: Mr. TAKAI, Mr. GOSAR, and Mr. SEAN PATRICK MALONEY of New York.

H.R. 592: Mr. KENNEDY and Mr. LOBIONDO.

H.R. 604: Mr. SESSIONS.

H.R. 605: Mr. BARLETTA.

H.R. 646: Ms. DELAURO and Mr. COURTNEY.

H.R. 654: Mr. POE of Texas.

H.R. 711: Ms. JACKSON LEE and Mr. VELA.

H.R. 731: Ms. MOORE.

H.R. 771: Mr. ROSKAM.

H.R. 814: Mr. BARLETTA, Mr. MACARTHUR, and Mr. NEUGEBAUER.

H.R. 845: Mr. TIPTON.

H.R. 879: Mr. BABIN and Mr. MULLIN.

H.R. 921: Mr. LAHOOD and Mr. KINZINGER of Illinois.

H.R. 985: Mr. ROKITA, Mr. LUCAS, Mr. ASHFORD, and Mr. BRIDENSTINE.

H.R. 1019: Mr. HASTINGS.

H.R. 1093: Mr. ROTHFUS.

H.R. 1173: Mr. CAPUANO.

H.R. 1206: Mr. HUDSON.

H.R. 1247: Ms. ADAMS.

H.R. 1248: Mr. SMITH of Missouri.

H.R. 1255: Mr. VAN HOLLEN.

H.R. 1258: Mr. PIERLUISI.

H.R. 1288: Ms. ROYBAL-ALLARD, Ms. WILSON of Florida, Mr. LOEBSACK, Mr. LOWENTHAL, and Mr. SHERMAN.

H.R. 1292: Mr. CRAMER and Ms. JUDY CHU of California.

H.R. 1310: Mrs. LAWRENCE.

H.R. 1346: Mr. CUMMINGS.

H.R. 1401: Ms. STEFANIK, Mr. SALMON, Mr. CRENSHAW, and Mr. WILSON of South Carolina.

H.R. 1427: Mr. SWALWELL of California, Mr. COURTNEY, Mr. VARGAS, Ms. FRANKEL of Florida, Mr. FATTAH, Mr. CICILLINE, Mr. SCHIFF, and Ms. KAPTUR.

H.R. 1492: Ms. LEE.

H.R. 1567: Mr. HUFFMAN, Mr. HANNA, and Mr. SEAN PATRICK MALONEY of New York.

H.R. 1604: Mr. CARTER of Georgia.

H.R. 1610: Mr. WOODALL, Mr. GRAVES of Missouri and Mr. FINCHER.

H.R. 1670: Mr. BRADY of Pennsylvania, Mr. DESJARLAIS, Mr. NUGENT, Mr. YOUNG of Iowa, Mr. RODNEY DAVIS of Illinois, Ms. DUCKWORTH, Mr. LOEBSACK, Mr. ROUZER, and Mr. BARR.

H.R. 1779: Ms. DUCKWORTH.

H.R. 1786: Mrs. WAGNER, Mr. HUNTER, and Mr. KNIGHT.

H.R. 1793: Mrs. LUMMIS.

H.R. 1805: Mr. NEWHOUSE.

H.R. 1818: Mr. WALBERG and Mr. KATKO.

H.R. 1929: Mr. YOUNG of Iowa.

H.R. 1941: Mr. WEBSTER of Florida and Mr. CRAWFORD.

H.R. 2016: Mr. DESAULNIER, Mr. GUTIÉRREZ, and Mr. CUMMINGS.

H.R. 2017: Ms. JENKINS of Kansas and Mr. YOUNG of Iowa.

H.R. 2125: Mr. NADLER.

H.R. 2154: Mr. ISRAEL.

H.R. 2342: Mr. BISHOP of Georgia.

H.R. 2366: Mr. LAMBORN.

H.R. 2403: Mr. PAYNE, Mrs. BEATTY, and Mr. Polis.

H.R. 2434: Mr. BRENDAN F. BOYLE of Pennsylvania.

H.R. 2515: Mr. CURBELO of Florida and Mr. BLUMENAUER.

H.R. 2519: Mr. ROUZER.

H.R. 2526: Mr. JOLLY.

H.R. 2533: Mr. LAMALFA.

H.R. 2657: Mr. THOMPSON of California, Mr. LAHOOD, and Mr. CROWLEY.

H.R. 2689: Mrs. KIRKPATRICK and Mr. GRIJALVA.

H.R. 2759: Mr. DESAULNIER.

H.R. 2817: Mr. QUIGLEY and Ms. GRANGER.

H.R. 2847: Mr. RANGEL, Mr. NOLAN, Mr. MCDERMOTT, Mrs. BEATTY, and Ms. DELBENE.

H.R. 2849: Mr. DESAULNIER.

H.R. 2858: Mr. RODNEY DAVIS of Illinois.

H.R. 2874: Mr. YOUNG of Iowa, Mr. GOSAR, Mr. BABIN, and Mr. KILDEE.

H.R. 2903: Mr. WELCH and Mr. BRADY of Pennsylvania.

H.R. 2905: Mr. ROTHFUS.

H.R. 3105: Ms. WILSON of Florida.

H.R. 3110: Mr. ROGERS of Kentucky, Mr. BARR, Mr. BOUSTANY, and Mr. QUIGLEY.

H.R. 3119: Mr. TROTT and Ms. KUSTER.

H.R. 3136: Mr. LUCAS.

H.R. 3137: Mr. BARR.

H.R. 3177: Mr. BARLETTA.

H.R. 3183: Mr. CLAWSON of Florida.

H.R. 3220: Mr. MEEHAN and Mr. PASCRELL.

H.R. 3222: Mr. COFFMAN, Mr. YODER, Mr. PITTENGER, Mr. COLLINS of Georgia, and Mr. LOUDERMILK.

H.R. 3225: Mr. RIBBLE.

H.R. 3226: Mr. GRIJALVA.

H.R. 3250: Mr. KINZINGER of Illinois and Mr. BARLETTA.

H.R. 3268: Mr. BUCK.

H.R. 3296: Mr. HENSARLING.

H.R. 3299: Mr. TURNER.

H.R. 3309: Mr. MOONEY of West Virginia.

H.R. 3314: Mr. SCALISE, Mr. LOUDERMILK, Mr. BYRNE, Mr. SANFORD, Mr. GOWDY, Mr. WILLIAMS, Mr. GRAVES of Georgia, Mr. CARTER of Georgia, Mr. BOUSTANY, Mr. LANCE, Mr. LAMBORN, Mr. THOMPSON of Pennsylvania, Mr. MILLER of Florida, and Mr. FLORES.

H.R. 3316: Mr. CARSON of Indiana, Ms. TSONGAS, Ms. TITUS, Ms. LEE, Mr. MURPHY of Pennsylvania, Mr. ELLISON, Mr. VAN HOLLEN, Mr. VARGAS, Mr. ENGEL, Mr. HUFFMAN, and Mr. SEAN PATRICK MALONEY of New York.

H.R. 3326: Mr. LUCAS, Ms. BROWNLEY of California, Mr. LOBIONDO, and Mr. WELCH.

H.R. 3339: Mr. REED, Mr. BLUMENAUER, Ms. DELAURO, and Mrs. HARTZLER.

H.R. 3340: Mr. POE of Texas.

H.R. 3375: Mr. LARSEN of Washington.

H.R. 3397: Mr. BARR, Mr. GUTHRIE, and Mr. HUIZENGA of Michigan.

H.R. 3406: Mr. DEFAZIO.

H.R. 3423: Ms. DUCKWORTH and Ms. MCSALLY.

H.R. 3445: Mr. BLUMENAUER.

H.R. 3471: Mr. MARCHANT.

H.R. 3513: Mr. GARAMENDI, Ms. SLAUGHTER, Mr. JEFFRIES and Ms. KAPTUR.

H.R. 3516: Mr. BYRNE, Mr. YOUNG of Alaska, and Mr. FLEISCHMANN.
H.R. 3537: Mr. ALLEN.
H.R. 3541: Mr. SERRANO.
H.R. 3556: Ms. JUDY CHU of California and Mrs. KIRKPATRICK.
H.R. 3573: Mr. HARPER, Mr. NEUGEBAUER, Mr. SMITH of Nebraska, Mr. WEBER of Texas, Mr. ROSS, Mr. YOUNG of Iowa, Mr. ABRAHAM, Mr. GOSAR, Mr. CRENSHAW, Mr. SCHWEIKERT, Mr. BILIRAKIS, Mr. KINZINGER of Illinois, Mr. KELLY of Mississippi, Mr. GRAVES of Georgia, Mr. SANFORD, Mr. RATCLIFFE, Mrs. COMSTOCK,
Mr. GUTHRIE, Mr. LANCE, Mr. WALKER, Mr. RUSSELL, Mr. MILLER of Florida, Mr. LAMBORN, Mr. WITTMAN, Mr. THOMPSON of Pennsylvania, Mr. FITZPATRICK, Mr. CARTER of Texas, Mr. COLLINS of New York, Mr. YOUNG of Indiana, Mr. SHUSTER, Mr. MARCHANT and Mr. CLAWSON of Florida.
H.R. 3591: Mr. PASCRELL and Mr. LOBIONDO.
H.R. 3665: Mr. LOEBSACK.
H.R. 3683: Mr. ROSS and Mrs. CAPPS.
H.R. 3706: Mr. SESSIONS and Mr Carson of Indiana.
H.R. 3711: Mr. GALLEGO.
H.R. 3724: Mr. CUELLAR, Mr. PALAZZO, Mr. MULLIN, and Mr. SMITH of Missouri.
H.R. 3730: Mr. MULVANEY.
H.R. 3733: Mr. TED LIEU of California.
H.R. 3756: Mr. MCNERNEY, Mr. LOWENTHAL, Mr. HARDY, Ms. ROS-LEHTINEN, Mr. DESAULNIER, and Mr. COSTA.
H.R. 3760: Mr. CONNOLLY, Ms. SCHAKOWSKY, Mr. POCAN, and Mr. GUTIÉRREZ.
H.R. 3765: Mr. BABIN and Mr. BYRNE.
H.R. 3793: Mrs. DAVIS of California, Mr. QUIGLEY, Mr. COHEN, Mr. TAKANO, and Mrs. WATSON COLEMAN.
H.R. 3799: Mr. GROTHMAN, Mr. MILLER of Florida, and Mr. CARTER of Georgia.
H.R. 3802: Mr. PALAZZO, Mr. BYRNE, and Mr. RODNEY DAVIS of Illinois.
H.R. 3803: Ms. JENKINS of Kansas and Mr. HENSARLING.
H.R. 3834: Mr. GRIJALVA and Mr. CARSON of Indiana.
H.R. 3845: Mr. BLUM, Mr. NEWHOUSE, and Mr. LAHOOD.
H.R. 3860: Mr. BARLETTA.
H.R. 3865: Mr. LUETKEMEYER.
H.R. 3869: Mr. MESSER.
H.R. 3870: Mr. RANGEL, Mr. BRADY of Pennsylvania, Mr. JONES, and Ms. BORDALLO.
H.R. 3886: Mr. RODNEY DAVIS of Illinois and Mr. HANNA.
H.R. 3892: Mr. KING of Iowa and Mr. PALAZZO.
H.R. 3914: Mr. MILLER of Florida.
H.R. 3919: Mr. LEWIS.
H.R. 3940: Mr. GRIFFITH, Mr. CARTER of Georgia, Ms. JENKINS of Kansas, Mr. BILIRAKIS, Mr. HUDSON, Mr. BISHOP of Georgia, Mr. GRAYSON, Mr. MOONEY of West Virginia, and Mr. ABRAHAM.
H.R. 3956: Mr. VALADAO.
H.R. 3977: Mr. HUFFMAN.
H.R. 3986: Mr. RODNEY DAVIS of Illinois.
H.R. 3991: Ms. SPEIER and Mr. HONDA.
H.R. 3997: Mr. NADLER, Mr. LARSEN of Washington, Mrs. NAPOLITANO, Ms. JACKSON LEE, Ms. EDWARDS, Mrs. WATSON COLEMAN, Mr. CROWLEY, Mr. DEFAZIO, Mrs. KIRKPATRICK, Mr. CARSON of Indiana, Ms. SLAUGHTER, Mr. CLAY, Mr. LARSON of Connecticut, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. RUPPERSBERGER, Mr. TONKO, Mr. BISHOP of Georgia, Mr. KILDEE, Mr. DEUTCH, Mrs. DAVIS of California, Mr. MURPHY of Florida, Mr. ASHFORD, Mr. CAPUANO, Mr. CASTRO of Texas, Mrs. LOWEY, Mr. CARTWRIGHT, Mr. CARNEY and Ms. MCCOLLUM.
H.R. 4000: Mr. BILIRAKIS, Mr. LONG and Mr. FARENTHOLD.
H.R. 4003: Mr. TROTT and Mr. FORBES.
H.J. Res. 22: Mr. GUTIÉRREZ.
H.J. Res. 33: Mrs. BLACK, Mrs. ELLMERS of North Carolina and Mrs. ROBY.
H.J. Res. 71: Mrs. LUMMIS, Mr. HUELSKAMP, Mr. TIPTON, Mr. BOST, Mr. BUCSHON, Mr. ROHRABACHER, Mr. CHAFFETZ, Mr. BARLETTA and Mr. ROGERS of Kentucky.
H.J. Res. 72: Mrs. LUMMIS, Mr. HUELSKAMP, Mr. TIPTON, Mr. BOST, Mr. BUCSHON, Mr. ROHRABACHER, Mr. CHAFFETZ, Mr. BARLETTA and Mr. ROGERS of Kentucky.
H. Res. 28: Mr. VALADAO.
H. Res. 32: Ms. JACKSON LEE, Mr. PASCRELL, Mr. FINCHER and Mr. FITZPATRICK.
H. Res. 394: Mr. PASCRELL.
H. Res. 416: Mr. PALAZZO and Mr. LOEBSACK.
H. Res. 432: Mr. TAKANO and Mr. FOSTER.
H. Res. 485: Mr. KINZINGER of Illinois.
H. Res. 513: Mr. HUFFMAN.
H. Res. 520: Mrs. BEATTY and Mr. JEFFRIES.
H. Res. 524: Mr. BOST, Mr. DONOVAN, Mr. SHERMAN, Mr. WEBER of Texas, Mr. BERA, Mr. ROHRABACHER, Mr. SALMON, Mr. HIGGINS, Mr. DUNCAN of South Carolina, Mr. LOWENTHAL, Mr. WILSON of South Carolina, Mr. CONNOLLY, Ms. ROS-LEHTINEN, Mr. CICILLINE, Mr. MEADOWS, Mr. SIRES, Mr. MCCAUL, Mr. DEUTCH, Mr. CLAWSON of Florida, Mr. YOHO, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. TROTT, Ms. BASS, Ms. MENG, Mr. RIBBLE, Mr. ISSA, Mr. MARINO, Mr. KEATING, Mr. MEEKS, Ms. GABBARD, Mr. DESJARLAIS and Mr. GRAYSON.
H. Res. 527: Mr. COSTELLO of Pennsylvania.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

The amendment to be offered by Representative DENNY HECK (WA) or a designee, to H.R. 3189, the Fed Oversight Reform and Modernization Act of 2015, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

DELETIONS OF SPONSORS FROM PUBLIC BILLS AND RESOLUTIONS

Under clause 7 of rule XII, sponsors were deleted from public bills and resolutions, as follows:

H.R. 3770: Mr. VEASEY.

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PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, NOVEMBER 17, 2015 *No. 169*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, who formed the mountains and hills, give our Senators strength for this season of challenge. Provide them such wisdom, courage, and integrity that they will cause justice to roll down like waters. Above the noise and din of human voices, may they hear the whisper of Your guidance. Inspire them to do what is right as You reveal the right to them.

Thank You that Your love and mercy are from everlasting to everlasting. And Lord, continue to bless the people of France as they find strength in You.

We pray in Your mighty Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER (Mr. PERDUE). Under the previous order, the leadership time is reserved.

MOMENT OF SILENCE FOR THE VICTIMS OF THE PARIS ATTACKS

The PRESIDING OFFICER. Under the previous order, the Senate will now observe a moment of silence for the victims of the Paris attacks.

(Moment of silence.)

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

ENERGY REGULATIONS

Mr. MCCONNELL. Mr. President, the Obama administration is trying to impose deeply regressive energy regulations that would eliminate good-paying jobs, punish the poor, and make it even harder for Kentuckians to put food on the table. Their effect on the global carbon levels? Essentially a rounding error. Their effect on poor and middle-class families? Potentially devastating. Yet the deep-pocketed leftwingers who increasingly call the shots in the Obama White House don't seem to care. Just like with their decision on Keystone last month, the Obama administration is putting facts and compassion to the side in order to advance their ideological agenda.

Higher energy bills and lost jobs may be a mere trifle to some on the left, but it is a different story for millions of middle-class Americans in Kentucky and across the country. Senators from both parties are saying that we should be standing up for the middle class instead. That is why we have joined together to work toward overturning these two-pronged regulations.

I am happy to report that the bipartisan measures we filed last month to overturn these regressive regulations have now been made available for consideration by the full Senate. The first measure pertains to regulations on existing energy sources, while the second pertains to regulations on new sources. Together they represent a comprehensive solution.

Senator CAPITO has been a leader in this effort, and I thank her for her hard work. That hard work will continue as the Senate and House both take up the measures and pass them. That is the right thing to do for middle-class Kentuckians and middle-class Americans who have suffered enough under this administration already.

BURMA

Mr. MCCONNELL. Mr. President, on several occasions this year I have come to the floor and noted that this year's Burmese election would represent a crucial test for the country's path to political reform. The lead-up to this November's election was marked by a number of discouraging developments: the disenfranchisement of the Rohingya population and the defeat of commonsense constitutional reform proposals back in the summer. Yet, despite these setbacks, I am pleased to note that last week's election in Burma seems to have been a success.

I would like to take this opportunity to congratulate my friend Daw Aung San Suu Kyi and her National League for Democracy party for their overwhelming victory. It was a truly remarkable achievement. At the same time, I would also like to commend Burmese President Thein Sein for his gracious remarks following the NLD victory and for his commitment to abide by the results of the election. The same should be said of Burma's commander in chief. He also appears to have accepted the results of the election and has pledged to support the NLD during the transition.

In many ways, the key test for a young democracy is not the first election but the first election in which there is a transfer of power from the ruling power to the opposition. The transfer of authority in Burma will therefore be pivotal. Accordingly, I would urge both the President and the commander in chief to continue on the positive course they have charted since the election and to meet with Daw Suu in the coming days to map out an appropriate transition plan.

The NLD now has a mandate to govern and has sufficient strength in Parliament to choose a President and one

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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of the two Vice Presidents, although Daw Suu herself is prohibited from these positions. The prohibition itself reflects one of the many challenges that lie ahead. Others include addressing the problem of the military's quota of seats in the Parliament, promoting reconciliation among ethnic groups, and healing the divide among those of differing religious faiths.

For now, it is worth acknowledging the good news last week in Burma. The road to bring the bilateral relationship to where it stands today has been a long one indeed. The transition of power has the potential to be a watershed in Burma history. It provides an opportunity to reinvigorate the reform effort in that country.

HONORING SENATOR BARBARA MIKULSKI

Mr. MCCONNELL. Mr. President, President Obama recently announced the list of individuals he plans to honor with a Presidential Medal of Freedom. One of them is our colleague from Maryland. I know she was honored by it. I know that someone she mentioned on the floor yesterday—her great-grandmother—would feel a similar sense of honor too. This is a woman who played an important role in our colleague's life, one the Senator speaks of often. She emigrated from Poland when she was 16 years old with little more than a few pennies in her pocket. She couldn't even vote when she arrived. ''She never thought,'' our colleague said, ''that her own great-granddaughter would one day be a United States Senator. But then, it is only in America where my story would have been possible.''

That is something all of us can appreciate, and we recognize our colleague from Maryland, the longest serving woman in Congress, for the President's choice to honor her in this way.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

CLEAN POWER PLAN

Mr. REID. Mr. President, the Clean Power Plan that has been promulgated by the President will avoid 3,600 premature deaths, 1,700 heart attacks, 90,000 asthma attacks, and 300,000 missed work and school days in just the next 15 years. It will also lower power bills by reducing wasted energy. It is the right thing to do, and the President will protect this because it is the right thing for the health of America.

HONORING SENATOR BARBARA MIKULSKI

Mr. REID. Mr. President, President Obama has announced to our gratification that our own Senator BARBARA MIKULSKI will receive the Presidential Medal of Freedom. She is an inspiring figure. She and I came to the Senate together and we will leave the Senate together. She has been a friend, an ally, and one of the most articulate people I have ever served with. She has a way with words that are just BARBARA MIKULSKI's way of speaking. I so admire her for that and all the other things I mentioned.

She has spent decades as a leader in Congress, what will be 30 years in the Senate, and during that period of time she has done social work, which is what she did by profession, and has focused on the poor, the middle class, and the disadvantaged. She has inspired a generation of women and has been a mentor to both sides of the aisle.

We are all happy to see this great woman—and she is a great woman—receive the recognition she so rightly deserves from the President of the United States and a grateful country. We should all congratulate Senator MIKULSKI on receiving this great honor.

EXPRESSING OUR CONDOLENCES TO THE PEOPLE OF FRANCE

Mr. REID. Mr. President, at 11 a.m.—a few minutes from now—a number of us will be down in S–117, which is the Foreign Relations Room. At that time, we will receive Ambassador Gerard Araud, who is the Ambassador from France to the United States. We are going to be there to express our condolences to the people of France by doing what has been done for a long time when these tragedies occur. We will sign a book of condolences. I look forward to doing that, and I hope my colleagues will join in doing that at some time during the day.

NOMINATIONS

Mr. REID. Mr. President, for the first 6 years of Barack Obama's Presidency, Republicans have tried to block nearly every nomination that has come to the Senate.

From a record backlog of judicial nominees to the first-ever filibuster of a Secretary of Defense, Republicans abdicated their constitutional responsibility to provide their advice and consent regarding these nominations. In fact, the Republicans have blocked President Obama's nominees more than all the other Presidential nominees in history combined. Think about that. They have blocked more of this President's nominations than all the preceding Presidents in the history of our country. Seventy-one percent of all cloture motions filed on nominees during the history of the country were for President Obama's nominees. Seventy-three percent of cloture motions on judicial nominees were for Obama nominees. Ninety-seven percent of cloture motions on district court judges were for Obama nominees.

When Republicans assumed power of the Senate in January, some may have expected that their obligation to govern would bring an end to their obstruction, but it didn't. We all know what happened last year. We all know they were holding up all nominations they didn't like—not all of them but all of those they didn't like, and that is most all of them.

Something that has been traditional in this country, the National Labor Relations Board—they refused to allow us to have a vote. They filibustered every one of them, which meant that the National Labor Relations Board, which is so important to working men and women in this country, could not go forward. They didn't even have a quorum. The second highest court—some say the most important court in the land—is the DC Court of Appeals. They refused to allow any votes on nominees. They filibustered every one of them. We have five vacancies.

Well, something had to be done, and it was done. It was done for the right reason, and it was good for the country. Those people have now been confirmed. We have a better country as a result of that.

When the Republicans assumed power, they kept talking about how they wanted to get the Senate back to work. Sadly, we all know that has been an absolute joke. We have had more revotes than in the history of the country during the time they have been in power here. We have done less than any Senate in the history of the country. So getting the Senate back to work is not very honest.

Sadly, those who were hoping that the Republicans would get serious about governing have been terribly disappointed. Republicans are still doing everything they can to block even the most qualified nominees.

Many of these nominations are vitally important to our national security. I will list the people who have been blocked from having a vote in the Senate—and they have even gone one step further; they are not even holding hearings to allow them to come to the floor. Here are some who we could vote on and we should vote on: The Under Secretary of Defense for Personnel and Readiness, the Assistant Secretary of Defense for International Security, Under Secretary of the Air Force, Secretary of the Army, Under Secretary of the Army, Under Secretary of Treasury for Terrorism and Financial Crimes. Those positions are unfilled.

Think about the Secretary of Treasury for Terrorism and Financial Crimes. They are not even bringing it to a vote. As the United States continues to fight ISIS and its terrorism, shouldn't we confirm the person in Treasury who is responsible for terrorism and financial crimes?

How about the Secretary of the Army—do you think that is important? Being disappointed doesn't go very far if all my Republican colleagues say is a resounding no. But this is all part of

the Republican trend of grinding the nomination process to a halt.

So far this year the Republican Senate has confirmed 100 fewer civilian nominees than it did during the most comparable Senate session in 2007, for example. That number also lags well behind any other recent session.

Judicial emergencies are triple what they were at the beginning of this year. What is a judicial emergency? It means you have a judge who has more work than he can handle. Jury trials are not allowed to go forward, especially civil jury trials. Hearings on important issues, restraining orders, and other important issues are not held. In 2007 at this same stage we had confirmed 34 judges; this year, 10.

Consider the nomination of a man by the name of Felipe Restrepo for the Third Circuit in Philadelphia. He was nominated more than 1 year ago. The seat to which Judge Restrepo has been nominated is a judicial emergency, meaning there are more cases than the judges are able to handle. The seat has been vacant since July 2013. Judges have said: We may do the work, but we are not doing it the way we should be doing it because we are so busy on everything. That seat, I will repeat, has been vacant since July of 2013.

He is an American success story. He was born in Colombia and came to the United States as a toddler. In 1993 he became a U.S. citizen. He is eminently qualified, having graduated from the University of Pennsylvania—one of the Ivy League schools—and Tulane University Law School. He worked as a public defender and started his own practice focusing on civil rights and criminal defense issues. Since 2013 he has served with distinction as a district judge in the Eastern District of Pennsylvania. The Senate confirmed him in his current judge position unanimously.

More than a year ago, Senator CASEY and Senator TOOMEY—a Democrat and a Republican—jointly recommended Judge Restrepo to the President of the United States for this appointment to be a circuit court judge. Senator TOOMEY said at the time: ''I believe [Judge Restrepo] will also make a superb addition to the Third Circuit.'' But despite his public statements of support, the Republican Senator from Pennsylvania refused to allow the Judiciary Committee to move forward with a hearing on his nomination by refusing to turn in something called a blue slip, as it is blue. It has been tradition in the Senate forever that you need both Senators to turn in their blue slips. He won't turn his in, which has delayed confirmation of a qualified man who has been recommended to the President. He could advance Judge Restrepo by signing a piece of paper, but he has long refused to do so. It is kind of baffling when he makes public statements about what a great guy he is.

After the media started asking questions about the delay, the junior Senator from Pennsylvania told the Huffington Post:

> No, I'm not blocking him. But I've got to run for this lunch.

The junior Senator from Pennsylvania couldn't wait for his lunch, but this judge and the people who he is responsible for taking care of are waiting. This Third Circuit is overwhelmed with work. It is a judicial emergency. Other judges are doing more work than they should be doing. They need him. So even though he couldn't wait for lunch, he is making millions of Americans wait for a judge they desperately need.

In July his nomination was finally voted out of committee by voice—meaning there was no controversy—showing, of course, that it should be voted on now, immediately. That was in July. Remember, that was a year after he was nominated. We are now in November. Why has a qualified judge's nomination sat on the floor since July waiting for a lunch that has never been completed?

It is past time that the Senate confirmed Judge Restrepo. Senator TOOMEY should demand and ask the majority leader to allow us to vote on Judge Restrepo before we leave for Thanksgiving—and in the process, sign that little piece of paper. We would be happy to work with Republicans to confirm this good man today.

Unfortunately, it is not just this junior Senator from Pennsylvania—they should also confirm Judge Mary Barzee Flores to the Southern District of Florida. Unfortunately, Judge Barzee Flores's nomination has been held up due to the same delaying tactics that Senator TOOMEY used to stall Judge Restrepo. But this nominee is being delayed by one of the many Republicans running for President, the junior Senator from Florida.

Senators NELSON and RUBIO jointly signed and recommended that she become a judge in the Southern District of Florida. She was nominated on February 26, 2015—8 months ago—but since then the junior Senator from Florida is running for President. He doesn't have time to mess with a judicial emergency. The Miami-based seat is considered another judicial emergency. It has been without a Senate-confirmed judge for more than a year.

Like her counterpart in Pennsylvania, she has an impeccable record. In fact, her nomination won wide praise in the Florida press. She is a familiar face to many in the legal community in South Florida, having served on the Eleventh Judicial Circuit of Florida in Miami for more than a decade. Prior to her judicial service, Judge Flores worked as a public defender for 13 years. By any measure, she is well qualified and deserves a hearing in the Judiciary Committee.

Senator NELSON indicated his support 8 months ago, but the junior Senator from Florida refuses to sign off on Judge Barzee Flores and is the only obstacle stopping the nomination from moving forward. It is puzzling that Senator RUBIO is delaying a judge whom he helped recommend to President Obama. Without his approval, the chairman of the Judiciary Committee cannot schedule a hearing on the Barzee Flores nomination.

Even with his busy schedule traveling around the country—I recognize he doesn't vote here. He does not like to be in the Senate. He said so. He does not like the Senate. That is why I said he should resign. He talked about other Senators who missed votes. Any Senator who ran for President during my time in the Senate loved the Senate. They may have missed votes, but they never, never denigrated the Senate. Senator RUBIO has done just that. So even with his busy schedule running for President and missing votes in the Senate, he should be able to find seconds to sign his blue slip that would allow Judge Flores to move forward with a hearing.

The junior Senator from Florida simply needs to sign a piece of paper to advance a qualified nominee whom he recommended to fill a judicial emergency in Florida, but like the junior Senator from Pennsylvania, he refuses to do so. His constituents are paying a price, a big price.

Sadly, Republicans' strategy for the sake of obstruction is by no means limited—sadly, I say it again—to the junior Senators from Florida and Pennsylvania.

Right now, Republicans are blocking important State Department nominations.

The junior Senator from Arkansas is preventing three Ambassadors from getting their rightful vote on the Senate floor.

The junior Senator from Texas is blocking one of the most qualified nominees before the Senate, Gayle Smith. She was nominated 6 months ago as the next Administrator of the U.S. Agency for International Development. With this refugee problem facing the world, facing our country, wouldn't it be nice if we had someone whose job it was to oversee this for our government? But, no, there is some extraneous issue the junior Senator from Texas—who is also running for President—is more concerned about than this important Agency.

I have spoken at length about the obsession of the senior Senator from Iowa with blocking more than 20 qualified State Department nominees. The nominees he has blocked are people who have worked as Foreign Service officers for a long, long time for different periods of time. When it comes time that they get automatic changes in their status, they get a few more dollars and get a different title. He is blocking these. That is so sad. There is no need for it.

If Republicans were serious about governing, they would change course and stop blocking these nominations. Every moment that Republicans delay, they are hurting our country in many

different ways: our justice system, our foreign policy system, and our ability to respond to the havoc that is taking place in the Middle East right now. Let's put an end to all of this obstruction. Let's move forward with votes on these qualified consensus nominees as we have done historically. It wasn't until this Republican crowd arrived in the Senate that they started doing it. We have never had this before. We may have held somebody up for a while, but they basically put a stamp of disapproval on anything that President Obama wants to do.

We are not going to stand by silently and allow these nominations to linger in the Senate. We are going to continue to demand that they schedule votes on these qualified, dedicated public servants so they can work on behalf of our great country.

Mr. President, would the Chair announce the business of the day.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business until 11 a.m., with Senators permitted to speak therein for up to 10 minutes each.

The Democratic whip is recognized.

TERRORIST ATTACKS AGAINST FRANCE

Mr. DURBIN. Mr. President, earlier in this session we observed a moment of silence to exhibit our solidarity with the people of France. I add my voice to others here today in sharing my deepest condolences and solidarity with the people of that great nation. As a result of barbaric violence that occurred over the weekend, we are finding this solidarity coming together from across the world, standing behind the people of France in their hour of need.

These events that occurred in Paris were heartbreaking and infuriating. America knows well from the tragic events of September 11 that this kind of savagery is a challenge to the civilized world, one which we must collectively stand and defeat.

As French President Hollande said to a joint session of the French Parliament, when France is attacked in such a manner, the whole world is attacked. I agree.

The people of Russia are also victims of such violence in the recent downing of their airplane departing Egypt, another tragedy for which ISIS has claimed credit. The people of Lebanon and Turkey have suffered horrific bombings in their capitals in the last few weeks from these same terrorist groups, and the brave reformers in Tunisia—one of the few countries to emerge from the Arab spring with an inclusive and inspiring democracy—have faced similar violence against innocent people at their museums and tourist destinations.

The perpetrator of all of these monstrous attacks is ISIS, which has filled the void created by the wars in Iraq, Syria, and the broader political chaos of the Arab spring. These murderous henchmen have conducted the most heinous of acts: beheadings, mass rape, torture, and the murder of innocents in a sick attempt to intimidate the civilized world and to feed their own warped ideology.

I have supported President Obama's leadership in organizing a global coalition to defeat ISIS and will continue to do so. I applaud Secretary Kerry for his efforts to negotiate an end to the Syrian civil war, but we must do more.

When France is attacked and President Hollande reaches out to his allies, he is reaching out to the North Atlantic Treaty Organization, NATO, of which the United States is a member. He should reach out as well—and we all should reach out—to Russia which, as I mentioned earlier, has been victimized by this terrorist group in the downing of that aircraft. Then reach out to the Saudis and Muslim leaders around the world. Join us in a coalition to destroy ISIS, first in their occupied territory in Syria and in Iraq, and then in their murderous web of recruitment and hate around the world.

Several people in the United States have reacted to the tragedy in France by calling for us to suspend refugees coming to this country. Many of these people have not reflected on the refugee situation in our country. Each year, the United States of America accepts about 70,000 refugees from around the world. These refugees are each carefully investigated, reviewed and vetted. That process takes anywhere from 18 to 24 months before a refugee from any part of the world is allowed to enter the United States. We do everything humanly possible and take extraordinary efforts to make certain dangerous people do not arrive on our shores. That vetting process must continue and when it comes to suspicious circumstances, must be doubled in its intensity to make certain our Nation is safe, but for those who are focusing on that as the answer to what happened in Paris, they are very shortsighted.

One out of four of the refugees coming to the United States in the last fiscal year came not from the Middle East but from Burma. In addition to that, we find many refugees coming to the United States from Iraq. It turns out that over 3,000 refugees came from Iran. In each and every instance, we should apply the standard of strict vetting and the highest standards of investigation. I certainly stand by that, but those who say we should turn away refugees coming to the United States have forgotten the lesson of history. It was May of 1939, a ship docked in Florida. The ship was named the SS *St. Louis*. On that ship were almost 1,000 Jews from Europe who were trying to escape persecution. Sadly, the United States turned them away and they had to return to Europe. They were afraid for their lives. The Nazis had engaged in Kristallnacht and violence against Jewish people, and these refugees were coming to our shores seeking refugee status. In May of 1939 we turned them away. They returned to Europe and over 200 of them died in the Holocaust.

Since that time the United States has taken a different approach to refugees. We have been a country sensitive to the reality that in many parts of the world people are living in fear of death every day and can only find safety on our shores. Over the years we have accepted 750,000 refugees from Vietnam; we have accepted over 500,000 Cuban refugees, including the fathers of two U.S. Senators, one who is running for President; we accepted over 200,000 Soviet Jews who were escaping persecution in the former Soviet Union; we have accepted refugees from around the world—from Somalia, from Bosnia. The list is long. That is an indication of who we are and our values.

Now, we need to be careful when any refugee comes to the United States. We should give them a thorough investigation, but for us to step back and say we are going to stop being a refuge for refugees from around the world is a retreat from America's values. Let us make sure the process for refugees, immigrants, and visitors is the very best. Let us carefully follow through on each one of them, but let us not turn our backs on many around the world who fear for their lives and are looking for the safety of the United States. That has been part of our heritage for over 60 years and it should continue.

What can we do? We know we have an obligation to keep America safe, and we know ISIS and terrorists like them are trying to find ways into the United States. First, we must acknowledge the obvious. For more than 14 years, with the exception of the Boston Marathon, involving lone-wolf terrorists, we have kept America safe. It has been through the good work of our men and women in the intelligence community, the military, the FBI, and in so many different aspects of our government.

So what can we do in the Senate to make sure they are able to do their job effectively? Why don't we do our job in the Senate. Why don't we pass the appropriations bills for these agencies. Imagine, here we are, over a month into this fiscal year, and the Senate has not passed the appropriations for the FBI, the appropriations for the Department of Homeland Security. What are we waiting for? Instead, we have vote after revote after revote over old issues that have been resolved on the floor of the Senate months ago. This week, if we want to fight terrorism and protect the United States, let us pass the appropriations bills for all of the agencies of our government. It is time to do it and to do it now.

Secondly, we need to make sure our country has the tools to fight terrorism, the kind of terrorism we have seen in Paris, France. We know we need to change the approach when it comes to the encryption of data and communications so that we have access

to the communications of terrorists. Technology is leaping ahead of our capacity. We are told by our agencies of government that to keep America safe we have to deal with encryption standards today. That is the reality of the challenge to the United States.

Some would dwell on refugees. I think we ought to be careful on every single refugee that comes to this country, but there is more we can do. Pass the appropriations for the agencies that keep us safe, put in new standards so we can deal with the encryption where would-be terrorists are hiding their communications from our surveillance even under court order.

Third, we need to come together—France, the NATO nations, Russia, those Muslim countries that abhor this extremism that is exhibited by ISIS—and wipe ISIS off the map in Iraq and Syria. We need to rely on local forces there who have been so effective, like the Kurds, who are willing to fight the ISIS troops on the ground and to defeat them. Eliminating them from Iraq and Syria is no guarantee they will not continue their efforts around the world, but let us have a common enemy in ISIS and come together in a large global coalition to fight them and stop their efforts.

I come to the floor with some emotion today because my wife and I, for years, have visited France. We consider it to be a wonderful country with great people. We have had our differences on foreign policy from time to time, but any student of history knows the French stood with us when it came to our Revolution. The French have been by our side time and again, and we have been by their side in both World War I, World War II, and in so many other theaters.

The PRESIDING OFFICER. The Senator's time has expired.

Mr. DURBIN. Mr. President, I will conclude by saying, from the birth of our Nation to this day, France has always been one of our closest allies. America stands arm in arm with the people of France.

I yield the floor.

The PRESIDING OFFICER. The Senator from Nevada.

Mr. HELLER. Mr. President, like the speaker before me, I rise to offer my condolences to the nation of France. As the previous speaker said, she is one of our oldest allies, and the people of America stand proud with her during this tragic time.

AFFORDABLE CARE ACT

Mr. HELLER. Mr. President, I rise to share my concerns about the devastating impact of the Affordable Care Act and, specifically, the Cadillac tax. The Cadillac tax is a 40-percent excise tax set to take place in 2018 on employer-sponsored health insurance plans. In Nevada, 1.3 million workers who have employer-sponsored health insurance plans will be hit by this Cadillac tax. These are public employees in Carson City, service industry workers on the strip in Las Vegas, and small business owners and their retirees across the State of Nevada.

My colleagues from across the country have heard the same concerns I have: This 40-percent tax will increase costs, significantly reduce benefits or result in employers getting rid of employer-sponsored health coverage all together. Is this what we want? Is this what we voted for? Is this what the other side voted for?

This is precisely why Senator MARTIN HEINRICH of New Mexico and I have sponsored the Middle Class Health Benefits Tax Repeal Act of 2015, the only bipartisan piece of legislation to fully repeal this onerous tax. My bill has 19 bipartisan cosponsors.

Over the summer, when I committed to taking a leadership role to fully repeal this tax, I waited for months for a sign that my colleagues across the aisle would work together to repeal this tax. There was a lot of talk, but there was no action. To date there is still little action from these same colleagues, which is why I ask them once again to join me in repealing this bad tax.

This shouldn't be a bipartisan issue. Yet my colleagues across the aisle have turned it into one. That is why I commend Senator HEINRICH for joining me in working together in a bipartisan manner to fully repeal this tax, and this repeal needs to happen and happen quickly for the employers to be able to plan for the future. Whether it is through our bill or any of the must-pass measures the Chamber takes up in the next 6 weeks before the end of this year—for example, tax extenders—the Cadillac tax needs to be fully repealed.

As a member of the Senate Committee on Finance, this is something I have engaged my colleagues on and will continue to do so, especially as we hopefully look to move tax extenders before the end of this year. This is not just something that needs more bipartisan support in the Senate. There are over 218 cosponsors in the House of Representatives—nearly half of them are Democrats—and 83 organizations have endorsed our efforts to repeal the Cadillac tax. It is very rare these days to see this much agreement in Washington, DC. Organized labor, chambers of commerce, local and State governments, large and small businesses have come together with a bipartisan group putting forth a solution to fixing a problem affecting so many hard-working, tax-paying Americans.

The Cadillac tax doesn't officially go into effect until 2018, but the impact of this tax is being talked about more and more because employers are starting to make major changes today now to their workers' health care benefits in order to limit the impact of the tax or avoid the tax altogether.

I have heard from large companies, I have heard from small businesses and organized labor, such as the culinary union in Nevada, and they are all saying the same thing: The Cadillac tax needs to be fully repealed or our employees will experience massive changes to their health care.

We are talking about three things. We are talking about reduced benefits, we are talking about increased premiums, and we are talking about higher deductibles. Is this what we want? All of these lead to more money being taken out of the pockets of hard-working, tax-paying families.

According to the nonpartisan Kaiser Family Foundation, employees who have job-based insurance have witnessed their out-of-pocket expenses climb from $900 in 2010 to $1,300 in 2015, on average. That is almost a 50-percent increase in their insurance coverage in the last 5 years. Employees working for small businesses now have deductibles over $1,800. Kaiser also notes that deductibles have risen nearly seven times faster—seven times faster—than workers' earnings since 2010. Kaiser's president, Drew Altman, said:

> It is quite a revolution. When deductibles are rising seven times faster than wages . . . it means that people can't pay their rent . . . they can't buy their gas. They can't eat.

As deductibles rise, another way employers are planning on avoiding ObamaCare's massive new tax is by eliminating health savings accounts and flexible spending accounts. Over 33 million Americans use FSAs, or flexible spending accounts, and 13.5 million Americans use health savings accounts, or HSAs. They may see these accounts vanish in the coming years as companies scramble to avoid the law's 40-percent tax hike.

HSAs and FSAs are used for things like hospital and maternity services, they are used for childcare, they are used for dental care, physical therapy, and access to mental health services. Access to these lifesaving services could all be gone for tens of millions of Americans if the Cadillac tax is not fully repealed.

Every day there is a new article in the national press talking about how middle-class workers, tax-paying Americans, are going to be hit by this tax. Towers Watson, a management and consulting firm, did a survey of large businesses that typically offer the most comprehensive coverage. They found in 2018 more than half of the employers are planning to significantly cut what they contribute to insure employee spouses and children. The United Parcel Service, UPS, is one of those companies that have already said they plan on limiting plan eligibility for spouses of employees.

Shaun O'Brien, assistant policy director of the AFL–CIO, said recently that ''employers are coming to the table asking for cuts in benefits based on their preliminary projections around the 40 percent excise tax.''

To make matters worse, the chief financial officer of a waste and recycling company, Action Environmental, recently told the Wall Street Journal

that his company would consider getting rid of its employee coverage altogether because of ObamaCare's Cadillac tax. He said: ''I'd be lying if I said we haven't had that discussion.''

Delta Airlines expects ObamaCare will cost it $100 million per year. One reason for the new costs is the 40-percent excise tax on Delta's employee health benefits, as if Americans don't already have enough issues with airlines these days.

Out of all the news we see from the Cadillac tax, none of it—zero—is positive. The goal of health care reform should be to help those who do not have health coverage and lower costs for those who already have insurance. This tax doesn't achieve either of these goals, and everyone knows it.

I will do everything I can to see that this tax is fully repealed. There is a real urgency that we get this done. I will work with anybody in this Chamber to see that the Cadillac tax is fully repealed by the end of the year. Once again, whether it is my bipartisan bill or a year-end package such as the tax extenders, we need to repeal this very bad tax. Fully repealing the Cadillac tax is an opportunity for Republicans and Democrats to join forces and to work together to repeal a bad tax for one purpose: to help 151 million workers keep the health care insurance they like.

The PRESIDING OFFICER. The Senator from Minnesota.

TERRORIST ATTACKS AGAINST FRANCE

Ms. KLOBUCHAR. Mr. President, I rise today to join all of our Senate colleagues in sending our deepest condolences to the families and loved ones of the victims in the attacks in Paris. Our hearts go out to the people of France. The United States stands firmly and united in solidarity with France, just as France—our Nation's oldest ally—has stood in solidarity with us. We must work to find those responsible for those attacks and bring them to justice.

We remain steadfast as a country, and talking to people in my own State, I know this. We remain steadfast in our resolve to defeat ISIS, to root out this evil. From those planning these attacks in Belgium to those training camps in Syria, our military—our strong and mighty U.S. military—has already provided critical leadership with France in escalating the airstrikes in Syria and Iraq, and we must continue to do that. In the coming months we must focus on building this international coalition against ISIS, as well as providing critical intelligence in going after these perpetrators.

Just yesterday Russia announced that it was in fact a bomb that brought down the plane over Egypt. Not all the facts are known yet, but ISIS has claimed responsibility. There is no limit to what these people will do. That plane was filled with innocent families and children coming back from vacation, just as the concert hall in France was filled with young people there for the music. They now lie maimed in hospitals all over Paris or, worse, their families are burying them in the ground.

What can our country do? First, we must have a unified agenda to keep America safe and to stand by our allies. We must do all we can to build this coalition and to fight this evil at its root with resolve. We have unprecedented technology that should allow us to fight this fight. We have biometrics. We have ways that we can assist other countries.

Secondly, we must do all we can to enhance our own security. We know our first responders throughout the last decade have done amazing work in thwarting attacks. We must continue to support them. If we do more in terms of legislation, we must make sure that we are doing something that will actually make a difference. We are having a security briefing with all Senators tomorrow, and we must listen to our security and intelligence experts to make sure that what we are proposing will make a difference.

Third, we must give our first responders and our military on the frontline the resources they need. I know Senators SHELBY and MIKULSKI are working hard, with their counterparts in the House of Representatives, to craft a budget bill. We must take up that bill as soon as it is completed. Of course, we have had some positive success in reaching a budget that didn't make deep cuts into our military or our homeland security capabilities. That was positive. Now we must bring it home with the budget.

The fourth and final action I will mention today as part of this unified agenda to keep our country safe and to support our allies is to make sure we have our own frontline positions filled. As was mentioned earlier, this includes the Treasury Under Secretary for Terrorism and Financial Crimes, a position that must be filled, and military positions, including positions within our own Army.

We have a judiciary that has to take on these terrorism cases. I can't comment about what is going on in every jurisdiction in the country, but I know Minnesota has one of the highest caseloads. We have a well-qualified applicant named Wilhelmina Wright, a former prosecutor, who passed through the Judiciary Committee without dissent, thanks to the good work of the chair of this committee, Senator GRASSLEY, and Senator LEAHY. Her name is one that is coming up before the Senate.

Given that we have 15 indictments out of Minnesota alone—and that number growing—against ISIS, home-grown terrorists, and people who were trying to fight for ISIS abroad and given that our great law enforcement in Minnesota on the Federal and the local level were able to track them down and our aggressive U.S. attorney's office was able to make the cases, we need judges to handle those cases. We have one of the highest caseloads already in the country.

I appreciate the work of the Judiciary Committee, on a bipartisan basis, in bringing this nomination to the floor. It is one of several that need to get done. Again, these are frontline positions—frontline positions dealing directly with the terrorism that we are talking about.

Finally, we have to fill the State Department positions that are open—USAID, which provides critical assistance to our allies and our friends that are taking on these fights. The fact that we don't have anyone confirmed in that position is very disturbing. We have someone I know Senator CORKER is supporting that we would like to get through and we must get through—Ms. Smith.

We also have open ambassador positions—again, noncontroversial nominees—in the European continent, in countries that have not had an ambassador for years. I bring up one nominee from the State of Minnesota, and that is for the country of Norway, which has been a critical ally. Norway is one of our country's strongest and most dependable international allies. It was a founding member of the NATO alliance, an ally we will be relying on heavily as we look at fighting ISIS. Its military has participated in operations with the United States in the Balkans and in Afghanistan. Norwegians have worked alongside Americans in standing up the Ukraine, and they have worked with us in countering ISIS.

Yet we have not had an ambassador for over 2 years. I recognize part of this is because the initial nominee ended up withdrawing—someone put forward by this administration. That happened. Now we have a noncontroversial nominee, along with a nominee for the country of Sweden. The nominee for Norway, Sam Heins, from the State of Minnesota, has gotten through the Foreign Relations Committee and was approved by voice vote. No one raised any questions about the qualifications of Mr. Heins for this position.

Given that Europe is on the frontline of these ISIS attacks, we must join with Europe and make sure that we not only have our military positions filled, our State Department positions filled, our USAID positions filled, and our judiciary at home with the nominees before the Senate so that we can have a strong, united front, but we also have to make sure we fill the positions for these ambassadors.

Again, I am not pushing controversial nominees. These are people who will be serving in these positions for the remaining year. But I ask that the Senate take up these nominations, as well as get the budget done, which we are well on our way to do, as well as come together on commonsense solutions for our own security, as well as making sure that we put together and

lead, in America and with our allies, an international coalition to root out ISIS.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. FLAKE). Without objection, it is so ordered.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

The majority leader.

PROVIDING FOR CONGRESSIONAL DISAPPROVAL OF A RULE SUBMITTED BY THE ENVIRONMENTAL PROTECTION AGENCY

Mr. MCCONNELL. Mr. President, pursuant to the provisions of the Congressional Review Act, I move to proceed to S.J. Res. 24, a joint resolution providing for congressional disapproval of a rule submitted by the EPA.

The PRESIDING OFFICER. The clerk will report the motion.

The senior assistant legislative clerk read as follows:

Motion to proceed to Calendar No. 294, S.J. Res. 24, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to ''Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units.''

The PRESIDING OFFICER. The motion is not debatable.

The question occurs on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the joint resolution.

The senior assistant legislative clerk read as follows:

A joint resolution (S.J. Res. 24) providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to ''Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units.''

The PRESIDING OFFICER. Pursuant to the Congressional Review Act, there will now be up to 10 hours of debate, equally divided, between those favoring and opposing the joint resolution.

The Senator from West Virginia.

Mrs. CAPITO. Mr. President, I rise to speak in support of my resolution of disapproval under the Congressional Review Act against EPA's greenhouse gas regulation targeting existing power sources.

I am so proud to be here with my colleague from North Dakota Senator HEIDI HEITKAMP. We have 47 cosponsors on this bipartisan effort to stop the existing coal plant rule. We have had a lot of discussion about this. It affects all of our States differently, but I think it is important to talk not just about what this does to our individual States but what this is going to do to us as a country.

If the administration's proposed Clean Power Plan moves forward, hardship will be felt all across the country. Fewer job opportunities, higher power bills, and less reliable electricity will result. West Virginia and other coal-producing States, such as Kentucky and Wyoming, are feeling the pain of prior EPA regulations. Nearly 7,000 WARN notices, or notifications to employees—let me ask, does everybody know what a WARN notice is? If you have gotten one, you will never forget it because basically what a WARN notice says to that employee is that you could be laid off within the next 60 days.

In West Virginia, 7,000 of those notices have gone out to West Virginia families, West Virginia coal miners, in the year 2015, and more than 2,600 of those were just issued last month alone. Our neighboring State of Kentucky—the State of the majority leader—lost more than 10 percent of its coal jobs during the first quarter of this year.

Kentucky's coal employment now stands at the lowest level since the 1920s. The Energy Information Administration's most recent annual coal report for 2013 showed that the average number of coal mine employees dropped by roughly 10 percent in other coal-producing States, such as Alabama, Utah, and Virginia.

According to the Mine Safety and Health Administration, coal mining employment nationally has dropped by a massive 31 percent in just the last 4 years. If you travel to the State of West Virginia—particularly our coal area—it does not take you long to see that. The impact of this war on coal extends far beyond the coal industry. These regulations are affecting all aspects of Americans' lives. Last month, West Virginia's Governor announced that most State agencies would have to endure 4 percent cuts, largely because of shrinking energy tax revenues. For the first time in many years, the Governor cut our education budget in the State of West Virginia because of this war on coal. That means less money for roads, for schools, and for health care services, but the terrible impact that prior regulations have had on West Virginia and the Nation would get far worse if the EPA's Clean Power Plan goes into effect.

The Clean Power Plan is the most expensive environmental regulation the EPA has ever proposed on our Nation's power sector. Compliance spending is estimated to total between $29 billion and $39 billion per year. Household spending power—the money American families have in their pockets—will be reduced by $64 billion to $79 billion by this rule.

A new study by NERA, a respected economic analysis firm, of the final rule found that electricity prices in West Virginia would increase between 13 and 22 percent, but certainly West Virginia will not be alone, as we are going to hear through this debate, in enduring higher energy prices and job loss. NERA projects that all of the lower 48 States will see their electricity prices go up under the Clean Power Plan. As many as 41 States could see electricity prices increase by at least 10 percent. That is just from this regulation. I am sure my colleague from North Dakota represents one of those affected states. Twenty-eight States would see electricity prices that would increase by at least 20 percent.

What does that mean for our economy? The National Rural Electric Cooperative Association found that a 10-percent increase in electricity prices could mean a loss of 1.2 million jobs across the country. Half a million of those jobs would be in rural communities in rural States such as West Virginia and North Dakota.

The National Black Chamber of Commerce found that the Clean Power Plan would increase poverty among blacks by 23 percent and poverty among Hispanics by 26 percent. Affordable energy matters, especially to those living on fixed incomes. Households earning less than $30,000 a year spend an average of 23 percent of their income on energy costs. These families, these children, these workers, these elderly are the ones who will suffer most under this administration's policy.

Energy reliability also matters. Coal is the source of our baseload generation, and the administration wants to replace coal with intermittent sources. What does that mean? That means that on a hot day, when the air-conditioner is running and factories are operating, we could be confident that a coal-fired powerplant will be supplying the energy needed to cool our homes and keep our businesses running.

In the cold winter of 2014, when the demand for electricity surged, coal was the energy source utilities relied on to keep people warm. Renewable sources—and we want more. We want more variable ones and more frequent ones. Renewable sources are an important part of our country's energy mix, but there are always going to be days when the wind isn't blowing and the Sun isn't shining, and it is critical we preserve more reliable energy resources to meet the demand of powering our economy.

Where I would like to see us go is innovation. Innovation, not across-the-board regulations, should be our focus, but these regulations will not spur innovation. The Clean Power Plan sets a standard for new plants that cannot be met by the most commercially available technology we have today. That not only flies in the face of the Clean Air Act but also makes gradual improvements in technology that would improve our environment impossible implement. The effect will be to instead choke off our most reliable and

affordable source of energy and devastate the livelihoods of many folks around this country.

Prior to this administration, our country did a laudable job of protecting and improving our environment while promoting economic growth. Last week marked the 25th anniversary of the 1990 Clean Air Act amendments, which were signed into law by President George H.W. Bush and supported by Senators across the political spectrum. Our air is now the cleanest it has been in decades. We continue, and we must continue, to reduce harmful pollutants such as sulfur dioxide as our energy consumption increases and our population grows.

Since 2005, U.S. carbon dioxide emissions have fallen by 13 percent. According to the EIA, West Virginia has emitted 19 percent less carbon dioxide since the year 2000. We should continue on this track. We should continue to protect our environment but not at the expense of our families, our communities, and our economy. I am serious when I say, if you come to West Virginia, you will easily see this.

With this rulemaking, the EPA is attempting to impose the same type of cap-and-trade system that Congress rejected 5 years ago. Having failed at its attempt at cap and trade, the administration has taken a second bite at the apple by claiming authority under the Clean Air Act to impose a regulatory cap-and-trade program. That is not the way it should be. This raises an obvious question. If EPA had cap-and-trade authority, as the administration is asserting now, why did the administration go to such lengths to try to pass cap-and-trade legislation? The answer is clear. The Clean Air Act does not authorize a mandatory cap-and-trade program. With its Clean Power Plan, EPA ignores 40 years of history and prior regulations that consistent with the law, always based standards on controls installed at an existing plant.

Let me be clear. In the 40-year history of the Clean Air Act, EPA has never issued an existing plant program quite like this. As one EPA official summed it up to the New York Times, ''The legal interpretation is challenging. This effectively hasn't been done.''

Rather than regulating existing plants using the best technology, EPA is instead attempting to regulate the entire energy grid. This has not been done before because the Clean Power Act does not authorize EPA to do this. Both States and the private sector are doing what they can to fight back over this overreach.

West Virginia is 1 of 27 States that has filed lawsuits to block this rule. Additionally, 24 national trade associations, 37 rural electric cooperatives, 10 major companies, and 3 labor unions representing over 800,000 employees are challenging the EPA's final Clean Power Plan.

In less than 2 weeks, international climate negotiations will begin. The world is watching to see whether the United States will foolishly move forward with costly regulations that will do virtually nothing to protect our environment.

Under the Congressional Review Act, the Senate now has the chance to take a real up-or-down vote on whether the EPA's Clean Power Plan can and should move forward. This is a legal binding resolution that if successful will prevent the Clean Power Plan or a similar rule from taking effect.

Passing this resolution will send a clear message to the world that a majority of the Congress does not stand behind the President's efforts to address climate change with economically catastrophic regulations. Passing this resolution will also demonstrate to the American people that the Senate understands the need for affordable and reliable energy. Congress should pass this resolution and place this critical issue squarely on the President's desk. America's economic future is at stake, and it is time to send a clear signal that enough is enough.

I am very privileged to be offering this resolution with Senator HEITKAMP from North Dakota. She has been a champion on this issue. She has a different energy mix in her State and different energy concerns, but I think it goes to the heart of North Dakotans and West Virginians about the economic impact of such a very far-reaching and untried regulation in an area that is so far-reaching. I thank the Senator for her steadfast support. It has been my pleasure to be working with Senator HEITKAMP.

The PRESIDING OFFICER. The Senator from North Dakota.

Ms. HEITKAMP. Mr. President, I want to express my great thanks to my colleague from West Virginia, Senator CAPITO, who has been absolutely a champion on this issue, but also a champion on looking at new technologies and a champion to actually see what we can do moving forward with the great innovation that is the history of this country and the history of coal country.

If you look over the life of the Clean Air Act, you will see literally billions of dollars of investment in cleaner energy, billions of dollars of investment in pollution control, billions of dollars of commitment to the environment by the industries we represent, whether it is a utility industry that has an interesting resource mix that includes coal or whether it is those facilities that utilize the energy looking at energy efficiency.

The numbers that Senator CAPITO gave you in terms of America's achievement on reduction of CO_2 happened without any involvement or any interference by the Environmental Protection Agency.

North Dakota's situation is unique as it relates to the Clean Power Plan rules, and that is why North Dakota filed its own separate piece of litigation because we have a different story to tell, I believe, a story that involves lignite, which isn't the coal that is mined in West Virginia, but it certainly, for those of us in the center of the country, has become an important fuel source for a generation of electricity for generations.

When you look at it and you think about where we are with fuel sources, you remember that there was a period of time when utility companies in this country were told you cannot use natural gas to generate electricity and, as a result, billions of dollars of investment were deployed to find a way to have a redundant, reliable, and affordable source of energy, and that redundant, reliable, and affordable source of energy was coal. Now things have transitioned. North Dakota is truly all of the above as it relates to our energy resources in this country and providing the electricity and the reliability of our electricity in the region.

When we look at where we are right now, we have created an incredible level of uncertainty for utility companies in this country. What do I mean by that? If you are sitting as a member of the board of directors in a utility company right now and know you are going to have baseload growth moving forward, how do you build out your resources to meet the demand, which is required by our regulatory environment? Now you are told: Look, by this year, those of you in North Dakota have to reduce your CO_2 output by 45 percent. Guess what. The original rule, as drafted, had an 11-percent reduction, and now we are up to 44 percent. In what world is that an appropriate leap as we move forward in terms of looking at compliance with this new regulation? The EPA is not authorized to issue rules that are impossible. The baseline and fundamental principle of both the Clean Air Act and the Clean Water Act is about using the best available technology—what is actually there and commercially available in that space. I have sat down with people who run utility companies in my State, and they have told me it is virtually impossible. Not only do we have a rule that is impossible, but we have an issue that I think the good Senator from West Virginia talked about that is even more serious. We have one agency of the Federal Government not empowered by any law in this country basically controlling our energy deployment, our electrical deployment. We have ignored FERC, and we have ignored all the other agencies that are responsible for the transmission of electricity.

If you look at the history of this country and compare our history with many of our competitors across the world, the one thing we do better than our competitors is our reliable electricity. No matter what time of the day it is, you can reach over and turn on a light switch in the United States of America and the lights come on.

If you are building a new manufacturing facility and need new energy,

that energy is made available to you. Having electricity deployed at the end of the mile in my State, which can be as remote as another 20, 30 miles away from anyone else is a miracle. That is really a miracle of the commitment we have made to make sure we have power in America. This rule jeopardizes that commitment. This rule is wrongheaded and it is a dramatic change from the draft rule, especially as it relates to the State of North Dakota. This rule represents an attitude that says: We don't care what the law says. We don't care that you have rejected cap and trade. We don't care that you have rejected a carbon tax. We are going to unilaterally adopt those public policies as public policies in America. I don't think any of that should happen. I think it is time that we push back at all levels.

As I said many times on the floor, whether it is the waters of the United States or the Clean Power Plan rule, the challenge we have is trying to do what this Congress is responsible for doing, which is to legislate. It is not to have a fight about whether we like the EPA or not. It is not to have a fight about whether this rule is right or not. It is about the appropriate public policy. When we simply leave it to the regulatory agencies, we end up with litigation and uncertainty for those people sitting in the boardroom who have a critical responsibility for delivering power in the United States of America.

I gladly join my colleague from West Virginia as we pursue this matter. I think we all know that this legislation will likely pass. We also know what the likely outcome will be once it reaches the President's desk. We need to continue to have these conversations. We need to continue to talk about what the consequences are, not just for the coal miners in West Virginia and North Dakota but for the redundant, reliable, and affordable delivery of electricity in our country.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from California.

Mrs. BOXER. Mr. President, I listened to every word as my friend spoke, and I respect the words from my colleague from West Virginia very much, but I just want to be clear. I could not disagree with them more. Why would the majority leader and my friends push for the overturning of a Clean Power Plan rule that will, in fact, save lives—that is a fact because when the air gets cleaner, you save lives—and will also protect our planet from the ravages of climate change? I don't know why they would take that stand. I really don't. When we are sworn in here, above all we are supposed to protect the health and safety of the people of our Nation, not protect one utility over the other. That is the private sector. We are here to protect lives and to protect the planet. I am going to go into depth as to why I feel this is very wrongheaded.

I particularly have great respect for our majority leader. Senator MCCONNELL has the power to bring anything before the body that he chooses. That is his right, and he has done that. But I must question this—given what happened in Paris and the need to keep America safe: Why are we going after the Clean Air Act today? It doesn't make sense. We should be moving to the omnibus budget agreement. We should be looking at every part of that budget to make America safe.

For example, in the EPA budget, we could look at ways to improve chemical safety and how to protect our reservoirs. We could look at the Department of Homeland Security and how we can step up security at our ports, airports, border checkpoints, and railroads. We could look at funding biometrics, which could help us fight against homeland terrorism.

In the State Department, we could look at ways to enhance security at our embassies and consulates. There is a lot of talk about Benghazi, Benghazi, Benghazi, but the Republican budget cut embassy security. How about looking at that? Why don't we look at the Office of Personnel Management and look at ways we could boost our cyber defenses after one of the largest data breaches in our government's history. The Department of Justice needs to make sure the FBI and local law enforcement have the resources they need to keep our families safe.

I compliment everyone who came to the table and got a universal agreement on the budget for the next 2 years. Why are we looking at repealing a Clean Power Plan rule instead of taking up that budget agreement and looking—in a bipartisan way—at every single agency that we fund to make sure they are doing everything to keep America safe?

I was talking to one of my colleagues from New York, and he pointed out that the terrorists have been after us since 9/11. So we know we have been doing something right. Let's look at what we are doing right and see if there is anything we are not doing right. Let's beef it up and make sure that our refugee policy is the right policy. We have a lot of work to do, but, no, here we go again.

Just 2 weeks ago Senate Republicans led an attack on one of our Nation's landmark environmental laws, the Clean Water Act, and we defeated them. Now they are back again, and this time they are against clean air. They are attacking the Clean Air Act and the President's commonsense proposals to address dangerous climate change. Of course, most of them don't even believe climate change is happening. They say: Well, we are not scientists. That is right; you are not. So why not listen to the 98 percent of scientists who know this is happening?

The Senate is considering at least one Congressional Review Act resolution, and the one we are talking about now has to do with existing powerplants. Senator CAPITO has introduced that legislation that would block the Clean Power Plan for existing powerplants from going into effect. This is dangerous. It is dangerous because we would be throwing out the first rules to reduce carbon pollution for powerplants that emit 31 percent of our Nation's total carbon emissions. If we are ever going to attack the problem of too much carbon pollution, we have to go to use our powerplant side, and I commend the President for his courage and for doing the right thing.

I have heard colleagues say that the process wasn't good. What more do you want? The process used to develop these rules was extremely open and inclusive. The EPA met with State officials and a broad range of stakeholders. They held 600 meetings for the Clean Power Plan alone. How many more meetings do they want—1,000? The EPA received more than 6 million comments from the public on both the existing powerplant rule and the new powerplant rule.

Senator MCCONNELL's resolution to block the standards for new powerplants and Senator CAPITO's resolution, which we are talking about now, to block the Clean Power Plan would not only toss out these extensive outreach efforts, but the hubris of this is that this resolution would prohibit the Environmental Protection Agency from ever undertaking similar rulemakings, leaving no plan in place to address carbon pollution from this source. Let me repeat that. Not only does this resolution toss out this rule that would clean our skies, but they say that we can never do it again. This is an attack on the American people.

I remind my colleagues that the EPA is setting these carbon pollution standards not because they decided one day to go after the coal companies. They did not. They are doing it because under the Clean Air Act, they have to do it. It is an authority they have that has been confirmed by the Supreme Court. I don't know if my colleagues want to hear this, but I am sorry, because I will repeat it: In the Massachusetts v. EPA case, the Supreme Court found very clearly that carbon pollution is covered under the Clean Air Act. George W. Bush fought it for 8 years. He fought it for 8 years, but the Supreme Court wrote the following in their decision: ''Because greenhouse gases fit well within the Clean Air Act's capacious definition of 'air pollutant,' we hold that EPA has the statutory authority to regulate the emissions of such gasses.''

All that talk about how the EPA is overreaching and that carbon isn't dangerous and you don't have to fix it is so much baloney. The Court found it straightforwardly in Massachusetts v. EPA in 2007. Following that decision, the Obama administration issued an endangerment finding showing that current and future concentrations of carbon pollution are harmful to public health and welfare.

Once that decision is made, we have to act. We can't make believe this planet isn't endangered. We can't make believe pollution from powerplants does not cause problems for our people. We have to act. The administration is well within its rights. If they did not act, they would be sued, and they would lose because they have to protect the people from too much carbon pollution. It is required under the Clean Air Act and was sustained by the Supreme Court in 2007. Not only do the Republicans oppose standards for old plants, but they even oppose standards for newly constructed plants. Both of these resolutions—both of them—are harmful to public health and the environment, and many groups oppose them.

So I am going to show my colleagues some of the groups that oppose this Republican resolution, and America can decide whom it wants to stand with. The Republicans want to overturn the Clean Air Act rule, or these people.

How about public health groups—the Allergy and Asthma Network, the American Lung Association, the Public Health Association, the Thoracic Society, the Asthma and Allergy Foundation of America, Children's Environmental Health Network, Health Care Without Harm, Trust for America's Health. That is as American as apple pie. These are the people who stand up and protect our health and the health of our families. Whom do we want to stand with—the Republicans, who are pushing this on us on a day when we should be making America safe from the terrorists, or these groups?

Business groups: the American Sustainable Business Council, Business for Innovative Climate and Energy Policy, and Environmental Entrepreneurs.

Consumer groups: Center for Accessible Technology, Citizens Action Coalition, Greenlining Institute, National Consumer Law Center, Ohio Partners for Affordable Energy, Public Citizen, TURN, the Utility Reform Network, Virginia Citizens Consumer Council, the Washington State Community Action Partnership, and A World Institute for a Sustainable Humanity.

Latino groups—why do they care? Because a lot of times they live in communities that suffer from filthy air. The abc Foundation Green Forum, Citizens Energy, the City Project, Common Ground for Conservation/America. There are more Latino groups. It goes on an on: Emerald Cities Collaborative, GreenLatinos, Ideas For Us, Latino Coalition for a Healthy California, National Hispanic Medical Association, National Latino Evangelical Coalition, solar Four.

I will just mention a few environmental groups: Alliance of Nurses for Healthy Environments.

Could I just say, if we were to ask people ''Whom do you trust more—the Senate or the nurses?'' dare I say the results? I would guess it would be 99 percent in favor of nurses as opposed to us. And why don't we listen to them? They don't want to see these rules overturned.

Appalachian Voices, Arkansas Public Policy Panel, Center for Biological Diversity, Clean Air Task Force, Clean Water Action, Climate Parents, Conservation Voters for Idaho, Conservation Voters for South Carolina, Defenders of Wildlife, Earth Justice, Elders Climate Action, Environment America and 24 State affiliates, and Environmental Advocates of New York. It goes on.

These groups whose names I am reading oppose this action by my Republican friends because they want clean air, they want to protect their families, and they want to fight climate change.

Environmental Justice Leadership Forum, Environmental Law Policy Center, Health Care Without Harm, Interfaith Power & Light and 28 State affiliates, League of Conservation Voters and 7 State affiliates, Maine Conservation Voters, Montana Environmental Information Center, Natural Resources Defense Council, New Virginia Majority, PDA Tucson, PennEnvironment, Physicians for Social Responsibility, Protect Our Winters, Rachel Carson Council, Sierra Club, Southern Environmental Law Center, Southern Oregon Climate Action Now, Union of Concerned Scientists, Virginia Organizing, Voices for Progress, Western Organization of Resource Councils, Wisconsin Environment, World Wildlife Fund.

Mr. President, I ask unanimous consent that a list of groups that oppose this rule change be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

GROUPS THAT OPPOSE S.J. RES. 23 AND 24

PUBLIC HEALTH GROUPS

Allergy and Asthma Network, American Lung Association, American Public Health Association, American Thoracic Society, Asthma and Allergy Foundation of America, Children's Environmental Health Network, Health Care Without Harm, Trust for America's Health.

BUSINESS GROUPS

American Sustainable Business Council, Business for Innovative Climate & Energy Policy (BICEP), Environmental Entrepreneurs.

CONSUMER GROUPS

Center for Accessible Technology, Citizens Action Coalition, Citizens Coalition, Greenlining Institute, Low-Income Energy Affordability Network, National Consumer Law Center, NW Energy Coalition, Nuclear Information and Resource Service, Ohio Partners for Affordable Energy, Public Citizen, Public Utility Law Project of New York, TURN—The Utility Reform Network, Virginia Citizens Consumer Council, WA State Community Action Partnership, A World Institute for a Sustainable Humanity (A W.I.S.H).

LATINO COMMUNITY GROUPS

The *Abc Foundation Green Forum, Citizen Energy, The City Project, Common Ground for Conservation/America Verde, Dewey Square Group/Latinovations, EcoRico Entertainment, LLC, Emerald Cities, GreenLatinos, Hispanic Association of Colleges and Universities, IDEAS for Us, Latino Coalition for a Healthy California, League of United Latin American Citizens, MANA—A Latina Organization, Mi Familia Vota, National Hispanic Medical Association, National Latino Evangelical Coalition, PolicyLink Center for Infrastructure Equity, Sachamama, SolarFour, Voces Verdes.

ENVIRONMENTAL GROUPS

350.org, ActionAid USA, Alliance of Nurses for Healthy Environments, Appalachian Voices, Arkansas Public Policy Panel, Center for Biological Diversity, Clean Air Task Force, Clean Water Action, Climate Action Alliance of the Valley, Climate Law & Policy Project, Climate Parents, Conservation Voters for Idaho, Conservation Voters of South Carolina, Defenders of Wildlife, Earthjustice, Elders Climate Action, Environment America and 24 state affiliates, Environmental Advocates of New York, Environmental Investigation Agency, Environmental Justice Leadership Forum on Climate Change, Environmental Law and Policy Center, Environmental and Energy Study Institute, Environmental Defense Action Fund, Health Care Without Harm, Interfaith Power & Light and 28 state affiliates, International Forum on Globalization.

KyotoUSA, League of Conservation Voters and 7 state affiliates, League of Women Voters, Maine Conservation Voters, Montana Environmental Information Center, Natural Resources Defense Council, New Virginia Majority, PDA, Tucson, PennEnvironment, Physicians for Social Responsibility and 4 state affiliates, Polar Bears International, Protect Our Winters, Rachel Carson Council, Sierra Club, Southern Environmental Law Center, Southern Oregon Climate Action Now, The Climate Reality Project, Union of Concerned Scientists, Virginia Organizing, Voices for Progress, WE ACT for Environmental Justice, Western Organization of Resource Councils, Wisconsin Environment, World Wildlife Fund.

Mrs. BOXER. So we can see clearly—and I think the letter from the American Sustainable Business Council makes a very important statement:

History shows that smart clean energy policies are good for our environment, our economy, and business. We urge you . . . to oppose both resolutions to disapprove the established safeguards.

Another letter from many of these leading public health organizations—quote:

Please make your priority the health of your constituents and vote No on these Congressional Review Act resolutions. . . .

I find it very hard to comprehend that a majority of this Senate, led by my Republican friends, would side with the special interests above the people who simply want to breathe clean air, who simply want to see us dedicated to the fight against climate change.

These groups understand the importance of taking action to reduce carbon pollution. When we reduce that dangerous pollution from powerplants, the Clean Power Plan will deliver important health benefits.

This is what I hope the American people will understand. This is science. By the year 2030, if we defeat this Republican effort, here is what will happen to our communities: We will prevent up to 3,600 premature deaths, we will prevent up to 1,700 heart attacks, we will prevent up to 90,000 asthma attacks in children, and we will prevent

300,000 missed workdays and schooldays.

Why on Earth does anyone want to vote to repeal a rule that will prevent 3,600 premature deaths, 1,700 heart attacks, 90,000 asthma attacks, and 300,000 missed workdays and schooldays? Why? The answer is special economic interests. That is the answer. It is a disgrace, a total and complete disgrace. We should be fighting for our families, not for the special interests. These are the cobenefits of reducing carbon. A lot of times we will hear my colleagues say: Carbon isn't dangerous. We breathe it out. It is not dangerous. The fact is, when we make these improvements to the powerplants to reduce carbon pollution, there are cobenefits. These are the cobenefits. They are, in fact, articulated.

The Clean Power Plan will cut emissions from existing plants 32 percent below 2012 levels by 2030.

The other thing is it is going to save $85 a year on utility bills. So everyone who says that this is terrible and that it is going to raise our energy bills doesn't know the facts.

The Clean Power Plan also includes help to low-income Americans through the Clean Energy Incentive Program, which prioritizes early investment in energy efficiency projects in low-income communities. So if we reduce our use of energy because we are conserving energy, we are using less energy, we are cleaning the environment, and our bills go down. That is what we call low-hanging fruit—conservation.

The American people support efforts to reduce dangerous carbon pollution. According to a League of Conservation Voters poll in August, 60 percent of voters support the Clean Power Plan, while just 31 percent oppose it.

So I have to ask my colleagues, my friends whom I constantly fight with on this, why do you side with the special interests against the people—the people who will benefit from longer lives, fewer sick days, fewer schooldays lost, and fewer asthma attacks? Why? And why do you turn against 60 percent of the voters who support the Clean Power Plan? The only answer I can come up with is they are not really thinking about the majority of the American people; they are thinking about the special interests who call here all the time and push us to do things to help them.

There was another report in January of 2015 by Stanford University. We have all heard of Stanford University. It is pretty well thought of. A lot of my colleagues went there and graduated from there. The Stanford University poll found that 83 percent of Americans, including 61 percent of Republicans, say that if nothing is done to reduce emissions, climate change will be a serious problem in the future. It also found that 74 percent of Americans say the Federal Government should take substantial steps to combat climate change.

Look, all of this furor against these rules doesn't go with the American people; it goes against where the American people are. As I said, 83 percent of Americans, including 61 percent of Republicans, say reduce these emissions. We have to stop climate change. We already see the ravages around us. We already see climate refugees. We already see extreme weather. It is destabilizing. It is dangerous.

According to the same poll, 74 percent of Americans say the Federal Government should be taking substantial steps to combat climate change. Yes, the President has listened and he has put forward these rules that are substantial steps because the emissions come from these powerplants—31 percent of the carbon emissions. So instead of just standing up here and demagoguing and saying this is horrible and frightening the American people, why not join hands with us and do this right?

My State is a leader in clean energy. We are creating jobs hand over fist. We are doing great in California because we care about climate and we care about jobs, and those things go hand in hand. When we install a solar rooftop, we can't outsource that job, we have to hire someone in our State. That is why we have so much strong support in our State, because we see the results of pushing forward aggressively for clean energy. People are happy about it. They are proud of it. They are doing well. Climate change is real.

We have to take reasonable steps to reduce carbon pollution, as with the Clean Power Plan. And all we see from our Republican friends, God bless them—I am very close with a lot of them—is attack after attack after attack on the environment, attacks against the Clean Water Act, attacks against the Clean Air Act, attacks against the Safe Drinking Water Act.

These resolutions that are coming before us ignore the long and successful history of the Clean Air Act. We heard the same arguments against the original Clean Air Act that we are hearing today. In the 40 years since the Clean Air Act was enacted, our GDP—our gross domestic product—has risen not 100 percent but 207 percent. If we go back to those debates—and I have gone back to them—we would hear the very same voices coming from the very same side of the aisle decrying the Clean Air Act: Oh, this is going to be a disaster. Well, it not only wasn't a disaster, it was a resounding success. And where we export our ideas to the world, clean energy is an area where we are exporting those ideas.

Supporting the Clean Air Act makes good fiscal sense. The benefits of this landmark law, the Clean Air Act, amount to more than 40 times the cost of regulation. Let me say that again. For every dollar we have spent complying with the Clean Air Act, we have gotten more than $40 of benefits in return.

As I mentioned, my State—I am so very proud of it—we are on a path to meet or exceed our goals of reducing climate pollution to 1990 levels by 2020, just 5 years from now. That is required in our State—AB 32. By the way, Big Oil and big polluters tried to overturn it on the ballot, and the people said: Go home. We are happy. We like this. We embrace it. And they turned back the millions of dollars spent by Big Dirty Oil, and we won. Clean air won.

We are on the path to achieving our ultimate goal of reducing emissions by 80 percent by 2050. Imagine. During the first year and a half of my State's carbon reduction program called cap and trade, we added 491,000 jobs. So all this fearmongering about jobs lost is so much fearmongering because, guess what, look at my State—491,000 jobs added. And that job creation actually outpaces the national growth rate of jobs. California has been a leader in reducing its carbon footprint, and the United States must take steps to address this threat.

I am just going to go back and read to my colleagues the main prediction of mainstream scientists made many years ago about what would happen if we weren't aggressive on climate.

One, temperature extremes, they said, would be more frequent. NOAA scientists predicted that 2015 would be the hottest year since recordkeeping began and it will displace 2014. So the first prediction by the scientists that temperature extremes would be more frequent has been proven true—2015 will be the highest year on record, and before that 2014 was the hottest year on record.

Secondly, they told us when I took over the chair of the EPW committee—which I regretted having to hand over the gavel to my friend Senator INHOFE, but I did hold it for about 6 years, if my memory is correct. A little over 6 years I had the gavel, but who is counting. The fact is, we called the scientists before the committee. They said temperature extremes would be more frequent. That has proven out. They said heat waves would be more frequent. That has proven out. They said areas affected by drought will increase, and Lord knows the West knows that has been proven. Wildfires would be bigger and more frequent, they said. We know in the West that is true. Tropical storms and hurricanes will be more intense. Just ask New Jersey and New York. There will be more heavy precipitation and flooding events. We have seen that with our own eyes. We have seen cars floating down the streets in Texas. Polar sea ice will shrink. That is a fact. Sea levels will rise. That is a fact. All of these predictions by climate experts have become a reality today.

So I ask my friends, Why are you willing to gamble? Why are you willing to take this gamble and walk away from trying to reduce the ravages of climate change? That is immoral in the face of what we know from the scientists and with what we know from reality in the States. We see all the predictions coming true. The fact is

that climate change endangers the health of our families and our planet. We cannot delay action to reduce carbon pollution.

I thank President Obama for his leadership on this critical issue. These rules are an essential element of the leadership on climate change. There is no doubt about it. At the end of this month President Obama and other leaders will gather to reach an agreement on how all of the nations will work to reduce carbon pollution that is causing climate change. Nearly 160 nations have reduced their plans.

I ask my Republican colleagues that if you don't like President Obama's plan, don't just repeal it, tell us how you would reduce harmful carbon pollution. Tell us how you are going to save all these lives. Tell us how. Explain to us how you are going to prevent 3,600 premature deaths, 1,700 heart attacks, 90,000 asthma attacks in kids, and 300,000 missed workdays and schooldays. Where is your plan? Don't just get up there and say it is going to cost more for electricity, because the fact is, we have a special part of this rule that addresses the costs and will actually save money for consumers because we will push the low-hanging fruit of energy efficiency.

These resolutions will take us backward, prevent us from acting to avert the worst impacts of climate. This Republican initiative is going to endanger the health of millions of our children and families from dangerous carbon pollution and will stop the cobenefits to them from going into effect.

I know we are going to have a robust debate. As I said at the start, I think we ought to be debating the omnibus budget agreement. I think we ought to be debating how to keep America safe from the terrorists instead of figuring out ways to repeal a law that if you are successful, will in fact mean adverse health consequences for our people. We should be debating how to keep America safe today. We are not debating that. I am very sorry about that, and I agree with my colleagues on both sides of the aisle who say they know the end result of this. Yes, there is a majority of people here who are going to vote to repeal these clean power rules. We know that. Yes, we know that will go to the President and, yes, we know the President will veto that and, yes, we know when that comes back we are going to sustain the President. We know the outcome.

Why not get to work on keeping America safe? Go to this omnibus budget resolution, look throughout the budget and see ways we can make sure our people are kept safe from terrorists and, for goodness' sake, while we are at it, keep them safe from pollution. That is something we have in our hands. What is before us today will not keep them safe from pollution, and I look forward to this being rejected at the end of the day.

I thank the Presiding Officer, and I yield the floor.

The PRESIDING OFFICER. The Senator from Indiana.

TERRORIST ATTACKS AGAINST FRANCE

Mr. COATS. Mr. President, I do agree we should be debating what is happening in the world, particularly on the issue of ISIS and its impact not only on America, not only on Europe but on the world, and that is what I intend to do.

We have all witnessed the horrific attacks in Paris and this unprecedented form of evil that we have seen disrupt the lives of free people. All Americans—Republicans, Democrats, Independents—all Americans stand in solidarity with Paris and the French people. This isn't just an attack on Paris. This is an attack on the free world, the civilized world.

Don't just take my word for this conclusion because ISIS has already made such a declaration; that is, we are coming after you. We are coming after all those who don't abide by our messianic message of our purpose in the world to destroy you because you don't agree with us.

Sadly, the tragedy we have seen in Paris reinforces that the battle against terrorism and extremism will not only be fought in the Middle East. The United States and Western nations are dealing with escalating security challenges that cannot be resolved through diplomacy and are not being resolved by the current strategy of this White House.

A headline today in the Wall Street Journal is: ''Pressure Grows for Global Response.'' We, the United States, need to show the world that threats to our principal freedoms are entirely unacceptable. Unfortunately, President Obama continues to fail to provide the American people with the leadership we so desperately need.

Consider his response yesterday to the tragic events in Paris versus the response of the French President. The French President, Francois Hollande, said: France is at war. We are in a war against jihadist terrorism, which is threatening the entire world.

I want to repeat that: France is at war. We are in a war against jihadist terrorism, which is threatening the whole world.

Virtually at the same time, President Obama, in a shockingly dismissive tone, doubled down on his so-called strategy to deal with this global threat. What has his strategy to date accomplished? Well, ISIS has expanded into more than half a dozen countries. They are not contained as the President said. Ask the people in Paris if ISIS is contained. Ask the people who have been subjected to attacks inspired by ISIS across the world: Is ISIS contained? I don't think so.

Time after time, the President has shown he simply doesn't get it. In 2012, he boasted Al-Qaeda was on the path to defeat. In 2014, he dismissed the Islamic State as the ''JV team,'' saying that ISIS ''is not a direct threat to us nor something that we have to wade into.'' Last Thursday he said, ''I don't think [the Islamic State] is gaining strength'' and saying ''we have contained them.''

What will it take for this President to wake up and see what is happening around the world as a result of the ever-expanding threat of ISIS terrorism? The President did say yesterday that if people have other ideas to bring them forward. So what I would like to do is offer a few suggestions for the President to consider. In fact, I actually brought forward suggestions over a year ago, but of course none of them have been accepted or acted upon by the President that I am aware of.

When I first addressed this subject in the summer of 2014, I outlined several areas in which urgent action was required. First, and more important, I called for the administration immediately to articulate a comprehensive plan to defeat ISIS. We have a problem out there. Put a plan together to address the problem and do it in a comprehensive way so we have a goal to achieve and a strategy to work out to achieve that goal. This comprehensive plan has been entirely absent from this Congress and from the American people. What we have seen instead are incremental responses—responses that contradict what the President had earlier said—to events that have taken place behind the curve, not ahead of the curve, too little and too late. I called for efforts to reach out to nations across the globe to work together to defeat ISIS, including working with Islamic states and communities to oppose this outrageous ISIS perversion of the Islamic faith.

I want to say that, again, for those who simply say this is a decision that affects America only, all we are calling for are our boots on the ground, that is entirely wrong. The President should know it, and I think he does know it. I, among many, have called for efforts to reach out to nations across the globe to work together to defeat ISIS, including working with Islamic states and communities to oppose the outrageous ISIS perversion of the Islamic faith.

I called for a diplomatic effort to persuade Saudi Arabia, Turkey, Qatar, and other regions to join with us to resist more forcefully ISIS aggression. Last year I called for much greater security assistance for our potential partners in the fight against ISIS. The United States should move quickly to provide more arms, training, and other requested assistance to Iraqi Kurdistan's Peshmerga forces—proven fighters who are willing to stand up and confront ISIS. They needed our support. They needed weapons from us. They needed training and guidance from us, but they were ready to engage in the fight. I said we also needed to find effective ways to support and directly arm the reliable, vetted Sunni tribes and Sunni leaders in Iraq who are essential partners in combatting ISIS extremism that ultimately are Sunni Islam's greatest threat.

It is true, the question of where have they been, where are they. We need more than just sending a check to cover payment for somebody else to fight a proxy war. We need their engagement. They are in the crosshairs of ISIS. Why haven't they stepped up? Where is the flocking to the center square of town saying enough is enough? Where are the imams saying that this is a perversion of our religion? Where are the people in the crosshairs of ISIS simply rising up together and saying we need to address this?

As I said, we also need to find effective ways to support the Sunni tribes and Sunni leaders. Those efforts have been slow, indirect, and insufficient. I called for us to provide lethal assistance to the Free Syrian Army. The administration's effort in this regard was an absurd $500 million, multiyear effort to train and arm 40 fighters, most of whom were promptly killed or captured. Yes, I called for increased specialized military action by our own Armed Forces. I, with many others, am willing to stand here and say enough. I have called for increased specialized military action by our own Armed Forces—intelligence, surveillance, reconnaissance, and special forces—not a massive invasion. This has to be a global effort, as I just talked about. It has to include Sunni nations. It has to include Muslims who believe their faith and their culture is being brutally perverted by ISIS.

It is clear ISIS cannot be defeated without U.S. participation. Nations of the world look to the United States to either have their backs or to work with them to stand side by side. We have capabilities and capacity that other nations don't have. Coalitions cannot be formed without our engagement. Our bombing campaign—this strategy of bombing against ISIS targets—has been far from adequate. There have been an average of just a handful a day, many of which have planes turning around and landing back at the airfield with bombs still attached to their wings because they simply haven't had the kind of targeting and directing to ensure that the rules of combat are confirmed.

Contrast this anemic bombing campaign with the bombing campaign before the first Gulf War, which was several thousand sorties a day. In Bosnia it was several hundred a day. Clearly, our anemic air strategy is not defeating ISIS. Frankly, military history shows that air action only cannot achieve the goal of defeating an enemy.

Lastly, I called on the Obama administration and Congress to reassess our border security and do whatever is necessary to make us stronger. One element of that effort is legislation I introduced earlier this year, a bill that would enact changes to the Visa Waiver Program and provide additional tools to enhance border security—changes that, in my opinion, are absolutely necessary to fill and plug a gaping hole in our border security.

Let me talk about that for a moment. The current Visa Waiver Program allows citizens from several dozen nations to travel to the United States without a visa. They are citizens of these nations. In order to expedite the travel process, we entered into the Visa Waiver Program. That works fine if you don't have a situation like the one that exists today, with ISIS and other forces—Al-Qaeda and others—trying to bring people into the United States, to plant people here to carry out evil acts against American people.

My bill would amend the Visa Waiver Program by tightening existing pretravel clearance procedures and making them more focused on counterterrorism efforts. We have to now recognize the reality that exists here in terms of abuse of the Visa Waiver Program or the possibility of abuse and inserting terrorists into the United States.

The bill would ensure stricter compliance with information sharing agreements by those countries that participate in the Visa Waiver Program and suspend their participation if they do not come into compliance at a 100-percent level. We can't afford any glitches. We cannot afford 99 percent. We have to go all the way.

The bill would also authorize the Secretary of State to revoke any passport issued to a U.S. citizen who is suspected of engaging in terrorist activities and would update the definition of ''treason'' to include support of terrorist organizations.

When introducing this, I remember the response: Oh, that is too tough. Nothing is too tough these days to keep Americans safe. We need to implement these provisions that I introduced many months ago, because I believe it is a solution that addresses the real and growing threat of terrorist attacks carried out by individuals with Western passports.

Unfortunately, these things I have mentioned and have introduced earlier have not been adopted in any meaningful way. Now, a year and a half later, we are in a much more difficult position, with ISIS stronger and expanded to new areas and new countries. The threat to us all is comprehensive, multifaceted, and nearly global. It demands a global, comprehensive response.

So I would urge the President to seriously consider these and other proposals, and I would like to mention one other proposal this morning. In addition to what I have previously stated, I believe it is now time to consider whether NATO should take on a vital new mission. NATO responded in Bosnia in 1994 and brought about peace. It can do so again.

When I served as ambassador to Germany for 4 years, I had direct contact with NATO and NATO nations, and I know the accumulation of resources, of training, of capability that is available through NATO, and it is a multi-nation, comprehensive coalition. It can play a vital role in dealing with this terrorist threat.

We need a comprehensive, realistic, articulate plan if we are going to destroy ISIS, and NATO action should be part of that plan, whether or not France invokes the article 5 collective defense provision of the NATO treaty—which I think they should do, and perhaps they will do—which requires all NATO nations to come to the support of and do what is necessary to address a threat to one of the nations. If one of the NATO nations is threatened, we all stand together to deal with it.

Former NATO Commander ADM James Stavridis issued his own six-step plan for NATO engagement and leadership to destroy ISIS, and we should look at that and take it seriously. He suggests NATO should assign one of the major alliance commands to lead the operational planning for forceful military efforts against ISIS in both Syria and Iraq and bring all the alliance resources to bear. In addition, he suggests our NATO allies should be joined in this effort by other nonmember European states, such as Sweden and Finland, which are similarly threatened by ISIS terrorism. Most importantly, he said NATO must work creatively to bring in the regional powers, such as the Kurdish Peshmerga, Saudi Arabia, and other Arab states in a broad coordinated effort against ISIS under NATO leadership.

This is the mechanism and this is an organization that is trained, has the equipment, has the capability, and can form the coalition necessary with our Arab friends and neighborhoods—the Saudis, the Sunnis and others—that need to be a part of this if we are going to be successful.

NATO's efforts against ISIS, Admiral Stavridis says, should also include assistance to Turkey—after all, Turkey is a NATO member—to better secure their borders against the flow of jihadists in and out of Syria. This is NATO at its best and is something I think should be seriously considered by this White House as a way of moving forward to develop a coalition to address the great threat we are facing.

Let me now say one other thing, because Admiral Stavridis also suggests the possibility of forming some type of a coalition with Russia. We are seeing a strong Russian response today—last evening—once it was determined and proven the Russian airliner was brought down by a bomb and by ISIS. ISIS has taken credit for it, and ISIS will receive the wrath of the Russian military as a result, in direct contrast to what we have done for attempts on our own people.

I am not a big fan of Putin. I am not a big fan of the current Russia government. I spoke out strongly about Russia's invasion of the Ukraine and the annexation of Crimea, and have strongly advocated for Russia's diplomatic isolation. In fact, I so strongly advocated for it that Russia put me on a

list of seven people who are banned from entering Russia for life. Well, I have been to Russia, and I don't need to go back. So it is no big deal. Apparently it was a big deal to them. But now we are facing an emergency situation.

Russian forces are deployed in Syria. Russian efforts need to be coordinated with NATO efforts, if we go the NATO route. We are already coordinating in terms of some of our flights. As we learned in 1941, national emergencies can create strange bedfellows.

Whatever option is considered, the irreducible minimum is real: determined U.S. leadership. This tragic civil war and escalating terrorist threat have continued and grown much too long without an effective American response. Oh, yes, we have had a response—mostly rhetorical—but clearly a strategy that has not succeeded, and clearly something that is not deterring ISIS from growing stronger and spreading further. It simply has not been effective. So whether it is through NATO, whether it is through a coalition of the willing, vigorous American leadership is absolutely essential for the future of all of us.

In conclusion, let me say this. In 2014, the leader of ISIS, Abu Bakr al-Baghdadi, said:

> Our last message is to the Americans: Soon we will be in direct confrontation, and the sons of Islam have prepared for such a day. So watch, for we are with you, watching.

This is the enemy we are dealing with. This is not some vague threat; this is a direct threat. We have seen how they carry out their direct threats, and we stand in the crosshairs. And, yes, it is very possible and probably very true that they are with us here now, watching, waiting, planning, contriving for another Paris, for another Baghdad, for another attack—hopefully none, but something that could be possibly much greater than what we saw in Paris. They have created their homeland in Syria, but they have told us what we don't want to hear, but which is probably true, that they are here and they are watching and they are waiting.

So the question is, does President Obama grasp what we are up against? Last year he laid out the goal of defeating ISIS, but President Obama still has not put forward the comprehensive strategy to accomplish that goal, and yesterday he doubled down on the same policies that have led to our current foreign policy failures. The effort to defeat ISIS will be successful only with leadership from the President of the United States. Let me say that again. The effort to defeat ISIS will be successful only with the leadership from the President of the United States.

So, President Obama, as Republicans, as Democrats, as Independents, as Americans, we desperately need for you to provide that leadership at this critical time. President Obama, are you up to the job or do we have to wait another year to put a leader in the White House?

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, it is a pleasure and privilege to follow the distinguished Senator from Indiana. His concerns for national security are well established, and I enjoy working with him, particularly in the area of cyber security. But I would note, in the wake of his eloquent remarks about our national security situation, that we are not here on the floor to discuss national security. We are here on the floor right now because the Republican leadership is taking a run at the President's Clean Power Plan.

Paris has not recovered from the devastation of the other day, and we have important bills that the chairman of the Committee on Appropriations has worked very hard on to get ready and that would improve the capacity of our Department of Justice, our FBI, and our Department of Homeland Security to address this threat. Are we on those bills? No. The majority leader has decided we are going to take a run at a climate regulation.

Now, with ISIS and terrorism being the issue of the day, one might think: OK, I can understand why we are going to climate change. We have known for years that our intelligence community, our defense leaders, and the men and women in uniform we count on to protect us have said climate change breeds terrorism. It creates the conditions—the Quadrennial Defense Review and the intelligence reports have said—that spawn the kind of despair that leads to terrorism. It is a catalyst of conflict.

So one might say: OK, sure, it makes sense we should address climate change because it is a catalyst for conflict. And we would find voices—I think the distinguished Senator from Indiana mentioned Admiral Stavridis. We love Admiral Stavridis in Rhode Island because he has been associated with the Naval War College. He has said that the cascading interests and broad implications stemming from the effects of climate change should cause today's global leaders to take stock, and he has said many other eloquent things on climate change too. But we are not here to do something about climate change and help reduce it as a catalyst of conflict. What the majority leader has brought us here to do is to undo American leadership in this area.

One might say: OK, they have a better plan. The Republicans have a plan they think is better than the Clean Power Plan, and therefore they want to foul up the Clean Power Plan so they can put a clean power plan of their own in place. There is no such thing. There is no Republican strategy to deal with climate change. In fact, a majority of my colleagues on that side can't even admit that it is real.

So that is where we are. We are on a measure that clearly won't pass under the Congressional Review Act, clearly will go to the President and be vetoed and be sustained on the veto. So this will never become law. It is just a big exercise in time-wasting.

While the smoke is still clearing over Paris, we are still engaged in this big exercise in time-wasting. Why? To send a signal. To send a signal to the big coal interests, the big oil interests, the Koch brothers, and the tea partiers that ''We are with you.'' The American public isn't with you. Even Republicans aren't with you. If we look at recent polling, other than the tea party—and by the way, 70 percent in the tea party thinks global warming isn't happening—isn't happening. I don't know whom they are talking to. They are not talking to fishermen in my State. They are not talking to foresters out West. They are not talking to farmers in the Midwest. It is happening. We might go further as to discussing what to do about it, but the tea party is so irresponsible that they think, in a strong majority, it is not even happening. But they are not the ones we should be listening to because 83 percent of Americans—including 60 percent of Republicans—and by the way, with the November elections coming up, 86 percent of Independents say that if nothing is done to reduce emissions, global warming will be a very or somewhat serious problem in the future. So we are now going against what 83 percent of Americans, including 61 percent of Republicans and 86 percent of Independents, would direct us to do, in order to keep the faith with the big coal and oil and Koch brothers industries that fund so much of this operation here.

So 56 percent of Republicans—and 54 percent of conservative Republicans—say that the climate is changing and that mankind is contributing a lot or probably a little to the change. A majority of Republicans now believe there is solid evidence of global warming—again, 56 percent. When we look at young Republicans, this is where it gets very interesting. Young Republicans—under the age of 35—think climate denial by politicians in Congress is ''ignorant, out of touch or crazy.'' That is where young Republicans are on this.

Yet the majority leader has brought us here to interrupt any conversation we might be having over national security, slowing down any progress on the domestic security appropriations bills that might go forward, against the interests of young Republicans and everybody else virtually across the country, all to help out Big Coal, Big Oil, the Koch brothers, and to cater to this small, little tea party contingent, 70 percent of whom don't even believe climate change is happening. There is a point where you can't take views seriously. Frankly, if this group by 70 percent thinks it is not even happening, there is a point where we have to say: Run along, fellows; we want to play with the grownups here who understand what is going on.

So here we are on this bill. I will say that I like to do a little research when

there is somebody speaking on the Senate floor. I thought the Senator from Indiana was going to talk about climate change, so I did home State Indiana, university, and climate change, to see what comes up. What came up was an article published by the University of Indiana that says ''Indiana University experts comment on climate change report.'' That is the headline. The No. 1 lead under it is ''Changing climate will affect Midwest crops, forests, public health.'' That is the lead, Indiana University. The second lead is ''Report signals need to move away from fossil fuels.'' So they get it at the University of Indiana.

Here is the quote: ''Climate change, once thought to be a problem for future generations, 'has moved firmly into the present. . . . '''' That was an article from May 6, 2014, more than a year ago, and still we are on the floor fighting about vain and doomed-to-failure efforts to attack the only climate change plan that is out there.

I invite my Republican colleagues: If you have a better plan than the climate plan the President has put forward, let's hear it. But I am here to say they have nothing—nothing—zero. So bring up that subject if you want. Highlight for the American people that this is a party in tow to coal and oil and Koch brothers' interests. Highlight for the American people that you are running in direct opposition to what the American people believe, to what even young Republicans believe. I don't get it, but have fun with it.

The last thing I will mention is this. I am from the Ocean State. I am about to be followed by my distinguished colleague and friend from Wyoming. Rhode Island has a little bit of a different situation. We are on the ocean. This denial business really doesn't work for us. We can go down to Narragansett Bay and measure that the bay is 3 to 4 degrees warmer, mean water temperature, than it was 30 years ago. That is not just a statistic; that signals the end of the winter flounder fishery in Rhode Island. We used to catch winter flounder. It was a robust crop. It is gone, more than 90 percent wiped out, largely because that warming has changed the ecosystem in which the winter flounders grew. So it is gone. We paid a price for that.

We can go to Naval Station Newport and look at the tide gauge. It is up 10 inches since the hurricane of 1938 came through. Google ''Hurricane of 1938, Rhode Island.'' Take a look at the images. We got smashed by that hurricane, and now there are 10 inches more water that can stack up with storm surge into an even bigger cocked fist against my State. That is directly related to the warming oceans—unless somebody wants to repeal the law of thermal expansion around here. But I don't think we get to do that in the Senate. That is one of God's laws. That is one of the laws of nature.

So our seas are warming, and our seas are rising. We have virtually lost our winter flounder fishery. We are losing our lobster fishery. We are getting clobbered, and we can't deny this stuff. The effect carbon has on the oceans can be replicated in a high school science lab. Ramp up the carbon dioxide in saltwater and seawater and it turns acidic. The ocean is turning acidic at the fastest rate ever since humankind has been on this planet.

Go to the western coast and look at a little tiny sea snail called the pteropod, the sea butterfly. God's evolution has metamorphosed this little snail to having a foot that is actually a wing that swims it through the ocean. It is one of the core species. If we had good ocean sense here, everybody would know what a pteropod was. It is all over the place. It is a huge food source. It is the bottom floor of the food pyramid.

In the study just done, more than 50 percent of the pteropods in the Pacific from California north had severe shell damage—more than half of the species had severe shell damage from acidification of those seas. People in Oregon and Washington have had their oyster farms wiped out as the acidified water came in and ate away the shells of these little creatures. You do not survive long in an environment in which you are soluble, and that is the predicament we are creating for these of God's species.

Pope Francis said something very simple: We don't have that right. We don't have that right. Those pteropods aren't this generation's species. They are God's species. They are the Earth's species. It is not for us to tell our grandchildren and our great-grandchildren: We don't care. Go ahead, die right out. We are going to protect our big industry friends. That is just wrong.

We should not be on this bill. This is a time-waster. This is a disgrace. This has no business being here. The American people know better, and that may be the reason we are trying to get off it as quickly as we can. But I am here to say it is not enough to get off trying to knock down our one plan for dealing with climate change; we ought to be thinking about how we enhance wind and solar in Texas, wind and solar in Wyoming, protect the great forests of this country, protect the great shores of this country, and protect the species offshore. We are changing their world on them by making the oceans more acidic than they have been in the lifetime of our species.

I know the Senator from Wyoming is here to rebut everything I have said, but he has that right.

I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

ORDER OF PROCEDURE

Mr. BARRASSO. Mr. President, I ask unanimous consent that I be recognized for 10 minutes, followed by Senator SHAHEEN for 10 minutes, Senator CORNYN for 10 minutes, Senator NELSON for 10 minutes, and finally Senator MANCHIN for 10 minutes; that following Senator MANCHIN's remarks, the Senate recess until 2:15 p.m. for the weekly conference meetings, and that the time in recess count against the majority time on the CRA.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. BARRASSO. Mr. President, it is fascinating to listen to my colleague and friend from Rhode Island because I have the National Journal Daily printed today. It has back-to-back pages talking about the terror, the horror in Paris. Obviously the thoughts and heartfelt condolences of the people of this country continue to go out to our friends in France, who have stood by us, and we will stand by them.

One page talks about how President Obama has continued to underestimate ISIS. This is in today's paper, quoting President Obama, saying: ''The analogy we use around here sometimes, and I think is accurate, is if a JV team puts on Lakers uniforms, that doesn't make them Kobe Bryant.''

The President has continued to underestimate ISIS.

The other side of the page: ''ISIS vs. Climate Change.'' It talks about the Democratic debate Saturday night—national television—after the tragic events in Paris the night before. The moderator asked one of the leading Democrats running for President—running second in the polls now—if that candidate had a chance to back off on his claims that climate change is the greatest security threat facing the country. That candidate said: ''In fact, climate change is directly related to the growth of terrorism.'' That is the position I just heard from the Senator from Rhode Island. It is a position we hear from a leading candidate for President on the Democratic side of the aisle. I would wonder how many Americans believe that who—if they heard that statement, believe that is true.

That is why I come to the floor today to talk about President Obama's plans—his plans to tear down the American energy reliability, American energy stability, things that are important for our national security, because he wants to remake energy into a form he prefers. The President has a strategy to do it. He has made it clear. He said that when he was running for President in 2008. He bragged that his plan—he said if it went through, that ''electricity rates would necessarily skyrocket.'' And ever since then, President Obama has been pushing to make that happen, even though he couldn't get it passed. When he tried to get part of his plan through Congress, even the Democrats rejected it. They knew that the American people didn't want it and that the American economy couldn't afford it.

Did President Obama listen to the American people? Absolutely not. Did he accept the overwhelming judgment of Congress—a bipartisan approach—

that his extreme attacks on American energy were a bad idea? No, he didn't listen to that, either. The President is much more interested in the opinion of far-left, extreme environmentalists than he is in the opinion of hard-working Americans. He has done everything he can to give his plans the effect of law without asking Congress to actually pass them as laws. He has had his Environmental Protection Agency draw up regulations—regulations that would shut down American energy producers and damage our own economy. That is what the President's own Energy Information Administration has said. The agency put out a report—a report that found that the EPA's new rule on carbon dioxide emissions would close coal-fired powerplants, would raise electricity prices, and would reduce the gross domestic product of our Nation.

That is just one of many rules this administration has been pushing into force without legal support. Every one of these rules will mean hard-working Americans will lose their jobs and hard-working families will be paying higher electric bills. Put it all together, and the price tag could reach hundreds of billions of dollars.

Who is asking President Obama to do this? Who is asking to pay more in their electric bill every month? People don't want it, and the President doesn't have the authority to do it. That is why he is not asking Congress to weigh in on his plans. That is why he is pushing these rules by unelected, unaccountable bureaucrats instead of going to the people and their representatives. The American people do have a voice, and they are making their voice heard through us today.

We are here talking about two rules in particular. These are the restrictions on existing powerplants and on new powerplants, plants that haven't even been built yet. These are the core of what the President calls his Clean Power Plan.

We are here to say today that these rules go too far. The Obama administration has tried this before. It has pushed through other regulations that people didn't want and can't afford. The administration has said that it gets to decide what is best, that it gets to decide what people should do. The courts legitimately have said: not so fast.

This summer, the Supreme Court rejected a different EPA rule because the administration never bothered—this is what the Court said—to take into account the costs of the rule. The Supreme Court said: ''One would not say that it is even rational''—this is the Supreme Court talking about the President's rules; it isn't even rational—''never mind 'appropriate,' to impose billions of dollars of economic costs in return for a few dollars in health or environmental benefits.''

Two courts have blocked the EPA's rule on waters of the United States. One of the courts said that the rule was likely the result of ''a process that is inexplicable, arbitrary, and devoid of a reasoned process.''

All of these rules are suffering from the same kinds of problems. The Obama administration, once again, has been acting far beyond its own authority and far beyond anything that is rational or appropriate for our Nation. The same day that President Obama put out the new rule on his so-called Clean Power Plan, 26 States filed lawsuits in Federal court to stop the disastrous rule. Twenty-three States sued to block the rule on new powerplants. Twenty-seven States have sued to block the rule on existing powerplants. I believe these States are going to win in court because the rules are so extreme and this administration is so out of control.

President Obama doesn't really care about any of that. He thinks he still wins even when he loses in court. He thinks if he can drag it out long enough, businesses will have to spend the money and comply anyway.

That is actually what the President's EPA chief said before the last regulation got rejected by the Supreme Court. She went on television a few days before the decision and said that it didn't matter what the Supreme Court said. She said that it didn't matter if the administration loses because the rule has already been in place for 3 years.

That is exactly what the Obama administration is counting on this time as well. That is why it is so important that Congress act today to block these rules from taking effect. We are debating the two measures that will do that. The measure by Senator MCCONNELL and Senator MANCHIN—this is bipartisan—would block the rule for new powerplants, and the second measure by Senator CAPITO and Senator HEITKAMP—again, a Republican and Democrat working together—would block the rule for existing powerplants.

These are bipartisan resolutions of disapproval under the Congressional Review Act. They are our chance for Congress to stand up for the people that we represent. America can't afford these illegal rules to go into effect and be there for 3 years before the Court tosses them out.

There is another reason that Congress needs to vote to strike down these expensive, burdensome regulations immediately. Later this month, the President will be participating in the international talks on climate change. This is a meeting of about 200 countries from around the world to limit the amount of carbon dioxide and other emissions that each country can produce.

The President desperately wants his so-called Clean Power Plan so people will say he is leading on the issue. Without these illegal regulations, he has nothing to offer. Congress needs to make clear that the American people do not support these regulations. Foreign diplomats at the climate conference need to understand that these rules will not stand up in court.

President Obama's ego is writing checks that his administration can't cash. Any climate deal based on these flawed rules is simply not worth the paper it is printed on. It is time for President Obama to be honest about what he can and cannot do. If he will not admit that, then Congress is going to have to make it clear so that everyone understands. The American people do have a voice. They will not allow these reckless and destructive regulations to shut down American energy production.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

Mrs. SHAHEEN. Mr. President, I rise today to speak in support of the Clean Power Plan and against the efforts by the majority to undermine the plan. The Clean Power Plan is vital to the environmental and economic well-being of both New Hampshire and this country. It is an important and historic step that will mitigate the effects of climate change by reducing carbon pollution from our Nation's dirtiest powerplants.

Powerplants account for nearly 40 percent of all U.S. carbon emissions. That is more than every car, every truck, and every plane in the United States combined. If we are to be successful in addressing climate change, we have to reduce the amount of pollution that is coming from this sector, and we cannot delay.

My home State of New Hampshire is doing its part to reduce carbon emissions by making smart investments in renewable energy and energy efficiency, but we do need a Federal plan to make sure our country moves forward together.

As Senator WHITEHOUSE and Senator BOXER have said so eloquently, the verdict on climate change is in. It is a reality that must be addressed. Study after study reinforces the overwhelming consensus that global temperatures are steadily rising and contributing to more extreme weather events and changes in our environment.

We are seeing that firsthand in New Hampshire, where climate records show a steady increase in yearly temperatures and annual precipitation amounts continue to grow. As a result, climate change is affecting New Hampshire's tourism and outdoor recreation economy, which are really so important to our State. Tourism is the second largest industry in New Hampshire. Each year hundreds of thousands of sportsmen and wildlife watchers come to New Hampshire to enjoy our natural resources. Hunting, fishing, and outdoor recreation contribute nearly $4.2 billion to the New Hampshire economy each year. But rising temperatures are affecting our fall foliage season, which has just ended. We are seeing fewer snow days, which impacts skiing and snowmobiling, and ice

out on our lakes is happening earlier each year.

We heard Senator WHITEHOUSE talking about the impact on fisheries in Rhode Island. We have seen that in New Hampshire as well, where cod stocks in the North Atlantic and the Gulf of Maine have been reduced so precipitously that it has devastated New Hampshire's fishing industry.

We are also seeing changes in our State's maple syrup industry. New Hampshire produces more than 100,000 gallons of maple syrup annually. It is the third largest maple producer in the New England States. Maple syrup production is entirely dependent on weather conditions. Any change, no matter how slight, can throw off production and endanger the industry. Trees require warm days and cold nights to create the optimal sugar content and sap production. The changing climate is putting more stress on sugar maples, affecting syrup production.

According to a report by the New Hampshire Citizens for a Responsible Energy Policy, ''current modeling forecasts predict that maple sugar trees eventually will be completely eliminated as a regionally important species in the northeastern United States.''

If we look at this chart, we can see the red here is elm, ash, and cottonwood. We see the green is oak and pine and oak and hickory. This is 1960 to 1990. This is a current look at what is happening with our trees in New Hampshire and New England. This darker red that we see here, which is almost all of New Hampshire, is maple, beech and birch trees. That is what things look like today. By 2070, you can see there are no more maple trees left in New Hampshire and all of New England. There are very few elm, ash, and cottonwoods. There is a little bit in New York. They have all moved to the West and the North.

If we fail to act on climate change, we are going to lose these trees, lose the industry, and lose our fall foliage because maples are so important to the fall foliage. Climate change is also a threat to our wildlife and their habitats.

In New Hampshire, the moose is a vital part of our State's culture, and yet, as a result of climate change, we have seen a 40-percent decline in the moose population. It is hard to see. You can see that this moose looks very distressed, as does this one. What looks like little knobs on this moose's tail are ticks. Those ticks are there because with the warmer winters, insects and ticks are not dying off. They infested our moose population, which is down 40 percent.

Climate change is also impacting the health of New Hampshire's families. New Hampshire has one of the highest childhood asthma rates in the country. Rising temperatures increase smog levels. They heighten the effects of allergy season. All of those things imperil the health of vulnerable populations in New Hampshire, which is already the tailpipe. New England is the tailpipe of the central part of the country. So all of the pollution that is being created in the Midwest by those powerplants that are spewing out fossil fuels is coming on the air currents to New Hampshire and to New England.

I am proud to say that Granite Staters have recognized the effects of climate change, and New Hampshire has been a leader in reducing pollution. We are one of nine Northeastern States that are part of the Regional Greenhouse Gas Initiative. As a result, New Hampshire has already reduced its power sector carbon pollution by 49 percent since 2008. Because of the initiative of the State and local communities, New Hampshire is on track to meet the Clean Power Plan's carbon reduction goals 10 years early. We are going to be there by 2020, rather than 2030.

In addition, New Hampshire is investing in clean energy, using proceeds from emissions permits sold at RGGI auctions. The Regional Greenhouse Gas Initiative is a cap-and-trade system that is working in the nine Northeastern States. In 2012, New Hampshire invested 94 percent of those funds from the program in energy efficiency and renewable energy programs that directly benefit New Hampshire residents.

I had a chance last week to visit the western part of the State and a town named Peterborough. Actually, ''Our Town,'' the play by Thornton Wilder, is written about Peterborough. They have built the largest solar array in New Hampshire, and they are using it to power their wastewater treatment. Selling excess power into the grid and reducing the town's other energy costs, they are saving between $25,000 and $50,000 a year.

What is so exciting to me is that when this project came up at a town meeting for a vote, it passed unanimously. Yesterday I had a chance to visit Middleton, NH. I went to Lavalley/Middleton Lumber. It is a sawmill that produces pine boards for Diprizio Lumber. In 2006, they installed a very large wood-fired boiler. They are able to use the byproducts from the sawmill to fire the boiler, using combined heat and power. Not only are they able to heat their complex, but they are also able to provide the generation that they need for power to run the mills. As a result of this, they are saving $700,000 a year on their power bills.

New Hampshire has shown that we can take advantage of moving to renewable energy sources. We can make smart energy choices that benefit the environment and yet strengthen our economy. Nationally, the Clean Power Plan is projected to cut carbon emissions by millions of tons per year and generate tens of billions of dollars a year in health and climate benefits.

It is good for the economy. That is why 81 major companies, including four in New Hampshire, have signed a letter pledging to support new initiatives that may emerge from the global conference on climate change in Paris in December. America's Clean Power Plan is a powerful demonstration of our global leadership on climate change, and it will allow the United States to lead with credibility and authority at the Paris conference.

We all know—or at least those people who are willing to acknowledge what the research shows—that climate change represents an enormous challenge, but solutions are within reach if we put in place policies that allow for action. We have a responsibility to help protect our children and our grandchildren from the severe consequences of global warming by taking action now. It is time to move forward with the Clean Power Plan without delay. It is time to stop short-circuiting efforts to reduce carbon pollution in this country.

I urge my colleagues to stop standing in the way of this important effort to reduce our dependence on fossil fuels.

THE PRESIDING OFFICER. The majority whip.

Mr. CORNYN. Mr. President, I ask unanimous consent that the Senator from Alabama be recognized to speak and that following his remarks, I be permitted to speak.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

TERRORIST ATTACKS AGAINST FRANCE AND SYRIAN REFUGEES

Mr. SHELBY. Mr. President, the terrorist attacks that rocked the city of Paris and the entire world on Friday, I believe we all agree, were horrific and unthinkable. The people of France stood by our side after the horrendous events of September 11, 2001, and the American people will stand by them during this tragic time. Cowardly and barbaric acts of violence against innocent civilians absolutely should not be tolerated anywhere in our society, and we must take any and all steps available to prevent a similar attack from occurring right here in the United States.

Early reports from the terrorist attacks in Paris on Friday indicate that the refugee programs in Europe allowed at least one of the attackers to enter France. In light of these reports, the United States should take notice. We are now faced with an opportunity to make a commonsense, responsible decision that would put Americans at ease and put an end to the risk of radical Islamic terrorists infiltrating our Nation through the refugee resettlement program. I believe we simply cannot trust this administration to put in place the rigorous vetting system needed to ensure that the refugees who enter our Nation will not be future threats to our people in our own homeland. It is, without a doubt, in the best interest of the American people and our national security to immediately halt any plans to allow Syrian refugees to resettle in the United States.

We know we live in an increasingly dangerous world, and I believe the Obama administration's lack of leadership on foreign policy has exacerbated the problem. We cannot continue to let President Obama's ill-conceived policies put Americans at risk. This administration is either asleep or out of touch with the danger lurking in the world.

I ask the American people today: What is it going to take to wake up this administration? Will it take another horrific attack on our own soil and our own people?

I believe it is more than time to put an end to relocating Syrian refugees in our country, and that is why I will work tirelessly with my colleagues in the Senate to reverse President Obama's extremely dangerous position that threatens the American people and our homeland.

I yield the floor.

The PRESIDING OFFICER. The majority whip.

Mr. CORNYN. Mr. President, on Friday we all watched in horror the tragic events that unfolded in the city of Paris. We saw radical Islamic terrorists brutally target innocent civilians in places that no one should feel unsafe—a soccer stadium, a concert hall, and a cafe. These attacks on our Nation's oldest ally have struck us here at home to our very core.

We know what it is like to be attacked in our homeland, and therefore we know what the French people are going through. As we continue to keep the French people in our thoughts and prayers, we should do everything in our power to assist them. As the facts unfold and if, indeed, ISIS did plan and execute these attacks as they have claimed, then the United States and our allies have an obligation to join France in responding swiftly and forcefully.

These attacks are a tragic reminder that the threat of ISIS stretches well beyond the Middle East. ISIS is not a JV team, nor have they been contained as the President of the United States has claimed. More than a year ago, I stood here on the Senate floor and said that we would not vote to give the President a blank check in Syria without a clear strategy with achievable objectives to defeat the terrorist threat. Nevertheless, over the course of this last year, the President has failed to come up with any sort of coherent strategy to deal with this threat. What we have seen and heard are speeches, interviews, and vague assurances that have attempted to distract the American public from the stark reality that the President's so-called strategy against ISIS is not achieving his stated objective of degrading and ultimately destroying ISIS. This whole idea that you can, through bombing attacks, defeat a threat like ISIS and, once the threat is cleared, hold that real estate or hold that land is just a pipe dream.

The United States and our partners are facing a robust enemy of more than 20,000 core and foreign fighters that have continued to murder their way across Syria and Iraq, decimating populations there and elsewhere as their influence and power grows. Over the last year, the administration's paralysis over how to defeat this terrorist threat has plunged Syria deeper and deeper into violence and chaos. What started as a civil war in Syria back in 2011 has now cost the lives of roughly 1 million Syrians. Millions of people have been internally displaced within Syria and outside of its borders into surrounding countries, such as Turkey, Jordan, Lebanon, and elsewhere, and now we are seeing that wave of refugees extend to Europe, and, indeed, some have now made their way to our shores.

By allowing ISIS to take over such a large portion of territory, President Obama has neglected one of the key recommendations of the 9/11 Commission, which advised the U.S. Government following that fateful day on September 11, 2001, to ''identify and prioritize actual or potential terrorist sanctuaries.'' Instead, the President has stood and watched like a spectator while this terrorist army, over the course of many months, has carved out its own safe haven right in the heart of the Middle East, and in doing so, has erased the border between Syria and Iraq where they control large swaths of territory.

The capture of these swaths of territory and the spread of the violent, extremist ideology has not been the only consequence. The civil unrest in Syria has fueled the influx of nearly one-half million refugees who have flooded Eastern Europe and elsewhere.

Under questioning in the House Committee on Homeland Security last month, FBI Director James Comey was asked about the security precautions the Federal Government was taking when screening refugees. Director Comey confirmed what many of us have feared, and that is if a Syrian refugee was not already known to law enforcement and intelligence officials, it is difficult, if not impossible, for us to vet that individual's background for potential terror ties to various terrorist groups. He explained it by saying: ''If someone has never made a ripple in the pond in Syria in a way that would get their identity or their interest reflected in our database, we can query our database until the cows come home but . . . there will be nothing . . . because we will have no record on that person.''

I am proud of our history of opening our doors to innocent people fleeing violence or religious persecution. That is part of who we are as a country. But following Friday's attack, we should pause our Syrian refugee program until we can be sure that the individuals are being fully vetted for potential terror ties so we can ensure the public safety of all Americans, which is our first responsibility. Compassion for those refugees is important, as I said, but protecting our homeland and keeping the American people safer is the first order of business. With the latest public threat from ISIS yesterday directed at us here in the United States, we must remain vigilant against the ongoing threat that may come from those already inside our country.

The attack in Paris has drawn attention to the degree to which law enforcement and intelligence officials are able to track, surveil, and apprehend potential threats before they turn deadly, but with changing technology and damaging intelligence leaks, that is becoming increasingly challenging.

In that same House hearing in October, the Director of the National Counterterrorism Center noted that potential homegrown threats were finding ways to communicate ''outside of our reach'' and therefore, off our radar.

As law enforcement officials have noted, this includes the use of Internet service providers outside the United States as well as the increasingly widespread use of encryption capabilities and new technologies. Yet, as the threat of ISIS evolves and intensifies, the world is looking toward the United States as an example of strength. So I propose in the wake of this deadly attack that our administration and the Federal Government do three things.

First, the President needs to hit the pause button on Syrian refugee resettlement until the Department of Homeland Security can verify with certainty that our processes are enhanced to ensure that applicants do not have ties to ISIS or any other terror groups.

Secondly, the President needs to lay out a clear strategy for destroying perhaps the best resourced, best armed terrorist group on the planet. This is long overdue, and his failure to do so is one of the reasons we find ourselves where we are today. It is in the best interest of the Syrian people to stay in Syria if they can, but with circumstances being what they are, we can understand from a human perspective why they would seek a safe haven wherever they can find it. This refugee crisis is directly related to the President's failure to have any effective strategy to deal with the situation on the ground in Syria. It is destabilizing governments in the region, which have huge refugee populations and which have to deal with the economic and other challenges of dealing with that situation. It is important to see the refugee crisis—including the 10,000 Syrian refugees who appeared in New Orleans just this last week—is a result of a failure of any strategy to deal with this conflict in Syria.

There are suggestions that have been made that I think bear some consideration, such as having safe zones and no-fly and no-drive zones enforced by the international community. Before I spoke, I believe the Senator from Indiana suggested maybe this would be an appropriate mission for NATO. Maybe so. We ought to talk about and reach some decisions about that.

Finally, the President of the United States has the obligation to explain to the American people how he is going to defend our interests and keep our people safe here at home.

As I said, one of the biggest threats is homegrown terrorists radicalized over social media and the Internet. Perhaps even more concerning to me than the threat of a potential attacker entering the United States is a self-radicalized attacker that is already here. This homegrown threat, I believe, poses a much more imminent danger to our people—a sad fact we learned the hard way at Fort Hood, TX, in 2009, and in Garland, TX, earlier this year.

In conclusion, all indications from the White House are the President will not change a thing. He is going to stay the course in spite of the gathering risk and danger of terrorist attacks being exported or being incited within our own borders. Now, more than ever, the Nation needs the kind of strong leadership that is commensurate with the challenges we are facing. That is the kind of leadership that the American people expect and the kind of leadership that they deserve.

I yield the floor.

The PRESIDING OFFICER (Mr. WICKER). The Senator from Florida.

Mr. NELSON. Mr. President, I will have more to say about the refugee crisis and the necessity of the considerable vetting of those refugees, as well as any other refugees, as we protect ourselves here at home. I will have more to say about that later.

U.S. COMMERCIAL SPACE LAUNCH COMPETITIVENESS ACT

Mr. President, I want to bring to the attention of the Senate that last night the House passed a bill we modified—the U.S. Commercial Space Launch Competitiveness Act. It will now go to the President to be signed into law. This bill contains the language we helped to negotiate as a compromise between two different bills that had passed the House and the Senate earlier this year.

This bipartisan legislation, which passed the Senate unanimously, is a major effort that recognizes the tremendous growth of the commercial space industry. It is an industry that now represents more than 75 percent of the $330 billion global space economy—$330 billion. It is an industry here in the United States that will continue to grow as more companies enter into new and exciting space ventures, such as launching thousands of small satellites that will provide worldwide Internet access, such as recovering valuable resources from distant asteroids, and such as sending tourists on incredible journeys that one day may even include overnight stays in space hotels.

These are the innovative kinds of commercial space activities this little country boy dreamed about years ago when I had the privilege of helping pass the first Commercial Space Launch Act way back in 1984. It is an industry where we are starting to see a resurgence of activity here in the United States. For example, just 10 years ago, there was only one American commercial space launch, compared at that time to eight launches from Russia and five from Europe. Last year there were 11 American commercial launches, accounting for nearly half of the worldwide commercial launches and earning $1.1 billion in revenue—more than both Russia and Europe for the very first time. Much of this growth has been seeded by a commercial industry supporting the needs of our space program; in particular, the International Space Station. Folks just do not realize that we have an International Space Station up there right now that is as long as from one goalpost on a football field all the way to the other goalpost. That is how big this is. There are six human beings up there on orbit right now. Two American companies are now supplying the International Space Station with critical cargo and supplies, along with our international partners. Soon, U.S. companies will begin launching NASA astronauts and international partner astronauts to the space station.

That is why this bill is so important. It paves the way for NASA to begin launching government astronauts on American-made commercial rockets so we do not have to depend on our crews getting to and from the space station just on the very proven and reliable Russian Soyuz.

Commercial companies are also making great use of the space station for medical research, and one company is even 3D-printing tools right now on the space station. So the bill extends the operations of the International Space Station to provide certainty to industry and to the international community that the station will be around not just to 2016, not just to 2020 but now, as we put it in the bill, at least to 2024. I think we will see efforts later on that it will even be extended beyond 2024. It is fitting that I mention that because this month we are celebrating the 15th anniversary of continuous human presence aboard the ISS—15 years we have had humans up there on an around-the-clock basis.

The commercial space sector is also revitalizing old government infrastructure such as the historic launch pads that lined Florida's space coast. It has been a privilege for me to spend some time there at the Cape and at the Kennedy Space Center. It is an amazing transformation of Cape Canaveral into a bustling space port, but I have seen how challenging it can be for commercial companies to get to do business out there on the Air Force territory.

That is why this bill requires the FAA, NASA, and the Air Force to work together to reduce the administrative burden on industry operating on government property and to do that by streamlining the Federal launch requirements and processes.

This bill is a major update to our commercial space legislation. It will encourage the growing commercial space industry for many years into the future—an industry of vital economic, scientific, and national security importance.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from West Virginia.

Mr. MANCHIN. Mr. President, I thank all of my colleagues who have worked with me on these resolutions to stop the EPA's destructive new regulations such as the new source performance standards. They are truly unrealistic and unreasonable and threaten our security and prosperity.

I have always said we are all entitled to our opinion and our views, we are just not entitled to our own facts. As I go through this presentation, I will show my colleagues the facts that we will not be able to give us the energy we need if we go down this destructive path.

The CRA resolution I have introduced with Senate Majority Leader MITCH MCCONNELL will disapprove and stop the EPA's rule for emissions from new coal-fired powerplants. I thank my colleague from West Virginia Senator CAPITO and the Senator from North Dakota Senator HEITKAMP for joining me in this fight by introducing a separate resolution to disapprove the EPA's rule for emissions from existing coal-fired powerplants. It is time for Congress to step in and stop these rules from harming not only hard-working West Virginians but the American consumer. I am pleased these measures are being brought to the floor for a vote today.

Never before has the Federal Government forced an industry to do something that is technologically impossible—until now. I have always said that if a regulation is not obtainable, it is unreasonable, and that is the fact we have in front of us.

The EPA has based its final rule for new coal-fired powerplants in the United States largely on a still-developing powerplant unit in Canada, which is called the Boundary Dam CCS Project. The EPA asserted in the final rule that the Boundary Dam facility has been operating full carbon capture sequestration successfully at a commercial scale since October 2014. That is found to be totally untrue. Canadian press reports have recently disclosed that the Boundary Dam project has failed to operate successfully at full CCS for any meaningful period of time.

The reports also identify the CCS system of the demonstration plant as being a key issue in the delays for getting the plant up and running. After 1 year of operation, the project was forced to replace certain important features at a cost of $60 million. There have always been nearly $23 million in nonperformance penalties and lost revenues.

The plant's management company, which is SaskPower, has acknowledged these recent reports and are now pushing back the project's operational date to the end of 2016, but there are no guarantees this will prove true either.

SaskPower is also claiming that the project will need at least a year of stable operation to prove the technical operation and the economics of the project, which would aid in determining commercial viability. SaskPower has announced it will not be able to make an informed decision about carbon capture sequestration until 2018. Yet the EPA here in the United States of America is demanding that all U.S. coal-fired generation industry implement this technology now. That is what I have said all along: If it is not obtainable, which it has not been—we have not spent the money trying to develop this technology, and it hasn't worked—shouldn't we at least make sure it works before we force a complete overhaul of the system or people to meet standards that are unobtainable.

These recent revelations prove that CCS is still technically unproven and still potentially damaging in a powerplant application. Therefore, it is foolish for this administration to require it now for new U.S. coal plants.

Last week I wrote a letter to Administrator McCarthy about these reports because forcing coal to meet standards when experts know that the required technology is not adequately demonstrated on a commercial scale makes absolutely no sense at all. Instead, I believe the EPA should scrap this impossible-to-meet rule or amend it to require advanced technology that has actually been implemented which would offer improved environmental performance and is commercially viable.

For the administration, this rule is more about desirability rather than feasibility, with little regard for rising consumer prices, the effects on jobs, and the impact on the reliability of our electric grid.

This administration thinks the country can do without coal. I will simply tell my colleagues this: They are in total denial. They might not like it, they might not want it, but it is built into the plan for the next 20 to 30 years. They have flat out ignored their own data that says that coal will produce more than 30 percent of our electricity through 2040.

It is completely contradictory that the EPA continues to impose unreasonable and unattainable rules in an attempt to regulate coal into extinction. The people who suffer are hard-working West Virginians and consumers across this great country. If these regulations go into effect, no new coal plants could begin new operations, more Americans would lose their jobs, and economic uncertainty would grow.

The Nation's coal-fired powerplants currently have an average age of 45 years, the average age of all coal plants in America today, which produce close to 40 percent of our power. Many will need to be replaced in the near future, and regulations that prohibit building new coal-fired powerplants can soon become a serious issue for the Nation's electricity grid and the reliability we all depend upon.

Although the Energy Information Administration—the EIA—within the Department of Energy still projects 37 percent of electricity generation will come from coal in 2040—I remind you, this administration that has put together rules that are unattainable and unreasonable is saying they are still going to need 37 percent of the electricity this country will need by 2040 from coal. The currently operating plants, without new additions, will average 65 years of age by that time. If nothing is done, these plants are averaging 65 years of age to produce the type of power this country needs. The history of coal plant operations already tells us coal plants at that age will not achieve the levels of hours of reliable operation required to meet the 2040 forecast.

The coal industry must be allowed to add the new coal-fired powerplant additions, such as the ultra-supercritical, which we know is technology that works. We know it works, but this is not the direction they are going. They are putting something that is unattainable in place. That is why we need to block this plan, the Clean Power Plan, that the President has brought before us because it cannot be attained and we are going to be in a deficit.

There is no doubt this President's agenda has already had a crushing impact on my State of West Virginia and other energy States around the country. We have to say enough is enough. In West Virginia we want clean air, we want clean water, and we are doing everything humanly possible. We have cleaned up the environment more in the last two decades than ever before.

If you look around the world, there is more coal being burned than has ever been burned before. The United States burns less than 1 billion tons of coal a year. Over 7 billion tons of coal are being burned elsewhere in the world, with 4 billion tons being burned just in China. I would venture to say nobody is meeting the standards that we are required to here for the technology that is going to be needed to be attained.

I will continue to explore all available options to prevent these unattainable regulations from impacting the State of West Virginia and the United States.

I would ask the President—this administration—to work with us to find and develop the technology that would allow us to use a product that we have in abundance in this country—which is coal—in the cleanest fashion. We can then export that technology around the world to clean up the overall environment and to help the environment around the globe.

Right now Congress needs to move forward to stop these rules that are crippling our energy production, jeopardizing the energy grid, and putting our workers out of good-paying jobs. I urge all my colleagues to support these resolutions that are put forward today when we vote.

Thank you.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 1:17 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

PROVIDING FOR CONGRESSIONAL DISAPPROVAL OF A RULE SUBMITTED BY THE ENVIRONMENTAL PROTECTION AGENCY—Continued

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Mr. President, I ask unanimous consent to address the Senate as in morning business and that I be allowed to speak without a time limit.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Arizona is recognized.

ISIL

Mr. MCCAIN. Mr. President, it has been more than 1 year since President Obama spoke to the Nation about the threat posed by ISIL and escalated U.S. military operations against it. The goal at that time, the President said, was to degrade and destroy ISIL. One year ago, the goal was to degrade and destroy ISIL. It is impossible to look at where we are today and claim that the President's strategy is succeeding or that it is likely to succeed on anything approaching an acceptable timetable and level of risk.

No one should take this as a criticism of the men and women in uniform, as well as their civilian counterparts in the field, who are doing the best they can under the strategic and operational constraints they face, especially in the face of the White House's desire to revisit the Vietnam war tactics and to micromanage the military's campaign.

It is not that we have done nothing against ISIL; it is that there is no compelling reason to believe anything we are doing will be sufficient to destroy ISIL. Thousands of airstrikes against ISIL's targets have conjured the illusion of progress, but they have produced little in the way of decisive battlefield effects.

I noted with some interest that we provided some targeting for the French, who carried out airstrikes. I wonder why we hadn't done any of that in the last year.

ISIL continues to dominate Sunni Arab areas in the world, in both Iraq and Syria, and efforts to reclaim major population centers in those areas, such as Mosul, have stalled, to say the least. Meanwhile, ISIL continues to expand globally. It is now operating in Afghanistan, Yemen, Libya, Lebanon, and Egypt, and other radical Islamist groups, such as Boko Haram in Nigeria and al-Shabaab in Somalia, have pledged allegiance to ISIL. This appearance of success only enhances

ISIL's ability to radicalize, recruit, and grow.

In the past month, ISIL has commenced a new stage in its war on the civilized world by unleashing a wave of terrorist attacks around the globe. In Ankara, ISIL detonated two bombs outside a train station, killing 102 people and injuring over 400 more. In the skies over Egypt, ISIL destroyed a Russian civilian airliner with a bomb that killed all 224 passengers aboard. In Beirut, ISIL conducted 2 suicide bombings that killed 43 people and injured 239 more. In Baghdad, ISIL bombs killed 26 people and wounded more than 60 others. Finally, in the streets of Paris last week, as we all know, gunmen wearing suicide belts attacked innocent civilians at restaurants, bars, a soccer stadium, and a concert hall, killing at least 129 and wounding 352 other people.

The American people have experienced this kind of terror before, and we stand together with the people of Turkey, Russia, Lebanon, Iraq, France, and nearly 20 other nations whose citizens were murdered by these brutal atrocity committers. These attacks reveal nothing new about ISIL's character. ISIL is the face of evil in our world today. It has crucified its enemies, beheaded innocent journalists, burned a Muslim pilot alive in a cage, and it has condemned women and children and girls to slavery and torture and unspeakable sexual abuse. And when waging war on the living has failed to satisfy its savagery, ISIL has desecrated and destroyed many of the monuments to civilization that remain across the Middle East.

ISIL's latest attacks also reveal nothing new about its intentions. Everything that ISIL is doing is what their leaders have long said they would do. They have stated their aims explicitly and clearly. All we have to do is listen to their words. Indeed, as one author put it, ISIL has ''toiled mightily to make their projects knowable.''

What these attacks have demonstrated and what now should be clear is that ISIL is at war with us whether or not we admit we are at war with them. What should now be clear is that ISIL is determined to attack the heart of the civilized world—Europe and the United States—that it has the intent to attack us, the capabilities to attack us, and the sanctuary from which to plan those attacks. What should now be clear is that our people and our allies will not be safe until ISIL is destroyed—not just degraded but destroyed, and not eventually but as soon as possible.

Unfortunately—unfortunately— almost tragically, President Obama remains as ideologically committed as ever to staying the course he is on and impervious to new information that would suggest otherwise, as he made quite clear during his incredible press conference yesterday in Turkey. According to the President of the United States, anyone who disagrees with him is ''popping off''—popping off.

I guess Michael Morell, former Deputy Secretary of the CIA, was just ''popping off'' when he said recently that ''the downing of the Russian airliner, only the third such attack in 25 years, and the attacks in Paris, the largest in Europe since the Madrid bombings in 2004, make it crystal clear that our ISIS strategy is not working.'' That comes from Michael Morell, the former deputy head of the CIA under this President.

I guess Senator DIANNE FEINSTEIN, vice chair of the Senate Select Committee on Intelligence, was just ''popping off'' when she said that ''ISIL is not contained, ISIL is expanding'' and that we need new military strategy and tactics.

I guess GEN Jack Keane, one of my heroes and architect of the successful surge strategy in Iraq, was just ''popping off'' when he said, ''We are, in fact, losing this war. Moreover, I can say with certainty that this strategy will not defeat ISIS.'' This strategy will not defeat ISIS. That comes from the author of the surge which succeeded, which the President, by withdrawing all troops, allowed to go completely to waste, and the lives of brave young Americans were wasted.

I guess Hillary Clinton, the President's former Secretary of State and desired successor, was just ''popping off'' when she declared her support for a no-fly zone in Syria to ''stop the carnage on the ground and from the air.''

I guess GEN David Petraeus was just ''popping off'' when he testified to the Committee on Armed Services that the President's strategy has failed to create the military conditions to end the conflict in Syria and that ISIL will not be defeated until we do so.

I guess James Jeffrey, a career foreign officer and the President's Ambassador to Iraq, was just ''popping off'' when he wrote in the Washington Post today that the President needs to send thousands of ground troops to destroy ISIL.

What all of these national security leaders recognize is the reality that is staring us right in the face. It is the President who is once again failing to grasp it. He fails to understand even now that wars don't end just because he says they are over, that our terrorist enemies are not defeated just because he says they are, that the threat posed by ISIL is not contained because he desires it to be so, and that maybe, just maybe, the growing group of his bipartisan critics might just be right. And why won't he listen to them? Why won't he listen to these people of experience and knowledge and background? Whom does he listen to? Whom does the President listen to? He couldn't be listening to anybody knowledgeable and then make the comments he made at that press conference.

The President has had to go back on everything he said he would not do to combat the threats now emanating from Syria and Iraq. He said he would not arm moderate Syrian rebels because that would militarize the conflict. He was wrong. He said he would not intervene militarily in Iraq or Syria. He was wrong. He said he would not put boots on the ground in Syria. He was wrong. Now he says that his strategy is working, that all it needs is time, and that no further changes are required despite ISIL's campaign of terror. Now, get this straight. After the bombing in Paris, after the Russian airliner, after the other acts of terror, he needs time—he needs time—and no further changes are required. Does anybody believe him anymore?

What the President has failed to understand for nearly 5 years is that unless and until he leads an international effort to end the conflict in Syria and Iraq, the costs of this conflict will continue to mount. Those consequences have grown steadily, from mass atrocities and hundreds of thousands of dead in Syria, to the repeated use of weapons of mass destruction, to the rise of the world's largest terrorist army and its rampage across Syria and Iraq, to destabilizing refugee flows that have shaken the stability of Syria's neighbors and are now potentially changing the character of European society. Now we see the latest manifestation of this threat: global terrorist attacks directed and inspired by ISIL that killed hundreds around the world.

The Paris attacks, obviously, should be a wake-up call for all Americans, most of all for the President. If we stay the course, if we don't change our strategy now, we will be attacked. I don't know where, when, or how, but it will happen. Do we need to wait for more innocent people to die before we address the reality that is right before us? ISIL has said it intends to attack Washington, DC. Do we not take them at their word? Do we think they are not capable of it? Do we think time is on our side? It is not. Time is not on our side.

The lesson of the September 11 attack was that mass murderers cannot be permitted safe havens. They cannot be permitted safe havens from which to plot our destruction. Do we really have to pay that price again through the blood of our citizens?

For nearly 5 years, we have been told there is no military solution to the conflict in Syria and Iraq, as if anyone believes there is. In fact, one of the things that is most frustrating about the President's rhetoric is that he sets up straw men. He says we either should do nothing or the Republicans or critics—now Democrats as well—are wanting to send in 100,000 troops. We do not. We do not. We believe and I am convinced that we can send in a force composed of Sunni Arabs, of Egyptians, of Turks, and Americans—about 10,000—establish the no-fly zone, allow the refugees a sanctuary, and make sure that no barrel bombing will be allowed in those areas. We can succeed. ISIS is not invincible. The United States of America and our allies are far stronger. We are the strongest Nation on Earth.

To say we can't defeat ISIL—it is a matter of will, not a matter of whether or not it is a capability.

So I say to my colleagues and the American people, we can defeat ISIS and we can wipe them off the face of the Earth, but we have to have a strategy, and this President has never had a strategy.

For nearly 5 years we have been told that there is no military solution; that there are no good options; that our influence is limited, as if that is not always the case; that we won't succeed overnight, as if our problem is one of time, not policy; and that we can't solve every problem in the Middle East, as if that absolves us of our responsibility to make the situation better where we can. This isn't a question of our capacity, our capabilities, or our options. We have always had options to address this growing threat. But the longer we wait, the difficulty and risk and cost increase.

Four years ago, LINDSEY GRAHAM and I came to this floor and said: We need to have a no-fly zone and we need to arm and train the Free Syrian Army, once Bashar al-Assad crossed the redline. We could have done it then, and it would have been one heck of a lot easier. But this President didn't want to do it, and we are faced with a more complex situation. Tens of thousands or a couple hundred thousand Syrians dead and millions of refugees later, the President of the United States still won't act. He still believes, as he stated in his press conference yesterday, that, somehow, everything is going fine—what delusion.

After the attack on France, article 5 of NATO's founding treaty should be invoked, which states that an attack on one is an attack on all. That is what we did after 9/11. The United States should work with our NATO allies and our Arab partners to assemble a coalition that will take the fight to ISIL from the air and on the ground. My friends, air attacks only will not succeed. It will not succeed. I am sorry to tell you. I apologize ahead of time. We need boots on the ground—not 100,000 but about 10,000, with the capabilities that are unique to American service men and women. We can defeat ISIL.

We have to step up the air campaign by easing overly restrictive rules of engagement. At the same time, we have to recognize that ISIL will only be defeated by ground combat forces. Those don't exist today. We must recognize that our indirect efforts to support our partners on the ground—the Iraqi Security Forces, the moderate Syrian opposition force, the Kurdish Peshmerga, and the Sunni tribal forces—are insufficient to outpace the growing threat we face.

As I mentioned, the United States must therefore work to assemble a coalition and ground force with a commitment on the order of 10,000 U.S. troops.

In Syria, we must hasten the end of the civil war. We must accept that Russia and Iran are not interested in a negotiated solution that favors U.S. interests. Russia and Iran have entirely different goals than the United States of America in Syria. Russia wants to keep Bashar Assad or his stooge in power, they want to keep their major influence in the region, and they want to protect their base there. The United States of America has none of those interests. They want to prop up the guy who has killed 240,000.

I appreciate the outpouring of concern of all my colleagues and all Americans about these refugees. The refugees are the result of a failure of Presidential and American leadership. They are not the cause of it. The cause of these hundreds of thousands or millions of refugees is because our policy failed. Bashar al-Assad slaughtered them with barrel bombs, and we are now faced with the threat, in some respects, of a possibility that one or more of these refugees, having gone through Greece, now are or possibly could be—as the Director of the CIA said yesterday—in ongoing operations to try to orchestrate attacks on America.

It is often said that America doesn't go abroad in search of monsters to destroy. But that doesn't mean there are no monsters in the world that seek to destroy us. The longer we wait to accept this reality, the greater is the cost we will pay.

One of my great heroes and role models, as is the case with many of our colleagues, is Winston Churchill. I would never compare myself to Winston Churchill in any possible way, except that I do sometimes have empathy with Winston Churchill, who, during the 1930s, came to the floor of the Parliament and made comments and speeches that were very, very moving, but no one paid any attention to him. In fact, he was ridiculed. In fact, LINDSEY GRAHAM and I have been ridiculed from time to time because of our assessment of the situation and what needed to be done.

Winston Churchill, after the crisis had been resolved to some degree and the people of Britain and the world had awakened, said—and there is a parallel between the situation 4 years ago and what Winston Churchill had to say:

> When the situation was manageable, it was neglected, and now that it is thoroughly out of hand we apply too late the remedies which then might have effected a cure. There is nothing new in the story. It is as old as the Sibylline Books. It falls into that long, dismal catalogue of the fruitlessness of experience and the confirmed unteachability of mankind. Want of foresight, unwillingness to act when action would be simple and effective, lack of clear thinking, confusion of counsel until the emergency comes, until self-preservation strikes its jarring gong—these are the features which constitute the endless repetition of history.

I say to my colleagues, we are observing the endless repetition of history—what once upon a time was a manageable situation. When the President of the United States said that it is not a matter of when Bashar al-Assad leaves but it is a matter of when, when the Chairman of the Joint Chiefs of Staff and then-Secretary of Defense testified before our committee that it is inevitable that Bashar Assad will go, when the President of the United States continuously said time after time that we have a strategy and it is not anything to worry about, when we get out of Iraq and we draw redlines in Syria and don't do it, when we don't take any action after the redline is crossed, when his national security team, composed of Secretary of State Clinton, Secretary of Defense Panetta, and then-Director of CIA David Petraeus all recommended training and arming the Free Syrian Army, he rejected it.

So now we find ourselves with 240 thousand dead in Syria and more Syrian children in school in Lebanon than Lebanese children. Jordan, one of our best friends, has their very fabric threatened and unstable because of the huge number of refugees. We find a very unstable Middle East, and we find ISIL spread now to Libya, Lebanon, Yemen, and other nations. ISIL has now even established a foothold in Afghanistan, and the Iranians are doing the same.

It is not too late. It is not too late. We have to take up arms. We have to tell the American people what is at stake here. We have to inform the American people that what happened in Paris can happen here. Mr. Baghdadi, who was once in our prison camp at Camp Bucca for 4 years in Iraq, when he left said: ''I'll see you guys in New York.'' He was not kidding. There is no doubt that what ISIL has just proved is that contrary to what this President believed, contrary even to what our intelligence told us, they have a reach. They have had a reach to make sure that a Russian airliner was destroyed. They have a reach to Paris. They have a reach to Beirut. They have a reach in northern Africa and other places in the world. There is no reason why we should not suspect that they have a reach to the United States of America. It is time we acted. It is time the United States of America, acting with our allies, takes out ISIL. We must go both to Iraq and to Syria and take them out. Their total defeat is the only thing that will eliminate this threat to the United States of America.

Yes, after they are destroyed there is a lot to do. Yes, there are things such as building economies and free societies and all of that. But there is only one thing that Mr. Baghdadi and his legions understand, and that is that we kill them and that we counter with everything we can this spread of this perverted form of an honorable religion called Islam. This is radical Islamic terrorism, whether the President ever wants to say it or not.

There is one additional point. The refugees are a huge problem. Obviously, we have to pause until we are sure that nobody is doing exactly

what—apparently, at least—one of the terrorists who attacked Paris did, and that is, to go through Greece and into France. But at the same time, we need to understand that the refugee problem is an effect of a failed policy, not the cause of it.

Finally, I would say the President should do two things: One, call together the smartest people that we know. I named some of them: General Petraeus, General Keane. There are a number of people. There is General Maddox, General Kelly, Bob Kagan. The names are familiar to many of us who follow national security. These people are the ones who made the surge succeed. Call them together over at the White House and say: Give me your advice. He must do that. What he has been listening to and what he is doing is failing.

I know that my friend and partner, LINDSEY GRAHAM, knows more about these issues than any other Member of this body—certainly anybody who is running for President of the United States. We will go over. We would be glad to go over and sit with the President. I want to cooperate with him. I want to work with him. We need to do that. I offer up my services and my advice and counsel, and anybody else on this side of the aisle.

This is a threat to the lives of the men and women who are living in this Nation. They deserve our protection, and they deserve a bipartisan approach and a bipartisan action in order to stop that.

So I stand ready. But right now, I have not been more concerned.

I leave my colleagues with two fundamental facts:

No. 1, there are now more refugees in the world than at any time since the end of World War II. No. 2, there are now more crises in the world than at any time since the end of World War II. We cannot sustain the failed policies that have led us to the situation that America and the world are in today.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

AUTHORIZATION FOR USE OF MILITARY FORCE AGAINST ISIL

Mr. FLAKE. Mr. President, over the weekend France suffered the worst attack that it has seen since World War II. The day before that, Beirut was rocked by two suicide bombs perpetrated by ISIL that killed more than 40 civilians. We just had confirmation that the Russian plane flying over Sinai was taken down by a terrorist bomb. Again, ISIL has claimed credit. These attacks have followed on the heels of an announcement 2 weeks earlier by the President that he has authorized deployment of up to 50 Special Forces in Syria. They will be there to support U.S.-backed Syrian rebels in the campaign against ISIL.

More than 1 year after the announcement of Operation Inherent Resolve, a mission to ''degrade and ultimately defeat'' ISIL, this conflict has escalated dramatically. The facts on the ground in the Middle East have changed dramatically. Russia is intervening militarily on behalf of Bashar al-Assad in Syria. Hundreds of thousands of Syrians left their homes and their country to escape ISIL and Assad, precipitating a massive humanitarian crisis that has brought the European Union under great strain.

In addition to the deployment of U.S. Special Forces in Syria, news reports indicate that the United States will increase supplies and military weapons to U.S.-backed Syrian rebels fighting ISIL.

For all the changes that we have seen over the past year, one thing has not changed: The Congress of the United States has not voted to authorize the use of military force against ISIL. That needs to change. That is why I have come to the floor today. The Senator from Virginia, Mr. KAINE, who will speak in a moment, has come as well. We need an authorization for the use of military force.

The President maintains that the legal underpinnings of his authorization come from an AUMF provided to our previous President in the 107th Congress, back in 2001. The 2001 AUMF allowed the President the authority to use ''all necessary and appropriate force'' against those he determined ''planned, authorized, committed, or aided the terrorist attacks that occurred on September 11, 2001, or harbored such organizations or persons.''

More than 10 years later, two provisions of the massive Fiscal Year 2012 National Defense Authorization Act expanded the 2001 AUMF to include ''associated forces'' of Al Qaeda and the Taliban. This is the expansion from which the administration derives its authority for today's actions to go after the Islamic State in Iraq and Syria.

I am not standing here today to debate the merits of the administration's argument as to whether they have the legal authority. That is not what is at issue right here. What is at issue is the ease with which Congress happily defers to old statutes and abdicates its authority to weigh in on what history will record as a long, complex, brutal conflict. This conflict has been going on for more than a year with very mixed results, and the consequences will change the geopolitical landscape in that region for decades.

Ten American servicemembers have died supporting Operation Inherent Resolve—one of them recently killed in action. Five others have been wounded. With thousands of servicemembers in support of Operation Inherent Resolve and attacks happening all over the world, the notion that a 14-year-old statute aimed at another enemy is any kind of a substitute for congressional authorization is insufficient. Operation Inherent Resolve warrants its own authorization not just because of its size and duration, because Americans are dying in pursuit of it, or because it is directed at an enemy that is a threat to our security; this mission warrants its own authorization because we want it to succeed. We want the world to know that the United States speaks with one voice.

Nearly a year ago, the Senate Foreign Relations Committee pressed the administration to come forward with a draft AUMF against ISIL. When it did not do so, the committee proceeded with its own AUMF, which spurred the administration to take action. Two months after that exercise, the administration sent up its own draft AUMF. That was more than 8 months ago. But efforts to produce an AUMF here in Congress have since stalled. In an effort to break the gridlock, as I mentioned, the Senator from Virginia, Mr. KAINE, and I introduced a resolution that we think represents a good compromise. It may not be perfect. It may represent only a starting point. But we need a starting point here, and we need to move forward. This issue is far too important not to try to get an agreement to move ahead.

I urge my colleagues to consider the importance of this operation against ISIL and the implications to foreign policies for many years ahead—specifically, the implications to this body, the Congress of the United States and the U.S. Senate. If we are not even willing to weigh in and authorize the use of force here, what does that say to our adversaries? What does that say to our allies? What does that say to the troops who are fighting on our behalf? How much longer can we go without an authorization for the use of force?

I wish to yield time to my colleague, the Senator from Virginia.

The PRESIDING OFFICER. The Senator from Virginia is recognized.

Mr. KAINE. Mr. President, I thank my colleague from Arizona for working so closely. This does not have to be a partisan issue. In fact, it should not be a partisan issue. My sense is that in this Congress, in both Houses, 80-plus percent of the Members believe strongly that the United States should be engaged in military action under some circumstances against this horrible threat of ISIL. Yet, despite that overwhelming consensus and despite the clear constitutional command in article I that we should not be at war without a vote of Congress, there has been a strange conspiracy of silence about this in the legislative branch for the last 16 months.

The Senator from Arizona and I introduced a resolution in January to authorize military force, building upon previous efforts in the Foreign Relations Committee, the President's submitted authorization. We did it knowing that it is not perfect, knowing that not everyone would agree with every word, but we did it to show that we can be bipartisan and stand up against a threat such as ISIL.

As the Senator did, let's review what has happened since August 8, 2014. The President on that day started airstrikes against ISIL and said he was

doing it for two reasons: first, to protect American personnel who were jeopardized at a consulate in Erbil, and second, to provide humanitarian support for members of a minority religious sect, the Yazidis, who were basically being hemmed in by ISIL in Sinjar in northern Iraq. Those were the two reasons.

At that point in August of 2014, ISIL and their activities were limited to Iraq and Syria. Sixteen months later, we have lost four American hostages who have been executed by ISIL. We have lost 10 American service men and women who were deployed to that theater. We have about 3,600 American troops who are deployed thousands of miles from home, risking their lives every day. We have spent $5 billion—$11 million a day—in the battle against ISIL. We have flown nearly 6,300 airstrikes with American aircraft against ISIL—ISIL, which was at first limited to Iraq and Syria and now has presence in Afghanistan, Libya, Yemen, and Somalia. They have undertaken attacks that they claim credit for in the Sinai in Egypt and in Lebanon.

This threat is mutating and growing. At the end of last week, on Friday the 13th, we saw the horror of ISIL with the grim assassination of innocents as they were enjoying dinner or going to music concerts or watching soccer games in Paris. ISIL put out a video a few days ago threatening similar attacks on Washington. ISIL is not going away. This is a threat.

The President started military action for a narrow and limited reason, but the threat has mutated. Like a cancer, it has grown, and it is now affecting nations all over the world. The question is, How long will Congress continue to be silent about this? I will say that I think this is a malady you can lay at the feet of both parties in both Houses. Congress has seemed to prefer a strategy of criticizing what the President is doing. And look, I am critical of some of the things the President is doing. In an earlier speech, the senior Senator from Arizona laid out some challenges with this strategy. But it is not enough for this body that has a constitutional authority in matters of war to just criticize the Commander in Chief. What we have done is sat on the sidelines and criticized, but we have not been willing either to vote to authorize what is going on, vote to stop what is going on, or vote to refine or revise what is going on. It is easy to be a critic. It is easy to sit in the stands and watch a play and say: Well, why didn't the coach call a different play? But we are not fans here, We are the owners of the team. We are the article I branch, and we are not supposed to be at war without a vote of Congress.

I will hand it back to my colleague from Arizona, and then perhaps I can say a few concluding words that would be more about the kind of emotional rather than the legal side of this as we are thinking about the challenges in Paris.

I think the events of last week—Egypt, Beirut, Paris—demonstrate that the voice of Congress is needed. The voice of Congress is needed to fulfill our article I responsibility. The voice of Congress is needed, as the Senator from Arizona mentioned, because we send a message by our voice to our allies, to the adversary, and to our troops. The voice of Congress is also needed because it has the effect of solving some of the problems Senator MCCAIN mentioned earlier. To the extent that the administration's strategy is not what we would want it to be, they have to present a strategy to Congress. We ask tough questions of the witnesses, and we refine it and it gets better. We do that all in the view of the American public so they can be educated about what is at stake. When you don't have the debate, you don't put before the American public the reasons for the involvement, and that is desperately needed.

With that, I thank my colleague from Arizona. I would like to say a few words at the end about why this is a matter of emotional significance to me.

I now defer to my colleague.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. FLAKE. Mr. President, I thank my colleague from Virginia.

Let me say that we both mentioned the importance of the message that needs to be sent from the U.S. Congress, the article I branch, the message to our troops who are fighting on our behalf and the message to our adversaries. They need to know that we are resolved, that we speak with one voice.

Let me talk for a second about the message to our allies. An authorization for use of force will dictate and will set the parameters for that use of force. Our allies need to know if we are all in or whether there are certain limitations. If we decide—if the Congress decides there are certain limitations to that use of force, our allies need to know that. They need to know their role and what they are required to do. That will be useful. If there are limitations, we need to spell them out. If there aren't, we need to let our adversaries know that as well.

But whatever the case, we need to debate this. We need to authorize this use of force. We have waited long enough. Frankly, we have waited far too long. We have asked the President for language. The President sent up language. I think that it is lacking in a few areas. I like some parts of it. But it needs to be debated here. If we asked the President for that language, then we need to take it up and actually do something with it. It is our responsibility. We are the article I branch. We are the branch that is supposed to declare war. We need to do that here.

Again, I invite my colleague from Virginia to close. I thank the President and say that it is time—it is well past time that we move on this. Hopefully the events of the past couple of weeks—the attacks that happened in Paris, the bombing of a plane, the other suicide bombings that have occurred—our commitment of new resources will convince us all that it is time to act here in Congress.

With that, I yield the floor.

Mr. KAINE. Mr. President, I thank the Senator from Arizona for joining together in this important area.

I had a sad epiphany on Friday as I was thinking about this. I think Senator FLAKE and I have children who are about the same age. I was thinking about young people—looking at our pages here, thinking about young people. Like many, when the attacks happened Friday, my first thoughts were, whom do I know in Paris? A lot of folks have relatives or have family or coworkers or former coworkers who were in Paris.

Like a lot of people, I got on the phone and I got on text to try to track down my niece. I have a niece who is a student at law school, a third-year law student. She is in Paris for a semester studying at the Sciences PO. She was in the restaurant area where the shootings occurred so close that she could hear them. She was not immediately affected, but she and her friends had to barricade themselves in the restaurant for a while, wondering what was going on.

We were able to determine that Elizabeth was fine. She assured all the family and the people who wanted to send her a plane ticket to come home that, no, she was fine. But over the weekend I started to think about how fine she really is, how fine our young people really are. Elizabeth was a Peace Corps volunteer in Cameroon a few years ago. After she came home, the village she lived in was essentially wiped out by Boko Haram. The next door neighbor, who was her protector and the protector of all the Peace Corps volunteers who came before, was killed, along with a lot of her other friends. Boko Haram has now pledged allegiance to ISIL.

She had the experience of losing friends in a terrorist attack in Cameroon, and now she has had the experience of being near a terrorist attack in Paris. It started to work on my conscience a little bit that this for her is now a norm. For me, at age 57, these events are not the norm. They are the extreme. But for Elizabeth or for my children—I have three kids, one in the military, and they all came of age after 9/11—we are living in a world that for so many of our young people, the norm is not peace and safety and complacency; the norm is war or terrorist attacks all over the globe. If that can be said about America's young people, it is certainly the case for young people in France and young people in Syria and all over the region.

I hate that we are living in a world where young people are starting to think this is the norm rather than the exception. It seems to me as an adult, as somebody in a leadership position,

that a part of what we need to do is rather than just allow us to drift without taking a position into the world where this is more and more normal, while acknowledging that we are humble people and we can't completely control our destiny, we have to take charge of a situation and not stand by and lob in criticism but try to shape it to the best of our ability. I think that was the genius of the drafters of the Constitution.

James Madison, a Virginian who drafted many of these provisions, was trying to do something incredibly radical. At the time, war was for the King or the Monarch or the Emperor, and Madison and the others who drafted the American Constitution, said: We are going to take that power to initiate war away from the Executive. Nobody else has really done this, and we are going to put the power in the hands of the people's elected representatives so that they will debate and soberly analyze when you should take that step of authorizing military action where, even under the best of circumstances, horrible things can happen and people can lose their lives.

Well, we have allowed this war to go on long enough without putting a congressional fingerprint on it. For our young people, for our troops, for our allies, and for our adversaries, it is my prayer that we in Congress will now take up that leadership mantle and try to shape this mutating and growing threat to the greatest degree we can.

With that, I yield the floor and again thank my colleague from Arizona.

The PRESIDING OFFICER (Mr. LANKFORD). The Senator from Montana.

Mr. DAINES. Mr. President, the Obama administration's war on energy isn't just a war on coal, it is a war on American jobs, American families, and our national security. That is why it is no surprise that the President's anti-energy agenda is gaining opposition from both sides of the aisle. I am thankful for the bipartisan leadership demonstrated by leader MCCONNELL, Senator CAPITO, two Republicans, as well as Senator MANCHIN, Senator HEITKAMP, two Democrats, in standing up against the President's harmful regulations on our Nation's coal-fired plants. I am proud to have joined them as a cosponsor of the two bipartisan resolutions to stop the EPA from imposing its anti-coal regulations.

The Congressional Review Act resolution of disapproval we are considering today will block the Obama administration's regulations on existing coal-fired plants. We are also seeing strong opposition from more than half of the States in the country, including my home State of Montana, which through three different lawsuits have requested an initial stay on the rule.

The Obama administration's reckless agenda is shutting down coal-fired powerplants across the United States. It is killing family waged jobs for union workers and for tribal members in Montana, and it is stifling investments that could lead to innovations to make coal even cleaner here in the United States. President Obama calls it the Clean Power Plan. It is not named correctly. It should be called the unaffordable energy plan. President Obama's unaffordable energy plan will have a negligible impact on global coal demand and global emissions, but it will lead to devastating consequences for affordable energy and these good-paying union and tribal jobs.

Here are the facts: The United States mines just 11 percent of the world's coal and consumes about 10.5 percent of the world's coal. Said another way, approximately 90 percent of all the coal that is mined and consumed occurs outside of the United States. Global demand for coal-fired energy will not disappear even if the United States were to shut down every last coal mine and coal-fired plant.

Coal use around the world has grown four times faster than renewables. There are plans for 1,200 coal plants in 59 countries. Let me say that again: 1,200 coal plants are planned in 59 countries, about three-quarters of which will be in China and India.

China alone consumes 4 billion tons of coal each year. Compare that to the United States, which is at 1 billion tons. In other words, China's coal consumption is four times greater than that of the United States. In fact, China will be building a new coal plant every 10 days for the next 10 years.

Look at Japan, for example. After the great earthquake in Japan, they lost their nuclear power capability. Japan is currently building 43 coal-fired plants.

By 2020, India may have built 2½ times as much coal capacity as the United States is about to lose.

The Obama administration's reckless war on energy will have little impact on global emissions, but here is what it will do: It will devastate significant parts of our economy. It will cause energy bills to skyrocket. It will be a loss of tax revenues for our schools, roads, and teachers. And it is going to destroy family-wage union and tribal jobs.

If this rule moves forward, countless coal-fired plants like the Colstrip powerplant in Montana will likely be shuttered, thereby putting thousands of jobs at risk. It will also make new coal-fired plants incredibly difficult to build.

The bottom line is this: Coal keeps the lights on in this country, and it will continue to power the world for decades to come. In fact, in my home State of Montana, it provides more than half of our electricity.

I have told my kids—we have 4 children—when they plug in their phones, odds are it is coal that is powering that phone. Rather than dismissing this reality, the United States should be on the cutting edge of technological advances in energy development. We should be leading the way in powering the world, not disengaging. Unfortunately, President Obama's out-of-touch regulations take us in the opposite direction, and the people who can afford it the least will be impacted the greatest.

I urge my Senate colleagues to join in this bipartisan effort to stop the President's job-killing regulations on affordable energy and join us in standing up for American energy independence. With what we have seen happen in the world in the last week, our national security and energy independence are tied together. Stand up for American jobs. Stand up for hard-working American families.

I thank the Presiding Officer.

Mr. DURBIN. Mr. President, there is a desperate need for the Senate to address one of the greatest national security and public health risks we face as a country, something that has the ability to affect up to 3.4 percent, or $260 billion, of U.S. economic output annually. What is this threat? It is climate change.

In its 2010 and 2014 Quadrennial Defense Reviews, the Department of Defense identified climate change as a risk that must be incorporated into the Nation's future defense planning. Last year, I held a hearing on this issue as chairman of the Defense Appropriations Subcommittee.

Pentagon experts explained the far-ranging effects of this threat . . . putting the U.S. at risk around the world . . . changing the landscape and vegetation of training areas . . . accelerating regional tensions and conflict. This summer, the Department issued a new report outlining in even greater detail the threats we face. It states, ''The Department of Defense sees climate change as a present security threat, not strictly a long-term risk.'' It goes on to say that climate change is introducing ''shocks and stressors'' in the Artic, the Middle East, Africa, Asia, and South America.

The report argues that global warming has had ''measurable impacts'' on vulnerable areas and regional conflicts, like Syria. Due to these impacts, military leaders are now forced to include ways to respond to the risks and challenges of climate change in their planning.

So if our Nation's senior military leaders are doing their part to address climate change, isn't it about time that we did the same? Well, we can start by supporting the Environmental Protection Agency's efforts to limit carbon pollution from power plants—which account for over 40 percent of U.S. carbon pollution emissions. The rules would cut carbon pollution from power plants by over 30 percent and reduce emissions of the pollutants that cause soot and smog by 25 percent. That is equivalent to removing over 160 million cars from the road—or almost two-thirds of U.S. passenger vehicles.

The rules will also drive new investment in clean energy generation and energy efficiency technologies while growing the economy, shrinking household electricity bills, and putting the

U.S. on a pathway to lead the world in creating new clean energy jobs. In addition, EPA's rules would lead to climate and health benefits worth up to $54 billion annually, including avoiding 3,600 premature deaths; 90,000 asthma attacks in children; and up to 3,400 heart attacks and hospital visits. This is a win-win for America.

The State of Illinois has already started taking steps to reduce its emissions by adopting laws that promote the use of renewable energy and energy efficiency.

Our ''community choice aggregation'' law allows Illinoisans to choose their energy providers. Since the program was started, more than 90 communities have chosen to use 100 percent renewable electricity sources for their residential power.

Illinois's Renewable Portfolio Standard requiring the State to use 25 percent renewable electricity resources by 2025 is one of the strongest in the country.

And State law also requires utilities to reduce Illinois's energy demand by 2 percent each year through efficiency improvements.

With the support of these laws, Illinois now employs approximately 100,000 people in the clean energy industry—and meeting EPA's new targets would put even more Illinoisans to work designing, manufacturing, and installing clean energy systems. Most importantly, EPA's rules will allow the U.S. to face the challenge of climate change head on instead of ignoring the problem until it is too late.

Leading scientists warn that the world is running out of time to make the cuts in carbon emissions that are needed to prevent irreversible damage to the Earth's climate. According to the United Nations's Intergovernmental Panel on Climate Change, at least half the world's energy supply needs to come from low-carbon sources such as wind, solar, and nuclear by 2050 if we are going to avoid catastrophic climate changes. That gives us just 35 years to save the planet for future generations.

This may seem like a long time, but we have a lot to do. We need to start now, and EPA's rules are a great first step.

But I know some of my colleagues are opposed to the EPA's plan and anything this administration does to acknowledge the existence of climate change. So they have introduced two resolutions of disapproval to prevent EPA from listening to over 97 percent of climate scientists and acting to reduce greenhouse gas emissions. If the resolutions were to become law, they would prohibit EPA from proposing any new regulations that are ''substantially the same'' as their current rules for new and existing power plants.

But even supporters of these resolutions have to admit that we have a responsibility to be good stewards of our planet.

So I have to ask, if you don't like what the President is doing, what is your plan to make sure we leave future generations with a brighter, cleaner future? How do you propose we address the threat of climate change? And what is your plan to make sure that America leads the world in creating the well-paying, green jobs of the future? Denying the harmful effects of greenhouse gas emissions, as these resolutions do, is shortsighted and declares war on science and on public health. So I hope my colleagues will vote ''no'' on the resolutions of disapproval from Senator MCCONNELL and Senator CAPITO.

The evidence is clear: we need to get serious about addressing the causes and effects of climate change. America has the resources and the inventiveness to create a new energy system that can protect our environment and economy and allow us to continue to choose our own destiny. But we can only do it by focusing on policies that address both the economic and environmental challenges facing the country by supporting critical, sustainable infrastructure. And we need to do it soon—our generation has a moral obligation to leave the world in as good of shape as what we inherited from our parents and grandparents.

Mr. LEAHY. Mr. President, there is irrefutable evidence, with more accumulating all the time, that humans have altered not just the weather of a region, but the climate of our entire planet.

From flooding felt across the country to extreme temperatures from north to south and east to west, these severe events are happening more and more frequently. Droughts are proliferating, wildfires are bigger, and more expensive, tropical storms and hurricanes are more intense. You can look no further than the damage wrought in Vermont in the wake of Tropical Storm Irene—a storm that had greatly weakened since first making landfall, but still so powerful as to deliver hundreds of millions of dollars in damage to our small State. It was enough to convince many Vermonters of the reality of climate change as they watched roads washed away and iconic covered bridges yanked out of the footings that had supported them for generations.

The science and the data by now are clear that human activities are a factor in the climate change that is unfolding all around us and in every corner of the globe, but common sense alone should tell us, as we look about us and see all of the carbon and pollution that is being pumped into our thin and fragile atmosphere, that all of these human activities are contributing factors.

We must address the root causes of climate change, and that is what the administration's Clean Power Plan, bolstered by the rules for new and existing power plants, will do.

Today, we won't vote about how to support our roads and bridges. We won't vote to further advance educational opportunities for young children. We won't vote on ways to keep our government—of the people, for the people—open. Rather, we are summoned to heed the call of pressure groups, wealthy corporations, and moneyed interests and vote on a resolution of disapproval that denies the impact and the causes of climate change. These challenges under the Congressional Review Act fail to recognize the true cost of carbon pollution. The Clean Power Plan sets clear and flexible rules that signal to the marketplace that we cannot continue to spew harmful carbon pollution without limit. It finally puts an end to the free lunch for the fossil fuels industry.

These rules offer commonsense solutions that will not only address climate change, but will protect Americans' health with cleaner air. They will also unleash the creativity and inventiveness of American entrepreneurship and support investments in new technology. They will further set the stage for our vibrant and job-rich energy future. The flexibility in these rules means that States and companies will be able to decide the best ways to reduce their carbon emissions, whether through gains in efficiency and new technologies or through an increased use of natural gas or renewable fuels.

Vermonters are encouraged by these rules and about the Clean Power Plan—not only because together these proposals move the country forward to finally address climate change, but also because the plan and rules recognize the important work that Vermont and other Northeast States have been doing for the last decade through the Regional Greenhouse Gas Initiative, RGGI, to cap carbon emissions and offer credits to cleaner producers. In Vermont, we can breathe easier knowing that under these rules, we will have less pollution blowing into the State from power plants in the Midwest.

The majority in the Senate would rather roll back some of the most meaningful environmental initiatives of our time, rather than help to improve the health of Americans across the country. The science is clear: Failing to address climate change will lead to more dangerous and costly extreme weather events and threaten the health and well-being of our families and our communities. We must stop putting the interests of polluters above public health. It is time to stop putting the future of our planet and of generations to come in danger and to act now to halt the devastating effects of climate change. Let us move beyond the energy policies of the last two centuries and move forward toward America's energy future.

Ms. COLLINS. Mr. President, strong clean air protections remain very important for our health and environment. I have voted previously to protect the EPA's ability to take action to reduce greenhouse gas emissions, and I will oppose the two resolutions of disapproval under the Congressional Review Act which would permanently

block EPA from limiting carbon pollution from existing and new fossil fuel fired powerplants.

Finalized on August 3, 2015, the Clean Power Plan sets the first national limits on carbon pollution from existing fossil fuel fired powerplants, the Nation's single largest stationary source of greenhouse gas emissions. According to EPA estimates, the Clean Power Plan will reduce carbon dioxide emissions from the electric power sector by 32 percent, from 2005 levels, by 2030. The final plan includes additional flexibility and provides States with more time to submit plans and to achieve compliance with the requirements. The standards to limit carbon dioxide for new, modified, or reconstructed powerplants were also finalized on August 3. On November 4, 18 States, including Maine, and several cities asked a Federal court to allow them to defend the Clean Power Plan against legal challenge.

I am encouraged that the emissions targets under the Clean Power Plan for Maine are more realistic than were originally proposed in recognition of the fact that Maine already ranks first in the Nation in the percentage reduction in greenhouse gases due to the State's participation in the Regional Greenhouse Gas Initiative, RGGI. Through RGGI, Maine has already made substantial progress in reducing carbon emissions, increasing energy efficiency, spurring the adoption of clean energy technologies, and improving air quality and public health. By contrast, the EPA's original proposal would have unfairly disadvantaged and asked more of States that took action early than it would have from States that had not yet acted to reduce their emissions. The final rule represents a considerable improvement in this regard.

I continue to have some concerns, however, with the Clean Power Plan's treatment of renewable biomass energy. Biomass energy is a sustainable, responsible, renewable, and economically significant energy source. Many States, including Maine, are relying on renewable biomass to meet their renewable energy goals. Because the final rule places the onus on States to demonstrate the eligibility of biomass for the Clean Power Plan, this approach will lead to more regulatory uncertainty. The EPA must appropriately recognize the carbon benefits of forest bioenergy in a way that helps States, mills, and the forest products industry and recognizes the carbon neutrality of wood. I will continue to seek regulatory certainty and clarity on this issue.

Climate change is a significant threat both here in the United States and around the world. It is a challenge that requires international cooperation, including from large emitters like China and India, to reduce greenhouse gas pollution worldwide. The upcoming climate summit in Paris provides a new opportunity for international efforts to curb greenhouse gas emissions in countries around the globe.

I have had the opportunity to meet in the field with some of the world's foremost climate scientists. I have traveled to Norway and to Alaska where I saw the dramatic loss of sea ice cover and the retreating Arctic glaciers. In Barrow, AK, on the shores of the Arctic Ocean, I saw telephone poles leaning over because the permafrost was melting, and I talked with native people who told me that they were seeing insects that had never before been this far north. I returned from this trip believing that U.S. leadership to slow climate change would be vitally important—in order to prevent the worst extreme weather events, shifts in agricultural production and disease patterns, and more air pollution.

For Maine, climate change poses a significant threat to our vast natural resources, from working forests, fishing, and agricultural industries, to tourism and recreation, as well as for public health. With heat waves, more extreme weather events, and sea level rise, the greenhouse gasses that drive climate change are a clear threat to our way of life. As a coastal State, Maine is particularly vulnerable to storm surges and flooding, and unpredictable changes in the Gulf of Maine threaten our iconic fisheries. Climate changes also raise significant public health concerns for Maine's citizens, from asthma to Lyme disease. Maine has one of the highest and fastest growing incident rates of Lyme disease, and its spread has been linked to higher temperatures that are ripe for deer ticks and their hosts. Sitting at the end of the air pollution tailpipe, Maine also has some of the highest rates of asthma in the country.

The Clean Air Act remains vital for protecting our health and the environment, and I will continue to support responsible and realistic efforts to reduce harmful pollution that affects us all.

Mrs. FEINSTEIN. Mr. President, I wish to speak in favor of the Clean Power Plan. This plan shows real American leadership when it comes to climate change, proof that we are taking responsibility for the world we leave to our children.

The debate over the Clean Power Plan is a question of whether we should take any action at all on climate change, a shocking question considering how long we have known about the ways we are harming the planet.

A recent report by Inside Climate News shows that Exxon scientists were warning the company's leadership about climate change as early as 1977. The Exxon scientists wrote: ''There is general scientific agreement that the most likely manner in which mankind is influencing the global climate is through carbon dioxide release from the burning of fossil fuels.''

Even before that, scientific advisers first cautioned the President about climate change in 1965—50 years ago this month—explaining that carbon dioxide from fossil fuels would ''almost certainly cause significant changes'' and ''could be deleterious from the point of view of human beings.''

And as far back as 1956, the New York Times reported early evidence connecting climate change with greenhouse gases from fossil fuel combustion. That prescient article concluded with a sad commentary: ''Coal and oil are still plentiful and cheap in many parts of the world, and there is every reason to believe that both will be consumed by industry as long as it pays to do so.''

Today, decades later, we not only have even more scientific evidence of climate change, we are actually seeing the real-world consequences of inaction.

This past September was the planet's warmest September in the 136-year history of weather records. The last 5 months in a row all set world records for hottest average temperatures.

Last year was the planet's hottest recorded year, and the last two decades include the 19 hottest years on record. Global sea levels rose 7 inches in the last century. And since the beginning of the industrial era, the acidity of the oceans has increased by 26 percent, which could destabilize the food chain.

My own home State of California is seeing firsthand the effects of higher temperatures and changing precipitation patterns. We are in the midst of an epic drought, which scientists say has been made 15 to 20 percent worse due to human-induced changes in the climate. This has made a drought into a disaster.

The Sierra snowpack, which accounts for a third of the State's drinking water, is down to 5 percent of its usual levels, the lowest in 500 years.

The wildfires in California are made even more terrifying by the hot, dry conditions. And the fire season now lasts 75 days longer than just 10 years ago, resulting in more and larger fires.

Southern California and the Central Valley have the worst air pollution in the country, home to six of the top seven regions of worst ozone smog pollution. This is made worse by hotter conditions.

But this is just the beginning. Unless we dramatically change course, children born today will witness calamitous changes to the world's climate systems in their lifetimes.

Sea levels will rise another 1 to 4 feet this century based on thermal expansion of the oceans and continued melting of land-based ice. This would inundate Miami Beach, the Ports of Los Angeles and Long Beach, and 85 percent of New Orleans.

In addition, a portion of the west Antarctic ice sheet large enough to raise global sea levels by 4 feet has begun an irreversible collapse. We have to slow down this process as much as possible and make sure the same doesn't happen to the rest of Antarctica or Greenland.

By midcentury, ice-free summers in the Arctic Ocean could be routine. The global volume of glaciers is projected

to be reduced by up to 85 percent this century. And massive numbers of species will go extinct because many plant species cannot shift their geographical ranges quickly enough to keep up with the rate of climate change.

This future is unacceptable. We cannot leave future generations a planet in such terrible disrepair.

I will not see California become a desert State, with aquifers overrun by salt water and coastal cities overwhelmed by storm surges. My colleagues must understand that we will never relent in the fight to save the planet.

I understand some States are afraid of an economy without fossil fuel extraction. But I assure you that transitioning to a new economy will be easier than coping with the devastating effects of global warming.

That brings me to the issue we are debating today: the Clean Power Plan. Although the final rules were only recently completed by the EPA, the Supreme Court set us on this path 8 years ago when they found in effect that the Clean Air Act compelled the regulation of greenhouse gases.

It puts us on a path to cut national emissions from the electricity sector by 32 percent over the next 15 years, using tools that each State can tailor to its own unique situation. It is a remarkably flexible regulatory approach that will harness the ingenuity of the American people to confront and roll back the effects of climate change.

I know this approach can work because I have seen it work in California. In the last 10 years, the State has implemented a number of changes: an economywide cap-and-trade program to return statewide emissions back to their 1990 levels by 2020; a renewable portfolio standard requiring 50 percent renewable electricity by 2030; regulations to double energy efficiency by 2030; a low carbon fuel standard to reduce greenhouse gas emissions from transportation fuels at least 10 percent by 2020; and a program to reach 1 million zero-emission vehicles by 2020.

Here is the thing: even though California is making these changes, the State continues to grow. The economy grew by 2.8 percent last year, with a 1.3 percentage point reduction in the unemployment rate. Both of those figures are better than the national average.

As a result, California is already on track to meet or exceed the Clean Power Plan's targets. And more importantly, California's leadership is showing others just how much we can accomplish.

Internationally, California's cap-and-trade program was used as a model for China's cities and provinces. Now, President Obama has leveraged the ambition of the Clean Power Plan to convince the Chinese to combine their regional cap-and-trade programs into a national carbon strategy.

This is how bold leadership achieves results. And this December in Paris, the Clean Power Plan will serve as the keystone of America's national climate ambitions, helping convince the world that we will be the leaders we promise to be in combatting climate change.

The Senate shouldn't be considering a rejection of the Clean Power Plan. Our real responsibility is to find ways to be even more ambitious.

Today's vote changes nothing. If Congress were to pass this resolution to disapprove of the Clean Power Plan, the President's veto would not be overridden. The Clean Power Plan will be implemented.

I believe the Clean Power Plan will not only reduce greenhouse gas emissions, but that process won't be nearly as difficult as some now fear. The Clean Power Plan will be seen as one of the many important steps we took to stabilize global temperatures.

I truly think we are making headway in the fight against global warming. Environmentally conscious individuals are marking changes in their own lives, and those are driving changes in the economy and in State policies. Those changes spurred reform on the national level, and now, we are seeing real action on the global stage.

Today's ''show vote'' on the Clean Power Plan won't diminish those successes.

Thank you.

Mr. REED. Mr. President, today I join many of my colleagues in opposing S.J. Res. 23 and S.J. Res 24.

These measures are an attack on the Clean Power Plan's carbon pollution protections for new and existing power plants.

Not only would these measures undo the health and economic benefits of the Clean Power Plan, they would also bar the EPA from issuing any standards in the future that are substantially similar.

The Clean Power Plan is an important step in reducing carbon pollution and taking action on climate change. It seeks to protect public health, cut energy costs for consumers, and create jobs in the clean energy economy. Additionally, these reductions—the first of its kind in our country for carbon pollution from power plants—are vital to meeting the commitments the United States has made to lowering emissions. Our country is not alone in making these commitments. China and other nations are also doing so—as will be discussed and hopefully furthered at the climate negotiations taking place next week in Paris. Because pollution crosses borders, protecting air quality is a globally shared responsibility.

Let me also emphasize that EPA has the legal authority to set standards on carbon pollution. In 2007, the Supreme Court ruled that the Clean Air Act authorizes the EPA to regulate greenhouse gas emissions from sources including power plants.

Despite criticism from the opposition, we have seen, since the enactment of the Clean Air Act 45 years ago, that economic growth and environmental protection are not mutually exclusive. According to the Department of Commerce, environmental laws including the Clean Air Act have made the U.S. the largest producer of environmental technologies in the world, supporting close to 1.7 million jobs and $44 billion in exports annually.

The Clean Power Plan will build on this progress and help accelerate the development of renewable energy, creating thousands of jobs in the clean energy sector.

The Energy Information Administration, EIA, finds that the Clean Power Plan will increase the use of renewable energy, leading to thousands of clean energy jobs across the country, including in my home State of Rhode Island.

The 2015 Rhode Island Clean Energy Jobs Report states that Rhode Island's clean energy economy currently supports nearly 10,000 jobs and suggests that the State is expected to add approximately 1,600 new clean energy jobs over the next year.

Renewables, like wind and solar, are already generating power reliably and cost-effectively across America. Wind power is already showing it can be integrated onto the grid at a large scale while ensuring reliability.

Wind power plays an important role in Clean Power Plan compliance, with wind electricity generation capacity more than tripling over 2013 levels by 2040, according to the EIA.

This is why in Rhode Island we are building the first offshore wind farm, which is projected to increase energy capacity for the residents of Block Island.

Our commitment to clean energy is not only cost-effective, but vital to supporting our Nation's health. Climate change is impacting air pollution, which can cause asthma attacks, cardiovascular disease, and premature death, and fostering extreme weather patterns such as heat and severe storms, droughts, wildfires, and flooding that can harm low-income communities disproportionately.

The Clean Power Plan makes America healthier by improving the well-being and productivity of our children, workforce, and seniors through such benefits as reducing asthma attacks in children, lowering the rate of hospital admissions, and reducing the number of missed school and work days.

Action is needed to protect not just our economy's growing renewable energy field, but also our public health. This is why I stand with my colleagues in supporting the Clean Power Plan.

We must make clean air a priority.

I urge my colleagues to support the Clean Air Act and vote ''no'' on both S.J. Res. 23 and S.J. Res 24.

Thank you.

The PRESIDING OFFICER. The Senator from Massachusetts.

SYRIAN REFUGEE CRISIS

Ms. WARREN. Mr. President, on Friday, ISIS terrorists massacred 129 people in Paris. Just the day before, ISIS terrorists massacred 43 people in Beirut. While these are merely the latest

in a series of horrific attacks launched by ISIS over the last few years, these twin tragedies have riveted the attention of the world.

These events test us. It is easy to proclaim that we are tough and brave and good-hearted when threats feel far away, but when those threats loom large and close by, our actions will strip away our tough talk and reveal who we really are. We face a choice—a choice either to lead the world by example or to turn our backs to the threats and the suffering around us. Last month Senator SHAHEEN, Senator DURBIN, Senator KLOBUCHAR, and I traveled to Europe to see the Syrian refugee crisis up close. I come to the Senate floor today to speak about what I saw and to try to shed some light on the choice we face.

Over the past 4 years, millions of people have fled their homes in Syria, running for their lives, searching for a future for themselves and their families. Official estimates indicate that 2 million Syrians are now living in Turkey, more than 1 million in Lebanon, and more than one-half million in Jordan. The true numbers are probably much larger.

The crisis has put an enormous economic and political strain on those countries. In late 2014, I traveled to Jordan where I visited a U.N. refugee processing center. I also met with Jordan's Foreign Minister, U.N. representatives, and American military personnel stationed in Amman. Even a year ago, it was clear that the humanitarian crisis was straining these host countries and that there was no end in sight.

In recent months, the crisis has accelerated. The steady stream of refugees fleeing Syria has become a flood, and that flood has swept across Europe. Every day refugees set out on a journey of hundreds of miles from Syria to the Turkish coast. When they arrive, they are met by human smugglers who charge $1,000 a head for a place on a shoddy, overloaded, plastic raft that is floated out to sea, hopefully in the direction of one of the Greek islands.

I visited one of those islands last month. Lesbos is only a few miles from the Turkish coast, but the risks of crossing are immense. The water is rough, the shoreline is rocky, and these overcrowded, paper-thin rafts are dangerously unsteady. Parents do their best to protect their children. Little ones are outfitted with blowup pool floaties as a substitute for lifejackets in the hope that if their rafts go down, a $1.99 pool toy will be enough to save the life of a small child—and the rafts do go down. According to some estimates, more than 500 people have died crossing the sea from Turkey to Greece so far this year.

Despite the risks, thousands make the trip every day. Greek Coast Guard officials told us that when refugees see a Coast Guard ship, they may even slash holes in their own rafts just so they will not be turned back.

I met with the mayor of Lesbos, who described how his tiny Greek island of 80,000 people has struggled to cope with those refugees who wash ashore—more than 100,000 people in October alone. Refugees are processed in reception centers on the island before boarding ferries to Athens, but Greece plainly lacks the resources necessary to handle these enormous numbers. Refugees pile into the reception centers, overflowing the facilities and sleeping in parks or beside the road. Last month, a volunteer doctor in Lesbos was quoted as saying: ''There are thousands of children here and their feet are literally rotting, they can't keep dry, they have high fevers, and they're standing in the pouring rain for days on end.'' Recently, the mayor told a local radio program that the island had run out of room to bury the dead.

Greece's overwhelmed registration system is not only a humanitarian crisis but also a security risk. In meeting after meeting, I asked Greek officials about security screening for these migrants, and time after time I heard the same answer. It was all Greece could do simply to fingerprint these individuals and write down their names before sending them off to Athens, and from there, to somewhere else in Europe. Now Greece's Interior Minister says that fingerprints taken from one of the Paris attackers may match someone who registered as a refugee at a Greek island entry point in early October. Whether this ultimately proves to be true, there is no question that a screening system that can do no more than confirm after the fact that a terrorist entered Europe is obviously not a screening system that is working.

The burden of dealing with Syrian refugees cannot fall on Greece alone. Greece and the other border countries dealing with this crisis need money and expertise to screen out security threats. Europe needs to provide that assistance as quickly as possible, and if we are serious about preventing another tragedy like the one in Paris, the United States must help. We must build adequate procedures to make sure that refugees, especially those who have entered Europe through this slipshod screening process, can enter the United States only after they have been thoroughly vetted and we are fully confident that they do not pose a risk to our Nation or our people.

The security threat is real and it must be addressed, but on our visit to Lesbos, we also had the chance to meet with refugees processed at the Moria reception center to see who most of them really are. From the outside, with its barbed wire and guard towers, Moria looks like a prison. At the entrance, the words ''Freedom For All'' are etched into the concrete encircling the facility, but speaking with refugees inside feels more like a 21st-century Ellis Island. We met doctors, teachers, civil engineers, and college students. We met young, educated, middle-class Syrians seeking freedom and opportunity for themselves and their families. They were seeking a safe refuge from ISIS, just like the rest of us.

The most heartbreaking cases are the unaccompanied children. These boys and girls are separated from the other refugees in a fenced-in outdoor dormitory area. I met a young girl in that fenced-in area—younger than my own granddaughters, sent out on this perilous journey alone. When I asked how old she was, she shyly held up seven fingers. I wondered, What could possibly possess parents to hand a 7-year-old girl and a wad of cash to human smugglers? What could possibly possess them to send a beloved child across the treacherous seas with no more protection than a pool floatie? What could make them send a child on a journey knowing that crime rings of sex slavery and organ harvesting prey on these children? What could possess them to send a little girl out alone with only the wildest, vaguest hope that she might make it through alive and find something—anything—better on the other side?

Today, we all know why parents would send a child on a journey alone. The events of the last week in Paris and in Beirut drive it home. The terrorists of ISIS—enemies of Islam and of all modern civilization, butchers who rape, torture, and execute women and children, who blow themselves up in a lunatic effort to kill as many people as possible—these terrorists have spent years torturing the people of Syria.

And what about the Syrian Government? President Bashar al-Assad has spent years bombing his own people. Day after day, month after month, year after year, Syrian civilians have been caught in the middle, subjected to suicide attacks, car bombings, and hotel bombings at the hands of ISIS or Assad or this faction or that faction—each assault more senseless than the last. Day after day, month after month, year after year, mothers, fathers, children, and grandparents are slaughtered.

In the wake of the murders in Paris and in Beirut last week, people in America, in Europe, and throughout the world are fearful. Millions of Syrians are fearful as well, terrified by the reality of their daily lives, terrified that their last avenue of escape from the horrors of ISIS will be closed, and terrified that the world will turn its back on them and their children.

Some politicians have already moved in that direction, proposing to close our country for people fleeing the massacre in Syria, but with millions of Syrian refugees already in Europe, already carrying European passports, already able to travel to the United States—and with more moving across Europe every day—that is not a real plan to keep us safe, and that is not who we are. We are a country of immigrants and refugees, a country made strong by our diversity, a country founded by those crossing the sea, fleeing religious persecution and seeking

religious freedom. We are not a nation that delivers children back into the hands of ISIS murderers because some politician doesn't like their religion, and we are not a nation that backs down out of fear.

Our first responsibility is to protect this country. We must embrace that fundamental obligation, but we do not make ourselves safer by ignoring our common humanity and turning away from our moral obligation.

ISIS has shown itself to the world. We cannot and we will not abandon the people of France to this butchery, we cannot and we will not abandon the people of Lebanon to this butchery, and we cannot and we must not abandon the people of Syria to this butchery. The terrorists in Paris and in Beirut remind us that the hate of a few can alter the lives of many. Now we have a chance to affirm a different message—a message that we are a courageous people who will stand strong in the face of terrorism. We have the courage to affirm our commitment to a world of open minds and open hearts. This must be our choice—the same choice that has been made over and over again by every generation of Americans. This is always our choice. It is the reason the people of Syria and people all around this world look to us for hope. It is the reason ISIS despises us, and it is the reason we will defeat them.

Thank you, Mr. President.

The PRESIDING OFFICER. The Senator from New Mexico.

Mr. UDALL. Mr. President, let me thank my colleague Senator WARREN for those very eloquent remarks. She and the Senators she traveled with have taught us a lot. We have heard her comments, and she is right. Our values in the United States of America are accepting and open to refugees who flee violence and persecution, and that is the country we are.

So I thank very much the Senator from Massachusetts for her remarks. As I have said, we all have learned very much from her and the trip she took and from what she shared with us.

TERRORIST ATTACKS AGAINST FRANCE

Mr. President, before I begin my remarks today, in addition to the comments I have just made, I wanted to first pause for just a moment and say a few words about the Paris attacks last Friday.

The people of New Mexico and the people the world over are grieving for those who were killed and injured in the horrific attacks that have just been spoken about by Senator WARREN and others who have come to the floor today. Earlier today, we had a moment of silence to recognize them. I just want to say that our thoughts are with the French people, and we are united in our resolve to fight the murderous thugs of terrorism who thrive on hate, intolerance, and fear.

I met today with the French Ambassador to give him New Mexicans' heartfelt condolences. All of us on the Senate Foreign Relations Committee and the Senate leadership met today with the French Ambassador to say to him that we stand together with him against these murderous thugs.

Mr. President, today, because we are on this resolution of disapproval, we are discussing the issue of climate change and global warming. It is one of our greatest challenges and we have a choice. We can deny the reality. We can ignore the danger to our planet, to our economy, and to our security—that is one choice—or we can move forward. We can work together. We can find common ground with a diversified energy portfolio that includes clean energy, with an energy policy that makes sense, that creates jobs, that protects the environment, and that will keep our Nation strong. That is the choice we should make, that is the choice we must make and, once again, that is the choice we are failing to make.

This year is almost over. It will likely be the warmest year on record. The current record holder is last year—2014. The impact is clear. People are seeing it all over the world, with rising sea levels and increased droughts.

The Southwest is at the eye of the storm. In New Mexico, temperatures are rising 50 percent faster than the global average, not just this year or last year but for decades. This has strained my State with terrible droughts and wildfires. When the rain does come, it often brings floods as well. In 2011, we had the largest fire in our State's history—the Las Conchas fire. Then, in 2012—just a year later—we had an even larger wildfire. The Whitewater-Baldy fire burned 259,000 acres. We have seen massive droughts. Our crops and natural resources are at risk.

Through all of this, Congress has failed to act. There have been many attempts in the past. We have had many bipartisan bills introduced in the Senate, including the McCain-Lieberman cap-and-trade proposal, the Bingaman-Specter cap-and-trade proposal, the Cantwell-Collins cap-and-dividend proposal, the Lieberman-Warner bill, the Kerry-Graham bill, and others. In the House of Representatives, I had my own bipartisan bill with Representative Tom Petri. In 2005, over half the Senate voted on a resolution affirming the need to implement mandatory reductions of greenhouse gas emissions in the United States. Each and every time Congress failed to make it to the finish line—failed to pass comprehensive legislation in both Houses to curb our greenhouse gas emissions. Meanwhile, the clock is ticking. Time is growing short, and we are going from bad to worse.

So the President and the EPA have used their authority under the Clean Air Act to implement restrictions and to control the pollution. They have done what needs to be done with the support of many of us in Congress and, as we know, with the support of the American people. The proposals are reasonable, they are critical, and they will make a difference to restricting emissions from new and existing powerplants. Some in the Senate have argued these proposals do too much and others argue they don't do enough, but instead of rolling up our sleeves and developing a comprehensive energy and climate strategy of our own, we are here today voting on a Republican resolution of disapproval of the Clean Power Plan rules. What a waste of our time, the American people's time, and the time we have left to seriously address this very important problem.

I started this speech talking about choices and again we are making the wrong one. We are wasting time when we should be working together and developing proposals that would address global warming and help push forward clean energy jobs. There are now more solar jobs in the United States than coal jobs. There are currently more than 98 solar companies in New Mexico, employing 1,600 people. Renewable energy jobs and solutions are in abundance in New Mexico, and this is true for many other States. A renewable electricity standard, which I have long fought for, would create 300,000 jobs. Most of these jobs are high-paying, local, and cannot be shipped overseas.

Congress could be using this time moving forward. Our country can lead the world in a clean energy economy. We have the technology, we have the resources, and we need the commitment. Instead, the Republican leadership in Congress is doubling down, trying to overturn the President and derailing the progress we are making. They do so knowing they will fail, knowing the President will veto it, and knowing the votes aren't there to override the veto. Once again, this is a lot of sound, a lot of fury, and a lot of wasted time. It makes a false claim that support for climate action does not exist in the United States, and it does so ahead of the Paris Climate Conference, where 153 countries, it is my understanding at this point, are going to gather and sign on to positive climate proposals.

Action on climate change is under attack in the U.S. Senate. That is true, make no mistake about it, but also make no mistake that all of these attacks will fail.

I have led the charge in our Appropriations Committee, on the subcommittee of which I am the ranking member, to fight against dangerous environmental riders. I will continue to fight them, and they will fail.

My colleagues and I are here today in opposition to this resolution of disapproval and we also are here to ask that we move on, to ask that we work together and face the very real threat of climate change.

We will go to Paris next month, and we will get a solid, strong agreement from the international community. The United States will continue to lead on this issue even if our Republican colleagues continue to fight it each step of the way.

With that, I yield the floor to my good friend from Massachusetts Senator ED MARKEY, who has been an incredible champion in terms of working legislation and who had a big part a Congress or two ago getting climate change legislation out of the House of Representatives.

I yield the floor.

The PRESIDING OFFICER. The Senator from Massachusetts.

Mr. MARKEY. Mr. President, I thank the Senator from New Mexico for his historic leadership on these issues.

The consequences of climate change are evidenced around the world. Temperatures are increasing, sea level is rising, glaciers are receding, rainfall is changing, and people's health is suffering. These impacts can worsen the tensions that are fueling terrorism and conflicts around the world. The Pentagon and the CIA have both issued reports that found that instability from changes in the climate can contribute to conditions that breed insurgencies.

As we look around the world, we can see how climate change is a threat multiplier and a catalyst for conflict today. That is why partnering with developing countries so they can grow their economies in a climate-smart way is a crucial part of our foreign policy. That is why we need to support the Green Climate Fund and other financing and aid programs that will help countries increase their resiliency in the face of climate change impacts, because those impacts are very real, and scientists agree that it is humans who are causing them.

The year 2014 was the hottest year in a global record that stretches back to 1880. The first half of this year is now the hottest January to June in that same record. As temperatures continue to soar upwards on land, our seas are getting hotter as well.

While we have to deal with the consequences of climate change that are already gripping our Nation and our planet, there is still time to prevent future catastrophes. That is why President Obama has been using the tool he has in the Clean Air Act to reduce carbon pollution. He has used it to further increase the fuel efficiency of America's cars and trucks.

He has released the historic Clean Power Plan, but Republicans want to undo that plan with the Congressional Review Act. Undoing the Clean Power Plan would be bad for our economy, for our national security, and for our health. The Clean Power Plan captures the scientific urgency and the economic opportunity needed to avoid the worst consequences of climate change. The Clean Power Plan provides flexibility to the States to find solutions to reducing carbon pollution that work best for their situations. The Clean Power Plan will be at the heart of a supercharged renewables renaissance in every single State in the Union. It will create jobs and save consumers billions on their electricity bills. It will avert almost 100,000 asthma attacks a year and prevent thousands of premature deaths. The climate and health benefits of this rule are estimated to be $34 to $54 billion every year by the year 2030.

With the Clean Power Plan, we can create wealth and health for our country. In Massachusetts, we know firsthand that by cutting carbon pollution, we can grow our economy and save families money. It is a formula that works. We did it through the Regional Greenhouse Gas Initiative, or RGGI, which is a model for the Clean Power Plan. Since the program went into effect in 2009, the program has added on the order of $3 billion worth of economic value to participating States and it has saved consumers more than $1.5 billion.

Massachusetts now has nearly 100,000 people working in the clean energy sector in our State. It is the fastest growing job-creation sector in our economy. All of this has happened just over the last 10 years.

As a nation, we have a choice: We can continue to pump harmful carbon pollution into our skies and foreign oil into our cars or we can pump new life into our economy, creating jobs and saving Americans money on their energy bills.

Climate deniers call this plan a war on coal, but it is really a war on carbon pollution. The Clean Power Plan is a signal to the marketplace to invest in clean energy, and it is a signal to the world that America will lead the global effort for climate action and be the global leader. You cannot preach temperance from a bar stool. If we want to be a leader, we have to stand up and say: Here is what we are going to do.

By reducing U.S. carbon pollution, the United States will be the leader and not the laggard in the international climate negotiations beginning at the end of this month in Paris. U.S. leadership has helped secure climate pledges for Paris from more than 150 countries. We now have the opportunity to forge an international climate agreement that includes all countries doing their fair share for a global solution to global warming.

We aren't tackling climate change alone. Efforts are underway in legislatures around the world to develop laws and develop national responses to climate change. But without the Clean Power Plan, America would not be able to have any credibility in Paris in 2½ weeks in saying: We are going to reduce our greenhouse gases. You must, as another sovereign country, reduce your greenhouse gases.

Coal companies, the Koch brothers, and other allies of the fossil fuel industry may oppose the United States and the world acting on climate, but scientific facts, economic opportunity, and history are not on their side.

Today we are debating a resolution to overturn the Clean Power Plan, and should it pass, the President will veto it and Republicans won't have the votes to overturn the veto. What the Republicans are doing today is nothing more than a political Kabuki theater. Instead of wasting time tilting at legislative windmills, we should be passing tax extenders to help build more wind turbines and more solar panels in the United States of America. That is what we should be debating out here on the floor of the Senate today.

If the Republicans don't like the Clean Power Plan, then I ask them what is their plan to prevent climate change, expand energy, and create jobs. That is the real question we should be debating on the Senate floor today. The reality is that they have no plan. The reality is that as a party they are in denial that the planet is dangerously warming. The reality is that they want to keep the wind and solar tax breaks off of the books, giving incentives for Americans to innovate in this area. The reality is that the fossil fuel industry is still driving the agenda of the Republican Party here in Congress. That is the reality. That is why we are having this vote here on the floor of the Senate today, because the Republican Party is siding with Big Coal and Big Fossil Fuel in order to keep us on a pathway that does not allow us to unleash this renewable energy revolution.

The green generation—the young generation in our country—wants to be the leaders. They are innovators and they can find investors to help them with their new technology. They are professors and they are producers who want to work together in order to unleash this revolution.

The next generation already did this with telecommunications. They moved us from a black rotary dial phone to an iPhone in about 8 years. The technology was locked up. There was no innovation that was possible. The utility industry that was the telephone industry had a stake in everyone still renting a black rotary dial phone. The utility industry, which is the electrical generating industry, has a stake in slowing down the pace at which we move to wind and solar and to new technologies of the 21st century that are the match for the iPhone in the telecommunications sector. That is what we are debating on the floor—the path to the future. That is what we are debating on the floor—the 19th-century technologies versus the 21st-century technologies.

That is what we are debating on the floor—the status quo or an innovation economy where young people are able to move into these new sectors and invent these new technologies and exploit them around the planet. We did that in telecommunications. It is branded Google, eBay, Amazon and YouTube, around the planet. We did it in the blink of an eye once we unleashed the potential. We can do the same in the green energy sector, but defeating the Clean Power Plan vote the Republicans brought out on the floor is the key to unleashing this potential not only in our own country but across the planet.

I urge a ''no'' vote on this historic set of regulations that President Obama is

putting on the books. It is what will give us credibility when he goes to Paris in the beginning of December in order to negotiate this historic deal.

Mr. President, I yield back the remainder of my time.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Thank you very much, Mr. President.

I rise today to oppose the Congressional Review Act to derail the Clean Power Plan.

It was Theodore Roosevelt who said, ''Of all the questions that can come before this nation, short of the actual preservation of its existence in a great war, there is none which compares in importance with the great central task of leaving this land even a better land for our descendants than it is for us.''

Theodore Roosevelt was at the core of the conservation movement in the Republican Party. It is a Republican Party far removed from the party it is today. Roosevelt's determination to ''leave this land a little better'' has been replaced by complete abdication of responsible leadership for the stewardship of our planet.

The Clean Power Plan that this resolution concerns is the single most significant step this country has taken now or in the past to combat climate change. Many citizens do not know that over the past few decades we have seen the carbon pollution rise in the atmosphere, and it is now in the upper level of 400 parts per million. As that carbon dioxide concentrates and comes to a higher level, it traps the heat, and that heat is producing profound consequences. We haven't had this level of carbon pollution for 3 million years—long before humans walked this planet and when sea levels were as much as 80 feet higher than they are today. So this is no ivory tower issue; it is very real, not only in the measurement of pollution in the air but in the facts on the ground.

In my home State of Oregon, we are seeing impacts on our forests. We see impacts of pine beetles spreading and creating a big red zone of dead trees. We see it in impacts in terms of fiercer forest fires and a longer forest fire season—a season that has grown 60 days in 40 years. We see it in terms of the diminishing snowpack in the Cascades, which not only makes our trout streams warmer and smaller, but it decreases the water we have for agriculture, and we have a massive drought year after year. The three worst ever droughts have been in the last 15 years in the Klamath Basin in the south. We see it in terms of our sea production—our oysters, which are struggling to create shells when they are small because the Pacific Ocean is 30 percent more acidic now than it was before the industrial revolution.

Carbon pollution is really a war on rural America. It is a war on forestry, our fishing, and our farming, and that cannot be allowed to stand.

There is no question that we have conclusive evidence of global warming. Globally, 14 of the 15 warmest years on record have all occurred in the last 15 years. They have all occurred in this century, and 2014 was the warmest year ever on a global basis. This year, 2015, is on course to be even warmer yet. This translates into damage to our rural economy not only in terms of our forestry, our fishing, and our farming, but also in terms of the economic impact that occurs from the damage. The damage we see today is going to only get worse in the years ahead. These rural industries will suffer, and American livelihoods will suffer.

It is irresponsible to continue business as usual. We need to dramatically change course. We need to pivot from a fossil fuel energy economy to a renewable energy economy.

The Clean Power Plan sets achievable standards to reduce carbon dioxide emissions by 32 percent of 2005 levels by the year 2030—strong but achievable standards. We have the technology today, but do we have the political will? Or is this body going to be ensnared by the powerful lobbying of the Koch brothers and the fossil fuel industry, which have announced they are going to spend $1 billion in the next election to make sure their policies are the ones adopted in this room and that their policies will guide our future.

Well, how about this? How about we have policies that are the policies related to the welfare of American citizens, related to the welfare of our farmers, our fishing industry, and our forest industry? How about we fight for rural America instead of being led astray by the Koch brothers and the fossil fuel industry?

We know the Clean Power Plan will have a powerful, positive impact that will provide significant public health benefits, reducing premature deaths from powerplant emissions by nearly 90 percent, and that will avoid 3,600 premature deaths, will lead to 90,000 fewer asthma attacks for children, and will prevent 300,000 missed work and school days. We know this plan will create tens of thousands of jobs while driving new investments in cleaner, more modern, and more efficient technologies. We know it will save the American family nearly $85 on their annual energy bill.

Fewer deaths are a good thing. More jobs are a good thing. Saving families money is a good thing. So let's fight for good things. Let's not follow the path my Republican colleagues are proposing, in which they are saying no to reducing bills for families, they are saying no to creating good-paying jobs, they are saying no to improving public health, and they are saying no to saving lives. Well, let's say yes.

It has been said that we are the first generation to feel the impacts of global warming and the last generation that can do something about it. This is a moral challenge to our generation of humans on this planet—on our beautiful blue-green planet. This responsibility rests not with some future generation or some past generation but with all of us right now. This resolution to try to torpedo the most effective measure America has ever adopted in the past or in the present is, in fact, deeply, deeply misguided.

Let's turn back to the test President Theodore Roosevelt put before us when he said that there is no more important mission than leaving this land even a better land for our descendants than it is for us. Our children and our children's children are counting on us to act. They are counting on us to save jobs, to save lives, and to save our planet. We must not fail this test.

I yield the floor.

The PRESIDING OFFICER. The Senator from Hawaii.

Mr. SCHATZ. Mr. President, I rise to speak in support of the administration's Clean Power Plan. I think the first thing that must be said—and said over and over, especially this week, with so many critical issues facing our country, with appropriations bills pending, with the transportation bill pending, with perhaps a motion to go to conference on the education reauthorization—is that we are wasting floor time, that this piece of legislation has no chance. The threshold under the Congressional Review Act is 51 votes, and while it is very likely the threshold will be met, let's take this through the legislative process.

This will eventually, if it passes the House—when it passes the House—reach the President's desk. Can you imagine that President Obama is going to enact legislation that overturns his signature and environmental achievement? Whether you agree or not with the Clean Power Plan, the idea that he is going to sign this into law is preposterous. So it faces a veto. So then the only question is this: Can you get 67 votes in the Senate? And the answer is a resounding no.

So let's put this in context. This is an important debate, but this is not likely to result in any kind of legislation one way or the other. But here is what this is about. The Clean Air Act requires the EPA—it doesn't authorize the EPA; it requires the EPA—to regulate airborne pollutants. So it doesn't allow the EPA to pick among airborne pollutants and place limits; it requires that any airborne pollutant have limits.

In 2007 the Supreme Court of the United States determined that CO_2—carbon—was in fact an airborne pollutant, which is kind of intuitive and consistent with what every expert in the field understands. So the only question is this: Do you believe in the Clean Air Act? Do you believe there should be an exception in the Clean Air Act for carbon pollution? Do you disagree with the consensus among scientists that carbon is a pollutant? That is what we are voting on today. So carbon is a pollutant, and this is a pretty straightforward policy issue, and it is a pretty straightforward scientific issue. The EPA must regulate emissions.

Let's also understand how CRA works. This vehicle is to overturn the Clean Power Plan. The way the statute runs is that it doesn't give the administration—or any future administration—any flexibility to do a different version of the same thing. It prohibits the administration from doing anything that is ''substantially similar.''

So the difficulty, of course, is that hasn't actually been tested too many times in court. But the assumption most attorneys on both sides of this question are operating under is that it would not just invalidate this Clean Power Plan but prohibit the EPA from regulating carbon on a going-forward basis.

So if you have a specific concern, if you have a specific objection to the way this thing is administered, that is fair enough, but you don't have the ability to tell EPA to go and do this again and submit it again. It will actually be illegal under a CRA. So CRA is an extremely blunt instrument. It is an extremely radical thing to do, and that is what we are contending with.

So why, if all of that is true, is there a CRA vote this week? My instinct is that it is designed to create confusion, to kick up dust, and to raise the possibility that the American government does not stand behind the Clean Power Plan as we go into the final throes of the Paris climate talks.

Now, we have an opportunity here. We have 160 countries for the first time in history committing to different versions—all executed from within their own governmental systems, but they are all committing to different versions—of emissions reductions. Some of them have cap and trade, some have incentives, some of them have regulations, some have financing programs, but all of them are committing to various programs to reduce carbon emissions. This is a significant international achievement.

In previous climate negotiations, folks who opposed international climate action would actually go to these negotiations to create confusion, to imply the American government was somehow not going to stand by its commitments. That is why I wanted to go through how the CRA works and what the inevitable outcome of this piece of legislation will be, which is that it will be vetoed and that veto will be sustained.

The hope, I think, among people who oppose international climate action is that there is enough confusion going into Paris that someone can point to America's national legislature and say: Well, there is no consensus. That is true. There is no political consensus. But there is no practical way to overturn the Clean Power Plan, and there is no going back. I mean that is the most important aspect of this. This year, 2015, of all the new power generation in the United States, the majority of it was clean energy. The majority of new power generation in the United States was clean energy—how exciting.

I am not exactly sure why people fear the clean energy future so much. I understand we need to make a transition. The State of Hawaii depends on low-sulfur fuel oil for the vast majority of its electricity. I understand we can't make that transition overnight, and I understand there is going to be disruption and there is going to be difficulty as we make a transformation of this magnitude, but we are going to have to make this transformation. It doesn't have to be a bad thing. It can create innovation jobs, it can attract investment capital, and it can be a new American economy.

This is already happening. This is not pie in the sky any more. This is already underway. The majority of new power generation in the United States is clean energy. Let's keep the momentum up. Let's support the Clean Power Plan.

I yield the floor.

The PRESIDING OFFICER. The Senator from Louisiana.

Mr. VITTER. Mr. President, I ask unanimous consent to speak for up to 5 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Louisiana is recognized.

Mr. VITTER. Mr. President, I first want to thank very much the Senator from Delaware for his courtesy in this regard.

(The remarks of Mr. VITTER pertaining to the introduction of S. 2284 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

Mr. VITTER. I yield the floor.

The PRESIDING OFFICER. The Senator from Delaware.

SYRIAN REFUGEES

Mr. CARPER. Mr. President, I come to the floor to address the issue of climate change, but I am inclined to follow up on comments by our friend from Louisiana who has just spoken.

As the Presiding Officer knows, I am no longer the chairman of the homeland security committee, but I am the senior Democrat. I have served on the committee for about 15 years. The issue of the security of our homeland, whether from cyber attacks or terrorists or any other of number of threats, is something I care a whole lot about.

I am sure all of us recall when we had a special visitor who addressed a joint session of the Congress on the other side of the Capitol. His name is Francis, and he is the Pope. It was a Papal visit. He addressed a joint session of Congress. I am not Catholic, but I was moved, and I know a lot of our colleagues were moved, especially when he invoked the Golden Rule in front of a national television audience, when he called on all of us to treat other people the way we would want to be treated, and also when he invoked the words of Matthew 25: When I was hungry did you feed me, when I was naked did you clothe me, when I was thirsty did you give me to drink, when I was a stranger in your land did you take me in?

When I hear of the prospect of a thousand or so Syrian refugees coming to this country this year—and more next year—I think of the desperate plight of people who are trying to escape the hellacious situation in Syria and who have been living, in some cases months or years, in refugee camps. What kind of moral imperative do we have with respect to them? What kind of moral imperative? What kind of moral imperative do we have at the same time to ensure that the folks we allow to come in as refugees to this country—that we are going to protect those of us who live here from possible threats that might be caused by that immigration?

This week I learned a few things I didn't know before. There is a lot more I have to learn. Among the things I have learned this week is that when refugees—whether in Turkey or someplace else in that or the other side of the world, in Pakistan or any other place—seek to come to this country, they don't get to just come. It is not like they say: I am applying under refugee status to come to the United States, and I would like to come this week or this month or even this year. The average wait for folks in refugee status trying to get someplace out of a refugee camp—and it could be here, but especially here, the average wait for refugees is not a week, it is not a month, it is not a year. It is 1.5 years. For those of Syrian descent, the wait could be even longer.

I am not going to go through all the hurdles folks have to go through, but it is a screening process that begins not with the Department of Homeland Security in this country. It is a screening process that begins way before that with the U.N. High Commissioner for Refugees. They first register refugees, they gather biometric data, and they gather other background information. Only those who pass the U.N. assessment are ever referred to the United States for possible resettlement. Where they are looking to accept maybe 1,000 Syrian refugees this year, the U.N. High Commissioner for Refugees may interview 3,000, 4,000, 5,000 refugees, or more, to come up with a list of 1,000 that we would even consider. Those refugees are interviewed not when they get off a plane here, but overseas, before they ever get on a plane. Before they ever get on a plane, they go through multiple background checks and vetting and use biographical checks conducted by the State Department, security advisory opinions from intelligence and other agencies for certain cases, National Counterterrorism Center checks with intelligence agencies for support, the Department of Homeland Security and the FBI biometrics checks, and the Department of Defense biometric screening.

Then, after going through all of that, if they get here, they have the opportunity to be interviewed again face-to-

face by the Department of Homeland Security folks who are trained to interview people alleging to be refugees. They could be something else. Then, if they get approved to stay here as a refugee, we continue to monitor them for an extended period of time.

A year or so ago there was great concern with Ebola. We had a lot of people coming across the border from Mexico, and they were going to have Ebola and infect us all and a lot of people were going to die. Not one American died from Ebola contracted here.

So I would have us take a deep breath, try to gather the facts, and really understand what somebody has to go through as a refugee to get here. It is not overnight; it is not a 1-week or a 1-month deal. If I were a bad guy wanting to come here and create mischief, I sure wouldn't go as a refugee. I wouldn't cool my jets for a year and a half, trying to get through that process. I would find another way.

Mr. President, that is not what I wanted to talk about. I want to talk a bit about one of our favorite subjects, climate change and global warming.

I will start off with a map here of New Jersey, Maryland, Philadelphia. In between Philadelphia and the Delmarva Peninsula is my State, the State of Delaware. This is probably hard to see from up there or on television, but the outline of this map is Delaware today. A couple hundred years from now, if we don't continue to make progress in reducing carbon dioxide, Delaware will not look like the outline of that map. It is not going to look like the green. It will be somewhere between the outline of that map and the green that we see here that depicts Delaware. For us, this is real. These are our homes, these are our farms, the places we live and raise our families. So for us, this is something that is serious.

Long before I ever moved to Delaware, I served as a naval flight officer in the Navy during the Vietnam war and served in Southeast Asia and other places. Long before I ever did that, long before I went to Ohio State to study economics, long before I moved to Virginia, I was born in West Virginia. I was born in a coal mining town. My dad, coming out of Shady Spring High School in Beaver, WV, was for a short while a coal miner. Even after my sister and I had grown up and left West Virginia—she after being in the third grade and I in the second grade—we would come back and visit my mom's parents, my grandparents, in Beaver, WV, right outside of Beckley. A coal miner named Mr. Meaders lived next door to my grandparents. He had a big field of about 2 to 4 acres right next to my grandparents' house. He would come home from work at about 4 or 5 in the afternoon. He always had his coal mining clothes on. He had mined coal for decades. He also owned a cow, and he kept his cow in a shed on that 3-, 4-, 5-acre field. When he would come home, he would clean up, and then he would milk his cow and he would let us milk his cow. Mr. Meaders didn't make his living off the milk from that cow. He made his living as a coal miner. And he wasn't the only person in West Virginia who made their living mining coal. There are still a number of people in West Virginia whose income is derived from mining coal.

West Virginia is one of the top five coal-producing States in the country, among Wyoming, Kentucky, Illinois, and Pennsylvania. The number of people employed in the coal mining business in each of those States today—as opposed to when I my sister and I were little kids running out with Mr. Meaders to milk his cow—has come down a whole lot. But for these people, these are good-paying, life-sustaining jobs for their families.

So we try to figure out—not just in Delaware, not just in America, but around the world—how do we reduce the threat from high levels of carbon in our atmosphere? Is there a way to do that? Is there a way to do that that is also respectful of the needs of people in Wyoming, West Virginia, Pennsylvania, Illinois, and Kentucky, who are trying to make a living and all they want to do is mine coal? That is what they have done maybe all their lives and want to be able to continue to do that. The Golden Rule—again, is there a way we can somehow adopt a policy or policies that are mindful of their needs to be able to sustain and support their own families, and at the same time to make sure in doing that, they don't endanger the rest of us? That is the dilemma we are in. We have a moral imperative to look out for the coal miners and their families in those States I mentioned, and we have a moral imperative to look out for everybody else, including the folks here and up and down the east coast and west coast, and others whose lives are going to be changed if we don't continue to make progress. We want to continue to make progress with respect to reducing the amount of carbon in our air.

I think we can try to at least address both moral imperatives—to try to make sure the folks who for generations have mined coal can continue to do that in a way that is not just economically sustainable but environmentally sustainable, and do so in a way that actually looks out for the legitimate interests of a whole lot of us who come from States where we don't mine coal.

One of the biggest sources of carbon dioxide in our atmosphere continues to be coal-fired plants. We generate electricity. It used to be that about 40 percent of the electricity in the United States came from coal-fired plants, maybe another 20 percent or so from nuclear powered plants, another 20 percent or so from natural gas-fired plants, and the rest from hydroelectric, solar, wind, and so forth. That mix has changed a little bit. Today, coal is down to about 30 percent. Natural gas, in terms of generating capacity, is up to about 30 percent. Nuclear is still in there at about 20, adding a couple nuclear plants in the next few years, maybe building some smaller, modular plants. We are generating ever more electricity from wind, a bit more from solar and from geothermal and hydro. But coal is down from 40 to maybe 30 percent, and the projection is that maybe by 2030 it will be down from 30 percent to as low as 20 or 25 percent. That is going to create some hardship for the folks in those States, including my native State. Is there some way that we can actually help them while at the same time helping those of us who aren't from those five States?

For as long as I can remember, I have heard people, including from this floor, for many years talking about Robert Byrd, who was the former majority leader, dean of the Senate, and maybe the longest-serving person in the House and Senate in the history of our country. He was a big champion of clean coal technology. Since approximately 1997, we have pursued clean coal, carbon capture, and sequestration. I am told that just in this last decade we have spent about $20 billion, since maybe 2005—something like that, in the last decade—and we have a success story. We have had a lot of disappointments, but we have a success story. I want to share that with our colleagues today.

The success story on U.S. clean coal is a project in Southwest Texas, in Houston, where there is NRG, a big utility company. That project is a clean-coal project generating electricity. It is going to come online sometime next year. There are other projects under way, and we are continuing to invest a lot of money in clean-coal technology. We need to continue to do more.

The last thing I want to say is this. We face many threats to our Nation these days. ISIS is certainly one of those. There are also other terrorist threats. Cyber security is certainly a threat we face. We have an obligation to our grandchildren and their grandchildren to be able to make sure we address those threats.

This is not a battle that the United States can win alone on those fronts—nor with respect to our climate change concerns. It is going to take a coalition of many nations, and we are one of those nations. We are one of the nations that put as much CO_2 in the air as anybody else. We have an obligation to try to figure out how to reduce that amount and how to reduce the threat. We need to be a leader and not just say to other nations that they should do this but also that they follow our example. What we are trying to do is to lead by our example.

At our church, our pastor sometimes will say: I am preaching to the choir, but even choirs need to be preached to. The other thing he will say from time to time is this: I would rather see a sermon than hear a sermon. For the rest

of the world, they don't want to hear a sermon from us on climate change. They want to see the sermon.

What we are trying to do over the next 15, 20 years is to reduce our CO_2 emissions since 2005 by about 30 percent and leave it up to the States—not EPA calling shots and not micromanaging—to figure out what works best in their States and to help them help us meet that national target. Thirty percent reduction from 2005 to 2030—that is the deal. That is the goal. My hope is that we will do our part. We will provide the leadership that is needed, not by what we say but by what we do.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

ORDER OF PROCEDURE

Mr. MCCONNELL. Mr. President, I ask unanimous consent that at 5:30 p.m. today, all time on S.J. Res. 24 be considered expired and the Senate vote on passage of S.J. Res. 24; further, that following the disposition of S.J. Res. 24, the majority leader be recognized to make a motion to proceed to S.J. Res. 23; that if the motion to proceed is agreed to, then all time under the Congressional Review Act be considered expired and that the Senate vote on passage of S.J. Res. 23.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from Oklahoma.

Mr. INHOFE. Mr. President, I ask unanimous consent that I be recognized for such time as I shall consume.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. INHOFE. Mr. President, at 5:30 p.m. today, two votes are going to take place on the two CRAs—one by Senator CAPITO and one by Senator MCCONNELL, as he just referred to.

The Congressional Review Act is something really good that has come along for a reason. A lot of people don't understand that the bureaucracy gets out of hand sometimes. I was listening very attentively to my friend from Delaware. When I see some of the regulations that come through, I am wondering: How in the world could this happen? These are things that we have voted on over and over, as with the case of cap and trade, which is what we are talking about now. Our first one was the McCain-Lieberman act of 2003, then again in 2005, and then the Warner-Lieberman act of 2008. And Waxman-Markey didn't even come to the Senate floor because they knew they didn't have the votes for it. Each one of these was rejected by the elected Members of the Senate and by a larger margin each year.

It is interesting what this President has done. He has taken the things that people don't want and has said: Well, if we can't do it through legislation, we will do it through regulation.

We have seen time and again that he has followed this. It is really going to come to a screeching halt this time because there are some things that are going on that people are not aware of. There are a lot of legal problems with Obama's carbon rules—especially his power plan.

Right now we have 27 States, 24 national trade associations, 37 rural electric co-ops, 10 major companies, and 3 labor unions representing just under 1 million workers. They are now challenging the final rule in court. This chart shows you the States that are challenging the rule in court. A lot of these entities have requested a judicial stay, which would likely put these rules on hold until early next year. While the courts work through the numerous other challenges, time is going to go by and time is certainly not their friend.

I was listening carefully to what my friend from Delaware was saying. One observation I have is that the people have caught on. In 2002 it was very lonely standing here at this podium in this Chamber, and no one else wanted to be a part of that discussion. Yet, at that time, the ranking of people, insofar as what they thought about the legitimacy of the argument that the world was coming to an end because of global warming, was either No. 1 or No. 2. I am talking about the polls that were across the nation at that time.

Now that same poll last March that said that global warming was the No. 1 concern back in 2002 is now No. 15. People have caught on. They realize that the cost is going to be exorbitant, and they realize it is not going to accomplish anything. I don't have any doubt that once the courts assess the merits of these challenges, the Obama administration's power plan will not survive judicial scrutiny.

President Obama and Administrator McCarthy are equally aware of their legal vulnerabilities, which is why Obama's Agency deliberately slow-walked the implementation process to try to prevent any CRAs or negative court rulings prior to the International Climate Conference in December. It has already been done over there. It is going to get very active here in a matter of just a few days.

POLITICO had an article a week ago that reported that the administration has asked the DC Circuit to postpone decisions until after December 23. What does that tell you? It tells you that they don't want to go over to the International Climate Conference for the big show and then walk in and find out that nothing is going to happen over here in this country and where the people are in terms of this issue.

The Agency's lack of legal authority is not the only reason for bipartisan opposition to the administration's carbon regulations. The President's power plan alone would cost $292 billion, resulting in double-digit electricity price increases in 46 States. That is conservative. We have documentation from MIT and from many of the organizations saying that the cost of this type of cap and trade is somewhere in the range of between $300 billion and $400 billion a year.

The Presiding Officer and I are very concerned about the State of Oklahoma. In the State of Oklahoma, every time I hear a figure that talks about trillions or billions of dollars, I find out how many families in my State of Oklahoma paid Federal income tax, and I do the math. This would cost somewhere around $3,000 a family—an average family in Oklahoma. You couple that with the fact that nothing is happening only here. If you believed in all the dangers that you hear about with CO_2 emissions, if you really believe that to be true, that would not be true in terms of what we are talking about now. The first Administrator of the EPA who was supported by President Obama when asked the question if we were to pass this regulation or pass the legislation on cap and trade, would this have the effect of reducing CO_2 emissions worldwide, said no, it wouldn't because it would only affect the United States of America. If that is the case, then it is not going to affect the other countries.

In fact, you can carry it one step further. If we have very tight restrictions in this country where our manufacturing base is forced to go to other countries, and then there are countries that don't have any emission requirements at all, it has the effect of increasing, not decreasing, the emissions.

We had a hearing in the Environment and Public Works Committee, which I chair, and we had as one of the witnesses Harry Alford. Harry Alford is the President of the National Black Chamber of Commerce. He talked about how any type of a cap-and-trade scheme is unfair to very poor people. He estimated that the Obama power plan would result in an estimated job loss of nearly 200,000 jobs for Black Americans and more than 300,000 jobs for Hispanics. The increased energy cost undermines global competitiveness for American small business and energy-intensive industries. These companies will ultimately shut down here at home where the electricity bill becomes unaffordable and create jobs instead for our competitors, such as China.

I can remember talking to China at the various meetings such as the International Climate Conference meeting that is coming up at the end of next month. They are hoping that something will happen where we are going to restrict our manufacturing base because they are the beneficiaries of that.

The EPA has consistently acknowledged this. The former Administrator, Lisa Jackson, says that U.S. action alone is not going to have any reduction. Her job didn't last too long after she made that statement.

The current Administrator, Gina McCarthy, testified that the President's power plan is not about pollution control but rather about sending a signal to the rest of the world that the United States is serious about addressing global warming. The minuscule

benefits that might come would be hardly measurable to this country.

Lastly, I would like to mention something that people don't talk about very often, and that is, there is something good about the process that we have available to us, the CRA—the Congressional Review Act. There are a lot of people who are of liberal nature, and they like overregulation. They don't mind it a bit. I am talking about Senators and House Members now. They go back to their States, and they get hit by all the business communities that say: We can't compete because of the overregulation of EPA. The response is always this: Well, I have nothing to do with that; the unelected bureaucrats are doing that.

That is not true. You need to carry this message back with you. The CRA is there so that a person cannot tell the people at home that he is opposed to regulations that he is really supporting, because what is going to happen tonight—I can tell you right now—is that both of them are going to pass. But they are not going to pass them by a two-thirds margin. That means that they will go to the House, and they will pass them. They will go to the President's desk, and he will veto them. Therefore, it is going to take two-thirds to override a veto. They will come back for a vote. Those individuals who always rejoice in not having to vote and getting on record are going to have to vote on them. That is a neat deal. It is going to happen. You are here in on it right now.

That reminds me a little bit about Copenhagen, back in 2009. I remember so well that they were all going over there. That was back when the Democrats controlled the House, the Senate, and the White House. They made it a real issue. They put on quite a show over there. President Obama went over. PELOSI went over. John Kerry went over. They all talked about the 192 nations that were there and how we were going to pass cap and trade as legislation. This is 2009. I went over at the very last conference and told them they were telling the truth. We are not going to pass it. In fact, there weren't 30 votes in the Senate that would pass it at that time. Of course, that is what ended up being the case.

There is a real setback that happened 6 days ago. You may have noticed that Secretary of State Kerry made the public statement that nothing would be binding on the United States that came out of the International Climate Conference. Immediately, the President of France and all the others were outraged, saying that he must have been confused. They used the word ''confused.''

Right now the big fight that is going on is not Republican or conservatives and liberals. It is between those participants who are all for restrictions on emissions. That is what is going on now. I think the vote this afternoon is going to be a very important one. I can assure you that anyone who wants to vote against this can go ahead and do it. But keep in mind that this is going to pass. It is going to be vetoed by the President. It is going to come back for a veto override. Everyone is going to be on record. Here it is. These are the States that are currently anticipating the process of putting together legal action to stop this outcome. It is a very important vote this afternoon.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. AYOTTE). Without objection, it is so ordered.

TERRORIST ATTACKS AGAINST FRANCE AND SYRIAN REFUGEES

Mr. THUNE. Madam President, I wish to begin by echoing the condolences shared by millions around the world regarding last week's attacks in Paris. Our thoughts and prayers go out to the families and loved ones of those who died. As a nation, we remain committed to supporting and defending the people of France in whatever way we can.

The attacks in Paris last week remind us again of the dangerous world in which we live. Although Paris has become the focus of attention, the day before the attacks in France, two ISIS suicide bombers in Beirut blew themselves up, killing 40 people in a bustling urban area. Our thoughts and prayers go out to the people in Beirut and to all those who have suffered loss at the hands of this horrific terrorist organization.

ISIS remains one of the most brutal and indiscriminate terrorist organizations in recent history. Its campaign of violence is not limited to a specific region, nationality or religion. As the events in Paris have shown us, the threat posed by ISIS reaches well beyond the borders of Iraq and Syria. If it can, ISIS will spread its campaign of violence to innocent people all over the world.

The United States, as a champion of freedom and democracy, has a duty to stand up against ISIS's brand of radical Islam and stomp it out wherever it exists. ISIS represents a clear and present danger to the American people and our allies and it must be stopped.

President Obama, when asked about ISIS the day before the Paris attacks, made the following statement. He said:

I don't think they're gaining strength. . . . From the start our goal has been first to contain, and we have contained them.

''We have contained them.'' Those were his words. Unfortunately, ISIS does not appear to be contained. My colleague from California, the ranking member of the Intelligence Committee, responded this week by saying:

I've never been more concerned. I read the intelligence faithfully. ISIL is not contained. ISIL is expanding.

Yet yesterday President Obama, unbelievably, doubled down on this failing strategy by stating: ''We have the right strategy and we're going to see it through. . . . '' And when referring to the Paris attacks, he called them a ''setback.'' Based on the number of casualties and population of France, this attack was the equivalent of a 9/11. I would hardly call such an attack a mere ''setback.'' When it comes to the U.S. strategy against ISIS, one thing is clear: ISIS cannot simply be contained. ISIS must be defeated.

From what we have learned so far, most of the terrorists involved in last week's Paris attack were individuals who already resided in France and Belgium. That means these are individuals who became radicalized at home, received training or support from ISIS, and in some cases traveled to Iraq or Syria for training and then returned to France to carry out these attacks. Since ISIS first occupied territory in Iraq and Syria and began recruiting foreign fighters, the possibility of these combatants returning home has been a concern to the United States and to our allies, and this attack in Paris demonstrates the validity of that concern. As a nation we must remain vigilant in defending our homeland against this type of attack by radicalized individuals holding U.S. or European passports.

I also wish to speak for a moment about the Syrian refugee crisis because it ties into everything that has happened in that region of the world. As we are all aware, the regime of Bashar al-Assad is responsible for the civil war in Syria that allowed ISIS to gain a foothold and to expand. Assad used chemical weapons on his own people and hundreds of thousands of lives have been lost as a result of the conflict he created. It is completely understandable that the peace-loving people of that country want out.

Just this week, several of my colleagues sent a letter to President Obama expressing concerns about the possibility of ISIS infiltrating the Syrian refugee population and asking what is being done to thoroughly vet these refugees. Over half the Governors in this Nation have stated they don't want Syrian refugees resettled in their States. I share their concerns. The United States should not accept Syrian refugees as long as there is a threat posed by ISIS. If we cannot be 100 percent certain that additional refugees from Syria do not put Americans at risk, the President's plan to accept up to 10,000 additional refugees this year should be rejected. If the President tries to act unilaterally, Congress should cut off funding to prevent the President from taking any action that would put the American people at risk.

If we are going to be serious about solving the Syrian refugee crisis, the answer is not deciding which countries are accepting how many refugees, the answer is to defeat ISIS and remove Basher al-Assad from power so the

peace-loving people of Syria can return home.

On that point, I want to speak about a realistic strategy for defeating ISIS. So far the United States has relied almost entirely on airstrikes. Prior to the attacks in Paris, France was already the coalition partner conducting the second greatest number of airstrikes against ISIS. Those airstrikes have been ramped up in recent days, but this is not a fundamental shift in our strategy. Airstrikes are important, but ultimately they cannot be a solution in and of themselves.

It was President Obama's politically motivated decision to withdraw troops from Iraq that ultimately led to ISIS expanding into Iraq to begin with. President Obama stated yesterday that boots on the ground would be a mistake, but it was his decision to withdraw U.S. troops that is partially responsible for creating this problem, and now we are at a point where retaking territory from ISIS will require ground forces. There is no way around it. If President Obama is going to be realistic about defeating ISIS, he needs to form a coalition capable of taking the war to ISIS on the ground. That does not require the United States committing ground troops, but it does require the United States leading by example and forming a coalition capable of fighting both in the air and on the ground. The President needs to stop talking about containment and start acting on a strategy that will root out and defeat ISIS wherever it can be found.

I thank the Presiding Officer and suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. CARDIN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CARDIN. Madam President, I ask to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CARDIN. Madam President, I have the honor of being the ranking Democrat on the Senate Foreign Relations Committee, and earlier today I had a chance to be with the other Members of the Senate and the Ambassador from France to express our solidarity, our condolences about those who lost their lives in the attack last Friday night, and to express America's resolve to work with our French partners to root out ISIL.

Let it be clear, our policy is to degrade, defeat, and destroy ISIL wherever it may be, any place in the world. We will retake the properties and lands they currently control, and we will destroy their operation. That is our commitment, and that is what we must do. We will protect U.S. citizens, our homeland. That is one of our most solemn responsibilities. We will do that by having the strongest possible security screening measures for those who enter our country. We will do that by enhancing our intelligence-gathering capacity not only here in the United States because we have taken major steps since the attack on our country on September 11, but we need a seamless system with our allies in Europe and our global partners to share timely information so we can track those who want to do harm to us and so we can apprehend foreign-trained fighters who have joined the terrorists and then go back to Europe or try to enter the United States. We need to know where they are, apprehend them, and get them out of our community.

Let me mention a couple of issues that have come to light just recently; that is, our policies with regard to refugees. I want to make it clear that we have to have the most stringent security screening, so that when we are settling refugees, we don't allow anyone with any association to terrorist organizations to be able to enter the United States.

I also think it is important that we understand the current procedures and processes that are in place and how it differs dramatically from Europe. In Europe, they literally have millions of refugees who are fleeing Syria and who get into Europe. They usually get in at a border country to the Middle East, over water, and then of course enter Europe and can travel throughout that continent. There is virtually no screening.

In the United States, before we will resettle a refugee under the auspices of the United Nations, there is a requirement for an in-person interview, biographic checks, interagency checks, biometric screening, including fingerprinting, initial case review by the Department of Homeland Security before an in-person interview, and it goes on and on and on.

My constituents and the Presiding Officer's constituents want to make sure that those security screenings are strong enough to make sure terrorists can't get into the United States, and we have a responsibility to make sure that in fact is the case, but I also point out that millions travel to the United States freely through our borders because it is a small world and people travel. They travel here for vacation, and they travel here for family. We have relationships with many countries, a program known as the Visa Waiver Program, where individuals can travel to the United States without obtaining a visa. It is interesting that if a person has a French passport, they can enter the United States without a visa. So we need to make sure that anyone who attempts to come to America, we know that; that if they are dangerous, we have that information, and as a result we can prevent them from entering our country.

I say all of this because I hope that what happened in France will energize us in unity to carry out our most important responsibility, which is to keep America safe and keep Americans safe. We need to do everything we can, whether it is going after terrorists or protecting our homeland, to make sure Americans are kept safe.

Madam President, shortly we will be voting on the Congressional Review Act, the regulatory review act which will allow us to vote on two regulations on the Clean Power Plan rules that have been promulgated by the administration. I urge my colleagues to reject these resolutions that would prevent these regulations from going forward. In other words, I urge my colleagues to allow these regulations to go forward that deal with the Clean Power Plan rules.

There are four reasons I say that. First and foremost is the public health reason. We have a responsibility for the public health of the people of this Nation, and clean air is critically important. The number of children who suffer from asthma will go up dramatically if we don't clean up our air. Premature deaths will go up. There is a direct cost to our public health as a result of ignoring what we can do for cleaner air in America.

Clean air has an effect on our economy. When a parent can't go to work because they have a child suffering from asthma because the air is not clean to breathe, that is a day lost from work. It affects our economy. We also know that if we rely more on clean energy and renewable energy sources, that is stronger for economic growth. It creates more jobs. So for the sake not just of our health but for the sake of our economy, it is important that we take the appropriate steps to make sure we have clean air.

Yes, there is also the issue of our environment. Climate change is real. We should follow the recommendations of the experts, not necessarily the politicians. The experts tell us that our activities on Earth are affecting the rate of change in climate, that they affect the stability of the world in which we live, and that we can do something about it for a more positive outcome.

The extreme weather conditions that we have seen all too often—I could talk about what has happened in my own State of Maryland and the impact it has had on the Chesapeake Bay. We know that. Scientists are telling us that. It is because the carbon emissions are accelerating as a result of our activities on Earth. Scientists say we can do something about it. Scientists have told us we can do better in the way we generate power in reducing carbon emissions. That is not a heavy lift; it is something we can do.

Shortly, the world will meet in Paris to come together, I hope, on a way that we can join, as an international global community, in a strategy to reduce our carbon emissions. The United States must exercise leadership. President Obama has done part of that leadership by the promulgation of these power plan rules.

Lastly, this is a matter of national security. We know that we have a limited amount of fossil fuels. We know that. We also know that renewable energy sources are becoming more energy independent, and that is smart for our national security concerns.

So for all of those reasons, I urge my colleagues to reject the resolution that would prevent these regulations from going forward.

I just want to give by way of example what is happening in my own State of Maryland. Maryland is well underway in complying with these rules. We are there. We will be there. We have shown that we can make these types of investments, and by the way, we would create more jobs in doing this. Creating clean power generation will help our economy. As I said earlier, it helped Maryland's economy. So we have been able to move forward in aggressive steps for clean energy production. But Marylanders breathe air that is polluted by the generation of power in other States. We need a national policy. It can't be done just by a State. We need a national policy, and that is what these clean power rules do.

I urge my colleagues to follow the best science. Allow America to continue to be the world leader. Do what is right for the public health, for our economy, for our environment, for our future, and reject these efforts that would block these rules.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. HOEVEN. Madam President, I rise to speak in opposition to the Environmental Protection Agency's new rules on carbon dioxide, which I believe need to be rescinded.

On August 3, 2015, the EPA released its so-called Clean Power Plan. This final plan will impose a 32-percent reduction nationwide in CO_2 emissions in the existing electric power sector compared with 2005 levels. This is an increase from a 30-percent reduction outlined in last year's proposed rule.

North Dakota's mandated reductions, however, far exceed those levels. The EPA originally proposed an 11-percent reduction, but then in the final rule that went from 11 percent to a 45-percent reduction. Let me repeat that. For our State, the EPA put out a proposed rule and said North Dakota has to reduce by 11 percent. Then, without reissuing a new proposed rule or anything else, EPA said in the final rule, no, it is not an 11-percent reduction in the State of North Dakota, it is a 45-percent reduction. Not only does that create real problems in real terms as far as our industry addressing that level of reduction, but I think it raises real questions as to whether EPA followed the law and regulation in promulgating the rule.

It is critical to communicate the impacts this rule will have on our State and across the country, especially in our electricity generation and mining sectors. People need to know that thousands of workers' families and communities across the country will be negatively impacted by this rule.

On September 30, 2015, I hosted a meeting with North Dakota's coal industry and regulators to meet with Janet McCabe, the EPA Assistant Administrator in charge of issuing the new carbon dioxide rule. We directly communicated our State's opposition to the rule. We also called on the EPA to provide greater flexibility by recognizing the investments and advances made by industry in reducing CO_2 levels and North Dakota's unique coal and geographic resources.

As a result of the meeting, EPA officials agreed to provide flexibility for the State to submit its State implementation plan, its SIP. Essentially, instead of requiring a plan in 1 year, we will be able to provide a draft plan in 1 year, with 3 years to submit the final SIP. We also received a commitment from the EPA to send technical staff to North Dakota so that the Agency can hear firsthand from North Dakota regulators and officials about the challenges in complying with the Agency's mandate.

Also, here in the Senate, I am working with colleagues on several legislative efforts to halt and repeal this rule. As a member of the Senate Appropriations Committee, I worked to include language in the fiscal year 2016 interior and environmental funding bill to block the EPA from implementing this rule. We are working to include this priority in the fiscal year 2016 Omnibus appropriations bill that Congress will take up in the coming weeks.

I have also joined with Senator CAPITO of West Virginia to introduce a bipartisan bill, the Affordable Reliable Energy Now Act, or the ARENA Act. This legislation would empower State Governors to protect ratepayers from increases and ensure the reliability of the electric grid. At the same time, it would prevent the EPA from mandating unproven technology or withholding highway funds from States not in compliance with the rule.

Further, I am cosponsoring the resolutions of disapproval under the Congressional Review Act to repeal the new EPA regulation which we are considering on the Senate floor right now and which we will be voting on in a little more than half an hour. The Congressional Review Act, or CRA, authorizes Congress, by a majority vote, to repeal actions by a Federal agency after they are formally published and submitted to Congress.

In North Dakota, we have successfully adopted an ''all of the above'' approach to energy development, and we have demonstrated that we can utilize our natural resources to do it with better environmental stewardship. EPA's new rules on carbon dioxide neither reflects our State-led approach nor accounts for the significant investment our industry and workers have already made to improve the way electricity is generated in our State, and that is true across the country.

I encourage my colleagues to vote for Senator CAPITO's CRA which disapproves the EPA's carbon rule for existing electric utility sources, as well as Leader MCCONNELL's CRA to disapprove the EPA's rule for new sources.

We can produce more energy with better environmental stewardship, but the way to do it is not by shutting down powerplants and destroying jobs as well as raising costs on hard-working families and small businesses. Instead, we need to create a business environment that will attract more investments so that the industry can develop and deploy new technologies that help us produce more energy more dependably and more cost-effectively while at the same time promote better environmental stewardship. That is the right way to do it. That is the way we are doing it in North Dakota.

Thank you, Madam President.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

Mr. ENZI. Madam President, I rise today to speak about this battle and regulatory war being waged by the Environmental Protection Agency.

Just 2 weeks ago, the Senate considered two measures aimed at rolling back ill-thought-out rules by the EPA—the waters of the United States rule. The body did the right thing in stating our bipartisan resolve against the rule.

Unfortunately, here we are again, another week, another proposed rule to massively expand the EPA's power, and another attempt by this administration to stomp out America's coal industry. That is exactly what the Clean Power Plan is—a miscalculated regulation aimed at keeping coal in the ground at any cost.

This latest travesty of a rule, known as the Clean Power Plan, requires States to develop and implement plans to reduce carbon emissions between 2022 and 2030 in order to accomplish interim and final emission goals established by the EPA. Let me clarify that. This is actually not one rule but three separate rules which, taken together, would be more aptly named the ''No Power Plan.'' The Clean Power Plan includes a final rule to revise carbon pollution standards for new, modified, and reconstructed power plants; a final rule to revise carbon pollution standards for existing power plants; and thirdly, a Federal plan for enactment and enforcement of the other two rules. Simple, right? No.

Under the guise of flexibility and cooperation, the CPP requires States to choose between two types of plans, described by the EPA as an ''emission standards'' approach or a ''state measures'' approach. Some States, such as my home State of Wyoming, will have some terrible choices to make under the CPP. Under the final rule, by the year 2030, Wyoming's carbon emissions will have to be 44 percent lower than in 2005, which is the baseline year the

EPA uses for the plan. That is more than double the 19-percent reduction the EPA imposed upon Wyoming in the proposed rule, which was released about 18 months ago, in June of 2014.

As Wyoming's Governor Matt Mead said recently when my home State joined 23 others in suing the EPA to strike down the rule, ''The fact that the agency more than doubled the damage to Wyoming in the final rule shows arbitrary and capricious action.''

Not only that, this plan puts the onus on the States to figure out how they are going to do it, and that is so the EPA can avoid a cost-benefit analysis that they are required to do. But not if they force the States to do it! But, of course, if the States don't do it, then the EPA will have to do it, which means the agency should have done a cost-benefit analysis to begin with. But the EPA doesn't have a very good track record on cost-benefit analyses.

One of the regulations, the mercury air toxins rule, is going to provide about $500 million in benefits over a 10-year period. It is hard to determine what those benefits are or how the EPA did the calculations. None of it is transparent. But the compliance cost for that $500 million in benefits is up to $43 billion a year. Couldn't we incentivize somebody to come up with a better system for a whole lot less than $43 billion a year, to save $500 million over 10 years? That is another example of an arbitrary and capricious action.

So how does Wyoming wind up with such a huge burden under the Clean Power Plan? Because the Clean Power Plan supposes it will achieve carbon emission reductions from electricity generating units that burn fossil fuels—coal, oil, and natural gas. States that produce these fuels are the hardest hit. Wyoming is the largest coal-producing State in the Nation. Wyoming produces 40 percent of the Nation's coal, and coal represents almost 40 percent of the electricity generated in this country. It is abundant, affordable, clean and, most important, it is stockpilable. If the power plants that produce energy from fossil fuels like coal are forced to shutter their doors to make dramatic structural changes, it will have tangible negative impacts on fossil fuel consumers. If that doesn't alarm you, it should, because according to the National Mining Association, every person in America uses 20 pounds of coal a day.

Of course, when we are talking about CO_2, we are also breathing CO_2, and plants need CO_2. There is an interesting invention in Wyoming. A guy figured out how to grow plants vertically, and Whole Foods has some of his mechanisms to be able to do that, and you can actually cut your own vegetables while you are in the store. I asked him why he isn't doing greenhouses with this. He said: Not enough CO_2. Yes, plants rely on CO_2 to live. I suggested that he locate near a power plant, where they can absorb the CO_2 and use the waste heat from any power plants and help feed America at the same time. We need to be more innovative in what we are doing instead of just trying to put businesses out of business because we don't like the business.

As I said, under the Clean Power Plan, Wyoming will have to reduce its carbon emissions by 44 percent. That isn't just a problem for Wyoming or the 27,000 people employed in the coal industry and the ripple effect it has on people who work with the things that people in the coal industry use. If you represent Illinois or Missouri, you should be worried about CPP, too, because in 2013 each of those States received more than 10 percent of Wyoming's coal. Wisconsin, Kansas, Arkansas, and Michigan each got 5 percent of Wyoming's coal. Wyoming's coal was distributed to Georgia, Alabama, Colorado, Louisiana, Minnesota, and Arizona. If I didn't list your State, don't think this issue doesn't affect you. More than a dozen other States and foreign entities got smaller amounts of Wyoming coal in 2013.

According to the National Mining Association, which commissioned the report on the Clean Power Plan after it was released, the plan would cost $366 billion and bring double-digit electric rate increases to 43 States. That is more than a 10-percent increase to 43 States. All this because of the administration's vendetta against coal and power plants that burn it and provide energy.

Just this week the EPA held a hearing in Denver and received public comments on the proposed Federal plan to implement the Clean Power Plan. That is right. Even though 26 States are suing the EPA to block the plan's implementation, the Agency is going ahead with a rule to implement it. At that hearing, Mickey Shober, a county commissioner from Campbell County, WY, also known as the energy capital of the Nation, had a chance to speak. Campbell County has 11 surface mines that produce over 340 million tons of coal every year, the majority of which is delivered by train to about 30 States across the country for electricity generation. All in all, Campbell County coal provides about one-quarter of the Nation's electricity every year. That is one county. So when a Campbell County commissioner gets up to talk about power generation, everyone should pay attention.

As Commissioner Shober pointed out, the coal industry has historically stepped up and dealt with every new regulation and challenge the Federal Government has thrown at it, but the new technology and innovation—the type that will have to be utilized, if there is any way for new and existing power plants to comply with this rule—takes time and takes money. As the commissioner said, America's energy industry always rises to the challenge, but the EPA isn't fighting fair this time. This rule needs to be scrapped in its current form, and that is exactly what these joint resolutions of disapproval will do.

Congress has provided billions of dollars in incentives for solar and wind energy. Wyoming produces a lot of solar and wind—primarily solar, because Denver is the Mile High City and you have to go uphill to get to Wyoming. There are high plateaus across the southern part of the State. The first wind turbines that went in Wyoming had to be redesigned because the wind blew so hard that it blew the rotors off. At 80 miles an hour, the rotors on wind turbines will not stand up. They will generate a tremendous amount of power. Most of that power goes out of State, and other States use it but claim offsets from their wind power because it doesn't carry any of these bad connotations from the EPA. Wyoming has to claim all of carbon emissions from the coal and the coal-fired power plants, though most of the electricity produced is sent out of State. So Wyoming gets no credit for the energy it provides, but we get all the disadvantages associated with providing energy.

General Electric wanted to build a test facility in Wyoming to figure out better ways to burn coal. They went through all the permitting process to the point of building it. Then they said: Wait a minute. Under this President, who is trying to get rid of coal, who would we sell our product to? So they postponed the project.

I have spoken of why this rule is bad for my home State of Wyoming and why it is bad for any State that consumes fossil fuels, but I would be remiss if I didn't address the reasons the Clean Power Plan is bad for the United States. At the end of this month, the President is going to send his team of environmental experts and negotiators to the U.N. Climate Summit in Paris. That summit aims to map out a global accord to limit greenhouse gas emissions. The emissions goals described in CPP, which have been rejected by industry and rejected by almost half the States, are at the heart of this administration's plan to contribute to the overall global emissions reduction. To make commitments to our allies based on the plan which doesn't have the support of the American public is nothing short of irresponsible and disingenuous. We are living in a dangerous, complicated, frightening world—a world that forces our Nation to rely daily on its friends for priceless assets, such as shared intelligence and safe havens at which to strategically position our military troops around the globe. The very least America can give our allied partners in return is our candor.

Incidentally, I heard the comments about the growing cases of asthma. There has been a reduction in the amount of CO_2, so why would these coal-fired power plants be elevating that health problem? One problem that we have out West is called regional haze here, but we call it smoke from forest fires. This summer we had tremendous smoke from forest fires and it

wasn't just smoke, it was ash as well. There hasn't been a power plant putting out ash in decades, but when we don't do the proper stewardship of our forests, we let them burn. If we allowed some of that to be cut into boards for houses, it could reduce the cost of housing, and the CO_2 would be trapped forever, not burned up and released into the air and blamed on coal.

I am hoping my colleagues will come together today to show our constituents where we and the world stand on the Clean Power Plan.

Madam President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. ALEXANDER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. ALEXANDER. I yield back our remaining time.

The PRESIDING OFFICER. All time is yielded back.

The joint resolution was ordered to be engrossed for a third reading and was read the third time.

The PRESIDING OFFICER. The joint resolution having been read the third time, the question is, Shall it pass?

Mr. ALEXANDER. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Florida (Mr. RUBIO).

Further, if present and voting, the Senator from Florida (Mr. RUBIO) would have voted ''yea.''

The PRESIDING OFFICER (Mr. GARDNER). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 52, nays 46, as follows:

[Rollcall Vote No. 306 Leg.]

YEAS—52

Alexander	Fischer	Paul
Barrasso	Flake	Perdue
Blunt	Gardner	Portman
Boozman	Grassley	Risch
Burr	Hatch	Roberts
Capito	Heitkamp	Rounds
Cassidy	Heller	Sasse
Coats	Hoeven	Scott
Cochran	Inhofe	Sessions
Corker	Isakson	Shelby
Cornyn	Johnson	Sullivan
Cotton	Lankford	Thune
Crapo	Lee	Tillis
Cruz	Manchin	Toomey
Daines	McCain	Vitter
Donnelly	McConnell	Wicker
Enzi	Moran	
Ernst	Murkowski	

NAYS—46

Ayotte	Boxer	Casey
Baldwin	Brown	Collins
Bennet	Cantwell	Coons
Blumenthal	Cardin	Durbin
Booker	Carper	Feinstein
Franken	Menendez	Schumer
Gillibrand	Merkley	Shaheen
Heinrich	Mikulski	Stabenow
Hirono	Murphy	Tester
Kaine	Murray	Udall
King	Nelson	Warner
Kirk	Peters	Warren
Klobuchar	Reed	Whitehouse
Leahy	Reid	Wyden
Markey	Sanders	
McCaskill	Schatz	

NOT VOTING—2

Graham	Rubio

The joint resolution (S.J. Res. 24) was passed, as follows:

S.J. RES. 24

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That Congress disapproves the rule submitted by the Environmental Protection Agency relating to ''Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units'' (published at 80 Fed. Reg. 64662 (October 23, 2015)), and such rule shall have no force or effect.

The PRESIDING OFFICER. The majority leader.

PROVIDING FOR CONGRESSIONAL DISAPPROVAL OF A RULE SUBMITTED BY THE ENVIRONMENTAL PROTECTION AGENCY

Mr. MCCONNELL. Mr. President, I move to proceed to S.J. Res. 23.

The PRESIDING OFFICER. The clerk will report the motion.

The legislative clerk read as follows:

Motion to proceed to Calendar No. 293, S.J. Res. 23, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to ''Standards of Performance for Greenhouse Gas Emissions from New, Modified, and Reconstructed Stationary Sources: Electric Utility Generating Units.''

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the joint resolution.

The legislative clerk read as follows:

A joint resolution (S.J. Res. 23) providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to ''Standards of Performance for Greenhouse Gas Emissions from New, Modified, and Reconstructed Stationary Sources: Electric Utility Generating Units.''

The PRESIDING OFFICER. Under the previous order, all time is yielded back.

The joint resolution was ordered to be engrossed for a third reading and was read the third time.

The PRESIDING OFFICER. The joint resolution having been read the third time, the question is, Shall it pass?

Mr. MCCONNELL. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Florida (Mr. RUBIO).

Further, if present and voting, the Senator from Florida (Mr. RUBIO) would have voted ''yea.''

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 52, nays 46, as follows:

[Rollcall Vote No. 307 Leg.]

YEAS—52

Alexander	Fischer	Paul
Barrasso	Flake	Perdue
Blunt	Gardner	Portman
Boozman	Grassley	Risch
Burr	Hatch	Roberts
Capito	Heitkamp	Rounds
Cassidy	Heller	Sasse
Coats	Hoeven	Scott
Cochran	Inhofe	Sessions
Corker	Isakson	Shelby
Cornyn	Johnson	Sullivan
Cotton	Lankford	Thune
Crapo	Lee	Tillis
Cruz	Manchin	Toomey
Daines	McCain	Vitter
Donnelly	McConnell	Wicker
Enzi	Moran	
Ernst	Murkowski	

NAYS—46

Ayotte	Gillibrand	Peters
Baldwin	Heinrich	Reed
Bennet	Hirono	Reid
Blumenthal	Kaine	Sanders
Booker	King	Schatz
Boxer	Kirk	Schumer
Brown	Klobuchar	Shaheen
Cantwell	Leahy	Stabenow
Cardin	Markey	Tester
Carper	McCaskill	Udall
Casey	Menendez	Warner
Collins	Merkley	Warren
Coons	Mikulski	Whitehouse
Durbin	Murphy	Wyden
Feinstein	Murray	
Franken	Nelson	

NOT VOTING—2

Graham	Rubio

The joint resolution (S.J. Res. 23) was passed, as follows:

S.J. RES. 23

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That Congress disapproves the rule submitted by the Environmental Protection Agency relating to ''Standards of Performance for Greenhouse Gas Emissions from New, Modified, and Reconstructed Stationary Sources: Electric Utility Generating Units'' (published at 80 Fed. Reg. 64510 (October 23, 2015)), and such rule shall have no force or effect.

MORNING BUSINESS

TRIBUTE TO GEORGE J. KATIS

• Ms. AYOTTE. Mr. President, today I wish to recognize and honor George J. Katis, an exceptional community leader and businessman in New Hampshire.

George Katis cares deeply about the well-being of children in New Hampshire, and he has an exemplary record of advocacy on their behalf, especially through his leadership with the Nashua Goes Back to School program. This initiative helps provide free backpacks stocked with school supplies to Nashua's neediest schoolchildren. Since

helping found the program in Nashua, George also helped start Manchester Goes Back to School, which serves more than 4,000 Manchester kids and their families each year.

George has generously devoted his time and energy to programs that build homes for wounded warriors, and he is also a strong supporter of athletics in our local communities. A baseball connoisseur, he has served on the board of directors of the Ted Williams Museum and Foundation since 2003. George started and continues to fund several Ted Williams Museum Scholarships, including the Johnny Pesky Scholarship, the Ben Topkin Scholarship, and the Ted Williams Scholarship for deserving students. George serves on the Granite State Baseball Dinner committee, which has raised more than $1.28 million since 2007 for several charitable organizations—including the Children's Hospital at Dartmouth-Hitchcock, the Ted Williams Museum, and the Fisher Cats Foundation.

In addition to his dedication to philanthropic efforts, George is a leader in New Hampshire's business community and has helped support the region's economy and provide good-paying jobs. As a dedicated and engaged citizen, George has made tremendous contributions to our State, and I am pleased to recognize his tireless efforts to make a positive difference in the lives of children in New Hampshire.●

RECOGNIZING THE VETERANS AT ARKANSAS HOSPICE AT CHI ST. VINCENT HOSPITAL

● Mr. COTTON. Mr. President, I hereby recognize the military veterans currently residing at the Arkansas Hospice at CHI St. Vincent Hospital in Little Rock, AR, as well as the caregivers, staff, and volunteers at CHI St. Vincent who also served their country in uniform, and their families who have made their own sacrifices in support of our troops.

These men and women put their lives on the line in defense of our freedom and our values. They have kept America safe. They have defended our Constitution and our freedom. They have saved lives. They have gone abroad and waged war not to conquer, loot, and pillage, but to liberate and to secure ''a just, and a lasting peace'' with our fellow man, in the words of the President who commanded over our most awful war.

Our veterans served their country with courage, pride, and distinction. We owe them a debt of gratitude that we can never fully repay. Now, as many of the veterans at CHI St. Vincent are approaching their final moments of life, let us honor them and the cause for which they fought.●

RECOGNIZING THE 341ST MISSILE WING

● Mr. DAINES. Mr. President, today I wish to pay tribute to the men and women of the 341st Missile Wing at Malmstrom Air Force Base in Montana who proudly defend our Nation by ensuring safe, secure, and effective nuclear forces and combat ready airmen. They are the best of the best.

During the fifth Global Strike Challenge, the 341st Missile Wing ''brought home'' the coveted Blanchard trophy for Best Intercontinental Ballistic Missile, ICBM, Wing in the Air Force.

Additionally, the members of the wing earned the following awards during the competitions: Best Security Forces M240 Crew; Best Helicopter Search and Rescue Team; Best ICBM Missile Handling Team; Best Missile Communication Maintenance Team; Best Facilities Maintenance Team; Best Missile Munitions Team Trophy, Blackburn Trophy, Best ICBM Maintenance; Klotz Trophy, Best ICBM and Helicopter Operations; Neary Trophy Best Emergency War Order Crew; and Innovation Trophy.

The citizens of Montana and this Nation are proud of the great warriors stationed in Great Falls at the 341st Missile Wing who daily ensure our country and our allies are safe from nuclear attack.●

RECOGNIZING WASHINGTON ELEMENTARY SCHOOL

● Ms. HEITKAMP. Mr. President, I want to congratulate the students, faculty, and parents of Washington Elementary School, located in Valley City, ND, on being awarded the 2015 National Blue Ribbon School Award.

Founded in 1982, the National Blue Ribbon Schools Program recognizes public and private elementary, middle, and high schools where students perform at very high levels or where significant improvements are being made in students' academic achievement. A National Blue Ribbon Schools flag overhead has become a mark of excellence in education recognized by everyone from parents to policymakers in thousands of communities. Since the program's founding, the U.S. Department of Education has bestowed this coveted award to just over 7,500 of America's best schools.

Washington Elementary School serves nearly 265 students in grades 4 through 6 and was the only school in North Dakota to receive the honor of exemplary high-performing school in 2015. Receiving recognition as a National Blue Ribbon School signifies the hard work and dedication of the educators, students, and parents involved, and I have no doubt its students are on a path to success. At Washington Elementary, every staff member understands that every student, regardless of background, is important and deserving of the best. To support its students, the school provides access to a reading program that has been vital in ensuring targeted assistance for those students who require additional support. Through this program and others, the school continues to excel and surpass necessary benchmarks.

As school leadership states, ''The success of Washington Elementary cannot be attributed to one person, program, or initiative. Rather it is the collective effort of all the outstanding people involved—the students, staff, parents, and community members who continue to strive for excellence each and every day.'' It is through this dedication that the school provides access to a reading pilot program that enhances reading and language skills, a math and science curriculum supplemented by STEM activities, and history courses that emphasize creativity and flexibility in teaching.

The Valley City Public Schools mission statement reads, ''Together we are building a legacy of excellence, one student at a time.'' This mission embodies all that Washington Elementary is working to accomplish by looking at the needs of each individual student as well as providing a safe and respectful learning environment that breeds success. I wish the very best to the community of Valley City and congratulations to all engaged at Washington Elementary for achieving this high honor. Thank you for your commitment to our children and leaders of tomorrow.●

REMEMBERING MELVIN HANCOCK

● Mr. MANCHIN. Mr. President, I wish to recognize with tremendous pride the life and legacy of a very dear friend and an extraordinary West Virginian, Roy Melvin Hancock. Melvin was an inspiration to so many because of his deep-rooted passion for the city of Beckley. It is a privilege to formally recognize the impact that Melvin had on southern West Virginia through his dedication and determination to building a stronger community.

There was truly no one who loved Beckley more than Melvin. Throughout his life, Melvin had a persistent calling to make Raleigh County a better place. His love of Beckley even earned him the title of ''Mr. Beckley.''

It was through the YMCA of Southern West Virginia that Melvin launched his lifelong mission of community improvement. After graduating from Woodrow Wilson High School and Marshall University, Mel returned to Beckley in 1970 and started his remarkable 25-year career at the YMCA.

Melvin's meaningful contributions and achievements during his career at the YMCA are truly immeasurable. As a leader at the YMCA, Melvin wanted to make sure that Beckley's finest residents were recognized for their inspirational work in the community; therefore, he created the Spirit of Beckley Award. For the past 29 years, this annual award has been given to those who strive to make Beckley a better place. This year, Melvin was posthumously honored with the award. There is truly no one more deserving.

Because of Melvin's leadership and guidance, there are numerous YMCA programs that still exist today. Melvin understood that, in order to create a

stronger community, it is critical to inspire our young ones. That is why he concentrated many of the Y's programs on expanding opportunities for our kids. He grew the organization's programs, camps, and tournaments in a variety of sports, and he established the Biddy-Buddy Basketball Tournament, the Annual Invitational Swim Meet, the YMCA Day Camps, and the YMCA Pre-School. He was also instrumental in the development of the Paul Cline Memorial Soccer Complex facility.

In addition to his efforts to promote Beckley's youth, Melvin also was the organization's lead fundraiser, establishing the annual international dinner, coordinating the membership drive, and raising the funds for the current YMCA facility that serves local families.

There is no doubt that the YMCA of Southern West Virginia would not be what it is today without the dream and devotion of Melvin Hancock. He went above and beyond in creating opportunities for Beckley residents through the YMCA and in reaching the goals he wanted to accomplish for the organization and for the area's families and kids.

After ending a purposeful career at the YMCA, Melvin went on to lead the fundraising efforts at Mountain State University. There, he helped fulfill many university development projects, including the Robert C. Byrd Library, Carter Hall, the Max Lewin Bell Tower, the John W. Eye Conference Center, the gymnasium, and the dormitories. The university flourished under his direction.

Melvin continued his great work after leaving Mountain State University through fundraising efforts at Friends of Coal, the Fellowship of Christian Athletes, and Ronald Blue and Associates.

After his retirement, he continued to be an active member of the community by pushing for the renovation of the Bobby Pruett Stadium and through substitute teaching in Raleigh and Fayette County schools. He especially loved the little ones in pre-K, kindergarten, special education and physical education. The students loved ''Mr. Mel.''

Melvin was dedicated to giving back to the Beckley community until his very final days. His last endeavor was a special project for the Women's Resource Center to help those who have been victims of domestic abuse.

Melvin not only loved his community, but he was devoted to his family—his wife, children, and the many members of his extended family. He was active in his church, he loved history, he was passionate about antique automobiles, he enjoyed being outdoors, he was loyal to his alma maters, and, of course, he loved to dance.

It is such an honor to celebrate Melvin's life and recognize his many accomplishments that have helped to shape the Beckley community. I will forever be grateful for Melvin's unwavering leadership and for his countless years of service. Melvin's memory will continue to serve as inspiration for me and so many others to dedicate ourselves to the betterment of our communities.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mrs. Neimann, one of his secretaries.

PRESIDENTIAL MESSAGE

2015 NATIONAL DRUG CONTROL STRATEGY—PM 32

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on the Judiciary:

To the Congress of the United States:

I am pleased to transmit the 2015 National Drug Control Strategy, my Administration's 21st century approach to drug policy that works to reduce illicit drug use and its consequences in the United States. This evidence-based plan, which balances public health and public safety efforts to prevent, treat, and provide recovery from the disease of addiction, seeks to build a healthier, safer, and more prosperous country.

Since the release of my Administration's inaugural National Drug Control Strategy in 2010, we have seen significant progress in addressing challenges we face along the entire spectrum of drug policy—including prevention, early intervention, treatment, recovery support, criminal justice reform, law enforcement, and international cooperation. However, we still face serious drug-related challenges. Illicit drug use is a public health issue that jeopardizes not only our well-being, but also the progress we have made in strengthening our economy—contributing to addiction, disease, lower student academic performance, crime, unemployment, and lost productivity.

Therefore, we continue to pursue a drug policy that is effective, compassionate, and just. We are working to erase the stigma of addiction, ensuring treatment and a path to recovery for those with substance use disorders. We continue to research the health risks of drug use to encourage healthy behaviors, particularly among young people. We are reforming our criminal justice system, providing alternatives to incarceration for non-violent, substance-involved offenders, improving re-entry programs, and addressing unfair sentencing disparities. We continue to devote significant law enforcement resources to reduce the supply of drugs via sea, air, and land interdiction, and law enforcement operations and investigations. We also continue to partner with our international allies, helping them address transnational organized crime, while addressing substance use disorders and other public health issues.

I thank the Congress for its continued support of our efforts. I look forward to joining with them and all our local, State, tribal, national and international partners to advance this important undertaking.

BARACK OBAMA.

THE WHITE HOUSE, *November 17, 2015.*

MESSAGES FROM THE HOUSE

At 3:44 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, without amendment:

S. 799. An act to address problems related to prenatal opioid use.

S. 2036. An act to suspend the current compensation packages for the chief executive officers of Fannie Mae and Freddie Mac, and for other purposes.

The message also announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 1073. An act to amend the Homeland Security Act of 2002 to secure critical infrastructure against electromagnetic threats, and for other purposes.

H.R. 1317. An act to amend the Commodity Exchange Act and the Securities Exchange Act of 1934 to specify how clearing requirements apply to certain affiliate transactions, and for other purposes.

H.R. 1338. An act to require the Secretary of Veterans Affairs to conduct a study on matters relating to the burial of unclaimed remains of veterans in national cemeteries, and for other purposes.

H.R. 1384. An act to amend title 38, United States Code, to recognize the service in the reserve components of certain persons by honoring them with status as veterans under law.

H.R. 1478. An act to provide for notice to, and input by, State insurance commissioners when requiring an insurance company to serve as a source of financial strength or when the Federal Deposit Insurance Corporation places a lien against an insurance company's assets, and for other purposes.

H.R. 2583. An act to amend the Communications Act of 1934 to provide for greater transparency and efficiency in the procedures followed by the Federal Communications Commission, and for other purposes.

H.R. 3032. An act to amend the Securities Exchange Act of 1934 to repeal a certain reporting requirement of the Securities and Exchange Commission.

H.R. 3144. An act to require consultation with the Aviation Security Advisory Committee regarding modifications to the prohibited item list, require a report on the Transportation Security Oversight Board, and for other purposes.

H.R. 3996. An act to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes.

The message further announced that the House has agreed to the following concurrent resolution, without amendment:

S. Con. Res. 24. Concurrent resolution authorizing the use of Emancipation Hall in

the Capitol Visitor Center for the unveiling of the marble bust of Vice President Richard Cheney on December 3, 2015.

The message also announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 93. Concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony to commemorate the 150th anniversary of the ratification of the 13th Amendment.

The message further announced that the House has passed the following bill, with amendment, in which it requests the concurrence of the Senate:

S. 599. An act to extend and expand the Medicaid emergency psychiatric demonstration project.

The message also announced that the House has agreed to the amendment of the Senate to the bill (H.R. 639) to amend the Controlled Substances Act with respect to drug scheduling recommendations by the Secretary of Health and Human Services, and with respect to registration of manufacturers and distributors seeking to conduct clinical testing.

The message further announced that the House has agreed to the amendment of the Senate to the bill (H.R. 2262) to facilitate a pro-growth environment for the developing commercial space industry by encouraging private sector investment and creating more stable and predictable regulatory conditions, and for other purposes.

The message also announced that the House has agreed to the amendments of the Senate to the bill (H.R. 208) to improve the disaster assistance programs of the Small Business Administration.

ENROLLED BILL SIGNED

At 4:22 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the Speaker has signed the following enrolled bill:

S. 1356. An act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

The enrolled bill was subsequently signed by the President pro tempore (Mr. HATCH).

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 1073. An act to amend the Homeland Security Act of 2002 to secure critical infrastructure against electromagnetic threats, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 1317. An act to amend the Commodity Exchange Act and the Securities Exchange Act of 1934 to specify how clearing requirements apply to certain affiliate transactions, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

H.R. 1338. An act to require the Secretary of Veterans Affairs to conduct a study on matters relating to the burial of unclaimed remains of veterans in national cemeteries, and for other purposes; to the Committee on Veterans' Affairs.

H.R. 1384. An act to amend title 38, United States Code, to recognize the service in the reserve components of certain persons by honoring them with status as veterans under law; to the Committee on Veterans' Affairs.

H.R. 1478. An act to provide for notice to, and input by, State insurance commissioners when requiring an insurance company to serve as a source of financial strength or when the Federal Deposit Insurance Corporation places a lien against an insurance company's assets, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 2583. An act to amend the Communications Act of 1934 to provide for greater transparency and efficiency in the procedures followed by the Federal Communications Commission, and for other purposes; to the Committee on Commerce, Science, and Transportation.

H.R. 3032. An act to amend the Securities Exchange Act of 1934 to repeal a certain reporting requirement of the Securities and Exchange Commission; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 3144. An act to require consultation with the Aviation Security Advisory Committee regarding modifications to the prohibited item list, require a report on the Transportation Security Oversight Board, and for other purposes; to the Committee on Commerce, Science, and Transportation.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 2288. A bill to prohibit members and staff of the Federal Reserve System from lobbying for or against legislation, and for other purposes.

ENROLLED BILL PRESENTED

The Secretary of the Senate reported that on today, November 17, 2015, she had presented to the President of the United States the following enrolled bill:

S. 1356. An act to authorize appropriations for fiscal year 2016 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–3510. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Tamarind seed gum, 2-hydroxypropyl ether polymer; Tolerance Exemption'' (FRL No. 9936–25) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3511. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Amitraz, Carfentrazone-ethyl, Ethephon, Malathion, Mancozeb, et al.; Tolerance Actions'' (FRL No. 9935–01) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3512. A communication from the Chairman, Farm Credit System Insurance Corporation, transmitting, pursuant to law, the Corporation's draft strategic plan for fiscal years 2016 through 2021; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3513. A communication from the Secretary of the Commodity Futures Trading Commission, transmitting, pursuant to law, the report of a rule entitled ''Membership in a Registered Futures Association'' (RIN3038–AE09) received in the Office of the President of the Senate on November 9, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–3514. A communication from the Under Secretary of Defense (Acquisition, Technology and Logistics), transmitting, pursuant to law, the quarterly exception Selected Acquisition Reports (SARs) as of September 30, 2015 (OSS–2015–1808); to the Committee on Armed Services.

EC–3515. A communication from the Under Secretary of Defense (Acquisition, Technology and Logistics), transmitting, pursuant to law, a report of a delay in submission of a report relative to Department of Defense 2015 purchases from foreign entities; to the Committee on Armed Services.

EC–3516. A communication from the President of the United States, transmitting, pursuant to law, a report on the continuation of the national emergency with respect to Iran that was declared in Executive Order 12170 on November 14, 1979; to the Committee on Banking, Housing, and Urban Affairs.

EC–3517. A communication from the Associate General Counsel for Legislation and Regulations, Office of Community Planning and Development, Department of Housing and Urban Development, transmitting, pursuant to law, the report of a rule entitled ''Section 108 Loan Guarantee Program: Payment of Fees to Cover Credit Subsidy Costs'' (RIN2506–AC35) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3518. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to Syria that was declared in Executive Order 13338 of May 11, 2004; to the Committee on Banking, Housing, and Urban Affairs.

EC–3519. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to Yemen that was originally declared in Executive Order 13611 on May 16, 2012; to the Committee on Banking, Housing, and Urban Affairs.

EC–3520. A communication from the General Counsel of the Federal Housing Finance Agency, transmitting, pursuant to law, the report of a rule entitled ''Responsibilities of Boards of Directors, Corporate Practices and Corporate Governance Matters'' (RIN2590–AA59) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3521. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Addition of Certain Persons and Modifications of Certain Entries to the Entity List; and Removal of Certain Persons from the Entity

List'' (RIN0694–AG74) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3522. A communication from the President of the United States, transmitting, pursuant to law, an Executive Order that terminates the national emergency declared in Executive Order 13348 of July 22, 2004, and revokes Executive Order 13348, received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3523. A communication from the President of the United States, transmitting, pursuant to law, a report relative to the continuation of the national emergency declared in Executive Order 12938 with respect to the proliferation of weapons of mass destruction, received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–3524. A communication from the General Counsel, Federal Energy Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Standards for Business Practices of Interstate Natural Gas Pipelines; Coordination of the Scheduling Processes of Interstate Natural Gas Pipelines and Public Utilities'' ((RIN1902–AF08) (Docket Nos. RM96–1–038 and RM14–2–003)) received in the Office of the President of the Senate on November 9, 2015; to the Committee on Energy and Natural Resources.

EC–3525. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Worker Safety and Health Program; Technical Amendments'' (RIN1992–AA50) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Energy and Natural Resources.

EC–3526. A communication from the Executive Director, the United States World War One Centennial Commission, transmitting, pursuant to law, a report relative to the United States World War One Centennial Commission; to the Committee on Energy and Natural Resources.

EC–3527. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''National Emission Standards for Hazardous Air Pollutants for Major Sources: Industrial, Commercial, and Institutional Boilers and Process Heaters'' ((RIN2060–AS09) (FRL No. 9936–20–OAR)) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3528. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Modification of Significant New Uses of Certain Chemical Substances'' ((RIN2070–AB27) (FRL No. 9935–43)) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3529. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Washington: Additional Regulations for the Benton Clean Air Agency Jurisdiction'' (FRL No. 9936–97–Region 10) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3530. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval of California Air Plan Revisions, Imperial County Air Pollution Control District'' (FRL No. 9936–65–Region 9) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3531. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval of Air Plans; California; Multiple Districts; Prevention of Significant Deterioration'' (FRL No. 9934–89–Region 9) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3532. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; New Mexico; Nonattainment New Source Review Permitting State Implementation Plan Revisions for the City of Albuquerque-Bernalillo County'' (FRL No. 9936–86–Region 6) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3533. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Arizona; Phased Discontinuation of State II Vapor Recovery Program'' (FRL No. 9936–77–Region 9) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3534. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Allocations of Cross-State Air Pollution Rule Allowances from New Unit Set-Asides for the 2015 Compliance Year'' (FRL No. 9936–99–OAR) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3535. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Michigan; Sewer Sludge Incinerators State Plan and Small Municipal Waste Combustors Negative Declaration for Designated Facilities and Pollutants'' (FRL No. 9936–96–Region 5) received in the Office of the President of the Senate on November 10, 2015; to the Committee on Environment and Public Works.

EC–3536. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Addition of 1-Bromopropane; Community Right-to-Know Toxic Chemical Release Reporting'' ((RIN2025–AA41) (FRL No. 9937–12–OEI)) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on Environment and Public Works.

EC–3537. A communication from the Endangered Species Listing Branch Chief, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Endangered and Threatened Wildlife and Plants; Threatened Species Status for Black Pinesnake With 4(d) Rule'' (RIN1018–BA03) received during adjournment of the Senate in the Office of the President of the Senate on November 6, 2015; to the Committee on Environment and Public Works.

EC–3538. A communication from the Chief of the Branch of Recovery and State Grants, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Endangered and Threatened Wildlife and Plants; Establishment of a Nonessential Experimental Population of Black-footed Ferrets in Wyoming'' (RIN1018–BA42) received during adjournment of the Senate in the Office of the President of the Senate on November 6, 2015; to the Committee on Environment and Public Works.

EC–3539. A communication from the Endangered Species Listing Branch Chief, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Endangered and Threatened Wildlife and Plants; Designation of Critical Habitat for Brickellia mosieri (Florida Brickell-bush) and Linum carteri var. carteri (Carter's Small-flowered Flax)'' (RIN1018–AZ64) received during adjournment of the Senate in the Office of the President of the Senate on November 6, 2015; to the Committee on Environment and Public Works.

EC–3540. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Report to Congress on the Administration, Cost and Impact of Quality Improvement Organization (QIO) Program for Medicare Beneficiaries for Fiscal Year (FY) 2013''; to the Committee on Finance.

EC–3541. A communication from the Director, Office of Regulations and Reports Clearance, Social Security Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Awarding Agency Regulatory Implementation of Office of Management and Budget's Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards'' (RIN0960–AH73) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Finance.

EC–3542. A communication from the Deputy Director, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Program; CY 2016 Inpatient Hospital Deductible and Hospital and Extended Care Services Coinsurance Amounts'' (RIN0938–AS36) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on Finance.

EC–3543. A communication from the Deputy Director, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Program; CY 2016 Premiums for the Uninsured Aged and for Certain Disabled Individuals Who Have Exhausted Other Entitlement'' (RIN0938–AS37) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on Finance.

EC–3544. A communication from the Deputy Director, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Program; Medicare Part B Monthly Actuarial Rates, Premium Rate, and Annual Deductible Beginning January 1, 2016'' (RIN0938–AS38) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on Finance.

EC–3545. A communication from the Chief of the Trade and Commercial Regulations

Branch, Bureau of Customs and Border Protection, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Customs and Border Protection's Bond Program'' (RIN1515–AD56) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Finance.

EC–3546. A communication from the Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification of the proposed sale or export of defense articles and/or defense services to a Middle East country (OSS–2015–1809); to the Committee on Foreign Relations.

EC–3547. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–018); to the Committee on Foreign Relations.

EC–3548. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–111); to the Committee on Foreign Relations.

EC–3549. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–089); to the Committee on Foreign Relations.

EC–3550. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–085); to the Committee on Foreign Relations.

EC–3551. A communication from the Acting Assistant Secretary, Office of Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to loan guarantees to Israel; to the Committee on Foreign Relations.

EC–3552. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–053); to the Committee on Foreign Relations.

EC–3553. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–054); to the Committee on Foreign Relations.

EC–3554. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–063); to the Committee on Foreign Relations.

EC–3555. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–071); to the Committee on Foreign Relations.

EC–3556. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 15–080); to the Committee on Foreign Relations.

EC–3557. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, the Food and Drug Administration's reports relative to the Fifth, Sixth, and Seventh Reviews of the Backlog of Postmarketing Requirements and Postmarketing Commitments; to the Committee on Health, Education, Labor, and Pensions.

EC–3558. A communication from the Assistant Secretary, Employee Benefits Security Administration, Department of Labor, transmitting, pursuant to law, the report of a rule entitled ''Final Rules under the Affordable Care Act for Grandfathered Plans, Preexisting Condition Exclusions, Lifetime and Annual Limits, Rescissions, Dependent Coverage, Appeals, and Patient Protections'' (RIN1210–AB72) received in the Office of the President of the Senate on November 16, 2015; to the Committee on Health, Education, Labor, and Pensions.

EC–3559. A communication from the Secretary of Transportation, transmitting, pursuant to law, the Department of Transportation's Semiannual Report of the Inspector General for the period from April 1, 2015 through September 30, 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3560. A communication from the Deputy Under Secretary for Management and Chief Financial Officer, Department of Homeland Security, transmitting, pursuant to law, a report entitled ''Public Assistance Program Alternative Procedures: Fiscal Year 2015 Report to Congress—Second Quarterly Status Report'' ; to the Committee on Homeland Security and Governmental Affairs.

EC–3561. A communication from the Deputy Under Secretary for Management and Chief Financial Officer, Department of Homeland Security, transmitting, pursuant to law, a report entitled ''Public Assistance Program Alternative Procedures: Fiscal Year 2015 Report to Congress—First Quarterly Status Report''; to the Committee on Homeland Security and Governmental Affairs.

EC–3562. A communication from the Under Secretary of Defense (Comptroller), transmitting, pursuant to law, the Uniform Resource Locator (URL) for the Department of Defense (DoD) Agency Financial Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3563. A communication from the Board Chairman and Chief Executive Officer, Farm Credit Administration, transmitting, pursuant to law, the Administration's Performance and Accountability Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3564. A communication from the Archivist of the United States, National Archives and Records Administration, transmitting, pursuant to law, a report relative to the Administration's fiscal year 2015 Financial Report; to the Committee on Homeland Security and Governmental Affairs.

EC–3565. A communication from the Acting Commissioner of Social Security, transmitting, pursuant to law, the Agency Financial Report for Fiscal Year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3566. A communication from the Deputy Under Secretary for Management and Chief Financial Officer, Department of Homeland Security, transmitting, pursuant to law, the fiscal year 2015 Agency Financial Report; to the Committee on Homeland Security and Governmental Affairs.

EC–3567. A communication from the Director, Office of Government Ethics, transmitting, pursuant to law, the Annual Financial Report for the Office of Government Ethics for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3568. A communication from the Director, Congressional Affairs, Federal Election Commission, transmitting, pursuant to law, the Commission's Agency Financial Report for fiscal year 2015; to the Committee on Homeland Security and Governmental Affairs.

EC–3569. A communication from the Deputy Assistant Administrator of the Office of Diversion Control, Drug Enforcement Agency, Department of Justice, transmitting, pursuant to law, the report of a rule entitled ''Schedules of Controlled Substances: Placement of Eluxadoline into Schedule IV'' (Docket No. DEA–419F) received during adjournment of the Senate in the Office of the President of the Senate on November 13, 2015; to the Committee on the Judiciary.

EC–3570. A communication from the Deputy Assistant Administrator of the Office of Diversion Control, Drug Enforcement Agency, Department of Justice, transmitting, pursuant to law, the report of a rule entitled ''Schedules of Controlled Substances: Extension of Temporary Placement of Three Synthetic Phenethylamines in Schedule I'' (Docket No. DEA–424) received in the Office of the President of the Senate on November 13, 2015; to the Committee on the Judiciary.

EC–3571. A communication from the Assistant Attorney General, Office of Legislative Affairs, Department of Justice, transmitting, pursuant to law, an annual report relative to the activities and operations of the Public Integrity Section, Criminal Division, and the nationwide federal law enforcement effort against public corruption; to the Committee on the Judiciary.

EC–3572. A communication from the Secretary of the Senate, transmitting, pursuant to law, the report of the receipts and expenditures of the Senate for the period from April 1, 2015 through September 30, 2015, received in the Office of the President of the Senate on November 10, 2015; ordered to lie on the table.

EC–3573. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Snapper-Grouper Resources of the South Atlantic; Trip Limit Reduction for Gag Grouper'' (RIN0648–XE245) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3574. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Coral, Coral Reefs, and Live/Hard Bottom Habitats of the South Atlantic Region; Amendment 8; Correction'' (RIN0648–BD81) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3575. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Magnuson-Stevens Act Provisions; Fisheries Off West Coast States; Pacific Coast Groundfish Fishery; 2015–2016 Biennial Specifications and Management Measures; Inseason Adjustments'' (RIN0648–BF40) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3576. A communication from the Deputy Assistant Administrator for Regulatory Programs, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Technical Amendment to Regulations'' (RIN0648–BF30) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3577. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XE242) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3578. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Atlantic Herring Fishery; Georges Bank Haddock Catch Cap Harvested'' (RIN0648–XE266) received in the Office of the President of the Senate on November 16, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3579. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Reallocation of Pacific Cod in the Bering Sea and Aleutian Island Management Area'' (RIN0648–XE269) received in the Office of the President of the Senate on November 16, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3580. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Snapper-Grouper Fishery of the South Atlantic; 2015 Commercial Accountability Measure and Closure for South Atlantic Yellowtail Snapper'' (RIN0648–XE216) received in the Office of the President of the Senate on November 16, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3581. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Inseason Adjustment to the 2015 Gulf of Alaska Pollock Seasonal Apportionments'' (RIN0648–XE293) received in the Office of the President of the Senate on November 16, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3582. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Wakeeney, KS'' ((RIN2120–AA66) (Docket No. FAA–2015–1832)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3583. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Vancouver, WA'' ((RIN2120–AA66) (Docket No. FAA–2015–3322)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3584. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Vadalia, LA'' ((RIN2120–AA66) (Docket No. FAA–2015–1389)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3585. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Tomah, WI'' ((RIN2120–AA66) (Docket No. FAA–2015–1387)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3586. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Hart/Shelby, MI'' ((RIN2120–AA66) (Docket No. FAA–2015–1835)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3587. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class E Airspace; Tekamah, Nebraska'' ((RIN2120–AA66) (Docket No. FAA–2015–1394)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3588. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class E Airspace for the following Louisiana towns: Jonesboro, LA and Winnfield, LA'' ((RIN2120–AA66) (Docket No. FAA–2015–0843)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3589. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class E Airspace for the following Missouri towns: Chillicothe, MO; Cuba, MO, Farmington, MO; Lamar, MO; Mountain View, MO; Nevada, MO; and Poplar Bluff, MO'' ((RIN2120–AA66) (Docket No. FAA–2015–0842)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3590. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class D Airspace and Revocation of Class E Airspace; Columbus, Ohio State University Airport, OH, and Amendment of Class E Airspace'' ((RIN2120–AA66) (Docket No. FAA–2015–1649)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3591. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Revocation of Class E Airspace; Vincennes, IN'' ((RIN2120–AA66) (Docket No. FAA–2015–2049)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3592. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (78); Amdt. No. 3664'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3593. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (33); Amdt. No. 3663'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3594. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (9); Amdt. No. 3661'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3595. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (50); Amdt. No. 3662'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3596. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Changes to Production Certificates and Approvals'' (RIN2120–AK20) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3597. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Disclosure of Seat Dimensions to Facilitate Use of Child Safety Seats on Airplanes During Passenger-Carrying Operations'' (RIN2120–AK17) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3598. A communication from the Senior Assistant Chief Counsel for Hazmat Safety Law, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Hazardous Materials: Carriage of Battery-Powered Electronic Smoking Devices in Passenger Baggage'' (RIN2137–AF12) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3599. A communication from the Program Analyst, National Highway Traffic

Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Allowing Importers to Provide Information to U.S. Customs and Border Protection in Electronic Format'' (RIN2127–AL63) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3600. A communication from the Program Analyst, National Highway Traffic Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Defect and Noncompliance Notification'' (RIN2127–AL60) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3601. A communication from the Program Analyst, National Highway Traffic Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Federal Motor Vehicle Theft Prevention Standard; Final Listing of 2016 Light Duty Truck Lines Subject to the Requirements of This Standard and Exempted Vehicle Lines for Model Year 2016'' (RIN2127–AL59) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3602. A communication from the Program Analyst, National Highway Traffic Safety Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Direct Final Rulemaking Procedures'' (RIN2127–AL32) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3603. A communication from the Deputy Chief of the Auctions and Spectrum Access Division, Wireless Telecommunications Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Application Procedures for Broadcast Incentive Auction Scheduled to Begin on March 29, 2016; Technical Formulas for Competitive Bidding'' ((DA 15–1183) (AU Docket No. 14–252, GN Docket No. 12–268, and WT Docket No. 12–269)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3604. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; The Boeing Company Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–4209)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3605. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; The Boeing Company Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–0498)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3606. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Bombardier, Inc. Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–1985)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3607. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Technify Motors GmbH Reciprocating Engines'' ((RIN2120–AA64) (Docket No. FAA–2015–1383)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3608. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Pratt and Whitney Turboprop Engines'' ((RIN2120–AA64) (Docket No. FAA–2015–0869)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3609. A communication from the Paralegal Specialist, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Fokker Services B.V. Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–0933)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3610. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Sikorsky Aircraft Corporation Helicopters'' ((RIN2120–AA64) (Docket No. FAA–2015–3940)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EC–3611. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Various Sikorsky-Manufactured Transport and Restricted Category Helicopters'' ((RIN2120–AA64) (Docket No. FAA–2009–1088)) received during adjournment of the Senate in the Office of the President of the Senate on November 12, 2015; to the Committee on Commerce, Science, and Transportation.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. CORKER for the Committee on Foreign Relations.

*Roberta S. Jacobson, of Maryland, a Career Member of the Senior Executive Service, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the United Mexican States.

Nominee: Roberta S. Jacobson.

Post: Ambassador to United Mexican States.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $500, 9/9/2012, Barack Obama.

2. Spouse: Jonathan Jacobson: none.

3. Children and Spouses: Gil Jacobson, none. Daniel Jacobson, none.

4. Parents: Gloria Berk Steinfeld—Deceased; Julian Stanley Steinfeld—Deceased.

5. Grandparents: Henrietta Simon Berk—Deceased; David Theodore Berk—Deceased; Jacob Steinfeld—Deceased; Ceil Bernstein Steinfeld—Deceased.

6. Brothers and Spouses: Jeffrey Steinfeld, none; Karen Steinfeld, none.

7. Sisters and Spouses: Richard Swanson, $500, 1/24/2011, Arnold/Porter PAC; $500, 4/12/2011, Arnold/Porter PAC; $500, 6/14/2011, Arnold/Porter PAC; $500, 9/16/2011, Arnold/Porter PAC; $500, 1/2012012, Arnold/Porter PAC; $2000, 8/30/2012, Obama for America; $5000, 9/18/2011, Obama Victory Fund; $2500, 12/9/2011, Obama Victory Fund; $2500, 6/4/2012, Obama Victory Fund; $1000, 10/08/2013, Michael Bennet; $5000, 12/31/2013, Dem. Senatorial Campaign Committee; $1000, 12/02/2013, Mark Warner; $2000, 6/26/2012, Virginia Colorado Fund; $3000, 3/23/2015, Bennet for Colorado; $2500, 6/21/2012, Democratic National Committee; $2500, 12/9/2011, Democratic National Committee. Caryn Swanson: $2300, 3/23/2015, Bennet for Colorado.

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*Peter William Bodde, of Maryland, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Libya.

Nominee: Peter William Bodde.

Post: Libya.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: none.

2. Spouse: none.

3. Children & Spouses: none.

4. Father: William Bodde, Jr.: $600.00, 2012, Democratic National Committee; $570, 2014, Democratic National Committee.

5. Grandparents: none.

5. Brothers and Spouses: none.

6. Sisters and Spouses: none.

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*Elisabeth I. Millard, of Virginia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Tajikistan.

Nominee: Elisabeth Inge Millard.

Post: Dushanbe.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: N/A.

2. Spouse: August V.B Millard—(deceased): $100.00, 10/11/12, Romney; $50, 7/2/10, McCain; $50, 2/16/10, McCain; $50, 4/21/10, McCain; $200, 4/23/12, Sias.

3. Children and Spouses: Charlotte and Lorenzo McWilliams: N/A; Olivia and John Davis: N/A; Alexandra Millard: N/A; James Millard: N/A; Richard Millard: N/A.

4. Parents: Lennart and Margaretha Hesselvik: N/A.

5. Grandparents: Inga and Bernt Odenblad: N/A; August and Ingrid Hesselvik: N/A.

6. Brothers and Spouses: Fredrik and Lena Hesselvik: N/A; Pelle Hesselvik: N/A.
7. Sisters and Spouses: Ingrid Hesselvik: N/A.

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*Marc Jonathan Sievers, of Maryland, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Sultanate of Oman.

Nominee: Marc J. Sievers.

Post: Muscat, Oman.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $100, 8/2014, Elan Carr.
2. Spouse: Michelle Raphael: Joint Donation, 8/2014, Elan Carr.
3. Children and Spouses: Miriam H. Sievers, none; David N. Sievers, none; Samuel A. Sievers, (minor).
4. Parents: Anita R. Sievers, none; Allen M. Sievers, (deceased).
5. Grandparents: deceased.
6. Brothers and Spouses: none.
7. Sisters and Spouses: none.

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*Deborah R. Malac, of Virginia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Uganda.

Nominee: Deborah Ruth Malac.

Post: Ambassador to the Republic of Uganda.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Deborah Ruth Malac: None.
2. Spouse: Ronald Kenneth Olson: $25.00, 02/06/2014, DSCC; 25.00, 07/07/2014, Democratic National Committee; 50.00, 08/15/2014, Friends of Mark Warner.
3. Children and Spouses: Nicholas Stefan Olson and Shana Wrobel Olson: none.

Gregory Michael Olson: $25.00 08/15/2014, Obama Campaign. Katharine Elaine Olson: none.

4. Parents: Marian Bartak Malac and Barry Forrest Malac: $5.00, 02/19/2014, Republican National Committee; $15.00, 03/15/2014, Republican National Senatorial Committee; $20.00, 05/24/2014, Republican National Committee; $10.00, 06/16/2014, Republican National Committee; $10.00, 07/21/2014, Republican National Committee; $10.00, 09/10/2014 Republican National Committee; $15.00, 09/20/2014, Republican National Congressional Committee; $10.00, 10/16/2014, Republican National Committee; $10.00, 03/11/2013, Republican National Senatorial Committee; $15.00, 04/23/2013, Republican National Committee; $5.00, 07/25/2013, Republican National Committee; $10.00, 08/26/2013, Republican National Congressional Committee; $10.00, 04/09/2012, Republican National Committee; $15.00, 06/22/2012, Republican National Committee; $15.00, 07/17/2012, Republican National Senatorial Committee; $10.00, 09/18/2012, Republican National Committee; $15.00, 09/23/2012, Republican National Senatorial Committee; $15.00, 10/06/2012, Republican National Committee; $15.00, 04/04/2011, Republican National Congressional Committee; $15.00, 11/02/2011, Republican National Congressional Committee.

5. Grandparents: Rev. Joseph Paul Bartak—deceased; Minnie Polk Bartak—deceased; Rev. Gustav Malac—deceased; Antonie Malac—deceased.
6. Brothers and Spouses: Roy David Malac and Carolyn Malac: none; Timothy Alan Malac and Theresa Malac: none.
7. Sisters and Spouses: none.

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*Lisa J. Peterson, of Virginia, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Kingdom of Swaziland.

Nominee: Lisa J. Peterson.

Post: Kingdom of Swaziland.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $0.00, N/A, N/A.
2. Spouse: $0.00, N/A, N/A.
3. Children and Spouses: $0.00, N/A, N/A.
4. Parents: $0.00, N/A, N/A.
5. Grandparents: $0.00, N/A, N/A.
6. Brothers and Spouses: Scott Peterson: $10.00, 01/25/2011, Tea Party; $10.00, 06/2012, Scott Walker.
7. Sisters and Spouses: Karen Gould: $100 (est.), unknown, Barack Obama; $50 (est.), unknown, Elizabeth Warren; $50 (est.), unknown, Alison Grimes; $100 (est.), unknown, Democratic Senate and Congressional Campaign Committees.

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*H. Dean Pittman, of the District of Columbia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Mozambique.

Nominee: Howard Dean Pittman.

Post: Mozambique.

The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.

Contributions, amount, date, and donee:

1. Self: $500, 10/16/2012, Barak Obama.
2. Spouse: NA.
3. Children and Spouses: NA.
4. Parents: Elizabeth A. Pittman: none; Paul Pittman—deceased.
5. Grandparents: Hattie D. Pittman—deceased; Patrick H. Pittman—deceased; Mary M. MacDonald—deceased; Fredrick MacDonald—deceased.
6. Brothers and Spouses: NA.
7. Sisters and Spouses: Shane Pittman, none; Michael L. McLenagan, none; Elise Pittman, none.

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*John Morton, of Massachusetts, to be Executive Vice President of the Overseas Private Investment Corporation.

*Kenneth Damian Ward, of Virginia, a Career Member of the Senior Executive Service, for the rank of Ambassador during his tenure of service as United States Representative to the Organization for the Prohibition of Chemical Weapons.

*Linda I. Etim, of Wisconsin, to be an Assistant Administrator of the United States Agency for International Development.

*Thomas A. Shannon, Jr., of Virginia, a Career Member of the Senior Foreign Service, Class of Career Ambassador, to be an Under Secretary of State (Political Affairs).

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. VITTER (for himself, Mr. LEE, Mr. TILLIS, Mr. PERDUE, Mr. CASSIDY, and Mr. BARRASSO):

S. 2284. A bill to suspend the admission and resettlement of aliens seeking refugee status because of the conflict in Syria until adequate protocols are established to protect the national security of the United States and for other purposes; to the Committee on the Judiciary.

By Mr. BURR:

S. 2285. A bill to provide for the recognition of the Lumbee Tribe of North Carolina, and for other purposes; to the Committee on Indian Affairs .

By Mr. LEE (for himself, Mr. BARRASSO, and Mr. FLAKE):

S. 2286. A bill to address the forest health, public safety, and wildlife habitat threat presented by the risk of wildfire, including catastrophic wildfire, on National Forest System land and public land managed by the Bureau of Land Management by requiring the Secretary of Agriculture and the Secretary of the Interior to expedite forest management projects relating to hazardous fuels reduction, forest health, and economic development, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. UDALL:

S. 2287. A bill to amend the Department of Energy Organization Act to improve technology transfer at the Department of Energy by reducing bureaucratic barriers to industry, entrepreneurs, and small businesses, as well as ensure that public investments in research and development generate the greatest return on investment for taxpayers, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. PAUL:

S. 2288. A bill to prohibit members and staff of the Federal Reserve System from lobbying for or against legislation, and for other purposes; read the first time.

By Mr. KAINE (for himself, Ms. COLLINS, Mr. SCHATZ, and Mrs. MURRAY):

S. 2289. A bill to modernize and improve the Family Unification Program, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. LEE (for himself and Mr. CRUZ):

S. 2290. A bill to amend the Head Start Act to authorize block grants to States for prekindergarten education, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. KIRK (for himself, Mr. BLUMENTHAL, Mr. GRASSLEY, Mrs. GILLIBRAND, Mr. JOHNSON, Ms. BALDWIN, and Mr. RUBIO):

S. 2291. A bill to amend title 38, United States Code, to establish procedures within the Department of Veterans Affairs for the processing of whistleblower complaints, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. TESTER (for himself and Mrs. FISCHER):

S. 2292. A bill to reform laws relating to small public housing agencies, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mrs. MURRAY:

S. 2293. A bill to enhance Social Security benefits for children, divorced spouses, and

widows and widowers, and for other purposes; to the Committee on Finance.

By Ms. KLOBUCHAR (for herself and Ms. COLLINS):

S. 2294. A bill to create a division within the Congressional Budget Office to perform regulatory analysis of economically significant rules; to the Committee on the Budget.

By Mr. COTTON:

S. 2295. A bill to extend the termination date for the authority to collect certain records and make permanent the authority for roving surveillance and to treat individual terrorists as agents of foreign powers under the Foreign Intelligence Surveillance Act of 1978, and for other purposes; to the Committee on the Judiciary.

By Mr. FLAKE (for himself, Mr. ALEXANDER, Mr. BARRASSO, Mrs. CAPITO, Mr. CASSIDY, Mr. COATS, Mr. CORNYN, Mr. COTTON, Mr. CRAPO, Mr. CRUZ, Mr. ENZI, Mrs. ERNST, Mrs. FISCHER, Mr. HATCH, Mr. HELLER, Mr. INHOFE, Mr. JOHNSON, Mr. LANKFORD, Mr. LEE, Mr. MCCAIN, Mr. MCCONNELL, Mr. MORAN, Mr. PAUL, Mr. RISCH, Mr. ROBERTS, Mr. SESSIONS, Mr. THUNE, Mr. TILLIS, Mr. VITTER, Mr. WICKER, and Mr. ISAKSON):

S.J. Res. 25. A joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the final rule of the Administrator of the Environmental Protection Agency relating to ''National Ambient Air Quality Standards for Ozone'' ; to the Committee on Environment and Public Works.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MORAN (for himself and Mr. BOOKER):

S. Res. 314. A resolution expressing support for designation of the third Tuesday in November as ''National Entrepreneurs' Day''; to the Committee on Commerce, Science, and Transportation.

ADDITIONAL COSPONSORS

S. 314

At the request of Mr. GRASSLEY, the name of the Senator from Iowa (Mrs. ERNST) was added as a cosponsor of S. 314, a bill to amend title XVIII of the Social Security Act to provide for coverage under the Medicare program of pharmacist services.

S. 330

At the request of Mr. HELLER, the names of the Senator from South Dakota (Mr. THUNE), the Senator from Delaware (Mr. COONS), the Senator from Minnesota (Mr. FRANKEN) and the Senator from North Carolina (Mr. BURR) were added as cosponsors of S. 330, a bill to amend the Internal Revenue Code of 1986 to make permanent the special rule for contributions of qualified conservation contributions, and for other purposes.

S. 551

At the request of Mrs. FEINSTEIN, the name of the Senator from Missouri (Mrs. MCCASKILL) was added as a cosponsor of S. 551, a bill to increase public safety by permitting the Attorney General to deny the transfer of firearms or the issuance of firearms and explosives licenses to known or suspected dangerous terrorists.

S. 613

At the request of Mrs. GILLIBRAND, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 613, a bill to amend the Richard B. Russell National School Lunch Act to improve the efficiency of summer meals.

S. 627

At the request of Ms. AYOTTE, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 627, a bill to require the Secretary of Veterans Affairs to revoke bonuses paid to employees involved in electronic wait list manipulations, and for other purposes.

S. 637

At the request of Mr. CRAPO, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 637, a bill to amend the Internal Revenue Code of 1986 to extend and modify the railroad track maintenance credit.

S. 928

At the request of Mrs. GILLIBRAND, the name of the Senator from Florida (Mr. RUBIO) was added as a cosponsor of S. 928, a bill to reauthorize the World Trade Center Health Program and the September 11th Victim Compensation Fund of 2001, and for other purposes.

S. 950

At the request of Mr. CASEY, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 950, a bill to amend the Internal Revenue Code of 1986 to provide for a refundable adoption tax credit.

S. 968

At the request of Mrs. GILLIBRAND, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 968, a bill to require the Commissioner of Social Security to revise the medical and evaluation criteria for determining disability in a person diagnosed with Huntington's Disease and to waive the 24-month waiting period for Medicare eligibility for individuals disabled by Huntington's Disease.

S. 1133

At the request of Mr. FRANKEN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 1133, a bill to amend title 9 of the United States Code with respect to arbitration.

S. 1390

At the request of Mr. GARDNER, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 1390, a bill to help provide relief to State education budgets during a recovering economy, to help fulfill the Federal mandate to provide higher educational opportunities for Native American Indians, and for other purposes.

S. 1540

At the request of Mrs. MCCASKILL, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 1540, a bill to improve the enforcement of prohibitions on robocalls, including fraudulent robocalls.

S. 1685

At the request of Mr. WICKER, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 1685, a bill to direct the Federal Communications Commission to extend to private land use restrictions its rule relating to reasonable accommodation of amateur service communications.

S. 1830

At the request of Mr. BARRASSO, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 1830, a bill to amend title XVIII of the Social Security Act to provide for the coverage of marriage and family therapist services and mental health counselor services under part B of the Medicare program, and for other purposes.

S. 1890

At the request of Mr. HATCH, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. 1890, a bill to amend chapter 90 of title 18, United States Code, to provide Federal jurisdiction for the theft of trade secrets, and for other purposes.

S. 1926

At the request of Ms. MIKULSKI, the names of the Senator from Iowa (Mr. GRASSLEY) and the Senator from Illinois (Mr. KIRK) were added as cosponsors of S. 1926, a bill to ensure access to screening mammography services.

S. 2021

At the request of Mr. BOOKER, the name of the Senator from Oregon (Mr. WYDEN) was added as a cosponsor of S. 2021, a bill to prohibit Federal agencies and Federal contractors from requesting that an applicant for employment disclose criminal history record information before the applicant has received a conditional offer, and for other purposes.

S. 2044

At the request of Mr. THUNE, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. 2044, a bill to prohibit the use of certain clauses in form contracts that restrict the ability of a consumer to communicate regarding the goods or services offered in interstate commerce that were the subject of the contract, and for other purposes.

S. 2067

At the request of Mr. WICKER, the name of the Senator from Hawaii (Ms. HIRONO) was added as a cosponsor of S. 2067, a bill to establish EUREKA Prize Competitions to accelerate discovery and development of disease-modifying, preventive, or curative treatments for Alzheimer's disease and related dementia, to encourage efforts to enhance detection and diagnosis of such diseases, or to enhance the quality and efficiency of care of individuals with such diseases.

S. 2072

At the request of Mr. HATCH, the names of the Senator from Arkansas (Mr. BOOZMAN) and the Senator from Indiana (Mr. DONNELLY) were added as cosponsors of S. 2072, a bill to require the Administrator of the Environmental Protection Agency to establish a program under which the Administrator shall defer the designation of an area as a nonattainment area for purposes of the 8-hour ozone national ambient air quality standard if the area achieves and maintains certain standards under a voluntary early action compact plan.

S. 2095

At the request of Ms. CANTWELL, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 2095, a bill to establish certain requirements with respect to pollock and golden king crab.

S. 2123

At the request of Mr. GRASSLEY, the names of the Senator from Iowa (Mrs. ERNST) and the Senator from Washington (Mrs. MURRAY) were added as cosponsors of S. 2123, a bill to reform sentencing laws and correctional institutions, and for other purposes.

S. 2193

At the request of Mr. CRUZ, the name of the Senator from Oklahoma (Mr. INHOFE) was added as a cosponsor of S. 2193, a bill to amend the Immigration and Nationality Act to increase penalties for individuals who illegally reenter the United States after being removed and for other purposes.

S. 2196

At the request of Mr. CASEY, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 2196, a bill to amend title XVIII of the Social Security Act to provide for the non-application of Medicare competitive acquisition rates to complex rehabilitative wheelchairs and accessories.

S. 2200

At the request of Mrs. FISCHER, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 2200, a bill to amend the Fair Labor Standards Act of 1938 to strengthen equal pay requirements.

S. 2213

At the request of Mr. BLUMENTHAL, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 2213, a bill to prohibit firearms dealers from selling a firearm prior to the completion of a background check.

S. 2234

At the request of Mr. BLUNT, the names of the Senator from Kansas (Mr. MORAN) and the Senator from Mississippi (Mr. COCHRAN) were added as cosponsors of S. 2234, a bill to award the Congressional Gold Medal, collectively, to the members of the Office of Strategic Services (OSS) in recognition of their superior service and major contributions during World War II.

S. 2263

At the request of Mr. BLUNT, the names of the Senator from Arkansas (Mr. COTTON) and the Senator from Illinois (Mr. KIRK) were added as cosponsors of S. 2263, a bill to encourage effective, voluntary private sector investments to recruit, employ, and retain men and women who have served in the United States military with annual Federal awards to private sector employers recognizing such investments, and for other purposes.

S.J. RES. 1

At the request of Ms. AYOTTE, her name was added as a cosponsor of S.J. Res. 1, a joint resolution proposing an amendment to the Constitution of the United States relative to limiting the number of terms that a Member of Congress may serve.

S. RES. 148

At the request of Mr. WYDEN, the names of the Senator from Oregon (Mr. MERKLEY) and the Senator from Connecticut (Mr. BLUMENTHAL) were added as cosponsors of S. Res. 148, a resolution condemning the Government of Iran's state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 237

At the request of Mr. BOOZMAN, the names of the Senator from Maryland (Mr. CARDIN), the Senator from North Carolina (Mr. TILLIS) and the Senator from Rhode Island (Mr. WHITEHOUSE) were added as cosponsors of S. Res. 237, a resolution condemning Joseph Kony and the Lord's Resistance Army for continuing to perpetrate crimes against humanity, war crimes, and mass atrocities, and supporting ongoing efforts by the United States Government, the African Union, and governments and regional organizations in central Africa to remove Joseph Kony and Lord's Resistance Army commanders from the battlefield and promote protection and recovery of affected communities.

S. RES. 282

At the request of Mrs. SHAHEEN, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of S. Res. 282, a resolution supporting the goals and ideals of American Diabetes Month.

S. RES. 302

At the request of Mr. BLUMENTHAL, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. Res. 302, a resolution expressing the sense of the Senate in support of Israel and in condemnation of Palestinian terror attacks.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. VITTER (for himself, Mr. LEE, Mr. TILLIS, Mr. PERDUE, Mr. CASSIDY, and Mr. BARRASSO):

S. 2284. A bill to suspend the admission and resettlement of aliens seeking refugee status because of the conflict in Syria until adequate protocols are established to protect the national security of the United States and for other purposes; to the Committee on the Judiciary.

Mr. VITTER. Mr. President, I rise to strongly urge the adoption of my bill, S. 2284, to stop the Syrian refugee resettlement program, unless and until we have complete and adequate safeguards in place for the security of our homeland and all of our States. It is very clear to me that we do not have those safeguards right now.

What my bill would do is stop the program for 270 days, demand a thorough review of all security issues related to the program, demand that changes be made and brought before Congress, and that the program only continue with the consent of Congress after we are assured the homeland and all of our States will be fully protected. Again, it is very clear to me that is not the case now.

I expressed strong concerns and opposition to this program from the very beginning. When I first learned of it in September, I wrote Secretaries Kerry and Johnson regarding the real dangers of taking in thousands upon thousands of refugees from a country and an area of the world where enemies of the United States are all around them, and that clearly it posed a danger of those terrorist enemies infiltrating the refugee resettlement process. Tragically, we saw that happen and we saw the horrible results in Paris last Friday. As we all know now, at least one of those terrorists in Paris got into France under the Syrian refugee resettlement program there, and that is the same danger that is posed to us.

Now, I have looked at this. I have had briefings on this. It is clear to me that we do not have adequate safeguards against this. Let me just cite one example of testimony in this regard. FBI Director James Comey has testified that the Federal Government doesn't have the ability to fully vet 10,000 or more Syrians refugees. Recently, during a hearing before the House Committee on Homeland Security, Mr. Comey stated:

> We can only query against that which we have collected. And so if someone has never made a ripple in the pond in Syria in a way that would get their identity or their interest reflected in our database, we can query our database until the cows come home, but there will be nothing show up because we have no record of them.

That puts in simple, straightforward terms the real danger—that we cannot properly vet all of these refugees. And this is not from just any part of the world or any country. This is from a hotbed of anti-American terrorist elements.

There is an additional grave danger with the program as it stands now, and that is our complete inability to track these individuals once they are in our country. Unfortunately, I have an example of this right from my home

State of Louisiana. Just last week, a Syrian refugee was resettled into Baton Rouge. As of today, he is no longer there. He has gone missing. Allegedly, he, on his own, is relocating to Washington, DC. But from the briefings I have had from the State police, no one is in contact with him, no law enforcement or government agency is tracking him in any way, and he may or may not check in to a social service agency in Washington, DC. They have his information. Apparently, they are not in contact with him.

Now, this is within a week of his being resettled into where he was supposed to be, in Baton Rouge, LA, which I object to as a Louisianian. Again, he allegedly is coming to Washington. By the way, our Nation's capital is under high security alert. And no one knows exactly where he is. No one is tracking him adequately at all.

This clearly underscores the inadequacy of our current program. We need to put a stop to this until proper, full, and aggressive safeguards are in place. My bill, S. 2284, would do that. I am very happy the House of Representatives is acting and considering similar legislation.

I believe Congressman GRAVES will be introducing my legislation in the House, and the House may take up this matter as soon as Thursday. I hope that they do, because it is very time sensitive and our security is at stake. I hope that we do, by considering this and similar ideas absolutely as soon as possible. We must put a stop to this. We must put real security measures in place. We must not allow the flow to continue until we do.

By Mr. KAINE (for himself, Ms. COLLINS, Mr. SCHATZ, and Mrs. MURRAY):

S. 2289. A bill to modernize and improve the Family Unification Program, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

Mr. KAINE. Mr. President, children raised in loving and supportive households grow up to become more productive individuals, benefiting both the individual child and society at large. However, housing instability is linked to poor outcomes for children. Unsafe housing conditions and homelessness can threaten a child's safety. These conditions are often the reason for an investigation by the local child welfare agency, out-of-home placement, or a delay in family reunification.

Homelessness can also lead parents to voluntarily place their children in foster care while they search for housing. Families may also be separated because of shelter policies that exclude teenagers, especially boys. Further, youth aging out of the foster care system are particularly vulnerable to homelessness because they must make the transition to adulthood without support, financial or otherwise, from parents or other trusted guardians.

In Virginia, the Governor's office reported that as of September 2015 there were 5,140 total children in the Virginia foster care program. For fiscal year 2015, the average annual cost of foster care in Virginia was almost $47,000. Further, in 2013 Virginia had approximately 550 youth age out of the foster care system at age 18 without being connected to families. Nationally, over one-fifth of children who age out of the foster care system will experience homelessness at some time after age 18.

The Family Unification Program, FUP, an interagency collaboration between the Department of Housing and Urban Development, HUD, and the Department of Health and Human Services to provide housing vouchers to youth aging out of foster care and families involved with the child welfare system. Some of these vouchers also include supportive services, such as money management skills, job preparation, educational counseling, and proper nutrition and meal preparation. Research has shown that housing vouchers, coupled with supportive services, promotes family stabilization and reduces youth homelessness.

While these vouchers have yielded some success, the connections between HUD and HHS are often inadequate to provide effective assistance. Further, no dedicated source of funding is available for the supportive services promised, and too often families and youth are left without the help they need.

That is why I am pleased to introduce with my colleagues Senator COLLINS, Senator SCHATZ, and Senator MURRAY, the Family Unification, Preservation and Modernization Act. This legislation modernizes and improves FUP vouchers, as well as creates and provides supportive housing for at-risk youth and families involved with the child welfare system. By utilizing a housing first model, similar to the one used to combat veterans' homelessness, this legislation will ensure safe and stable housing for youth and families. This bill also strengthens the connections between local public housing agencies and child welfare agencies to promote family stabilization and reunification, replaces the arbitrary 18-month time limit for youth vouchers with a more workable 36-month time limit, expands youth eligibility to those who are 18 to 24 who have left foster care at age 14 or older or will leave foster care within 90 days and are homeless or at risk of becoming homeless, provides competitive grants for supportive services specifically targeted to FUP recipients, and promotes self-sufficiency by providing incentive payments to successful, data-driven interventions that improve outcomes.

My wife Anne and I have been long-term supporters in improving our child welfare system. When I served as Governor, we worked together to reform Virginia's foster care system. I am proud to introduce this commonsense, bipartisan legislation that will ensure family preservation and reduce youth homelessness.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 314—EXPRESSING SUPPORT FOR DESIGNATION OF THE THIRD TUESDAY IN NOVEMBER AS ''NATIONAL ENTREPRENEURS' DAY''

Mr. MORAN (for himself and Mr. BOOKER) submitted the following resolution; which was referred to the Committee on Commerce, Science, and Transportation:

S. RES. 314

Whereas, since the founding of the United States, innovation, creativity, industriousness, and entrepreneurship have formed the economic fiber of the United States;

Whereas entrepreneurs have long been vital to the economic growth of the United States by advancing innovation, improving productivity, and creating jobs;

Whereas the willingness of entrepreneurs to assume risk has resulted in unparalleled contributions to the development of the United States;

Whereas entrepreneur-led innovation has built and continues to sustain a critical United States competitive advantage;

Whereas more than 400,000 new businesses were created in the United States in 2013;

Whereas research shows that businesses 5 years or younger were responsible for nearly every net new job in the economy of the United States between 1982 and 2011;

Whereas entrepreneurs and the businesses created by entrepreneurs accounted for the creation of nearly 2,300,000 jobs in 2013;

Whereas, despite economic instability, over 50 percent of the population of the United States believes good opportunities exist for starting businesses and, in 2014, entrepreneurship rose to its highest level in 16 years, indicating that entrepreneurial spirit remains strong in the United States;

Whereas collaboration and cooperation among a broad coalition of organizations, including nonprofit entrepreneurial incubators, angel investors, venture capitalists, crowd-funding initiatives, and other early-stage investors, catalyze entrepreneurial ventures;

Whereas the Federal Government must continue to promote entrepreneurship in all communities by ensuring that entrepreneurs find the necessary resources to pursue their ideas;

Whereas support for all entrepreneurs, including women and minorities, who own and manage businesses of all sizes, from sole proprietorships to large enterprises, strengthens the overall economy of the United States;

Whereas entrepreneurial literacy skills serve as one of the 21st-century content areas critical to success in communities and workplaces;

Whereas 54 percent of young people (ages 18–34) in the United States envision starting a business or have already started a business;

Whereas positive outcomes for youth who participate in entrepreneurship education programs include improved academic performance, increased critical thinking skills, and heightened occupational aspirations;

Whereas, to maintain the position of the United States as a world economic leader, government, entrepreneurs, institutions of higher education, and businesses of all sizes must be united in a comprehensive effort to welcome and cultivate entrepreneurial activities in the United States;

Whereas entrepreneurs face various barriers that the Federal Government must work to reduce so that all entrepreneurs in the United States have a chance at success;

Whereas entrepreneurship remains a strong path for economic progress for all people of the United States; and

Whereas the third Tuesday in November would be an appropriate date to designate as ''National Entrepreneurs' Day'': Now, therefore, be it

Resolved, That the Senate—

(1) supports the designation of ''National Entrepreneurs' Day'';

(2) recognizes the considerable contributions of entrepreneurs to the United States; and

(3) honors those entrepreneurs who ignite innovation and inspire the next generation.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2809. Mr. MCCAIN (for himself and Mr. FLAKE) submitted an amendment intended to be proposed by him to the bill H.R. 2577, making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table.

SA 2810. Mr. DAINES (for Mr. RUBIO (for himself, Mrs. SHAHEEN, Mr. SHELBY, Mr. BROWN, Mr. MCCAIN, Mr. ROBERTS, Mr. KIRK, Ms. COLLINS, Ms. AYOTTE, Mr. HATCH, Mr. LANKFORD, Mr. CRUZ, Mr. ISAKSON, and Mr. ROUNDS)) proposed an amendment to the bill H.R. 2297, to prevent Hizballah and associated entities from gaining access to international financial and other institutions, and for other purposes.

SA 2811. Mr. DAINES (for Mr. RUBIO (for himself and Mrs. SHAHEEN)) proposed an amendment to the bill H.R. 2297, supra.

TEXT OF AMENDMENTS

SA 2809. Mr. MCCAIN (for himself and Mr. FLAKE) submitted an amendment intended to be proposed by him to the bill H.R. 2577, making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

After section 119C, insert the following:

SEC. 119D. Section 213(c) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note) is amended by adding at the end the following:

''(3) NOTIFICATIONS AND CONSULTATIONS.—Not less than 90 days before applying a categorical exclusion under this subsection to a new procedure at an OEP airport, the Administrator shall—

''(A) notify and consult with the operator of the airport at which the procedure would be implemented; and

''(B) consider consultations or other engagement with the community in the which the airport is located to inform the public of the procedure.

''(4) REVIEW OF CERTAIN CATEGORICAL EXCLUSIONS.—

''(A) IN GENERAL.—The Administrator shall review a decision of the Administrator made on or after February 14, 2012, and before the date of the enactment of this paragraph to grant a categorical exclusion under this subsection with respect to a procedure to be implemented at an OEP airport that was a material change from procedures previously in effect at the airport to determine if the implementation of the procedure had a significant effect on the human environment in the community in which the airport is located if the operator of that airport requests such a review and demonstrates that there is good cause to believe that the implementation of the procedure had such an effect.

''(B) CONTENT OF REVIEW.—If, in conducting a review under subparagraph (A) with respect to a procedure implemented at an OEP airport, the Administrator, in consultation with the operator of the airport, determines that implementing the procedure had a significant effect on the human environment in the community in which the airport is located, the Administrator shall—

''(i) consult with the operator of the airport to identify measures to mitigate the effect of the procedure on the human environment; and

''(ii) in conducting such consultations, consider the use of alternative flight paths.

''(C) HUMAN ENVIRONMENT DEFINED.—In this paragraph, the term 'human environment' has the meaning given that term in section 1508.14 of title 40, Code of Federal Regulations (as in effect on the day before the date of the enactment of this paragraph).''.

SA 2810. Mr. DAINES (for Mr. RUBIO (for himself, Mrs. SHAHEEN, Mr. SHELBY, Mr. BROWN, Mr. MCCAIN, Mr. ROBERTS, Mr. KIRK, Ms. COLLINS, Ms. AYOTTE, Mr. HATCH, Mr. LANKFORD, Mr. CRUZ, Mr. ISAKSON, and Mr. ROUNDS)) proposed an amendment to the bill H.R. 2297, to prevent Hizballah and associated entities from gaining access to international financial and other institutions, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Hizballah International Financing Prevention Act of 2015''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Statement of policy.
TITLE I—PREVENTION OF ACCESS BY HIZBALLAH TO INTERNATIONAL FINANCIAL AND OTHER INSTITUTIONS
Sec. 101. Report on imposition of sanctions on certain satellite providers that carry al-Manar TV.
Sec. 102. Sanctions with respect to financial institutions that engage in certain transactions.
TITLE II—REPORTS AND BRIEFINGS ON NARCOTICS TRAFFICKING AND SIGNIFICANT TRANSNATIONAL CRIMINAL ACTIVITIES OF HIZBALLAH
Sec. 201. Report and briefing on narcotics trafficking by Hizballah.
Sec. 202. Report and briefing on significant transnational criminal activities of Hizballah.
Sec. 203. Rewards for Justice and Hizballah's fundraising, financing, and money laundering activities.
Sec. 204. Report on activities of foreign governments to disrupt global logistics networks and fundraising, financing, and money laundering activities of Hizballah.
TITLE III—MISCELLANEOUS PROVISIONS
Sec. 301. Rule of construction.
Sec. 302. Regulatory authority.
Sec. 303. Termination.

SEC. 2. STATEMENT OF POLICY.

It shall be the policy of the United States to—

(1) prevent Hizballah's global logistics and financial network from operating in order to curtail funding of its domestic and international activities; and

(2) utilize all available diplomatic, legislative, and executive avenues to combat the global criminal activities of Hizballah as a means to block that organization's ability to fund its global terrorist activities.

TITLE I—PREVENTION OF ACCESS BY HIZBALLAH TO INTERNATIONAL FINANCIAL AND OTHER INSTITUTIONS

SEC. 101. REPORT ON IMPOSITION OF SANCTIONS ON CERTAIN SATELLITE PROVIDERS THAT CARRY AL-MANAR TV.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the President shall submit to the appropriate congressional committees and leadership a report on the following:

(1) The activities of all satellite, broadcast, Internet, or other providers that have knowingly entered into a contractual relationship with al-Manar TV, and any affiliates or successors thereof.

(2) With respect to all providers described in paragraph (1)—

(A) an identification of those providers that have been sanctioned pursuant to Executive Order 13224 (50 U.S.C. 1701 note; relating to blocking property and prohibiting transactions with persons who commit, threaten to commit, or support terrorism); and

(B) an identification of those providers that have not been sanctioned pursuant to Executive Order 13224 and, with respect to each such provider, any information indicating that the provider has knowingly entered into a contractual relationship with al-Manar TV, and any affiliates or successors of al-Manar TV.

(b) FORM OF REPORT.—The report required by subsection (a) shall be submitted in unclassified form to the greatest extent possible, but may include a classified annex.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES AND LEADERSHIP DEFINED.—In this section, the term ''appropriate congressional committees and leadership'' means—

(1) the Speaker, the minority leader, the Committee on Foreign Affairs, the Committee on Financial Services, and the Permanent Select Committee on Intelligence of the House of Representatives; and

(2) the majority leader, the minority leader, the Committee on Foreign Relations, the Committee on Banking, Housing, and Urban Affairs, and the Select Committee on Intelligence of the Senate.

SEC. 102. SANCTIONS WITH RESPECT TO FINANCIAL INSTITUTIONS THAT ENGAGE IN CERTAIN TRANSACTIONS.

(a) PROHIBITIONS AND CONDITIONS WITH RESPECT TO CERTAIN ACCOUNTS HELD BY FOREIGN FINANCIAL INSTITUTIONS.—

(1) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the President shall prescribe regulations to prohibit, or impose strict conditions on, the opening or maintaining in the United States of a correspondent account or a payable-through account by a foreign financial institution that the President determines, on or after such date of enactment, engages in an activity described in paragraph (2).

(2) ACTIVITIES DESCRIBED.—A foreign financial institution engages in an activity described in this paragraph if the foreign financial institution—

(A) knowingly facilitates a significant transaction or transactions for Hizballah;

(B) knowingly facilitates a significant transaction or transactions of a person identified on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury and the property and interests in property of which are

blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) for acting on behalf of or at the direction of, or being owned or controlled by, Hizballah;

(C) knowingly engages in money laundering to carry out an activity described in subparagraph (A) or (B); or

(D) knowingly facilitates a significant transaction or transactions or provides significant financial services to carry out an activity described in subparagraph (A), (B), or (C).

(3) PENALTIES.—The penalties provided for in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) shall apply to a person that violates, attempts to violate, conspires to violate, or causes a violation of regulations prescribed under this subsection to the same extent that such penalties apply to a person that commits an unlawful act described in subsection (a) of such section 206.

(4) PROCEDURES FOR JUDICIAL REVIEW OF CLASSIFIED INFORMATION.—

(A) IN GENERAL.—If a finding under this subsection, or a prohibition, condition, or penalty imposed as a result of any such finding, is based on classified information (as defined in section 1(a) of the Classified Information Procedures Act (18 U.S.C. App.)) and a court reviews the finding or the imposition of the prohibition, condition, or penalty, the President may submit such information to the court ex parte and in camera.

(B) RULE OF CONSTRUCTION.—Nothing in this paragraph shall be construed to confer or imply any right to judicial review of any finding under this subsection or any prohibition, condition, or penalty imposed as a result of any such finding.

(b) WAIVER.—

(1) IN GENERAL.—The President may waive, on a case-by-case basis, the application of a prohibition or condition imposed with respect to a foreign financial institution pursuant to subsection (a) for a period of not more than 180 days, and may renew the waiver for additional periods of not more than 180 days, on and after the date on which the President—

(A) determines that such a waiver is in the national security interests of the United States; and

(B) submits to the appropriate congressional committees a report describing the reasons for such determination.

(2) FORM.—The report required by paragraph (1)(B) shall be submitted in unclassified form, but may contain a classified annex.

(c) SPECIAL RULE TO ALLOW FOR TERMINATION OF SANCTIONABLE ACTIVITY.—The President shall not be required to apply sanctions to a foreign financial institution described in subsection (a) if the President certifies in writing to the appropriate congressional committees that—

(1) the foreign financial institution—

(A) is no longer engaging in the activity described in subsection (a)(2); or

(B) has taken and is continuing to take significant verifiable steps toward terminating the activity described in that subsection; and

(2) the President has received reliable assurances from the government with primary jurisdiction over the foreign financial institution that the foreign financial institution will not engage in any activity described in subsection (a)(2) in the future.

(d) REPORT ON FOREIGN CENTRAL BANKS.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, and every 180 days thereafter, the Secretary of the Treasury shall submit to the appropriate congressional committees a report that—

(A) identifies each foreign central bank that the Secretary determines engages in one or more activities described in subsection (a)(2)(D); and

(B) provides a detailed description of each such activity.

(2) FORM OF REPORT.—Each report required by paragraph (1) shall be submitted in unclassified form, but may include a classified annex.

(e) IMPLEMENTATION.—The President may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out this section.

(f) DEFINITIONS.—

(1) IN GENERAL.—In this section:

(A) ACCOUNT; CORRESPONDENT ACCOUNT; PAYABLE-THROUGH ACCOUNT.—The terms ''account'', ''correspondent account'', and ''payable-through account'' have the meanings given those terms in section 5318A of title 31, United States Code.

(B) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(i) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives; and

(ii) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate.

(C) FINANCIAL INSTITUTION.—The term ''financial institution'' means a financial institution specified in subparagraph (A), (B), (C), (D), (E), (F), (G), (H), (I), (J), (K), (M), (N), (P), (R), (T), (Y), or (Z) of section 5312(a)(2) of title 31, United States Code.

(D) FOREIGN FINANCIAL INSTITUTION.—The term ''foreign financial institution'' has the meaning given that term in section 1010.605 of title 31, Code of Federal Regulations.

(E) HIZBALLAH.—The term ''Hizballah'' means—

(i) the entity known as Hizballah and designated by the Secretary of State as a foreign terrorist organization pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189); or

(ii) any person—

(I) the property or interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.); and

(II) who is identified on the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury as an agent, instrumentality, or affiliate of Hizballah.

(F) MONEY LAUNDERING.—The term ''money laundering'' includes the movement of illicit cash or cash equivalent proceeds into, out of, or through a country, or into, out of, or through a financial institution.

(2) OTHER DEFINITIONS.—The President may further define the terms used in this section in the regulations prescribed under this section.

TITLE II—REPORTS AND BRIEFINGS ON NARCOTICS TRAFFICKING AND SIGNIFICANT TRANSNATIONAL CRIMINAL ACTIVITIES OF HIZBALLAH

SEC. 201. REPORT AND BRIEFING ON NARCOTICS TRAFFICKING BY HIZBALLAH.

(a) REPORT.—

(1) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the President shall submit to the appropriate congressional committees and leadership a report on the activities of Hizballah related to narcotics trafficking worldwide.

(2) FORM.—The report required by paragraph (1) shall be submitted in unclassified form to the greatest extent possible, but may include a classified annex.

(b) BRIEFING.—Not later than 30 days after the submission of the report required by subsection (a), the President shall provide to the appropriate congressional committees and leadership a briefing on—

(1) the report;

(2) procedures for designating Hizballah as a significant foreign narcotics trafficker under the Foreign Narcotics Kingpin Designation Act (21 U.S.C. 1901 et seq.); and

(3) Government-wide efforts to combat the narcotics trafficking activities of Hizballah.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES AND LEADERSHIP DEFINED.—In this section, the term ''appropriate congressional committees and leadership'' means—

(1) the Speaker, the minority leader, the Committee on Foreign Affairs, the Committee on Financial Services, the Committee on the Judiciary, and the Permanent Select Committee on Intelligence of the House of Representatives; and

(2) the majority leader, the minority leader, the Committee on Foreign Relations, the Committee on Banking, Housing, and Urban Affairs, the Committee on Finance, the Committee on the Judiciary, and the Select Committee on Intelligence of the Senate.

SEC. 202. REPORT AND BRIEFING ON SIGNIFICANT TRANSNATIONAL CRIMINAL ACTIVITIES OF HIZBALLAH.

(a) REPORT.—

(1) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the President shall submit to the appropriate congressional committees and leadership a report on the significant transnational criminal activities of Hizballah, including human trafficking.

(2) FORM.—The report required by paragraph (1) shall be submitted in unclassified form to the greatest extent possible, but may include a classified annex.

(b) BRIEFING.—Not later than 30 days after the submission of the report required by subsection (a), the President shall provide to the appropriate congressional committees and leadership a briefing on—

(1) the report;

(2) procedures for designating Hizballah as a significant transnational criminal organization under Executive Order 13581 (75 Fed. Reg. 44,757); and

(3) Government-wide efforts to combat the transnational criminal activities of Hizballah.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES AND LEADERSHIP DEFINED.—In this section, the term ''appropriate congressional committees and leadership'' means—

(1) the Speaker, the minority leader, the Committee on Foreign Affairs, the Committee on Financial Services, the Committee on the Judiciary, and the Permanent Select Committee on Intelligence of the House of Representatives; and

(2) the majority leader, the minority leader, the Committee on Foreign Relations, the Committee on Banking, Housing, and Urban Affairs, the Committee on Finance, the Committee on the Judiciary, and the Select Committee on Intelligence of the Senate.

SEC. 203. REWARDS FOR JUSTICE AND HIZBALLAH'S FUNDRAISING, FINANCING, AND MONEY LAUNDERING ACTIVITIES.

(a) REPORT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of State shall submit to the appropriate congressional committees a report that details actions taken by the Department of State through the Department of State rewards program under section 36 of the State Department Basic Authorities Act (22 U.S.C. 2708) to obtain information on fundraising, financing, and money laundering activities of Hizballah and its agents and affiliates.

(b) BRIEFING.—Not later than 90 days after the date of the enactment of this Act, and

annually thereafter, the Secretary of State shall provide a briefing to the appropriate congressional committees on the status of the actions described in subsection (a).

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives; and

(2) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate.

SEC. 204. REPORT ON ACTIVITIES OF FOREIGN GOVERNMENTS TO DISRUPT GLOBAL LOGISTICS NETWORKS AND FUNDRAISING, FINANCING, AND MONEY LAUNDERING ACTIVITIES OF HIZBALLAH.

(a) REPORT.—

(1) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the President shall submit to the appropriate congressional committees a report that includes—

(A) a list of countries that support Hizballah or in which Hizballah maintains important portions of its global logistics networks;

(B) with respect to each country on the list required by subparagraph (A)—

(i) an assessment of whether the government of the country is taking adequate measures to disrupt the global logistics networks of Hizballah within the territory of the country; and

(ii) in the case of a country the government of which is not taking adequate measures to disrupt such networks—

(I) an assessment of the reasons that government is not taking such adequate measures; and

(II) a description of measures being taken by the United States to encourage that government to improve measures to disrupt such networks;

(C) a list of countries in which Hizballah, or any of its agents or affiliates, conducts significant fundraising, financing, or money laundering activities;

(D) with respect to each country on the list required by subparagraph (C)—

(i) an assessment of whether the government of the country is taking adequate measures to disrupt the fundraising, financing, or money laundering activities of Hizballah and its agents and affiliates within the territory of the country; and

(ii) in the case of a country the government of which is not taking adequate measures to disrupt such activities—

(I) an assessment of the reasons that government is not taking such adequate measures; and

(II) a description of measures being taken by the United States to encourage that government to improve measures to disrupt such activities; and

(E) a list of methods that Hizballah, or any of its agents or affiliates, utilizes to raise or transfer funds, including trade-based money laundering, the use of foreign exchange houses, and free-trade zones.

(2) FORM.—The report required by paragraph (1) shall be submitted in unclassified form to the greatest extent possible, and may contain a classified annex.

(3) GLOBAL LOGISTICS NETWORKS OF HIZBALLAH.—In this subsection, the term ''global logistics networks of Hizballah'', ''global logistics networks'', or ''networks'' means financial, material, or technological support for, or financial or other services in support of, Hizballah.

(b) BRIEFING ON HIZBALLAH'S ASSETS AND ACTIVITIES RELATED TO FUNDRAISING, FINANCING, AND MONEY LAUNDERING WORLDWIDE.—Not later than 90 days after the date of the enactment of this Act, and every 180 days thereafter, the Secretary of State, the Secretary of the Treasury, and the heads of other applicable Federal departments and agencies shall provide to the appropriate congressional committees a briefing on the disposition of Hizballah's assets and activities related to fundraising, financing, and money laundering worldwide.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Affairs, the Committee on Financial Services, and the Permanent Select Committee on Intelligence of the House of Representatives; and

(2) the Committee on Foreign Relations, the Committee on Banking, Housing, and Urban Affairs, and the Select Committee on Intelligence of the Senate.

TITLE III—MISCELLANEOUS PROVISIONS

SEC. 301. RULE OF CONSTRUCTION.

Nothing in this Act or any amendment made by this Act shall apply to the authorized intelligence activities of the United States.

SEC. 302. REGULATORY AUTHORITY.

(a) IN GENERAL.—The President shall, not later than 120 days after the date of the enactment of this Act, promulgate regulations as necessary for the implementation of this Act and the amendments made by this Act.

(b) NOTIFICATION TO CONGRESS.—Not less than 10 days before the promulgation of regulations under subsection (a), the President shall notify the appropriate congressional committees of the proposed regulations and the provisions of this Act and the amendments made by this Act that the regulations are implementing.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives; and

(2) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate.

SEC. 303. TERMINATION.

This Act shall terminate on the date that is 30 days after the date on which the President certifies to Congress that Hizballah—

(1) is no longer designated as a foreign terrorist organization pursuant to section 219 of the Immigration and Nationality Act (8 U.S.C. 1189); and

(2) is no longer designated for the imposition of sanctions pursuant to Executive Order 13224 (50 U.S.C. 1701 note; relating to blocking property and prohibiting transactions with persons who commit, threaten to commit, or support terrorism).

SA 2811. Mr. DAINES (for Mr. RUBIO (for himself and Mrs. SHAHEEN)) proposed an amendment to the bill H.R. 2297, to prevent Hizballah and associated entities from gaining access to international financial and other institutions, and for other purposes; as follows:

Amend the title so as to read: ''To prevent Hizballah and associated entities from gaining access to international financial and other institutions, and for other purposes.''.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on November 17, 2015, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on November 17, 2015, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on November 17, 2015, at 2:30 p.m., in room SD–215 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Physician Owned Distributors: Are They Harmful to Patients and Payers?''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on November 17, 2015, at 2:30 p.m., to conduct a hearing entitled ''Options for Reforming U.S. Overseas Broadcasting.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on November 17, 2015, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Nomination of Dr. Robert Califf to serve as FDA Commissioner.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON VETERANS' AFFAIRS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on Veterans' Affairs be authorized to meet during the session of the Senate on November 17, 2015, at 2:30 p.m., in room SR–418 of the Russell Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. CORNYN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on November 17, 2015 at 2 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON OVERSIGHT, AGENCY ACTION, FEDERAL RIGHTS, AND FEDERAL COURTS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Committee on the Judiciary, Subcommittee on Oversight, Agency Action, Federal Rights, and Federal Courts be authorized to meet during the session of the Senate on November 17, 2015, at 2:15 p.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''The War on Police: How the Federal Government Undermines State and Local Law Enforcement.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON REGULATORY AFFAIRS AND FEDERAL MANAGEMENT

Mr. CORNYN. Mr. President, I ask unanimous consent that the Subcommittee on Regulatory Affairs and Federal Management of the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on November 17, 2015, at 10 a.m., to conduct a hearing entitled, ''Examining Ongoing Challenges at the U.S. Secret Service and their Government-Wide Implications.''

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. MANCHIN. Mr. President, I ask unanimous consent that Ken Kern, a fellow in my office, be granted floor privileges during the consideration of the Congressional Review Act resolution.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MERKLEY. Mr. President, I ask unanimous consent that my intern, Zachary Fergus, have privileges of the floor for the balance of the day.

The PRESIDING OFFICER. Without objection, it is so ordered.

The PRESIDING OFFICER. The Senator from Montana.

HEZBOLLAH INTERNATIONAL FINANCING PREVENTION ACT OF 2015

Mr. DAINES. Mr. President, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs be discharged from further consideration of H.R. 2297 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (H.R. 2297) to prevent Hezbollah and associated entities from gaining access to international financial and other institutions, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. DAINES. I ask unanimous consent that the substitute amendment be agreed to, the bill, as amended, be read a third time and passed, the title amendment be agreed to, and the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 2810) in the nature of a substitute was agreed to.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

The amendment was ordered to be engrossed, and the bill to be read a third time.

The bill was read the third time.

The bill (H.R. 2297), as amended, was passed.

The amendment (No. 2811) was agreed to, as follows:

(Purpose: To amend the title)

Amend the title so as to read: ''To prevent Hizballah and associated entities from gaining access to international financial and other institutions, and for other purposes.''.

MEASURE READ THE FIRST TIME—S. 2288

Mr. DAINES. Mr. President, I understand that there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The senior assistant legislative clerk read as follows:

A bill (S. 2288) to prohibit members and staff of the Federal Reserve System from lobbying for or against legislation, and for other purposes.

Mr. DAINES. I now ask for a second reading and, in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard.

The bill will be read for the second time on the next legislative day.

ORDERS FOR WEDNESDAY, NOVEMBER 18, 2015

Mr. DAINES. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10 a.m., Wednesday, November 18; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each, until 11 a.m.; further, that the cloture motion with respect to the motion to proceed to H.R. 2577 be withdrawn; finally, that at a time to be determined by the majority leader, in concurrence with the Democratic leader, the Senate proceed to the consideration of H.R. 2577.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDER FOR ADJOURNMENT

Mr. DAINES. If there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order, following the remarks of Senator DURBIN for up to 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Illinois.

DACA AND DAPA ANNIVERSARY

Mr. DURBIN. Mr. President, it was 1 year ago this week that President Obama announced he would use his Executive authority to reform our broken immigration system. The President said we should prioritize the deportation of those who have been convicted of serious crimes or those who pose any threat to America's security. The Department of Homeland Security only has funding to deport a small fraction of the undocumented immigrants in the country.

So the President said: Let's make a priority. Let's focus our limited resources on deporting those who could do us harm. It seemed like common sense to most people. At the same time, the President said we should not waste our resources deporting young immigrant students who grew up in this country and would, in fact, if they were deported, tear their families apart.

The President's policies focused on deporting felons, not families—criminals, not children. In 2012 President Obama established the Deferred Action for Childhood Arrivals, known as DACA. DACA provides temporary—let me underline the word ''temporary''—immigrant status to immigrant students who arrived in the United States as children. This program is based on the DREAM Act, a bill I introduced 14 years ago in the Senate. That bill was introduced to give undocumented students who grew up in America a chance to earn their path to citizenship. We call them DREAMers. It was known as the DREAM Act. They were brought to the United States as kids, some as infants. They grew up in our country pledging allegiance every day in the classroom to the only flag they have ever known—the U.S. stars and stripes. They are proud and patriotic Americans in every sense but one: They are undocumented. They only want a chance to work, to be part of America's future.

We have already invested in these young people. We have put quite a bit of our resources into making them what they are today. It makes no sense to walk away from this investment, does it, if that child, grown up now, could be an asset to the future of America?

So far, more than 700,000 of these young people have received the DACA protection, temporary status to stay in the United States. What have they done with this opportunity? They have decided to do more to help our country—to become engineers, teachers, small business owners.

DACA, I am sorry to say, is not a popular program with many of my Republican colleagues. They have tried to shut it down. They want to deport these DREAMers—2½ million young people who were brought to the United States as infants and children, who have grown up in this country, have no serious criminal record, and who only want to be part of our future. Instead, the critics say, turn them away, deport them—many times to countries they cannot even remember.

A year ago this week, President Obama established a new program that built on DACA's success. It is called the Deferred Action for Parental Accountability, or DAPA. Under that program, undocumented immigrants who have lived in the United States for more than 5 years and have American children would be required to come forward, register with the government, pay a fee, submit themselves to a criminal and national security background check, and pay their fair share of taxes. This is potentially 11 million people. Are we safer as a nation if these 11 million—or a large part of them—come forward, register with the government, pay their taxes, and submit themselves to a criminal background check? If they have a serious problem, if they have committed a crime, out they go. I am not going to defend them. But let's give these people a chance to get temporary status in this country by paying their taxes, paying a fee, submitting to a background check, and registering with our government. If the government determines these parents haven't committed any serious crimes and don't pose any threat to us, the President's order, on a temporary basis, says they can work and will not be deported—temporary.

President Obama also expanded this to cover all DREAMers who came to the United States as children and have lived here for at least 5 years. Why did he take these actions? Because for years Congress has failed to fix our broken immigration system.

I remember the day—it was June 27, 2013, 2½ years ago—the Senate passed comprehensive legislation to fix our broken immigration system. The vote was 68 to 32. A substantial number of Republican Senators joined with Democrats in voting for this comprehensive reform. We had spent, eight of us—the group of 8, as we were called—months negotiating back and forth and back and forth on the toughest issues involving immigration. We reached a bipartisan agreement, brought the bill to the floor, and it passed. We were in the majority at that time on the Democratic side, but we reached across the aisle to make sure enough Republicans could support us so that we could have a bipartisan solution to our immigration challenge.

Unfortunately, the Republican majority in the House of Representatives at that time would not even consider—wouldn't even consider—the immigration reform bill we passed. In the face of that, the President had no choice. He could allow our broken immigration system to continue or step forward and try to make America safer and more just.

The Center for American Progress, incidentally, says the economic benefit of the President's Executive orders would have been significant. Both DACA for children and DAPA for their parents would increase my State's gross domestic product by almost $15 billion over 10 years and increase the earnings of all Illinois residents by almost $8 billion.

Unfortunately, both DAPA and the expansion of the earlier DACA have been blocked by lawsuits that have been filed by Republicans who oppose the measure. These Republicans, who have the majority in the House and Senate, refuse to even consider any legislation to fix our broken immigration system.

Well, last week, in a decision that was no surprise, a Republican-appointed judge—actually, a bank of judges on the Fifth Circuit Court of Appeals—sided with the Republicans who had filed a lawsuit and upheld an injunction that blocks DAPA and the expanded DACA Program. The Obama administration announced they will appeal to the Supreme Court. The Supreme Court has been clear in the past that Presidents have the authority to set Federal immigration policy. I believe the President's actions will ultimately be upheld.

Over the years, I have come to the floor more than 60 times to tell stories about DREAMers. I used to give speeches about the general issue, and people didn't pay much attention. But then I started telling the stories of the actual people who would be affected by the DREAM Act and by DACA. Today, I want to tell you another one.

This is Fernando Meza Gutierrez. Fernando's family came to the United States from Mexico when he was 9 years old. He grew up in Los Angeles, CA, and he was an outstanding student. In high school, he was an advanced placement scholar, and he received an international baccalaureate diploma and the Achievement Award in Foreign Language for French. He was a student athletic trainer, president of the French club, and tutored his fellow students in French, Spanish, and in math.

Fernando was also active in his community. He volunteered at nursing homes, participated in canned food drives, beach cleanup, and Thanksgiving dinners for the homeless.

Fernando continued his studies at Santa Clara University. Remember, as an undocumented student, he didn't qualify for a penny in Federal assistance—no loans, no Pell grants. But at Santa Clara University, Fernando graduated cum laude with a double major in biology and French. During his time at Santa Clara, Fernando won the award for the best presentation in molecular biology at the West Coast Biological Sciences Undergraduate Research Conference. He worked at a research laboratory, where he studied how cells choose what kind of tissue they will become during their development. Unlike the other students, Fernando could not be paid for his work because he was an undocumented immigrant.

Fernando also continued to be active in his community. He was a certified emergency medical technician, responding to on-campus medical emergencies. He participated in food drives, tutored high school students, worked with HIV patients in San Francisco, and volunteered for soup kitchens.

Fernando is currently a third-year doctoral student at the University of California in San Francisco, studying biochemistry and molecular biology. He is working in a lab in the Hellen Diller Comprehensive Cancer Center. He focuses his research on how cancer cells get rid of proteins that are defective and potentially harmful or proteins that are no longer needed. His work could provide valuable insights into many diseases and disorders, including cancer and autism. Fernando also mentors high school students and undergraduate students pursuing careers in biomedical science.

Fernando sent me a letter, and this is what he said:

> I'm thankful to this country for giving me the opportunity to grow up in a safe environment, for the education I receive, for the amazing people that have been a part of my life, and for the culture in which I grew up. All these factors have shaped my world view, my aspirations. . . . DACA will allow me to contribute to America's biomedical research work and potentially make discoveries that could improve the lives of Americans and people around the world. This country has given me an opportunity to pursue my passion for biomedical research. In the future, I want to use my expertise to contribute to this country and to make sure that the United States remains the world's leader in biomedical discoveries.

Fernando and many DREAMers like him have a lot to contribute to America. I don't understand those who want to deport this young man, who say: We don't need you, we don't need your talents, we don't need your hard work, and we don't need your research. Of course we do. America will be a better country if Fernando becomes a part of its future. That is what the DREAM Act does. That is what DACA does. That is what we are trying to achieve.

Instead of trying to deport young men and women like Fernando, I hope the other party will support meaningful immigration reform that is fair and comprehensive.

Mr. President, I yield the floor.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

The PRESIDING OFFICER (Mr. DAINES). The Senate stands adjourned until 10 a.m. tomorrow.

Thereupon, the Senate, at 6:48 p.m., adjourned until Wednesday, November 18, 2015, at 10 a.m.

EXTENSIONS OF REMARKS

SUPERSTORM SANDY RELIEF AND DISASTER LOAN PROGRAM IMPROVEMENT ACT OF 2015

SPEECH OF

HON. TOM COLE

OF OKLAHOMA

IN THE HOUSE OF REPRESENTATIVES

Monday, November 16, 2015

Mr. COLE. Mr. Speaker, I rise today in support of H.R. 208. Again, I want to again thank and recognize the support and assistance of both Chairman CHABOT and Ranking Member VELÁZQUEZ for including back in July my legislation, H.R. 2397, the Tornado Family Safety Act of 2015 as part of this legislation.

The Small Business Administration is currently afforded the authority to issue physical disaster loans for 120 percent of the value of property destroyed but not covered by insurance. The purpose of the additional 20 percent is so that individuals and business can modify structures to reduce damage from future disasters. In Oklahoma, the threat of tornadoes is ongoing, and we are always in between tornadoes. Planning is essential in order to mitigate against damage and loss of life. This is why the legislation I introduced, The Tornado Family Safety Act of 2015, was included in the House bill in July.

This section would allow those affected by disasters to use SBA disaster loans to build safe rooms as a mitigating measure against future similar disasters. It reinforces the intent of Congress that already exists in statue—The SBA should already be including the construction of safe rooms as a use for physical disaster loans because it is mitigating measure. The SBA's existing interpretation of existing language in the Small Business Act is incorrect.

Because of misinterpretation of this section previously, the SBA should now understand that physical disaster loans can also be used for other types of storm shelters as well, including, but not limited to structures that protect occupants from not only tornadoes, but from other natural disasters such as hurricanes, floods and wildfires.

The Senate Amendment makes modifications to the House-passed bill. Specifically, it requires safe rooms or similar storm shelters eligible for disaster loans under the bill to be constructed according to applicable standards issued by the Federal Emergency Management Agency.

It is important to note that loans may not be used to upgrade homes or make additions unless as required by local building codes and secondary or vacation homes are not eligible for these loans. The SBA does not duplicate insurance claim payments. Generally, loans are made over 30 years and interest rates are not more than 4 percent for those cannot obtain credit elsewhere and for those that can obtain alternative credit, the rate does not exceed 8 percent for the loan.

While local and state governments have an obligation to meet the increase in shelter demand, the construction of the shelters is expensive. Under guidelines from the Federal Emergency Management Agency (FEMA) and the International Code Council (ICC), a safe room should withstand 250 mph winds and the impact of a 15–pound plank hitting a wall at 100 mph, according to the Insurance Institute for Business and Home Safety.

Safe rooms designed to the FEMA and ICC standards are recommended for both tornadoes and hurricanes. For individual homes, a safe room could range anywhere from $3,000 to $12,000.

For anyone who has experienced Mother Nature's most indiscriminate and unpredictable tenors, you can truly understand the extent to which they devastate lives and property.

Again, Mr. Speaker, I support the Senate amendment which makes minor modifications to language in the House-passed bill and adds provisions of S. 1470, the Recovery Improvements for Small Entities (RISE) After Disaster Act of 2015, to the House-passed version.

As I have stated before on the floor of the House, I hope every Member reflects on the situation of our fellow Americans during a time of crisis or disaster. While we may hope that our communities remain peaceful and safe from crisis; we certainly must support those that do not escape such natural and man-made calamities.

EQUITY IN GOVERNMENT COMPENSATION ACT OF 2015

SPEECH OF

HON. EDWARD R. ROYCE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Monday, November 16, 2015

Mr. ROYCE. Mr. Speaker, I strongly support the Equity in Government Compensation Act.

This bill is based on legislation I authored which passed out of the House Financial Services Committee by a vote of 57 to 1 earlier this year. Similar text was approved by the Senate unanimously.

This legislation will eliminate multi-million dollar salaries for the CEOs of taxpayer-bailed out and taxpayer-backed Fannie Mae and Freddie Mac, payouts that are an affront to the American people.

To the naysayers that claim that the GSEs have already "repaid" the taxpayers for their bailouts, I asked Treasury Secretary Jack Lew about this very theory.

He responded clearly that that "the risk [for Fannie and Freddie] is being borne by taxpayers on an ongoing basis and the conservatorship is not over."

The quantifiable toll taken by the financial crisis and the GSEs' actions on the American people is staggering: over 4 million Americans lost their homes; 8.8 million Americans lost their jobs; and $19 2 trillion was lost in household wealth.

We have a duty and obligation to our constituents to protect them from a return to the GSEs' pre-crisis model of private gains and public losses.

To those who discuss the need for GSE reform during debate of this bill, I say: I agree with you that it's time to put our housing system on a firmer foundation. I will put my record in support of reforming the GSEs up against that of any Member of Congress.

The status quo of Fannie Mae and Freddie Mac dominating 90% of the secondary mortgage market is unsustainable.

My ultimate goal is still comprehensive housing finance reform that brings private capital into the system to eliminate the boom-and-bust cycle that wreaked havoc on the American economy; a task that takes on all the more urgency as Fannie and Freddie slip into the red and invite new taxpayer bailouts.

However, this bill is about CEO pay today at the GSEs, not what we want them to look like tomorrow.

Four million dollar a year salaries at the GSEs are simply symptoms of a disease. While we work on finding a cure, we should treat the patient. This bill will do just that.

Mr. Speaker, I thank the gentleman from Texas for his leadership on this issue as Chairman of the Financial Services Committee, the gentleman from New Jersey for his support on this bill, and the senior Senator from Louisiana for his quick action.

RECOGNIZING WORLD WAR II VETERAN LEO BATES OF BANGOR TOWNSHIP, MI

HON. DANIEL T. KILDEE

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. KILDEE. Mr. Speaker, I ask the United States House of Representatives to join me in recognizing World War II Veteran Leo Bates of the 93rd Bombardment Group.

Mr. Bates joined the United States Army Air Corps in 1942, shortly after his graduation from high school. He served valiantly for three years as a radio operator, where he flew 30 missions across Europe. It is my honor to recognize the veterans of World War II and their families for their patriotism and sacrifice.

While this Veterans Day presents a clear opportunity to remember the sacrifices of our veterans, I want to make sure our nation does not forget their exemplary commitment to service and democracy. Mr. Bates shares this passion, which he incorporates by crafting and selling beautiful walking sticks to support fellow veterans. Along with his walking sticks come some incredible war stories, which he plans to share at Bay Area nursing homes this Veterans Day.

It is my honor to represent many of the fine men and women who served our country, such as Leo Bates, and my duty to respectfully preserve their memories with the same dedication with which these veterans defended our freedoms.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

Mr. Speaker, I applaud all American veterans, and particularly Leo Bates and extend my deepest appreciation to them for their years of service to our great country.

CELEBRATING THE LIFE OF MRS. JUDITH DAVIS WHITACRE

HON. SUZAN K. DelBENE

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. DELBENE. Mr. Speaker, I rise today to celebrate the life of my aunt, Mrs. Judith Davis Whitacre.

Judy was born on today's date in 1936 in Cleveland, Ohio—the third daughter of Ruth and Powell Davis. She passed away on Thursday, October 29.

She was a loving mother, grandmother, and wife, and she constantly placed people at the top of her priority list.

Through her life, she was a Head Start volunteer teacher, Northwest Opportunity Center volunteer driver, Dryden School PTA volunteer tutor, Cub Scout Den Leader & coordinator for Pack 129, and volunteer at the homeless shelter PADs.

She also gladly helped out at church. Whether as church school teacher, couples group presidents with Jock, Elder, kitchen coordinator, or hand bell choir member, Judy was always willing to spend her time serving others.

She enjoyed sailing, crafts, and traveling, but most of all she loved people. Judy will be remembered for putting others before herself and as a committed volunteer whose dedication has touched so many in her community. My heart goes out to Jock, Harold, and Tammy, Gregory and Kathleen, and their kids.

RECOGNIZING PATRICIA ''PATTY'' GARBARINO AS BUSINESSWOMAN OF THE YEAR

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. HUFFMAN. Mr. Speaker, I rise today to congratulate Patricia ''Patty'' Garbarino, who was chosen by the San Rafael Chamber of Commerce as the Women of Industry Business Leader for 2015. As President of the Marin Sanitary Service (MSS), Ms. Garbarino's business acumen, institutional knowledge, and commitment to conservation have impacted tens of thousands of lives in Marin County.

Ms. Garbarino has been a role model for women in our community, successfully running her family business in a traditionally male-dominated industry. Founded in 1948, MSS today employs three generations of Garbarinos, and serves more than 30,000 residential and commercial clients in San Rafael and surrounding areas. Along with their curbside service, the company accepts and processes hazardous and non-hazardous materials on-site, and has been an industry leader for recycling programs nationwide. Today, MSS recycles nearly three-quarters of the waste it collects, in large part due to Ms. Garbarino's oversight.

Ms. Garbarino's savvy leadership and environmental stewardship have made a lasting impact in Marin County. Not only does she manage MSS with intelligence and integrity, but she continues to be an active and valued member of our community. Ms. Garbarino has served on the Marin County Planning Commission, Marin County Office of Education Board, and Marin Conservation League board, among others, and continues to exemplify citizenship and compassion with her dedication to our community.

Mr. Speaker, Patty Garbarino's impressive accomplishments and leadership have left a lasting impact in San Rafael and beyond. I urge my colleagues to join me in extending our congratulations to her on this recognition.

RECOGNIZING MS. ELIZABETH HUCKABONE FOR HER OUTSTANDING COMMITMENT TO THE BUFFALO COMMUNITY

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. HIGGINS. Mr. Speaker, I stand before you today to recognize and honor Ms. Elizabeth Huckabone on her retirement after serving 39 years as President and Chief Executive Officer of Belmont Housing Resources of Western New York. Ms. Huckabone dedicated her career to improving the lives of those less fortunate in her community.

Her strong commitment to ensuring access to affordable housing in the city of Buffalo as well as Erie County led to her role as one of the co-founders of Belmont Housing Resources of Western New York. Since 1977, Belmont has offered more than one hundred thousand low-income households critical rental assistance. Under Ms. Huckabone's leadership, Belmont has expanded its services over the decades to include management and development of affordable rental housing properties, as well as counsel on tenants' rights, homeownership, and mortgage default mitigation.

A graduate of the State University of New York College at Buffalo, Ms. Huckabone was previously a director of the Erie County Fair Housing Partnership, National Leased Housing Association and the Elmwood Franklin School. Ms. Huckabone's dedication and determination has been recognized as a recipient of the National Association of Home Builders Property Manager Merit Award and the National Conference for Community and Justice Award. Most recently and deservedly so, this tireless champion of fair housing was awarded the 2015 LISC Buffalo Community Builder Award in recognition of her remarkable career.

I am pleased to add my congratulations on her retirement and deep appreciation for her significant contributions as family, friends and colleagues gather together on November 23 to honor Elizabeth Huckabone's visionary leadership. It is anticipated that in her unassuming way, she will acknowledge Belmont's dedicated and talented staff, its inclusive culture, and the many community collaborations forged in order to increase the agency's impact on behalf of the people it serves. But for all who know her, admire her and will miss her, we simply say thank you for all you have done to help those in need to find a place to call home.

Mr. Speaker, thank you for allowing me a few moments to recognize Ms. Elizabeth Huckabone. I ask that my colleagues join me in congratulating Ms. Huckabone for her selfless commitment to public service. Her desire to build a better future for Buffalo has uplifted countless families in need and underscores the compassion held deeply by Western New Yorkers.

HONORING PASTOR LARRY THOMPSON

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to congratulate Pastor Larry Thompson for his 21 years of excellence as the pastor of the First Baptist Church of Fort Lauderdale and his dedication to his community.

Pastor Thompson is the longest serving pastor at the First Baptist Church, and his commitment to his congregation and community is commendable. The congregation of the First Baptist Church has become more diverse during his tenure, which is a lasting legacy for the community. He has inspired people around the world by broadcasting his services online. His sermons have been viewed in more than 90 countries and are translated into Creole, Spanish, Portuguese, and Romanian.

In honor of his retirement and years of service to his community, I am pleased to recognize Pastor Thompson and wish him the best in his future endeavors.

HONORING AURORA CHIEF OF POLICE GREGORY THOMAS UPON HIS RETIREMENT

HON. BILL FOSTER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. FOSTER. Mr. Speaker, I rise today in honor of Chief Gregory Thomas of the Aurora Police Department. With a long and illustrious career serving the citizens of Aurora and the community, starting as a cadet in 1978 and culminating in Chief of Police in 2008, Chief Thomas has distinguished himself as a valuable and dedicated member of the Aurora community.

Chief Thomas has had a prestigious and long career, having worked in the Patrol Division, Criminal Investigation Division, and Administrative Services Division of the Aurora Police Department. Chief Thomas was assigned to the Field Training Program, Special Response Team, Employee Review Board, and Investigative Deadly Force Team.

As Chief of Police, Chief Thomas presided over a vast reduction in crime throughout the city and was always available to discuss matters with the community. Over the course of his career, Chief Thomas has received numerous awards including the Kendall County Medal of Valor, the Exchange Club of Aurora Police Officer of the Year, and has been nominated as the Kane County Officer of the Year.

Mr. Speaker, I ask my colleagues to join me in honoring Chief Gregory Thomas's exemplary service to the people of Aurora and congratulating him on a prominent career.

NATIONAL RECOGNITION FOR MEMORIAL HERMANN KATY HOSPITAL

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. OLSON. Mr. Speaker, I rise today to congratulate Memorial Hermann Katy Hospital in Katy, Texas for earning national recognition for its excellent surgical patient care.

Memorial Hermann Katy was one of three Texas hospitals and one of 52 hospitals nationwide to earn meritorious rankings from the American College of Surgeons National Surgical Quality Improvement Program (ACS NSQIP). Hospitals across the country are assessed based on how well they protect and care for surgical patients. This ranking reflects their commitment to practicing high-quality care, patient safety, and surgical care improvements. Memorial Hermann Katy provides its community with peace of mind should a medical emergency arise.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Memorial Hermann Katy. Thank you for putting patient safety above all else.

CONGRATULATING MR. PATRICK WHALEN FOR HIS DEDICATION TO THE BUFFALO NIAGARA MEDICAL CAMPUS AND WESTERN NEW YORK

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. HIGGINS. Mr. Speaker, I stand before you today to recognize and honor Mr. Patrick Whalen as he steps down as the Chief Operating Officer of the Buffalo Niagara Medical Campus. A driving force in Buffalo's transformation, Mr. Whalen has helped ignite the renaissance underway in Western New York.

Mr. Whalen has played a crucial role in the development of the Buffalo Niagara Medical Campus since 2008. As COO, Mr. Whalen demonstrated a true collaborative spirit in partnering with top medical, clinical, and research institutions and with the Fruit Belt and Allentown neighborhoods, the City of Buffalo and Erie County to establish world-class healthcare facilities. His leadership and organizational abilities most recently included his role as Conference Chair at the 2015 MedTech Association conference held in Buffalo.

Mr. Whalen has traveled throughout the world to deliver remarks and share his vision at professional conferences and talks. His expertise is especially welcomed by our partners to the north, where Mr. Whalen was a founding member of the Canadian/American Border Trade Alliance and his efforts were recognized with the Canadian Consulate Ambassador Award. Mr. Whalen's deep understanding of the value of a strong partnership with Canada came from decades of private sector experience and entrepreneurship including the founding of Fulfillment Systems International. As President and CEO, he pioneered the concept of consolidated cross-border shipping that transformed the international distribution industry.

Mr. Whalen's commitment to Western New York goes well beyond his contributions to the Buffalo Niagara Medical Campus and his productive relationship with Canada. Mr. Whalen consistently demonstrates his passion for serving the community through humanitarian organizations and service. He previously sat on the Board of Directors of the Greater Buffalo Chapter of the American Red Cross and the Rotary Club of Buffalo. In recognition of his dedicated service, Mr. Whalen was presented with the University at Buffalo School of Management Community Service Award.

Mr. Speaker, thank you for allowing me a few moments to recognize Mr. Patrick Whalen as his family, friends and colleagues will gather on November 18 in appreciation for all he has accomplished and to wish him continued success in future endeavors. I ask that my colleagues join me in congratulating Mr. Whalen for his energetic passion, his grassroots and international perspective and his innovative contributions to his city and his country. His dedication to the growth and revitalization of Western New York community continue to heighten Buffalo's reputation and improve the health and well-being of all.

CELEBRATING THE 40TH ANNIVERSARY OF BROWNSVILLE COFFEE SHOP #2

HON. FILEMON VELA

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. VELA. Mr. Speaker, I rise today to recognize Ms. Jovita Chase as she celebrates the 40th anniversary of her restaurant, Brownsville Coffee Shop #2.

For four decades, Jovita has dedicated her life to serving residents of Brownsville, Texas delicious, well-priced meals. Her restaurant, which features food that is made from scratch, is a favorite of the Brownsville Police Department, the Cameron County Sheriff's Office, teachers, local elected officials and those seeking a hearty meal in a comfortable, homey environment. The restaurant's specialties include homemade flour tortillas and gorditas.

Brownsville Coffee Shop #2 was established in 1964 by Jovita's mother, Rafaela Alviar, who opened several coffee shops in downtown Brownsville. After Rafaela passed away, Jovita and her brother, Andres, took over management of these local institutions. Andres continues to run Brownsville Coffee Shop #1, which has been in business for 42 years.

In addition to providing a gathering place for the community, Jovita supports higher education by awarding scholarship funds to local students in honor of her mother. She also gives back by hosting a monthly meal for the Good Neighbor Settlement House, and she not only provides her employees with a paycheck but also helps them develop a strong work ethic and leadership skills.

Our community benefits greatly from institutions like the Brownsville Coffee Shop #2. Jovita Chase and her restaurant have had a lasting, positive impact on South Texas, and I rise today to share my congratulations along with those of her customers and employees.

SAL QUARTARARO

HON. LEE M. ZELDIN

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ZELDIN. Mr. Speaker, I rise today to commemorate the service of Sal Quartararo.

On December 7, 1941, Salvatore (Sal) Quartararo, and his three brothers and two sisters, the children of Anna and Peter who immigrated to the U.S. from Italy in the 1890s, sat in their lower east side Manhattan apartment as President Roosevelt's fateful words came over the radio. The Japanese had attacked Pearl Harbor, and for Sal and his family, life was about to change. One by one, Sal and his brothers; Ignatius, Liborio (Larry), and Philip (Phil) entered military service; his brothers in the Army and Army Air Corps, and Sal in the Navy.

The brothers ensured their family was well represented in this two front war. Ignatius served in the infantry as a Private Tech Five stationed in Italy, Larry in the Army Air Corps as an aerial photographer in the Pacific, Phil a Sergeant and cook in the Army and at sea, Sal served on board the USS *Sioux*, an Auxiliary Tug (ATF–75) as a Radio Man Second Class. During his time in the South Pacific, Sal saw action in both Okinawa and Iwo Jima.

With four sons now serving overseas, their father Peter proudly displayed four American flags on the checker cab he drove in Manhattan. Fortunately, through God's grace, Ignatius, Larry, Phil, and Sal would all return home safely. They each married, led productive lives, raised wonderful families and like most, moved to the suburbs—Sal and his family relocated to Elmont, and later Kings Park, Long Island.

Now, 64 years later, we recognize Sal Quartararo and his three brothers, Ignatius, Larry and Phil for serving honorably and concurrently during World War II. The brothers' dedication and bravery during their service, work ethic and family values they demonstrated upon their return home are a tribute to the ''Greatest Generation''.

HONORING REV. DR. JEFFERY R. WHEELER

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ENGEL. Mr. Speaker, I rise today to recognize a spiritual leader in the Mount Vernon community, Reverend Dr. Jeffery R. Wheeler, who has led, as Pastor the Mt. Calvary Methodist Episcopal Church congregation in Mount Vernon, NY with great distinction and integrity.

Originally born and raised in Mount Vernon, Reverend Wheeler received his license to the ministry in 1998 and was ordained in 1999 at the Hunter Hills First Baptist Church in Atlanta,

Georgia. In 2006, Rev. Wheeler relocated back to New York and was consecrated and elevated to the office of Ordained Traveling Elder in the New York–Washington Annual Conference of the Christian Methodist Episcopal Church under the auspices of Senior Bishop Thomas L. Hoyt, Jr., Presiding Prelate.

After 20 years away from home, in July of 2011 Reverend Wheeler returned home to Mt. Vernon, NY to pastor where he grew up, worshipped with his family, and began in ministry, at Mount Calvary Christian Methodist Episcopal Church. Reverend Wheeler also began serving as the Director of the New York-New England Ministry to Men. Reverend Wheeler has served in a multitude of capacities within the ministry, including: Staff Ministerial Coordinator accountable for 13 staff ministers, Pastor of Praise & Worship and Ministerial Liaison for the Music Department, Singles Ministry and Family Enrichment Ministry. He has also traveled extensively abroad to conduct Preaching Revivals & Gospel Music Workshops in Olso, Norway, Stockholm, Sweden, Brighton and London, England, South Africa, and Tokyo, Japan.

A scholar, Reverend Wheeler earned his Masters of Religious Studies from Yale University, in New Haven and his Masters of Theology Degree and Doctorate of Divinity Degree from the Hugee Theological Institute/Lighthouse Seminary New York, NY. In December 2013, The Abundant Life Theological Seminary conferred a second Doctorate of Divinity Degree upon Reverend Wheeler.

This year, Mt. Calvary C.M.E. is holding a luncheon in Reverend Wheeler's honor celebrating his years as Pastor. Congratulations to Reverend Wheeler on this great honor.

PERSONAL EXPLANATION

HON. LUIS V. GUTIÉRREZ

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. GUTIÉRREZ. Mr. Speaker, I was unavoidably absent in the House Chamber for votes on Monday, November 16, 2015. Had I been present, I would have voted ''nay'' on roll call vote 626, ''nay'' on roll call vote 627, ''yea'' on roll call vote 628, and ''yea'' on roll call vote 629.

HONORING MAYOR OF HARLINGEN, TEXAS CHRIS BOSWELL ON RECEIVING THE DISTINGUISHED CITIZEN AWARD

HON. FILEMON VELA

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. VELA. Mr. Speaker, I rise today to honor Harlingen, Texas Mayor Chris Boswell who has been awarded the Distinguished Citizen Award by the Rio Grande Council of the Boy Scouts of America.

Each year the Boy Scouts of America recognize a noteworthy and extraordinary leader in the Rio Grande Valley community. The award is presented to an individual in honor of their service to the community, and honorees are recognized for their efforts to inspire young people to be leaders.

Chris Boswell was first elected Mayor of Harlingen in May 2007 and was re-elected in 2010 and 2013. Prior to being Mayor, he served twice as president of the Lower Rio Grande Valley Development Council. He was also president of the Cameron County Bar Association.

Mayor Boswell served 10 years as a Cubmaster and 7 years as an Assistant Scoutmaster. His leadership culminated in his serving as president of the Rio Grande Council and later as President of Area 2 which governs 11 scout councils in Texas and Louisiana.

Harlingen and the entire Rio Grande Valley have benefitted greatly from his leadership, vision and expertise, and I rise today to congratulate Mayor Chris Boswell on this well-deserved honor.

IN HONOR OF COY THOMPSON'S PURPLE HEART PINNING CEREMONY

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. HUDSON. Mr. Speaker, I rise today to commemorate the Purple Heart pinning ceremony for United States Army Sergeant Coy Thompson of North Carolina's 8th Congressional District. It is an honor to extend these remarks today and to thank Sergeant Thompson for his brave and selfless service to our nation.

Sergeant Thompson served in the United States Army during the Vietnam War with honor and distinction through his support of ground forces during aerial missions. During the Tet Offensive, Sergeant Thompson was wounded in the line of duty after being hit with fragments of shrapnel from a near-by explosion. After returning to the United States, Sergeant Thompson was awarded with the Air Medal for his actions in support of operations against the enemy. Later, Sergeant Thompson was awarded the Bronze and Silver Stars, as well as the Purple Heart.

On Sunday, November 8, 2015, a special ceremony was held at the Enochville Church of God in Kannapolis, North Carolina to celebrate Sergeant Thompson and recognize him for his valor and service to our nation. Sergeant Thompson was surrounded by family and friends who gathered to witness this special ceremony in which he was pinned with his many medals. Fellow service members were also present and told stories of Sergeant Thompson's courage and love for our country.

I am overjoyed that the Marine Corps League of Cabarrus County and his community recognized Sergeant Thompson for his valiant actions during the Vietnam War. The men and women in uniform who have answered the call to defend our nation represent the best our country has to offer and they deserve our continued admiration. Events like this special ceremony serve as a reminder that we must never take their service and sacrifice for granted, and that we as a nation must continually find ways to recognize these heroic patriots for their unparalleled dedication to our freedom.

Mr. Speaker, please join me today in once again commemorating this very special occasion, and to thank United States Army Sergeant Coy Thompson for his service and dedication to our country.

WORLD DAY OF ROAD SAFETY REMEMBRANCE

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. VAN HOLLEN. Mr. Speaker, I rise in recognition of the 20th Anniversary of the World Day of Road Safety Remembrance.

Despite greater awareness of the dangers associated with traveling on the world's roads today and improvements in road safety, more than a million people die each year as a result of road crashes. These crashes remain the single greatest cause of death for healthy Americans abroad. In the U.S., more than 30,000 die in crashes, while more than 2 million are injured annually.

The good news is that the number of road deaths is stabilizing even though the number of motor vehicles worldwide has increased. According to the World Health Organization, in the last three years, 79 countries have seen a decrease in the absolute number of traffic fatalities.

The bad news is that road users around the world are unequally protected. The risk of dying in a road traffic crash still depends, in great part, on where people live and how they move around. A big gap still separates high income countries from low and middle income ones where 90% of road traffic deaths occur in spite of having just 54% of the world's vehicles. Europe has the lowest death rates per capita. Africa has the highest.

Though road safety strategies are saving lives, the pace of change is too slow. More countries are acting on road safety, but further action is required. In its recent report ''Improving Global Road Safety,'' WHO has called for all new roads to be constructed to at least a 3 Star safety standard, using the International Road Assessment Program methodology. Initiatives will be presented this week among government officials, NGOs and international organizations during the 2nd Global Ministerial Conference on Road Safety in Brasilia, which coincides with the 20th anniversary of observing the World Day of Remembrance. Among the groups in attendance will be the Association for Safe International Road Travel. Since its founding, ASIRT has been a leading and powerful advocate in support of global road safety.

On this World Day of Remembrance, we are reminded of how much progress has been made regarding road safety and how far we still need to go. I encourage my colleagues and the public to reflect on the importance of the task that lies ahead and to commit themselves to the work of preventing the needless deaths caused by road crashes.

HONORING CHIEF CARLOS CABRERA

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to congratulate Fire Chief Carlos Cabrera for his 26 years of excellence in the West Palm Beach Fire Department and his dedication to protecting his community. West Palm Beach is a safer place thanks to him.

Chief Cabrera, the first Hispanic fire department chief in West Palm Beach, had a career of outstanding achievement and service. During the course of his career Chief Cabrera extinguished hundreds of fires, saved many lives, and even delivered seven babies.

In honor of his retirement and years of service to his community, I am pleased to recognize Chief Cabrera and wish him the best in his future endeavors.

WASHINGTON, D.C., CELEBRATING A CAPITOL HILL EXHIBIT BY THE SIMON WIESENTHAL CENTER AND UNESCO

HON. KAREN BASS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. BASS. Mr. Speaker, it is with great pleasure that I recognize and congratulate the Simon Wiesenthal Center and its Museum of Tolerance for commitment to leadership in promoting tolerance worldwide. I am proud to represent these important institutions as part of California's 37th Congressional District. Located in Los Angeles, they have a worldwide mission.

Together with UNESCO, the Wiesenthal Center has created a traveling exhibition, opening today in Washington, D.C., entitled Book. People. Land.: The 3,500 Year Relationship Between the Jewish People and the Holy Land. This exhibit, sponsored by the U.S., Canada and Israel, aims to highlight the Jewish values of scholarship, human dignity and justice, and links them through history to the Jewish homeland.

My friends and fellow Foreign Affairs Committee members, Chair ED ROYCE and Ranking Member ELIOT ENGEL, cooperated in arranging this Capitol Hill opening. Book. People. Land. will soon travel to Israel's Knesset and Vatican City under the supervision of its Project Director, Wiesenthal Center Associate Dean Rabbi Abraham Cooper.

As the public and invited guests celebrate this partnership with UNESCO, the opening of this exhibit, and the Wiesenthal Center's message of human dignity, I am proud to recognize all those involved in this important undertaking.

COMMEMORATING THE BRIDGE DEDICATION CEREMONY FOR MR. ALLEN T. SMALL

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. HUDSON. Mr. Speaker, I rise today to honor the life of Mr. Allen Thurman Small and to commemorate the North Carolina Department of Transportation's Bridge Dedication ceremony in his honor. This is a fitting dedication for a man who gave so much to the City of Concord and the state of North Carolina.

Up until the day he tragically passed in 2006, Mr. Small was a public servant who deeply cared about his community. He served as a member of the Concord City Council from 1997 through 2006 and spent more than three decades in public education. During his public education career, Mr. Small was an educator and principal at three different Concord-area schools: Wolf Meadow Elementary School, Coltrane-Webb Elementary School, and Logan High School. Mr. Small, who was the first African-American to serve as principal of a desegregated school in Concord, was committed to ensuring every student received a high quality education that prepared them to be engaged citizens of the community.

During his tenure on the city council, Mr. Small dedicated his time and resources toward bringing jobs back to Concord and growing the city's economy, all in the hopes of leaving the children he devoted so much of his life to with a better future than he ever had. Following his passing, Mr. Small's city council seat has been occupied by his wife, Ella Mae, who has served the City of Concord with honor and distinction, and has continued to build upon Mr. Small's legacy as a dedicated public servant.

On Monday, November 9th, the North Carolina Department of Transportation held a bridge dedication ceremony for Mr. Small in his beloved City of Concord. The ''Allen T. Small Bridge'' is located on Cabarrus Avenue West over the Norfolk Southern Railroad, and serves as a gateway in to the heart of downtown Concord.

Mr. Speaker, please join me today in commemorating the life of Mr. Allen Thurman Small for his service to the Concord community and his commitment to bettering the lives of everyone in his community, particularly those of our area's young students.

HONORING JAMES CORRIVEAU ON HIS RETIREMENT

HON. ELISE M. STEFANIK

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. STEFANIK. Mr. Speaker, I rise today to honor and recognize Mr. James Corriveau, the Public Works Director, Supervisory General Engineer at Fort Drum, New York.

Mr. James Corriveau has dedicated 39 years of public service to our great nation with a combined Active Duty, Reserve Component and Federal Civil Service. Mr. Corriveau first joined the Army as an Engineer in 1974. He began working at Fort Drum in 1978 and has held multiple positions on post, all to betterment of the Army, the installation and our soldiers assigned to the 10th Mountain Division.

Mr. Corriveau served our nation proudly as an active duty Army Engineer Officer. Following his active duty and Army Reserve careers he continued his call to serve our brave North Country soldiers and their families as a true civil servant. Throughout his esteemed career at Fort Drum he wore many hats, including Civil Engineer, Chief of Operations and Maintenance, Chief of Business Operations, Deputy Director of Public Works, and the Residential Communities Initiative Program Manager. Mr. Corriveau played an integral role in the internal operations and base expansion at Fort Drum, an essential component for the livelihood for our servicemembers, their loved ones, and also the needs of our U.S. Military training and capabilities.

Mr. James Corriveau is the recipient of numerous awards including the Decoration for Exceptional Civilian Service, which is the highest award granted to Army civilian personnel and was most deserved by Mr. Corriveau for his selfless and resolute works. During his time in both military and civilian service, Mr. Corriveau has also been awarded the Special Act Award, the Commander's Award for Civilian Service, the Meritorious Civilian Service Award, and the Superior Civilian Service Award.

On this day, I want to take a moment to thank Mr. James Corriveau for his years of service to our nation. James, congratulations on your retirement . . . you are a true patriot and the North Country community thanks you for making this your home. Your humble leadership and key knowledge will be missed by many.

RECOGNIZING THE BRAVE ACTIONS OF SEVEN OFFICERS OF THE AURORA POLICE DEPARTMENT

HON. BILL FOSTER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. FOSTER. Mr. Speaker, I rise today in recognition of Greg Christoffel, Ed Doepel, Nick Gartner, Jeff Hahn, Erik Swastek, Josh Sullivan and Chris Coronado of the Aurora Police.

For their efforts in saving the life of 14 year old Annie Prosser in 2013, these brave men were awarded the U.S. Marshals' Law Enforcement Officer of the Year awards. Out of the more than 2,500 nominees for the award, only 50 were chosen and it is a matter of great pride and honor that officers from the Eleventh District were chosen among this elite group.

The rescue of Ms. Prosser was conducted in water approximately six feet deep and at a temperature below freezing, after the car she was riding in was found overturned in a pond in Aurora, Illinois. These officers just happened to be nearby, investigating a separate incident. When they saw the danger Ms. Prosser was in, they went above and beyond the call of duty and dove right in to rescue her. This heroic action exemplifies the Aurora Police Department's strong commitment to serving our community and to their character as public servants.

Mr. Speaker, I ask my colleagues to join me in rising in recognition of the honor bestowed upon these brave officers.

TRIBUTE TO DR. ROBERT J. BEALL

HON. TOM MARINO

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. MARINO. Mr. Speaker, I rise today to recognize the service of Dr. Robert J. Beall for his service to the Cystic Fibrosis Foundation, and the indelible mark he has made in the CF community and in the world of health and medicine over the past several decades.

Dr. Beall announced on October 1, 2015 that he is stepping down as Chief Executive Officer of the Cystic Fibrosis Foundation, a role he has held for more than 20 years. Under Dr. Beall's leadership, the CF Foundation has become known for its pioneering and successful approach to supporting biomedical research and developing lifesaving treatments for those with cystic fibrosis.

When Dr. Beall joined the Foundation in 1980, the median predicted age of survival for a person with the disease was 18 years of age—today it is more than 40 years. For the first time in history, over half of the people living with CF are above 18 years of age, and therefore cystic fibrosis is no longer a pediatric disease.

As a proud parent of a wonderful adult daughter with cystic fibrosis, I am personally thankful for Dr. Beall's leadership in this community. His tireless efforts have led this Foundation and the cystic fibrosis research community to remarkable successes in the development of innovative new therapies and dramatic improvement in the quality of life for those with CF.

Through his innovation and leadership, Dr. Beall put the cystic fibrosis community on the road to success, and I have no doubt that his dedication over the past two decades has drastically accelerated our search for a life altering cure for CF patients.

I am honored to serve as Co-Chair of the Congressional Cystic Fibrosis Caucus alongside Congressman JIM MCGOVERN of Massachusetts, and I look forward to continuing the legacy of Dr. Beall through our work the CF community as well as fellow leaders in Congress.

PERSONAL EXPLANATION

HON. C.A. DUTCH RUPPERSBERGER

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. RUPPERSBERGER. Mr. Speaker, on roll call no. 627 I was not able to vote due to a medical procedure.

Had I been present, I would have voted yes.

HONORING MICHAEL MCKINNON ON HIS RETIREMENT

HON. ELISE M. STEFANIK

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. STEFANIK. Mr. Speaker, I rise today to honor and recognize retired U.S. Army Lieutenant Colonel Michael McKinnon, the current Deputy to the Garrison Commander at Fort Drum, New York.

Lieutenant Colonel Michael McKinnon has spent his life dedicated to serving and protecting our national security and freedoms, with a combined 37 years of public service. Lt. Col. McKinnon served his nation honorably and with distinction for 23 years of active duty service. After retirement from the U.S. Army, Lt. Col. McKinnon has continued to serve our nation as a civil servant for over 14 years.

Lieutenant Colonel McKinnon's first introduction to Fort Drum was with the 2nd Brigade as the Logistics Officer. Lt. Col. McKinnon was then assigned to the 3rd Battalion, 14th Infantry as the Battalion Executive Officer and served with them in Somalia during Operation Restore Hope. In 1995, after a stint in Kansas, Lieutenant Colonel McKinnon returned to the 10th Mountain Division where he served as Deputy Chief of Staff, Deputy G–3 and Director of Logistics.

As an army officer, Lieutenant Colonel McKinnon received the Legion of Merit, six Meritorious Service Medals, five Army Commendation Medals, three Army Achievement Medals, the Armed Forces Expeditionary Medal, as well as the Expert Infantry, Ranger Tab and Parachutist and Air Assault badges.

Following Lieutenant Colonel Mike McKinnon's retirement from the active army, he returned to the North Country and to Fort Drum where he has served our community proudly as the Deputy to the Garrison Commander. As a civil servant, Lieutenant Colonel McKinnon received the Superior Civilian Service Award and the Commander's Award for Civilian Service.

It is apparent Mike has led the efforts for our servicemembers within the North Country and over the years has played an instrumental role in supporting soldiers, civilians, families, Fort Drum and the 10th Mountain Division. The recipient of multiple awards and decorations, Lieutenant Colonel McKinnon embodies all the qualities of a selfless hero, who has answered the call to serve.

Lieutenant Colonel McKinnon, congratulations on your years of service to our great nation and your retirement. Your guidance and expertise will truly be missed at Fort Drum and by our North Country community.

IN HONOR OF KRUSHI PATEL AND HER WINNING SUBMISSION TO THE 2015 VETERANS DAY ESSAY CONTEST FROM NEW YORK'S 14TH CONGRESSIONAL DISTRICT

HON. JOSEPH CROWLEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. CROWLEY. Mr. Speaker, I rise today to congratulate the winner of the 2015 Veterans Day essay contest from New York's 14th Congressional District. Krushi Patel, a student from I.S. 61 in Corona, Queens submitted the winning essay on the topic, ''What Veterans Day Means To Me.'' Krushi's essay reads as follows:

Veterans, whether they are in the army, navy, or marines, put their lives at stake for the safety and security of others. These people spend day and night away from those they love, just so that we can be close to those we love. They are on the border and in battle so that we can live a life with peace and freedom. They do so much for us, that it would be impossible to pay them back. That is why we should honor all veterans for their heroism and determination on Veterans Day. We should tell them that we deeply appreciate the sacrifices they took to keep us and our country safe; that they will always have a special place in our hearts. It's not easy to be away from your family, for months and years at a time. The thought of it brings tears in our eyes. However, for the security and honor of our nation, they put their families one step behind. These people do what may seem unimaginable for most people. These people volunteer themselves for the nation they were born in. That is why we salute them.

Last year, on December, 15, 2014, my class went to a Veterans' Organization. We met various former soldiers from wars like World War II and the Vietnamese War. These people were so inspiring. They told stories. These people were a primary source of these historic wars. We got to learn from people who had been eyewitnesses. They became idols to me. They had fought for our country with persistence and bravery. However, they didn't ask for anything in return. They had no stove or TV. These people were so delighted to see us. We sang Christmas carols. We didn't really want to leave. We were years apart in age, but that didn't get in the way of us having a good time.

Veterans Day is a time to thank all former and current veterans, a time to thank them for fighting for our freedom and peace. It's a day when I spend some of my time to respect and look up to those who put themselves in danger for the benefit of strangers. That is why we tell them that they are true heroes. Veterans fought for peace and freedom in this world. We must thank and salute these people. Veterans Day is a time to be proud of being an American.

Veterans Day is about the love and devotion you have for the country that you are willing to cut your life short for it. The respect veterans have for our country and its people is why they are willing to leave their family behind for service. The love that bums inside of them for this nation is so great. ''Some people live an entire lifetime and wonder if they have ever made a difference in the world, but the Marines don't have that problem.''—Ronald Reagan

PERSONAL EXPLANATION

HON. JOYCE BEATTY

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mrs. BEATTY. Mr. Speaker, unfortunately on November 16, 2015, I missed roll call vote no. 626. Had I been present, I would have

voted "nay" on final passage of Keep the Promise Act of 2015, H.R. 308.

METHODIST SUGAR LAND MAKES THE GRADE

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. OLSON. Mr. Speaker, I rise today to congratulate a great hospital in my backyard, Houston Methodist Sugar Land Hospital, for once again getting an "A" grade for patient safety in the most recent Hospital Safety Score ratings.

Twice a year, hospitals across the country are rated based on how well they protect patients while they're under the hospital's care. Houston Methodist Sugar Land was among less than one-third of hospitals to earn an "A" grade. This grade reflects their commitment to patients through continual staff training and updated best practices. Methodist Sugar Land provides its community with peace of mind should a medical emergency arise.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Houston Methodist Sugar Land. Thank you for putting patient safety above all else.

RECOGNIZING THE 25TH ANNIVERSARY OF THE SUNY EMPIRE STATE COLLEGE

HON. ELISE M. STEFANIK

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. STEFANIK. Mr. Speaker, I rise today to honor and recognize the 25th Anniversary of the SUNY Empire State College located at Fort Drum and the 30th Anniversary of the College's participation in the SUNY North Country Consortium on October 21, 2015.

Since 1985, SUNY Empire State College has supported our nation's servicemembers, military spouses, dependents and our brave veterans. Soon after the 10th Mountain Division was reactivated at Fort Drum, SUNY partnered with other statewide and community organizations in order to serve those who protect our national security. SUNY College provides our specific North Country student population with access and support to high-quality public education.

SUNY Empire State College accepts academic credit for military training recommended by the American Council on Education in order to help reduce costs and accelerate the amount of time it takes to complete a degree for these service members. According to Military Times magazine, SUNY Empire State College is listed among the "Best for Vets: Colleges" and "Best for Vets: Business Schools".

Congratulations SUNY Empire State College on the 25th anniversary of your location at Fort Drum and for your 30 years of service to the veterans, soldiers, military spouses and dependents who serve and work in the North Country. I want to wish SUNY Empire State College continued success in educating this most deserving, nontraditional student population.

PERSONAL EXPLANATION

HON. MARK TAKAI

OF HAWAII

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. TAKAI. Mr. Speaker, on Monday, November 16, I was absent from the House due to illness. Due to my absence, I am not recorded on any legislative measures for the day. I would like the record to reflect how I would have voted had I been present for legislative business.

Had I been present, I would have voted "no" on Roll Call 626, the Keep the Promise Act.

I would have voted "yes" on Roll Call 627, the Dignified Interment of Our Veterans Act of 2015.

I would have voted "yes" on Roll Call 628, the Honor America's Guard-Reserve Retirees Act.

ALBERT M. WOOLLEY

HON. LEE M. ZELDIN

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ZELDIN. Mr. Speaker, I rise today to recognize the service of Albert M. Woolley.

Staff Sergeant Albert M. Woolley was born on February 13, 1925, in Victoria, Texas. On November 17, 1942, at the age of 17, with his parent's consent, and alongside his cousins and friends, he enlisted to serve in World War II.

After completing the training for his military occupation specialty, motor vehicle maintenance, Albert was assigned to the 9th Army Air Corps and sent to England. At the age of 19, Albert took part in the heroic Invasion of Normandy, partaking in the 2nd wave and landing on Utah Beach. Albert recalls almost drowning when having to stand on the back of the landing craft and jumping into the tremendous waves with 60 pounds of equipment on his back. Sinking instantly, he was grabbed by another soldier, fortunately very tall, who pulled him up to the surface. Together, they swam to the shore where they were soon separated, never to see each other again. Advancing up Normandy Beach, Albert and his fellow soldiers victoriously combated a barrage of German machine gun and sniper fire strafing the shoreline.

Following the infamous D-Day landing, Albert served in the French Campaign supporting Allied Forces until being honorably discharged on November 10, 1945. After five years on American soil, Albert was recalled in 1950 to active service, in support of the Korean Conflict, remaining oversees until the Armistice. After returning home, he continued his service and received orders to Westhampton, New York in 1964, only to soon again be in the Pacific. In 1967, Albert was given orders to Danang, Vietnam, fighting in and surviving the TET Offensive of 1968.

In October 1977, Staff Sergeant Albert M. Woolley retired after 30 years of service. During this time, he received amongst numerous other decorations; two Air Force Longevity Service Awards, four Good Conduct Medals, and the Vietnam Campaign, Vietnam Service and French Campaign ribbons.

Albert M. Woolley, who has been married to his wife Victoria for 68 years, is the proud father of five children. Their family has now grown to include 16 grandchildren and 10 great grandchildren. Albert has served both his country and family well through his hard work and great sacrifice.

PERSONAL EXPLANATION

HON. JAMES P. McGOVERN

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. McGOVERN. Mr. Speaker, I was unavoidably absent due to official business on Monday, November 16, 2015. On Roll Call Vote Number 626, on the bill H.R. 308, Keep the Promise, had I been present I would have voted No.

On Roll Call Vote Number 627, on H.R. 1338, the Dignified Interment of Our Veterans' Act of 2015, I would have voted Yea.

On Roll Call Vote Number 628, on H.R. 1384, the Honor America's Guard-Reserve Retirees Act, had I been present I would have voted Yea.

HONORING JAMES J. VENERUSO

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ENGEL. Mr. Speaker, I rise today to honor a leader in my district, James J. Veneruso, who has been actively involved in a wide array of professional and community organizations for many years.

A former Adjunct professor at Iona College and the College of Mount Saint Vincent, Mr. Veneruso served as the Editor of the Delaware Corporate Law Review and the Westchester County Law Journal, the President of the John Marshall Honor Society, and was on the founding Board of Editors of the Pace Law Review. He is admitted to practice law in New York and Florida, and is now the managing partner of the law firm of Veneruso, Curto, Schwartz & Curto, LLP located in Yonkers, New York.

In addition to his professional developments, Mr. Veneruso serves on the Board of Trustees of Saint Joseph's Medical Center, as legal counsel and Board member of Habitat for Humanity of Westchester, and as a member of Yonkers Partners in Education, Inc., and the Italian American Forum. He currently serves on the Business Development Board of Sterling National bank, and actively served on the Board of the Bronx Overall Economic Development Corporation.

Mr. Veneruso lives in Yonkers with his wife, Lillian. They have three children and four grandchildren. The surrounding community has recognized and celebrated Mr. Veneruso's contributions to the area with countless honors. He has been recognized as the Most Socially Conscious Attorney by the Westchester County Bar Association and the Westchester Business Journal, and has received the "American Dream Award" by the Habitat for Humanity of Westchester.

This year Saint Joseph's Medical Center is honoring Mr. Veneruso with the 2015 Outstanding Service Award. I want to congratulate

Mr. Veneruso on this honor and thank him for his contributions to our community's continued growth and success.

INTRODUCTION OF BRIDGE TO A CLEAN ENERGY FUTURE ACT OF 2015

HON. EARL BLUMENAUER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. BLUMENAUER. Mr. Speaker, today I am introducing legislation to support the continued development of clean energy in the United States. The impacts of a changing climate are far-reaching, representing a threat not only to our ecosystems but to our national security as well. To help avoid the worst effects of carbon pollution, consumers must have a dependable supply of energy that is clean and renewable. That much of this energy—and many of the devices used to produce it—is American-made means that our country retains the innovation, export opportunities, and manufacturing jobs that are so important to a twenty-first century economy.

The Bridge to a Clean Energy Future Act of 2015 extends critical clean energy incentives to provide market certainty and to strengthen investment in renewable technologies. In doing this, it will support thousands of jobs in clean energy industries, advance U.S. manufacturing, and enable our transition to clean, renewable energy.

For example, this legislation extends the Production Tax Credit for wind energy through 2016, offering parity with the duration of the Investment Tax Credit enjoyed by solar energy investments, while also granting the solar industry access to credits at the start of a project's construction, as is currently available for the wind industry. The bill also provides a range of other important incentives, such as expanding the advanced energy project credit, which aids U.S. manufacturers across the clean energy industry.

Strengthening the finance environment for the construction and development of renewable energy installations not only will help us to combat climate change and diversify our energy market, it will also strengthen the U.S. economy by creating American jobs, by supporting American manufacturers, and encouraging American innovation. From a strong base at home, American clean energy firms are also able to export technologies around the world, creating new markets for American expertise.

This bill is more than fully offset by repealing incentives for fossil energy that are unnecessary and wasteful taxpayer giveaways to some of the most profitable companies in the world doing business in an industry that is a major contributor to climate change.

RECOGNIZING AURORA ACTIONAIRES FOR FORTY YEARS OF COMMUNITY SERVICE

HON. BILL FOSTER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. FOSTER. Mr. Speaker, I rise today in recognition of the Aurora Actionaires and the forty years of community service they have dedicated to the City of Aurora, Illinois. The Aurora Actionaires is comprised of twenty-three African American women seeking to serve their community.

We should all be proud of the contributions these women have made to the community. With their motto, "We Care. We Act. We Serve." the Aurora Actionaires have assisted the elderly, donated to the needy, and provided college scholarships to many Aurora high school graduates.

Mr. Speaker, I ask my colleagues to join me in commemorating the 40th Anniversary of the Aurora Actionaires and thanking these dedicated women for their service.

ACKNOWLEDGING THE RETIREMENT OF BROWNSTOWN DEPUTY SUPERVISOR GREG MAHAR

HON. DEBBIE DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mrs. DINGELL. Mr. Speaker, I rise today to recognize Greg Mahar, a community leader in southeast Michigan for decades. This month he will retire after twenty four years of service as Deputy Supervisor of Brownstown Township. Appointed to the role in 1992, Greg has supported and enjoyed the trust of three different township supervisors. His name is synonymous with Brownstown.

In 1967, almost 50 years ago, Greg began his career in public service. The young man that tirelessly organized his community block club would one day literally put Brownstown on the map. From promoting business by identifying Brownstown on Interstate 75 signage; to negotiating money-saving contracts to promoting access to a transparent local government, there are few major projects in Brownstown that Greg has not been critical to their success. Every resident of Brownstown Township has been impacted by his tireless efforts.

Greg has been a role model in this community because, as he puts it, helping people is just who he is. He has raised the funds for numerous local charities, and finds solutions for needs in the community that are not being met. Not only has he dedicated his time and resources to multiple efforts and programs, he even sacrificed his trademark mustache in support of a cure for leukemia. Now clean-shaven, Greg still serves as the go-to guy for anyone in the community who is trying to uplift their neighbors.

Mr. Speaker, I ask my colleagues to join me today in honoring Mr. Greg Mahar for his twenty four years of service to Brownstown and his lasting impact on the Downriver communities. We thank him for his leadership, and wish him many years of happiness and success.

THE INTRODUCTION OF THE DISTRICT OF COLUMBIA FEDERAL OFFICIALS RESIDENCY REQUIREMENT EQUALITY ACT OF 2015

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Ms. NORTON. Mr. Speaker, today, I introduce the District of Columbia Federal Officials Residency Requirement Equality Act of 2015, a bill that would amend federal law to require certain officials who serve D.C. to actually live within its boundaries. In nearly every other jurisdiction in the United States, federal district court judges, U.S. Attorneys, and U.S. Marshals are required by federal law to reside within the jurisdictions where they have been appointed—but these same officials appointed to serve the people of the District are not bound by these same requirements. The only other jurisdictions where these officials are not required to live within their appointed jurisdictions are the Southern District of New York and the Eastern District of New York. However, this is because New York City is the only city in the country that is divided between two federal districts—but the District is not similarly situated. My bill would put D.C. on equal footing with almost every other jurisdiction by ensuring that our Marshals, judges, and U.S. attorney live among the residents they have been appointed to represent.

Clearly, the idea that these federal officials ought to live in the jurisdictions they serve is a significant one—which is why the residency requirement for other jurisdictions is enshrined in federal law. Yet, D.C. was exempt from this requirement based on the now-outdated notion that the District is too congested and small to house these appointed officials. The District of Columbia is a vibrant and bustling city with a diverse populace who deserve direct engagement on the part of its federal judges, U.S. attorney, and Marshals. My bill recognizes the fact that D.C. deserves the same type of community involvement by these federal officials as nearly every jurisdiction.

I urge my colleagues to support this bill.

PERSONAL EXPLANATION

HON. C.A. DUTCH RUPPERSBERGER

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. RUPPERSBERGER. Mr. Speaker, on roll call no. 628, I was not able to vote due to a medical procedure. Had I been present, I would have voted "yes."

HONORING DR. PETER K. WAYNE

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ENGEL. Mr. Speaker, I rise today to honor a leader in my district, Dr. Peter K. Wayne, who has had an unquestionable impact on the health and well-being of our community for many years.

Born in Queens, NY, Dr. Wayne spent his childhood in Long Island, and after obtaining his Biochemical Sciences degree from Harvard College, he completed his seven-year MD–PhD degree at Albert Einstein College of Medicine in the Bronx. Following additional training in internal medicine and gastroenterology, Dr. Wayne joined St. Josephs Medical Center in Yonkers, where he has treated countless residents from the neighborhood.

Beyond his service to our community through his medical practice, Dr. Wayne has served as President of the Medical Board, and has been serving as Chief of Gastroenterology for most of this millennium. In addition to his service on the boards of countless Gastrointestinal research groups and societies, Dr. Wayne has been recognized for his participation in clinical trials of drug therapies for hepatitis B and hepatitis C.

Dr. Wayne and his wife, Ellen Tremper, have four children, each contributing to their communities with the same vigor in their respective fields that Dr. Wayne has served ours. Dr. Wayne's passion for, and dedication to, his work is made clear in and out the office. He advocates for bicycle safety, develops his personally-crafted electronic medical record program, and supports the St. Joseph's Endoscopy Unit, which hosts a clinic for the uninsured and underinsured to be evaluated by a staff of board-certified endoscopists.

This year, St. Josephs Medical Center is honoring Dr. Peter Wayne with the 2015 Outstanding Service Award. I want to congratulate Dr. Wayne on this honor and thank him for his years of dedicated service to our community.

IN HONOR OF 100 SEASONS OF SHSU BEARKAT FOOTBALL

HON. KEVIN BRADY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. BRADY of Texas. Mr. Speaker, in Texas, fall means football, and this fall marks a special football milestone for Sam Houston State University. Our Bearkats are celebrating 100 seasons of hard fought contests on the college football gridiron.

What happens at Elliot T. Bowers Stadium today has its roots in a cotton patch in the outfield of Joseph Pritchett Field in Huntsville, Texas. On October 6, 1912 the team from Sam Houston Teachers College faced off against a ''pugnacious'', as one observer remarked, Rice Institute to begin the inaugural season of Sam Houston football. Since then, football has been a continuous sport at Sam Houston, except for the war years—1918, during World War I, and 1943, 1944 and 1945, during World War II.

The inaugural season saw Sam Houston end with an even 2–2 record. That first team was comprised of just 19 students with the average player weighing in at just 135 pounds. Their leather helmets cost $3 each and fully-padded pants of heavy canvas were $12. Today, the Bearkat squad has 100 players with an average weight of over 200 pounds. And it cost about $800 to outfit each player for game day.

This year's ''Century Season'' brings with it a legacy of big rivalries and even bigger accomplishments.

In October, Sam Houston State returned home victorious over Stephen F. Austin State University in the 90th edition of the Battle of the Piney Woods. This timeless rivalry between the Bearkats and the Lumberjacks began in 1923 and is one of the three oldest continuous rivalries in Texas college football.

Sam Houston has competed and won championships in four different leagues: the Texas Intercollegiate Athletic Association, Lone Star Conference, Gulf Star Conference and Southland Conference.

The team played its first bowl game, the Shrimp Bowl, in 1952. In 1964, our Bearkats were National Association of Intercollegiate Athletics (NAIA) Co-National Champions.

Sam Houston State boasts six Southland Conference Championships, the most recent just last year.

Bearkat teams have made eight Football Championship Subdivision Playoff appearances, including trips to the National Championship Game in 2012 and 2013 and the National Semi-Finals in 2004 and 2014.

And, our Bearkats are also close to another major milestone—their 1000th game. With such an exciting first century, we can't wait to see what the next hundred years will bring. Eat 'Em Up, Kats!

HONORING THE POSTHUMOUS INDUCTION OF CLARK GOODWIN INTO THE JESSE HELMS CENTER FOUNDATION'S CHARLES A. CANNON FREE ENTERPRISE HALL OF FAME

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. HUDSON. Mr. Speaker, I rise today to honor H. Clark Goodwin for his posthumous induction into the Jesse Helms Center Foundation's Charles A. Cannon Free Enterprise Hall of Fame on November 17, 2015.

Clark Goodwin left a lasting legacy of service not only across Union County and North Carolina's 8th Congressional District, but across the entire state and nation. He was born and raised in Union County, attending Monroe High School and Wingate Junior College—Senator Jesse Helms' alma mater—before attending the University of North Carolina at Chapel Hill.

After college, Clark began a career in banking that would last nearly 45 years and would see him become a leader in the industry. He began his career back in Union County, and eventually went to Albemarle where he became President of NC Federal Savings and Loan. Clark then returned to Union County in 1982 to start the Bank of Union.

Aside from his success in business, Clark always stepped up to help his community. He served as Chairman of the Monroe Economic Development Commission for 17 years and was recognized as the Monroe Chamber of Commerce Man of the Year in 2013 for his leadership and public service. Clark was a founding board member of the Jesse Helms Center Foundation, where he served for 25 years in various leadership roles. He also served on the Wingate University Board of Trustees for more than 45 years. In honor of his service, Wingate University awarded him an Honorary Doctorate of Humane Letters degree in 2012.

Clark Goodwin symbolized everything the Jesse Helms Center Foundation stands for—free enterprise and principled leadership through education, public policy promotion and historical preservation. His work and philanthropic endeavors helped enrich the lives of countless folks across the 8th District, and for that we all owe Clark Goodwin a debt of gratitude. I can think of no one more deserving of a spot in the Free Enterprise Hall of Fame than Mr. Clark Goodwin.

Mr. Speaker, please join me today in honoring Clark Goodwin for his posthumous induction into the Jesse Helms Center Foundation's Charles A. Cannon Free Enterprise Hall of Fame.

TOM HEINLY WINS PRINCIPAL OF THE YEAR

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. OLSON. Mr. Speaker, I rise today to congratulate Tom Heinly, Head of School at The Honor Roll School in my hometown of Sugar Land, for being named K–12 Principal of the Year by Nobel Learning Communities, Inc (NCLI), the school's parent organization.

Mr. Heinly has served as Head of School of The Honor Roll School for two years. Before joining the team at Honor Roll, Tom spent 18 years in public elementary and middle schools. Throughout his career he has helped his students become leaders and carries out that same mission at The Honor Roll School. He continually demonstrates great leadership with his positive attitude and dedication to his students and colleagues. By fostering a community that works as a team, everybody achieves success. The Honor Roll School is lucky to have him.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Tom Heinly on winning Principal of the Year.

HONORING ERIC POLLARD

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ENGEL. Mr. Speaker, I rise today to honor Eric Pollard, a true public servant whose leadership, loyalty, and dedication to his work has left an indelible mark on the Yonkers Public School System.

Teachers, administrators, coworkers and parents all have wonderful things to say about Eric and the job he has done as Head Custodian of the School 16 Annex, located at 759 North Broadway in Yonkers. His reputation proceeds him, due to his work ethic and dedication to the school. Principal Cynthia Eisner has lauded Eric, saying, ''he makes sure that everything is not only in working order, but it is in tip top shape.'' In addition to his custodial duties, Eric helps with arrivals and dismissals, serving as a de facto traffic officer, clearing the bus lanes of cars to ensure a smooth dismissal every day. The school's Assistant Principal, JoAnn DiMaria, has also praised Eric for

his ''leadership, loyalty, and dedication of the highest caliber in association with his responsibilities as Head Custodian He supports and collaborates with custodial staff in the Main Building while consistently maintaining an immaculate environment where our children can learn.''

A Yonkers resident himself, Eric resides with his wife, Lisa, and daughters Kamesha and Aaliyah in the district. He is one of six children born to Mildred and Claude Lee Sr. and has been a resident of Yonkers since 1967. He attended PS 8, graduated from Roosevelt High School, and has been employed the Board of Education as a custodian since 1992. Eric is Yonkers through and through, and he epitomizes the hard work and dedication the community is known for.

On November 17th Eric is being honored with the 2015 Civil Service Employee of the Year Award, hosted by the Exchange Club of Yonkers and the Yonkers Public School system. It is my pleasure to congratulate Eric on this wonderful honor, and thank him for his years of service to the community.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,653,507,360,573.44. We've added $8,062,630,311,660.36 to our debt in 6 years. This is over $8 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

HONORING THE LIFE AND LEGACY OF THE LATE NAUSEAD LYVELLE STEWART, ESQ.

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor the life and legacy of an extraordinary public servant, the late Nausead Lyvelle Stewart.

Nausead was born August 15, 1931 in Starkville, Mississippi to Tommy James Stewart and Rosa Rogers Stewart. Upon graduation from Oktibbeha County Training High School, she chose to attend Tougaloo College where she graduated with honors in History and Home Economics. Afterwards, she taught high school history for thirteen years in West Point, Mississippi, while acquiring her M.A. degree from Atlanta University.

Nausead entered the University of Mississippi School Of Law in 1967 and graduated with honors in May, 1970, where she was the first African American law student to serve on the law journal. In law school, she roomed with Constance Slaughter Harvey, who finished the law school a semester earlier, as the first African American female graduate. Nausead contributed immensely to the legal profession and the pursuit of equal justice for all.

Upon graduation, she, along with her classmate Geraldine Harrington Carnes, was hired by the Lawyers Constitutional Defense Committee (LCDC) to assist the then director, Armand Derfner and Jim Lewis with civil rights litigation.

A year later, when LCDC closed its Mississippi Office, Nausead was hired to work across the street at Anderson, Banks, Nichols and Leventhal to assist with the NAACP Legal Defense Fund (LDF) civil rights litigation. That work consisted primarily of dealing with the post desegregation discriminatory practices in teacher and administrator hiring and retention. Nausead played a primary role in assuring, through litigating several cases, that the ''Uniform Singleton Decree'' which provided for the utilization of objective non-racial standards in determining which education professionals would be retained should desegregation result in a loss of positions due to duplication. It also provided a first right of refusal for subsequent new openings to any professionals who were not rehired because of such duplication. Additionally, Nausead worked on other successful employment class actions against large employers in our state. A case law query will reveal some of the great work that she did during this era and continuing in to the 1980s.

In 1975, Nausead became a partner and the firm name was changed to Anderson, Banks, Nichols and Stewart.

Three years later, Nausead left the firm to assume the position as head of the Jackson Office for the Lawyers Committee for Civil Rights Under Law, thus completing the circle of having been a lawyer for the three foremost civil rights legal offices in the 1960s and 70s, the Lawyers Committee, NAACP LDF, and LCDC.

In the 1980s, the Lawyers Committee closed its Jackson Office, whereupon, Nausead joined the Walker and Walker firm in Jackson, headed by John L. Walker and William Walker, Jr. While working there, Nausead handled the firm's appellate work and motion practice and was a mentor for James E. Graves, Jr. and Regina Quinn who also worked there during her tenure. In 1982, Nausead offered her services to the citizens of Hinds County for the County Court Judge position thus becoming the first African American female judicial candidate.

After practicing law with the Walker and Walker firm for several years, Nausead assumed a position with Minact Inc. where she engaged in grant writing and compliance until her retirement.

On July 18, 2000 and during her retirement, Nausead served as a Jackson Civil Service Commissioner after having been appointed by Jackson Mayor Harvey Johnson and served until May 2, 2006.

Nausead took great pride in community services on numerous boards of community organizations and received awards for her work with those organizations. She was a member of Alpha Kappa Alpha Sorority, Inc. which she joined while at Tougaloo College.

Nausead was preceded in death by her aforementioned parents. She is survived by her sister, Doris Anderson; brother, and Thomas J. Stewart, Jr.

Mr. Speaker, on November 10, 2015, we lost a treasure in Nausead. I ask that my colleagues join me in recognizing a diligent advocate, a conscientious worker, and a selfless servant leader whose life was dedicated to the cause of humanity, Nausead Lyvelle Stewart.

HONORING PETER DiPAOLA

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ENGEL. Mr. Speaker, I rise today to honor a dear friend and a true community leader, Pelham Town Supervisor Peter DiPaola, who has served his community in elected office with distinction for close to 25 years.

A resident of Pelham Manor since 1952, Peter has always had a love affair with Pelham Manor and its residents. He attended Siwanoy Elementary School while his future wife attended Prospect Hill, beginning a family legacy in the Pelham Elementary School system that has lasted three generations.

In 1991, Peter began his life of public service as a member of the Pelham Manor Planning Board, and never looked back. To call Peter's career in elected office diverse or extensive would be an understatement. He served as Pelham Manor Trustee, with oversight for administration, planning, and finance; Fire Commissioner; Police Commissioner; Commissioner of Public Works; was elected Mayor of the Village of Pelham Manor in 2001; Town Councilman in 2004; and finally Pelham Town Supervisor in 2012, the role in which he currently still serves.

As Town Supervisor, Peter has worked diligently to maintain the beauty and charm that has defined Pelham for decades. In spite of state mandated tax caps, he has overseen a redesign and improvement of the Town Court, a renovation of Gazebo Park, an expansion of the offerings by the Pelham Recreation Department, as well as an improvement of town services and programs, all while staying under the 2 percent tax cap. He has also worked hard to obtain vital funding through local, state, and federal grants, some of which my office has helped procure, for initiatives ranging from Superstorm Sandy repairs to improvements to Trotta Park. Peter's ability to deliver the services Pelham's residents have come to expect from their local government, while exhibiting strict fiscal responsibility, has been masterful, and as Pelham's Congressman I have always counted myself fortunate to have such a wonderful partner in government.

Peter and I may not come from the same side of the aisle, but we have always had a great relationship, built on a foundation of mutual respect, while working together in the spirit of bipartisanship. As the American Legion Pelham Post 50 honors Peter at their annual Veterans Week Dinner Dance, I want to take a moment to honor him as well, and thank his wife, children, and grandchildren for sharing him with the entire community. There is no more fitting honoree than Peter, and he is most deserving of this recognition.

HONORING THE DEDICATION OF BRITNEE FERGINS TO HER FAMILY

HON. JOHN FLEMING

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. FLEMING. Mr. Speaker, I rise to honor the story of Britnee Fergins of Shreveport, Louisiana. Care of family is a powerful expression of our humanity, and Britnee has provided us a touching example through the care of her father and her son. She stepped up to answer the noble calling to serve as the caretaker for her father, Percy Sr., who is a ninety year old World War II veteran. Caring for a family member can be a very rewarding experience, but it can also be a very challenging one. This challenge is only magnified when a loved one is diagnosed with Alzheimer's, a devastating disease which strips individuals of their memory and lives, all while placing an exhausting amount of stress on their caretakers. Nevertheless Britnee has persevered in her love and care for her father, and has faithfully devoted her time and resources. However she is more than her father's caregiver, as she also is a dedicated mom to her spirited two year old son. Britnee is a hero both to her father and her son, an example of courage, and a role model of selfless dedication. Thank you, Britnee, for all that you have done and sacrificed on behalf of your family. I am proud to recognize your service during the National Caregiver Month, and I salute the thousands who do the same thing unheralded.

IN HONOR OF THE LATE BRIGADIER GENERAL JAMES ABRAHAM

HON. PATRICK J. TIBERI

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. TIBERI. Mr. Speaker, I rise today to recognize the late Brigadier General James M. Abraham who entered eternal life on November 8, 2015.

General Abraham's many achievements are a testament to patriotism and service above self. In his nearly ninety-three years on Earth, ''General Jim'' was a voice for change and a force for good in his local community, as a state leader, and in his national service.

James Abraham first answered the call to national service when he enlisted in the United States Army, proudly serving in the 3rd Army under General George S. Patton. Continuing his service over the next four decades in both the regular Army and the Army National Guard, General Abraham's career culminated with his posting as the Assistant Adjutant General for the State of the Ohio Army National Guard. Many times over he was recognized for his leadership skills and professionalism, receiving the Legion of Merit, four bronze stars, three Army Commendation Medals, the Normandy Medal, the French diploma of appreciation, and induction into the Ohio Veterans Hall of Fame.

Yet General Abraham's contributions out of uniform are of similar distinction and remain worthy of recognition. Jim lived his life as an innovator, facilitating new ways to do business in local government, holding numerous patents, and publishing three books. His keen intellect and thoughtful leadership style also served the citizens of Gahanna, Ohio when he took the reins as service safety director. To recognize his many years in local governance, the residents of Gahanna named their city hall in his honor as a fitting testament to his tireless efforts on their behalf.

A proud alumnus of Ohio University, General Abraham dedicated much of his time to supporting the Bobcat family. He is credited with successfully preventing the deactivation of the Ohio University ROTC program which continues to shape the future of our military. He also created new methods of instruction which have been applied to other universities across the nation. For his unwavering commitment to the university, its students, and higher education he was awarded an honorary doctorate in 2015. This capstone recognition served as his final public salute for his innumerable accomplishments and a life well lived.

I am proud to have known General Abraham as both a friend and colleague. Over the years, he advised countless public officials on veterans' issues, engineering ventures, and leadership in difficult times. He served as the chairman of my Service Academy Nomination Board as well as that of former Congressman John R. Kasich, helping select the best and brightest to carry our armed forces into the future. Lastly, his calm and steady demeanor has provided me immeasurable resolve in difficult times.

I am deeply saddened by the loss of my friend, the General. Though my words today fall short of the recognition he rightfully deserves, I believe his reputation and legacy across Central Ohio will remain examples for Ohioans, and carry on as a testimony to his exceptionalism. His spirit is best captured in one of his many inspirational exhortations that in our lives ''Each plateau that is reached should only be the launching point for the next achievement.'' Our most fitting tribute is to live our lives accordingly, and continue to reach for higher goals.

On behalf of the citizens of Ohio's 12th Congressional District, I say farewell to General James M. Abraham, one of our finest neighbors. I am honored to pay tribute to him today.

HONORING ANGELO MARTINELLI

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ENGEL. Mr. Speaker, I rise today to recognize a leader in the Yonkers community, Angelo R. Martinelli, who for 20 years has led the Yonkers Chamber of Commerce as Chairman with great distinction and integrity.

Originally born in the Bronx in 1927, Angelo grew up in Mount Vernon, attending A.B. Davis High School. Following his graduation in 1945, he enlisted in the United States Army where he served until 1946 as a Sergeant.

After leaving the Army, Angelo returned home to work in his family's business, The Yonkers Daily Times, while swiftly moving to buy the Gazette Press in 1948. This shift, as well as meeting the love of his life, Carol Madatto, led to the purchase of their first home in Yonkers in 1960, where Angelo still currently lives.

In 1974, Angelo ran and was elected Mayor of the City of Yonkers, serving from 1974–1979 and again from 1982–1987. He has earned a reputation as an effective and forceful advocate of municipal government interests, like seniors, anti-crime programs, and the reactivation of the Yonkers Police Athletic League. In 1983, with the closing of the PAL seeming imminent, Mayor Martinelli helped form a new Board of Directors, and today the PAL is a vibrant organization, with Angelo continuing to serve as its President since 1991. Angelo was the owner and Chairman of the Board of Gazette Press, Inc., and is currently Chairman of the Board for Today Media, Inc. From 1990 until May, 2012 he served as a director of Hudson Valley Bank.

In January 1984, Mercy College conferred upon him an Honorary Doctorate of Humane Letters. In January 1995 he became Chairman of the Yonkers Chamber of Commerce, a position he still holds. In August 2015, HBO aired the miniseries, ''Show Me a Hero,'' with Angelo, who was delighted to be portrayed by actor Jim Belushi.

But Angelo's passion was always his family. He and Carol, to whom he was married to and loved for 65 years, have six sons, Michael, Paul, Robert, Richard, Thomas and Ralph, and five daughters-in-laws, 12 grandchildren, and five great grandchildren. Angelo is an active parishioner of St. Eugene's Church, Yonkers.

This year, the Yonkers Chamber of Commerce is honoring Angelo at the 122nd Annual Business Hall of Fame Dinner, commemorating his 20 years of service as Chairman of the Board. I want to thank him for his incredible leadership and for helping to make Yonkers the great city it is today.

RICHARD LANDY

HON. LEE M. ZELDIN

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ZELDIN. Mr. Speaker, I rise today to commemorate the service of Richard Landy.

On December 8, 1942, at the age of 18, Richard Landy stepped forward to serve his country during World War II. He was assigned to serve in one of the most dangerous units in the armed forces, the newly established Naval Armed Guard. This assignment placed men in constant danger and threat of attack while guarding the often ill equipped merchant and naval support ships. Armed only with machine and deck guns, these men were tasked to protect these ships, the lifeline of the war effort, from enemy submarines, surface raiders and aircraft.

During his time in service, Richard sailed on Landing Ship-Tank Class Landing Ships, such as the *Francis Drake* and *Duquesne*. His service began in the Mediterranean theatre during the Normandy Invasion, crossing the English Channel as his LST deployed American troops on Utah and Omaha Beaches as well as Free French Forces on Sword Beach. A signalman 2nd class, Richard served in three theaters of operation; the Mediterranean, the Pacific and Europe, receiving the Bronze Star Medal for

each. With the thanks of a grateful nation, Richard was honorably discharged on January 3, 1946.

HONORING THE LIFE OF ROBERT ''BOB'' LOQUACI

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. COSTA. Mr. Speaker, I rise today to honor the life of Robert ''Bob'' Loquaci, who passed away on October 31, 2015 at the age of 92. Bob was an extraordinary person, and he will always be remembered as a man who lived his life with purpose and dedication to public service.

Robert ''Bob'' Loquaci was born in Madera, CA on June 1, 1923 to Urbano Loquaci and Eda Pistoresi Loquaci. He was born to be a farmer; he began farming grapes with his father as soon as he was old enough to help. Love came at a young age for Bob, who met the love of his life, Dora Karahadian, when they were both teenagers. Bob would go on to serve his nation by joining the U.S. Navy in the Pacific during the World War II. When Bob returned from his service, he married Dora. They were married for 70 years and together, they had two sons, David and Leslie, who have continued the family farming legacy.

Mr. Loquaci's passion for agriculture was passed on from his father at a young age. Throughout his life, he served his farming community in different leadership positions. Bob served both as a Founding Director and President of the Raisin Bargaining Association. Mr. Loquaci represented the domestic raisin industry by testifying in Washington D.C., where President Nixon later signed a law making imported raisins meet U.S. food Safety standards. Bob also traveled twice to Japan to open the market for U.S. raisins and to promote raisins sales. Bob also served as: founding Director of the California Association of Winegrape Growers (CAWG), Director of the Raisin Administrative Committee, was a Charter Member of the Nisei Farmers' League, and was an active member of the Western Growers Association, Madera Farm Bureau, and Madera Grange.

Bob was a strong supporter of his community and was dedicated to helping those around him. He co-founded the Madera Agriculture Youth Association (MAYA) to support agricultural endeavors of local youth. He was also generous; he was an annual supporter and buyer of the Madera Junior Livestock sale. He was extremely involved, including being a Charter and Lifetime Member of the Madera Elk's Club, a Director of the Madera County Fair Board, a Trustee of La Vina School Board, a Director of the Chamber of Commerce, a member of the VFW, and he was a member of other service clubs as well.

Bob lived his life to the fullest, surrounded by family and friends. His commitment to family and to his community will forever live in the lives of the people he touched. Bob is survived by his loving wife, his two son's David and his wife, Joan and by Leslie and his wife, Laddyne, three grandchildren and four great-grandchildren. I am honored and humbled to join his family in celebrating the life of this amazing man, who will never be forgotten.

Mr. Speaker, I ask my colleagues to join me in paying tribute to a man of great service and dedication. His memory will live on through his family and be remembered by our entire community. We are all better for having known Mr. Robert ''Bob'' Loquaci, a remarkable Californian and Central Valley native.

PERSONAL EXPLANATION

HON. STEVE KING

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. KING of Iowa. Mr. Speaker, on roll call nos. 626, 627, and 628, had I been present, I would have voted ''Yes.''

HONORING ANNIE OLIVER

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, November 17, 2015

Mr. ENGEL. Mr. Speaker, I rise today to honor a leader in my district, from my hometown of the Bronx. To celebrate life for 100 years is a historic milestone, and it's my pleasure to speak about the centurion Annie Oliver.

Born on October 30th, 1915, Annie Ruth Still was originally from Birmingham, Alabama, and is the eldest of two sisters. Following her graduation from the esteemed Park High School in 1944, Annie made the move to New York City to begin work.

In the fateful year of 1957, Annie made two life changing decisions, marrying her husband George Oliver, to whom they would share a lifetime of happiness with two sons, Will Jr. and Floyd, and joining the Church on The Hill AME Zion of New York City.

It was here she began her 58 year tenure of service to her community and love of God. During her outstanding service, Annie Oliver served as President of the Stewardess Board for 26 years, President of the User Board, President of Class Number 1, and currently serving in capacity as ''Mother of the Church''. She also serves as a member of the Board of Trustees for The Church on the Hill and is the longest serving member of their congregation.

After marrying husband George, the family moved to the Bronx, where she still currently resides. Annie began working at Made in America, a 40 year tenure and then an additional 25 years serving at Emerson Radio&TV, and the Beral Motor Company. She lives, loves, and always worked in the Bronx. She is beloved by her family, including 5 grandchildren and 6 great-grandchildren.

This year, on Friday, October 30th, 2015, her family, church family, and friends will be celebrating Mother Annie Oliver's 100th birthday milestone. I wish her the happiest of birthdays and congratulations on this remarkable milestone and on her incredible life.

FAIRNESS TO VETERANS FOR INFRASTRUCTURE INVESTMENT ACT OF 2015

SPEECH OF

HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Monday, November 16, 2015

Mr. BISHOP of Georgia. Mr. Speaker, today I rise in opposition to H.R. 1694, the Fairness to Veterans for Infrastructure Investment Act of 2015.

As the Ranking Member of the House Appropriations Subcommittee for Military Construction, Veterans Affairs, and Related Agencies and the co-chair of the Military Family Caucus, I strongly support efforts to ensure veterans have access to opportunities needed to become successful in the workforce.

Simply, H.R. 1694 makes veterans compete against women- and minority-owned small businesses for an already small goal of ten percent of federal highway and transit construction contracts.

While I agree with the sponsor's stated goal of helping veterans and veteran-owned businesses, I do not believe that the best way to do so is by legally undermining the Disadvantaged Business Enterprise program.

Instead, we should help both veterans and disadvantaged businesses succeed.

That is why I joined Representatives CUMMINGS, NORTON, BROWN, and BUSTOS in sponsoring H.R. 3997, which would create a Veteran-owned Business Enterprise (VBE) program within the Department of Transportation with a stated national goal of ensuring at least 10 percent of federal highway contracts go to veteran-owned small businesses.

Instead, creating a specific and separate contracting goal for veteran-owned businesses is a better way to maximize assistance to veterans, as opposed to forcing competition between these two constituencies, both of whom continue to suffer through disproportionately high unemployment rates.

I urge my colleagues to help veteran-owned businesses compete for Department of Transportation contracts without harming the Disadvantaged Business Enterprise program by supporting H.R. 3997 and not H.R. 1694.

Daily Digest

HIGHLIGHTS

Senate passed S.J. Res. 24, Carbon Pollution Emission Resolution.

Senate passed S.J. Res. 23, Greenhouse Gas Emissions Resolution.

Senate

Chamber Action

Routine Proceedings, pages S7973–S8028

Measures Introduced: Twelve bills and two resolutions were introduced, as follows: S. 2284–2295, S.J. Res. 25, and S. Res. 314. **Pages S8020–21**

Measures Reported:

H.R. 515, to protect children from exploitation, especially sex trafficking in tourism, by providing advance notice of intended travel by registered child-sex offenders outside the United States to the government of the country of destination, requesting foreign governments to notify the United States when a known child-sex offender is seeking to enter the United States, with an amendment in the nature of a substitute.

S. Res. 310, condemning the ongoing sexual violence against women and children from Yezidi, Christian, Shabak, Turkmen, and other religious communities by Islamic State of Iraq and Syria militants and urging the prosecution of the perpetrators and those complicit in these crimes.

S. 2184, to direct the President to establish guidelines for United States foreign development and economic assistance programs, with an amendment in the nature of a substitute.

Measures Passed:

Carbon Pollution Emission Resolution: By 52 yeas to 46 nays (Vote No. 306), Senate passed S.J. Res. 24, providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to "Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units", after agreeing to the motion to proceed. **Pages S7979–S8012**

Greenhouse Gas Emissions Resolution: By 52 yeas to 46 nays (Vote No. 307), Senate passed S.J. Res. 23, providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to "Standards of Performance for Greenhouse Gas Emissions from New, Modified, and Reconstructed Stationary Sources: Electric Utility Generating Units", after agreeing to the motion to proceed. **Page S8012**

Hezbollah International Financing Prevention Act: Committee on Banking, Housing, and Urban Affairs was discharged from further consideration of H.R. 2297, to prevent Hizballah and associated entities from gaining access to international financial and other institutions, and the bill was then passed, after agreeing to the following amendments proposed thereto: **Page S8027**

Daines (for Rubio) Amendment No. 2810, in the nature of a substitute. **Page S8027**

Daines (for Rubio/Shaheen) Amendment No. 2811, to amend the title. **Page S8027**

Transportation, Housing and Urban Development, and Related Agencies Appropriations Act, 2016—Agreement: A unanimous-consent agreement was reached providing that the cloture motion with respect to the motion to proceed to consideration of H.R. 2577, making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2016, be withdrawn; and that at a time to be determined by the Majority Leader, in concurrence with the Democratic Leader, Senate begin consideration of the bill. **Page S8027**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, the 2015 National Drug Control Strategy; which was referred to the Committee on the Judiciary. (PM–32) **Page S8014**

Messages from the House: **Pages S8014–15**

Measures Referred: **Page S8015**

Measures Read the First Time: Page S8015
Enrolled Bills Presented: Page S8015
Executive Communications: Pages S8015–19
Executive Reports of Committees: Pages S8019–20
Additional Cosponsors: Pages S8021–22
Statements on Introduced Bills/Resolutions: Pages S8022–24
Additional Statements:
Amendments Submitted: Pages S8024–26
Authorities for Committees to Meet: Pages S8026–27
Privileges of the Floor: Page S8027

Record Votes: Two record votes were taken today. (Total—307) Page S8012

Adjournment: Senate convened at 10 a.m. and adjourned at 6:48 p.m., until 10 a.m. on Wednesday, November 18, 2015. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S8027.)

Committee Meetings

(Committees not listed did not meet)

DEPARTMENT OF DEFENSE REFORM

Committee on Armed Services: Committee concluded a hearing to examine Department of Defense reform, focusing on overcoming obstacles to effective management, after receiving testimony from Major General Arnold L. Punaro, USMC (Ret.), Member, and Richard V. Spencer, former Member, both of the Defense Business Board; David M. Walker, former Comptroller General of the United States, PricewaterhouseCoopers' Public Sector Practice; and Lisa Bisaccia, CVS Health.

WILDLAND FIRE MANAGEMENT STRATEGIES

Committee on Energy and Natural Resources: Committee concluded a hearing to examine past wildfire seasons to inform and improve future Federal wildland fire management strategies, focusing on agencies' efforts to assess program effectiveness and modernize the firefighting aviation fleet, after receiving testimony from Anne-Marie Fennell, Director, Natural Resources and Environment, Government Accountability Office; John Maisch, Alaska Department of Natural Resources, Fairbanks, on behalf of the National Association of State Foresters; William Wallace Covington, Northern Arizona University Ecological Restoration Institute, Flagstaff; Richard Zerkel, Lynden Air Cargo, LLC, Anchorage, Alaska; Mike Burnett, Chelan County Fire District 1, Wenatchee, Washington; and Jon Wyss, Okanogan County Long Term Recovery Group, Brewster, Washington.

PHYSICIAN OWNED DISTRIBUTORS

Committee on Finance: Committee concluded a hearing to examine physician owned distributors, focusing on whether they are harmful to patients and payers, after receiving testimony from Scott Lederhaus, Association for Medical Ethics, Monarch Beach, California; John Steinmann, American Association of Surgical Distributors, Redlands, California; Suzie Draper, Intermountain Healthcare, Salt Lake City, Utah; and Kevin Reynolds, Ventura, California.

NORTH KOREA

Committee on Foreign Relations: On Monday, November 16, 2015, Committee received a closed briefing on United States policy tools to combat North Korea's nuclear and ballistic missile capabilities from Sung Kim, Special Representative for North Korea Policy, Department of State; and Andrea Hall, National Intelligence Officer for WMD, Office of the Director of National Intelligence.

U.S. OVERSEAS BROADCASTING

Committee on Foreign Relations: Committee concluded a hearing to examine options for reforming United States overseas broadcasting, after receiving testimony from John Lansing, CEO and Director, Jeff Shell, Chairman, and Kenneth R. Weinstein, Member, all of the Broadcasting Board of Governors; Enders Wimbush, Woodrow Wilson International Center for Scholars, Washington, D.C.; and Kevin Klose, University of Maryland Philip Merrill College of Journalism, College Park.

NOMINATION

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine the nomination of Robert McKinnon Califf, of South Carolina, to be Commissioner of Food and Drugs, Department of Health and Human Services, after the nominee, who was introduced by Senator Burr, testified and answered questions in his own behalf.

LAW ENFORCEMENT AND THE FEDERAL GOVERNMENT

Committee on the Judiciary: Subcommittee on Oversight, Agency Action, Federal Rights and Federal Courts concluded a hearing to examine the relationship between the Federal government and state and local law enforcement, after receiving testimony from Vanita Gupta, Principal Deputy Assistant Attorney General, Civil Rights Division, and Ronald L. Davis, Director, Office of Community Oriented Policing Services, both of the Department of Justice; Heather

Mac Donald, Manhattan Institute, and Andrew C. McCarthy, National Review Institute, both of New York, New York; Cedric Alexander, DeKalb County Police Department, DeKalb County, Georgia, on behalf of the National Organization of Black Law Enforcement Executives; and Sherrilyn Ifill, NAACP Legal Defense and Educational Fund, Inc., John P. Walters, Hudson Institute Center for Substance Abuse Policy Research, and Robert N. Driscoll, McGlinchey Stafford PLLC, all of Washington, D.C.

NOMINATION

Committee on Veterans' Affairs: Committee concluded a hearing to examine the nomination of Michael Joseph Missal, of Maryland, to be Inspector General, Department of Veterans Affairs, after the nominee, who was introduced by Senator Blumenthal, testified and answered questions in his own behalf.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

DRUG TRAFFICKING ACROSS THE SOUTHWEST BORDER

United States Senate Caucus on International Narcotics Control: Caucus concluded a hearing to examine drug trafficking across the Southwest Border and oversight of United States counterdrug assistance to Mexico, including S. 32 and H.R. 3380, bills to provide the Department of Justice with additional tools to target extraterritorial drug trafficking activity, after receiving testimony from Michael P. Botticelli, Director, Office of National Drug Control Policy; William R. Brownfield, Assistant Secretary of State for International Narcotics and Law Enforcement Affairs; Jack Riley, Acting Deputy Administrator, Drug Enforcement Administration, Department of Justice; and Todd C. Owen, Assistant Commissioner, Office of Field Operations, Customs and Border Protection, Department of Homeland Security.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 32 public bills, H.R. 4023–4054;and 1 resolution, H. Res. 530, were introduced. **Pages H8279–80**

Additional Cosponsors: **Pages H8281–82**

Report Filed: A report was filed today as follows:

H. Res. 529, providing for consideration of the bill (H.R. 1210) to amend the Truth in Lending Act to provide a safe harbor from certain requirements related to qualified mortgages for residential mortgage loans held on an originating depository institution's portfolio, and for other purposes; providing for consideration of the bill (H.R 3189) to amend the Federal Reserve Act to establish requirements for policy rules and blackout periods of the Federal Open Market Committee, to establish requirements for certain activities of the Board of Governors of the Federal Reserve System, and to amend title 31, United States Code, to reform the manner in which the Board of Governors of the Federal Reserve System is audited, and for other purposes; and providing for proceedings during the period from November 20, 2015, through November 27, 2015 (H. Rept. 114–341). **Page H8279**

Speaker: Read a letter from the Speaker wherein he appointed Representative Fleischmann to act as Speaker pro tempore for today. **Page H8245**

Recess: The House recessed at 10:50 a.m. and reconvened at 12 noon. **Page H8250**

Suspensions—Proceedings Resumed: The House agreed to suspend the rules and pass the following measures which were debated on Monday, November 16th:

Fairness to Veterans for Infrastructure Investment Act of 2015: H.R. 1694, to amend MAP–21 to improve contracting opportunities for veteran-owned small business concerns, by a ⅔ yea-and-nay vote of 285 yeas to 138 nays, Roll No. 631; and **Pages H8259–60**

Providing funds to the Army Corps of Engineers to hire veterans and members of the Armed Forces to assist the Corps with curation and historic preservation activities: H.R. 3114, amended, to provide funds to the Army Corps of Engineers to hire veterans and members of the Armed Forces to assist the Corps with curation and historic preservation activities, by a ⅔ yea-and-nay vote of 422 yeas to 3 nays, Roll No. 632. **Page H8260**

Tribal Labor Sovereignty Act of 2015: The House passed H.R. 511, to clarify the rights of Indians and

Indian tribes on Indian lands under the National Labor Relations Act, by a yea-and-nay vote of 249 yeas to 177 nays, Roll No. 633.

Pages H8260–71, H8272

Pursuant to the Rule, the amendment in the nature of a substitute recommended by the Committee on Education and the Workforce now printed in the bill shall be considered as adopted. **Page H8260**

H. Res. 526, the rule providing for consideration of the bills (H.R. 1737) and (H.R. 511) was agreed to by a yea-and-nay vote of 243 yeas to 181 nays, Roll No. 630, after the previous question was ordered by a yea-and-nay vote of 245 yeas to 178 nays, Roll No. 629. **Pages H8254–59**

Pursuant to section 3 of House Resolution 526, the House shall be considered to have: (1) taken from the Speaker's table the bill (S. 1177) to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; (2) stricken all after the enacting clause of such bill and inserted in lieu thereof the provisions of H.R. 5, as passed by the House; and (3) passed the Senate bill as so amended. Additionally, it shall be in order for the chair of the Committee on Education and the Workforce or his designee to move that the House insist on its amendment to S. 1177 and request a conference with the Senate thereon.

Every Child Achieves Act of 2015—Motion to go to Conference: Pursuant to H. Res. 526, the House agreed to the Kline motion to take from the Speaker's table the bill (S. 1177) to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves, insist on the House amendment, and request a conference with the Senate thereon, by voice vote. **Pages H8271–72**

The Chair appointed the following Members of the House to the conference committee on the bill: Representatives Kline, Foxx, Roe (TN), Thompson (PA), Guthrie, Rokita, Messer, Grothman, Russell, Curbelo (FL), Scott (VA), Davis (CA), Fudge, Polis, Wilson (FL), Bonamici, and Clark (MA). **Page H8272**

Suspensions: The House agreed to suspend the rules and pass the following measure:

Condemning in the strongest terms the terrorist attacks in Paris, France, on November 13, 2015: H. Res. 524, amended, condemning in the strongest terms the terrorist attacks in Paris, France, on November 13, 2015, that resulted in the loss of at least 129 lives. **Pages H8272–77**

Recess: The House recessed at 4:16 p.m. and reconvened at 5:21 p.m. **Page H8277**

Recess: The House recessed at 5:26 p.m. and reconvened at 10:10 p.m. **Page H8278**

Additional Conferees: The Chair announced the appointment of the following additional conferees on H.R. 22, to authorize funds for Federal-aid highways, highway safety programs, and transit programs:

From the Committee on Armed Services, for consideration of sec. 1111 of the House amendment, and modifications committed to conference: Representatives Thornberry, Rogers (AL), and Loretta Sanchez (CA).

From the Committee on Energy and Commerce, for consideration of secs. 1109, 1201, 1202, 3003, Division B, secs. 31101, 31201, and Division F of the House amendment and secs. 11005, 11006, 11013, 21003, 21004, subtitles B and D of title XXXIV, secs. 51101 and 51201 of the Senate amendment, and modifications committed to conference: Representatives Upton, Mullin, and Pallone.

From the Committee on Financial Services, for consideration of sec. 32202 and Division G of the House amendment and secs. 52203 and 52205 of the Senate amendment, and modifications committed to conference: Representatives Hensarling, Neugebauer, and Maxine Waters (CA).

From the Committee on the Judiciary, for consideration of secs. 1313, 24406, and 43001 of the House amendment and secs. 32502 and 35437 of the Senate amendment, and modifications committed to conference: Representatives Goodlatte, Marino, and Lofgren.

From the Committee on Natural Resources, for consideration of secs. 1114–16, 1120, 1301, 1302, 1304, 1305, 1307, 1308, 1310–1313, 1316, 1317, 10001, and 10002 of the House amendment and secs. 11024–27, 11101–13, 11116–18, 15006, 31103–05, and 73103 of the Senate amendment, and modifications committed to conference: Representatives Thompson (PA), LaHood, and Grijalva.

From the Committee on Oversight and Government Reform, for consideration of secs. 5106, 5223, 5504, 5505, 61003, and 61004 of the House amendment and secs. 12004, 21019, 31203, 32401, 32508, 32606, 35203, 35311, and 35212 of the Senate amendment, and modifications committed to conference: Representatives Mica, Hurd (TX), and Connolly.

From the Committee on Science, Space, and Technology, for consideration of secs. 3008, 3015, 4003, and title VI of the House amendment and secs. 11001, 12001, 12002, 12004, 12102, 21009, 21017, subtitle B of title XXXI, secs. 35105 and 72003 of the Senate amendment, and modifications committed to conference: Representatives Smith (TX), Comstock, and Edwards.

From the Committee on Ways and Means, for consideration of secs. 31101, 31201, and 31203 of

the House amendment, and secs. 51101, 51201, 51203, 52101, 52103–05, 52108, 62001, and 74001 of the Senate amendment, and modifications committed to conference: Representatives Brady (TX), Reichert, and Levin. **Page H8278**

Presidential Message: Read a message from the President wherein he transmitted the 2015 National Drug Control Strategy—referred to the Committees on Agriculture, Armed Services, Education and the Workforce, Energy and Commerce, Financial Services, Foreign Affairs, Homeland Security, the Judiciary, Natural Resources, Oversight and Government Reform, Transportation and Infrastructure, Veterans Affairs, Ways and Means, and the Permanent Select Committee on Intelligence and ordered to be printed (H. Doc. 114–79). **Pages H8277–78**

Quorum Calls—Votes: Five yea-and-nay votes developed during the proceedings of today and appear on pages H8258, H8258–59, H8259–60, H8260, and H8272. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 10:15 p.m.

Committee Meetings

U.S. INTERNATIONAL FOOD AID PROGRAMS: TRANSPORTATION PERSPECTIVES

Committee on Agriculture: Subcommittee on Livestock and Foreign Agriculture; and the Subcommittee on Coast Guard and Maritime Transportation of the House Committee on Transportation and Infrastructure, held a joint hearing entitled "U.S. International Food Aid Programs: Transportation Perspectives". Testimony was heard from David J. Berteau, Assistant Secretary of Defense, Logistics and Material Readiness, Department of Defense; Paul N. (Chip) Jaenichen, Sr., Administrator, Maritime Administration; and public witnesses.

EXAMINING THE REGULATION OF DIAGNOSTIC TESTS AND LABORATORY OPERATIONS

Committee on Energy and Commerce: Subcommittee on Health held a hearing entitled "Examining the Regulation of Diagnostic Tests and Laboratory Operations". Testimony was heard from Jeffrey Shuren, Director, Center for Devices and Radiological Health, Food and Drug Administration, Department of Health and Human Services; and Patrick Conway, Deputy Administrator for Innovation and Quality and Chief Medical Officer, Office of the Administrator, Centers for Medicare and Medicaid Services, Department of Health and Human Services.

OVERSIGHT OF THE FEDERAL COMMUNICATIONS COMMISSION

Committee on Energy and Commerce: Subcommittee on Communications and Technology held a hearing entitled "Oversight of the Federal Communications Commission". Testimony was heard from the following Federal Communications Commission officials: Tom Wheeler, Chairman; Mignon Clyburn, Commissioner; Jessica Rosenworcel, Commissioner; Ajit Pai, Commissioner; and Michael O'Rielly, Commissioner.

MISCELLANEOUS MEASURES

Committee on Energy and Commerce: Full Committee began a markup on H.R. 1321, the "Microbead-Free Waters Act of 2015"; H.R. 2017, the "Common Sense Nutrition Disclosure Act of 2015"; H.R. 3014, the "Medical Controlled Substances Transportation Act"; H.R. 3537, the "Synthetic Drug Control Act of 2015"; H.R. 3716, the "Ensuring Terminated Providers Are Removed from Medicaid and CHIP Act"; H.R. 3821, the "Medicaid Directory of Caregivers Act"; H. J. Res. 71, providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to "Standards of Performance for Greenhouse Gas Emissions from New, Modified, and Reconstructed Stationary Sources: Electric Utility Generating Units"; H.J. Res. 72, providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to "Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units"; and S. 611, the "Grassroots Rural and Small Community Water Systems Assistance Act".

DODD-FRANK FIVE YEARS LATER: WHAT HAVE WE LEARNED FROM CONFLICT MINERALS REPORTING?

Committee on Financial Services: Subcommittee on Monetary Policy and Trade held a hearing entitled "Dodd-Frank Five Years Later: What Have We Learned from Conflict Minerals Reporting?". Testimony was heard from Kimberly Gianopoulos, Director for International Trade, Government Accountability Office; Evode Imena, Minister of Mines, Ministry of Natural Resources, Republic of Rwanda; and public witnesses.

WOMEN AND TECHNOLOGY: INCREASING OPPORTUNITY AND DRIVING INTERNATIONAL DEVELOPMENT

Committee on Foreign Affairs: Full Committee held a hearing entitled "Women and Technology: Increasing Opportunity and Driving International Development". Testimony was heard from public witnesses.

TERRORIST FINANCING: KIDNAPPING, ANTIQUITIES TRAFFICKING, AND PRIVATE DONATIONS

Committee on Foreign Affairs: Subcommittee on Terrorism, Nonproliferation, and Trade held a hearing entitled "Terrorist Financing: Kidnapping, Antiquities Trafficking, and Private Donations". Testimony was heard from public witnesses.

CHARTING THE ARCTIC: SECURITY, ECONOMIC, AND RESOURCE OPPORTUNITIES

Committee on Foreign Affairs: Subcommittee on Europe, Eurasia and Emerging Threats; and Subcommittee on the Western Hemisphere, held a joint hearing entitled "Charting the Arctic: Security, Economic, and Resource Opportunities". Testimony was heard from Admiral Robert Papp, Jr., USCG, Retired, U.S. Special Representative for the Arctic, Department of State; Rear Admiral Timothy C. Gallaudet, USN, Oceanographer and Navigator, Department of Defense; and Vice Admiral Charles D. Michel, USCG, Vice Commandant, Department of Homeland Security.

ASSESSING TSA'S MANAGEMENT AND IMPLEMENTATION OF THE SCREENING PARTNERSHIP PROGRAM

Committee on Homeland Security: Subcommittee on Transportation Security held a hearing entitled "Assessing TSA's Management and Implementation of the Screening Partnership Program". Testimony was heard from Jennifer Grover, Director, Homeland Security and Justice, Government Accountability Office; and Carolyn Dorgham, Director, Screening Partnership Program, Office of Security Operations, Transportation Security Administration, Department of Homeland Security.

OVERSIGHT OF THE UNITED STATES DEPARTMENT OF JUSTICE

Committee on the Judiciary: Full Committee held a hearing entitled "Oversight of the United States Department of Justice". Testimony was heard from Loretta E. Lynch, Attorney General, Department of Justice.

THE STATE OF COMPETITION IN THE PHARMACY BENEFITS MANAGER AND PHARMACY MARKETPLACES

Committee on the Judiciary: Subcommittee on Regulatory Reform, Commercial and Antitrust Law held a hearing entitled "The State of Competition in the Pharmacy Benefits Manager and Pharmacy Marketplaces". Testimony was heard from public witnesses.

U.S. DEPARTMENT OF EDUCATION: INFORMATION SECURITY REVIEW

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "U.S. Department of Education: Information Security Review". Testimony was heard from Greg Wilshusen, Director, Information Security Issues, Government Accountability Office; Kathleen S. Tighe, Inspector General, Department of Education; and Danny A. Harris, Chief Information Officer, Department of Education.

PORTFOLIO LENDING AND MORTGAGE ACCESS ACT; FORM ACT OF 2015

Committee on Rules: Full Committee held a hearing on H.R. 1210, the "Portfolio Lending and Mortgage Access Act"; and H.R. 3189, the "FORM Act of 2015". The committee granted, by record vote of 7–1, a structured rule for H.R. 1210. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule provides that an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–34 shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule makes in order only the amendment to H.R. 1210 printed in part A of the Rules Committee report, if offered by Representative Norcross of New Jersey, or his designee, which shall be considered as read, shall be debatable for 10 minutes equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendment printed in part A of the report. The rule provides one motion to recommit with or without instructions. Additionally, the rule grants a structured rule for H.R. 3189. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule provides that an amendment in the nature of a

substitute consisting of the text of Rules Committee Print 114–35, modified by the amendment printed in part B of the Rules Committee report, shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule makes in order only those further amendments to H.R. 3189 printed in part C of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part C of the report. The rule provides one motion to recommit with or without instructions. In section 3, the rule provides that on any legislative day during the period from November 20, 2015, through November 27, 2015: the Journal of the proceedings of the previous day shall be considered as approved; and the Chair may at any time declare the House adjourned to meet at a date and time to be announced by the Chair in declaring the adjournment. Finally, in section 4, the rule provides that the Speaker may appoint Members to perform the duties of the Chair for the duration of the period addressed by section 3. Testimony was heard from Chairman Hensarling and Representative Maxine Waters of California.

EXPLORING COMMERCIAL OPPORTUNITIES TO MAXIMIZE EARTH SCIENCE INVESTMENTS

Committee on Science, Space, and Technology: Subcommittee on Space; and Subcommittee on Environment, held a joint hearing entitled "Exploring Commercial Opportunities to Maximize Earth Science Investments". Testimony was heard from public witnesses.

NATIONAL ENTREPRENEURS' DAY

Committee on Small Business: Full Committee held a hearing entitled "National Entrepreneurs' Day". Testimony was heard from public witnesses.

LEGISLATIVE MEASURES

Committee on Veterans' Affairs: Subcommittee on Health held a hearing on H.R. 1319, the "Ask Veterans Act"; H.R. 1603, the "Military Sexual Assault Victims Empowerment Act"; H.R. 1904, the "Wounded Warrior Workforce Enhancement Act"; H.R. 2639, the "Marriage and Family Therapists for Veterans Act"; H.R. 3234, the "Failing VA Medical Center Recovery Act"; H.R. 3471, the "Veterans Mobility Safety Act of 2015"; H.R. 3549, the "VA Billing Accountability Act"; draft of the "Promoting Responsible Opioid Management and Incorporating Medical Expertise Act"; and the "VA Purchased Health Care Streamlining and Modernization Act". Testimony was heard from Representatives O'Rourke; Barr; Cartwright; Peters; Roby; Walorski; and Bilirakis; Janet Murphy, Acting Deputy Under Secretary for Health for Operations and Management, Veterans Health Administration, Department of Veterans Affairs; and public witnesses.

MOVING AMERICA'S FAMILIES FORWARD: LESSONS LEARNED FROM WELFARE REFORMS IN OTHER COUNTRIES

Committee on Ways and Means: Subcommittee on Human Resources held a hearing entitled "Moving America's Families Forward: Lessons Learned from Welfare Reforms in Other Countries". Testimony was heard from public witnesses.

Joint Meetings

SECRET SERVICE

Committee on Homeland Security and Governmental Affairs: Subcommittee on Regulatory Affairs and Federal Management concluded joint hearings with the House Committee on Homeland Security Subcommittee on Oversight and Management Efficiency to examine ongoing challenges at the Secret Service and their government-wide implications, after receiving testimony from Joseph P. Clancy, Director, Secret Service, and John Roth, Inspector General, both of the Department of Homeland Security; and Joel C. Willemssen, Managing Director, Information Technology, Government Accountability Office.

COMMITTEE MEETINGS FOR WEDNESDAY, NOVEMBER 18, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Armed Services: Subcommittee on SeaPower, to receive a closed briefing on undersea critical infrastructure protection, 9:30 a.m., SVC–217.

Committee on Commerce, Science, and Transportation: business meeting to consider S. 571, to amend the Pilot's Bill of Rights to facilitate appeals and to apply to other certificates issued by the Federal Aviation Administration, to require the revision of the third class medical certification regulations issued by the Federal Aviation Administration, S. 1143, to make the authority of States of Washington, Oregon, and California to manage Dungeness crab fishery permanent and for other purposes, S. 1518, to make exclusive the authority of the Federal Government to regulate the labeling of products made in the United States and introduced in interstate or foreign commerce,

S. 1685, to direct the Federal Communications Commission to extend to private land use restrictions its rule relating to reasonable accommodation of amateur service communications, S. 1886, to reauthorize the Integrated Coastal and Ocean Observation System Act of 2009 and for other purposes, S. 1916, to include skilled nursing facilities as a type of health care provider under section 254(h) of the Communications Act of 1934, S. 2044, to prohibit the use of certain clauses in form contracts that restrict the ability of a consumer to communicate regarding the goods or services offered in interstate commerce that were the subject of the contract, S. 2206, to reduce the incidence of sexual harassment and assault at the National Oceanic and Atmospheric Administration, to reauthorize the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002, and to reauthorize the Hydrographic Services Improvement Act of 1998, the nominations of Anthony Rosario Coscia, of New Jersey, to be a Director of the Amtrak Board of Directors for a term of five years (Reappointment), and Derek Tai-Ching Kan, of California, to be a Director of the Amtrak Board of Directors for a term of five years, and routine lists in the Coast Guard, 11 a.m., SR–253.

Committee on Environment and Public Works: to hold hearings to examine the international climate negotiations, 9:30 a.m., SD–406.

Committee on Foreign Relations: to receive a closed briefing on the aftermath of Paris, focusing on America's role, 10 a.m., SH–219.

Committee on Health, Education, Labor, and Pensions: business meeting to consider H.R. 2820, to reauthorize the Stem Cell Therapeutic and Research Act of 2005, S. 1719, to provide for the establishment and maintenance of a National Family Caregiving Strategy, and the nominations of Victoria A. Lipnic, of Virginia, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2020 (Reappointment), and Michael Herman Michaud, of Maine, to be Assistant Secretary of Labor for Veterans' Employment and Training, 10 a.m., SD–430.

Committee on Indian Affairs: business meeting to consider S. 817, to provide for the addition of certain real property to the reservation of the Siletz Tribe in the State of Oregon, and S. 818, to amend the Grand Ronde Reservation Act to make technical corrections; to be immediately followed by a hearing to examine S. 410, to strengthen Indian education, S. 1163, to amend the Native American Programs Act of 1974 to provide flexibility and reauthorization to ensure the survival and continuing vitality of Native American languages, and S. 1928, to support the education of Indian children, 2:15 p.m., SD–628.

Committee on the Judiciary: to hold hearings to examine National Adoption Month, focusing on stories of success and meeting the challenges of international adoptions, 10 a.m., SD–226.

Committee on Veterans' Affairs: to hold hearings to examine S. 2106, to require the Secretary of Veterans Affairs to develop and publish an action plan for improving the vocational rehabilitation services and assistance provided by the Department of Veterans Affairs, S. 2134, to require the Secretary of Veterans Affairs to carry out a pilot program to provide educational assistance to certain former members of the Armed Forces for education and training as physician assistants of the Department of Veterans Affairs, to establish pay grades and require competitive pay for physician assistants of the Department, S. 2170, to amend title 38, United States Code, to improve the ability of health care professionals to treat veterans through the use of telemedicine, S. 2253, to amend title 38, United States Code, to provide veterans affected by closures of educational institutions certain relief and restoration of educational benefits, and an original bill entitled, "Veterans Affairs Patient Protection Act", 2:30 p.m., SR–418.

House

Committee on Agriculture, Full Committee, hearing entitled "Past, Present, and Future of SNAP: The National Commission on Hunger", 10 a.m., 1300 Longworth.

Committee on Armed Services, Full Committee, hearing entitled "Outside Views on the Strategy for Iraq and Syria", 1 p.m., 2118 Rayburn.

Committee on the Budget, Full Committee, hearing entitled "Does Biennial Budgeting Fit in a Rewrite of the Budget Process?", 9:45 a.m., 210 Cannon.

Committee on Energy and Commerce, Full Committee, markup on H.R. 1321, the "Microbead-Free Waters Act of 2015"; H.R. 2017, the "Common Sense Nutrition Disclosure Act of 2015"; H.R. 3014, the "Medical Controlled Substances Transportation Act"; H.R. 3537, the "Synthetic Drug Control Act of 2015"; H.R. 3716, the "Ensuring Terminated Providers Are Removed from Medicaid and CHIP Act"; H.R. 3821, the "Medicaid Directory of Caregivers Act"; H.J. Res. 71, providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to "Standards of Performance for Greenhouse Gas Emissions from New, Modified, and Reconstructed Stationary Sources: Electric Utility Generating Units"; H.J. Res. 72, providing for congressional disapproval under chapter 8 of title 5, United States Code, of a rule submitted by the Environmental Protection Agency relating to "Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units"; and S. 611, the "Grassroots Rural and Small Community Water Systems Assistance Act" (continued), 10 a.m., 2123 Rayburn.

Committee on Financial Services, Full Committee, hearing entitled "Examining the SEC's Agenda, Operations, and FY 2017 Budget Request", 10 a.m., 2128 Rayburn.

Committee on Homeland Security, Full Committee; and the House Committee on Foreign Affairs, joint hearing entitled "The Rise of Radicalism: Growing Terrorist Sanctuaries and the Threat to the U.S. Homeland", 10 a.m., HVC–210.

Committee on the Judiciary, Full Committee, markup on H.R. 2830, to make technical amendments to update statutory references to certain provisions classified to title 2, United States Code; H.R. 2831, to make technical amendments to update statutory references to provisions classified to chapters 44, 45, 46, and 47 of title 50,

United States Code; H.R. 2832, to make technical amendments to update statutory references to certain provisions classified to title 52, United States Code; H.R. 3713, the ''Sentencing Reform Act of 2015''; H.R. 4002, the ''Criminal Code Improvement Act of 2015''; H.R. 4003, the ''Regulatory Reporting Act of 2015''; H.R. 4001, the ''Fix the Footnotes Act of 2015''; and H.R. 4023, the ''Clean Up the Code Act of 2015'', 10 a.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, hearing on discussion draft of the ''Protecting America's Recreation and Conservation Act'', 10 a.m., 1324 Longworth.

Committee on Oversight and Government Reform, Subcommittee on Government Operations; and Subcommittee on Higher Education and Workforce Training of the House Committee on Education and the Workforce, joint hearing entitled ''Federal Student Aid: Performance-Based Organization Review'', 9 a.m., 2154 Rayburn.

Subcommittee on Transportation and Public Assets; and Subcommittee on Information Technology, joint hearing entitled ''The Internet of Cars'', 2 p.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Full Committee, hearing entitled ''The Administration's Empty Promises for the International Climate Treaty'', 10 a.m., 2318 Rayburn.

Subcommittee on Energy, hearing entitled ''Recommendations of the Commission to Review the Effectiveness of the National Energy Laboratories'', 2 p.m., 2318 Rayburn.

Committee on Small Business, Subcommittee on Contracting and Workforce, hearing entitled ''Continuing Challenges for Small Contractors'', 10 a.m., 2360 Rayburn.

Committee on Veterans' Affairs, Full Committee, hearing entitled ''Choice Consolidation: Assessing VA's Plan to Improve Care in the Community'', 10:30 a.m., 334 Cannon.

Subcommittee on Economic Opportunity, hearing entitled ''Examining VA's On-the-Job Training and Apprenticeship Program'', 2 p.m., 334 Cannon.

Committee on Ways and Means, Full Committee, business meeting to consider changes to the Committee's rules, 9:30 a.m., 1100 Longworth.

Joint Meetings

Conference: meeting of conferees on H.R. 22, an act to authorize funds for Federal-aid highways, highway safety programs, and transit programs, 10 a.m., 2167, Rayburn Building.

Joint Economic Committee: to hold hearings to examine millennial voices on advancing the American dream, 2 p.m., SD–106.

Conference: meeting of conferees on S. 1177, a bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves, 2:30 p.m., HVC–201AB.

Next Meeting of the **SENATE**

10 a.m., Wednesday, November 18

Senate Chamber

Program for Wednesday: Senate will be in a period of morning business until 11 a.m. The motion to invoke cloture on the motion to proceed to consideration of H.R. 2577, Transportation, Housing and Urban Development, and Related Agencies Appropriations Act, 2016, will be withdrawn, and at a time to be determined by the two Leaders, Senate will begin consideration of the bill.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, November 18

House Chamber

Program for Wednesday: Consideration of H.R. 1737—Reforming CFPB Indirect Auto Financing Guidance Act and H.R. 1210—Portfolio Lending and Mortgage Access Act (Subject to a Rule).

Extensions of Remarks, as inserted in this issue

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